NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

BIDDING DOCUMENTS

FOR

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

SECTION - I, II, III, IV & V

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

BIDDING DOCUMENTS

FOR

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

SECTION - I, II, III, IV & V

BIDDING DOCUMENTS
FOR

DEVELOPMENT OF 6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWHR BATTERY ENERGY STORAGE SYSTEM (BESS) AT ABVTPS PROJECT OF CSPGCL PROJECT THROUGH CNGEL (JV COMPANY BETWEEN NGEL & CSPGCL)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

SECTION - I, II, III, IV & V

BIDDING DOCUMENT NO. : NRE-CS-5839-CNGEL-EPC

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Acronyms

BDS	Bid Data Sheet
CIF	Cost, Insurance and Freight
CIP	Carriage and Insurance paid to (place)
CPM	Critical Path Method
EDI	Electronic Data Interchange
EXW	Ex factory, ex works or ex warehouse
FCA	Free Carrier
FOB	Free on Board
FP	Forms & Procedures
GCC	General Conditions of Contract
ICC	International Chamber of Commerce
IFB	Invitation for Bids
ITB	Instructions to Bidders
SCC	Special Conditions of Contract
TS	Technical Specifications and Drawings
UNCITRAL	United Nations Commission on International Trade Law
INCOTERMS	International Rules for International Trade Law.
Note:	The terms EXW, CIF, etc. shall be governed by the rules prescribed in the current edition of INCOTERMS, published by the International Chamber of Commerce, 38, Cours Albert 1er, 75008, Paris, France/.

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

SECTION - I

INVITATION FOR BIDS (IFB)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

ABRIDGED INVITATION FOR BIDS

NTPC GREEN ENERGY Limited(NGEL)
CONTRACT SERVICES

INVITATION FOR BIDS (IFB)
FOR
EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL

(DOMESTIC COMPETITIVE BIDDING)

IFB No. NRE-CS-5839-CNGEL-EPC **Date: 31.12.2025**
ETS Search Code: NTPCREL-2025-TN000024

NTPC GREEN ENERGY Limited on behalf of Joint Venture (JV) between NTPC Green Energy Limited (NGEL) and Chhattisgarh State Power Generation Company Limited (CSPGCL), invites online bids on Single Stage Two Envelope Bidding basis (Envelope I: Techno-Commercial Bid & Envelope II: Price Bid) followed by Reverse Auction from eligible bidders for '**EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL**.

For the detailed IFB and bidding documents please visit https://ntpctender.ntpc.co.in, ngel.in **or** www.ntpc.co.in from 31.12.2025 or contact DGM(CS) / AGM (CS), NTPC Green Energy Limited, 4th Floor, Renewable Building, Plot No. 3E, Ecotech-II, Udyog Vihar, Greater Noida, Distt. Gautam Budh Nagar - 201301 (U.P.) on Mob No. +91-9418084741 or at e-mail: prishantpathik@ntpc.co.in / vishaljain@ntpc.co.in

Registered Office:
NTPC Green Energy Limited
NTPC Bhawan, SCOPE Complex, 7, Institutional Area,
Lodhi Road, New Delhi-110003,
Corporate Identification Number: U40100DL2022GOI396282

ABRIDGED INVITATION FOR BIDS(Corrigendum-I)

NTPC GREEN ENERGY Limited (NGEL)
CONTRACT SERVICES

INVITATION FOR BIDS (IFB)
FOR
EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL

(DOMESTIC COMPETITIVE BIDDING)

IFB No. NRE-CS-5839-CNGEL-EPC **Date: 12.01.2026**
ETS Search Code: NTPCREL-2025-TN000024

NTPC GREEN ENERGY Limited on behalf of Joint Venture (JV) between NTPC Green Energy Limited (NGEL) and Chhattisgarh State Power Generation Company Limited (CSPGCL), invites online bids on Single Stage Two Envelope Bidding basis (Envelope I: Techno-Commercial Bid & Envelope II: Price Bid) followed by Reverse Auction from eligible bidders for '**EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL**.

Closed Date and Time 31.01.2026 17:00 Hrs
Submission Date with Time : 10-02-2026 15:00 Hrs
Extended Opening Date with Time: 10-02-2026 15:30 Hrs

For the detailed IFB and bidding documents please visit https://ntpctender.ntpc.co.in, ngel.in **or** www.ntpc.co.in from 31.12.2025 or contact DGM(CS) / AGM (CS), NTPC Green Energy Limited, 4th Floor, Renewable Building, Plot No. 3E, Ecotech-II, Udyog Vihar, Greater Noida, Distt. Gautam Budh Nagar - 201301 (U.P.) on Mob No. +91-9418084741 or at e-mail: prishantpathik@ntpc.co.in / vishaljain@ntpc.co.in

Registered Office:
NTPC Green Energy Limited
NTPC Bhawan, SCOPE Complex, 7, Institutional Area,
Lodhi Road, New Delhi-110003,
Corporate Identification Number: U40100DL2022GOI396282

ABRIDGED INVITATION FOR BIDS(Corrigendum-II)

NTPC GREEN ENERGY Limited (NGEL)
CONTRACT SERVICES

INVITATION FOR BIDS (IFB)
FOR
EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL

(DOMESTIC COMPETITIVE BIDDING)

IFB No. NRE-CS-5839-CNGEL-EPC **Date: 30.01.2026**
ETS Search Code: NTPCREL-2025-TN000024

NTPC GREEN ENERGY Limited on behalf of Joint Venture (JV) between NTPC Green Energy Limited (NGEL) and Chhattisgarh State Power Generation Company Limited (CSPGCL), invites online bids on Single Stage Two Envelope Bidding basis (Envelope I: Techno-Commercial Bid & Envelope II: Price Bid) followed by Reverse Auction from eligible bidders for '**EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL**.

Extended Closed Date and Time 15.02.2026 17:00 Hrs
Extended Submission Date with Time : 25-02-2026 15:00 Hrs
Extended Opening Date with Time: 25-02-2026 15:30 Hrs

For the detailed IFB and bidding documents please visit https://ntpctender.ntpc.co.in, ngel.in **or** www.ntpc.co.in from 31.12.2025 or contact DGM(CS) / AGM (CS), NTPC Green Energy Limited, 4th Floor, Renewable Building, Plot No. 3E, Ecotech-II, Udyog Vihar, Greater Noida, Distt. Gautam Budh Nagar - 201301 (U.P.) on Mob No. +91-9418084741 or at e-mail: prishantpathik@ntpc.co.in / vishaljain@ntpc.co.in

Registered Office:
NTPC Green Energy Limited
NTPC Bhawan, SCOPE Complex, 7, Institutional Area,
Lodhi Road, New Delhi-110003,
Corporate Identification Number: U40100DL2022GOI396282

INVITATION FOR BIDS -Corrigendum-III

NTPC GREEN ENERGY LIMITED
(A WHOLLY OWNED SUBSIDIARY OF NTPC LIMITED)

CONTRACTS SERVICES

INVITATION FOR BIDS (IFB)

FOR

"EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL"

(Domestic Competitive Bidding)

IFB No.: NRE-CS-5839-CNGEL-EPC

Date: 14.02.2026

ETS Portal Tender Search Code: NTPCREL-2025-TN000024

Bidding Document No: NRE-CS-5839-CNGEL-EPC

1.0 **CNGEL (JV company between NGEL & CSPGCL** invites online bids from eligible bidders on Single Stage Two Envelope (i.e. Envelope-I: Techno-Commercial Bid and Envelope-II: Price Bid) followed by Reverse Auction for **"EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL".**

2.0

2.1 Design, Engineering, Supply, Packaging and Forwarding, Transportation, Unloading, Storage, Construction, Erection, Testing, Commissioning of grid connected 6 MW floating solar PV project coupled with 6 MW /24 MWhr Battery Energy Storage System **(BESS)** on turnkey basis. BESS capacity to be considered is the rated AC discharge capacity at Point of injection/Metering. Power evacuation system and equipment including integration in existing 11 kV Station Bus is considered in the scope of Bidder along with any modification with all material and service in the switchgear if required.

2.2 Performance conditions of Solar + ESS Project, such as Annual Peak Hour Energy Availability, Off-peak hour capacity utilization factor etc. will be mentioned in detailed specifications.

2.3 Bidder has to bid for the complete project including Floating solar , BESS and power evacuation works.

2.4 Designed life of BESS system including that of battery shall be of minimum 15 years (considering daily single cycle operation) from the date of successful completion of trial run.

2.5 Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run shall be in scope of Bidder.

2.6 Bidder to provide comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS.

2.7 Bidder has to provide the 10 year AMC for critical solar equipments.

2.8 Grid compliance study, Reactive power compensations and power quality compliance for entire solar + BESS system upto grid interconnection point shall be in scope of bidder.

2.9 Project shall comprise of Floating Solar PV, BESS containers, Battery Management System

(BMS), Energy Management System (EMS) and SCADA, Power Conversion System (PCS), Protection system, Communication System, HT & LT System, Auxiliary power system, Monitoring & Control system, Fire Fighting, remote control and monitoring, HT & LT Transformers, Power evacuation Infrastructure, and all other associated materials and accessories necessary for trouble free operation and maintenance of the solar + BESS system.

2.10 BMS and EMS of the BESS should comply with the latest IS or/and IEC or/and IEEE standards. Fire safety of the Battery and container should be in line with latest Indian or/and international standards.

2.11 Floating solar PV plant should be as per Technical Specification of Contract and latest guidelines of CEA, CERC and LDC.

2.12 Bidder has to ensure the Minimum Guaranteed generation from floating Solar PV plant.

2.13 Site-grading, clearing of vegetation, as required.

2.14 Providing power supply and water supply for construction purposes.

2.15 Construction of control room with switchgear room, with all electrical fitting and furniture, security cabin etc.

2.16 All associated electrical and civil works required for interfacing with grid (i.e. transformer(s), switchgear, protection system, cables, etc).

2.17 Metering philosophy should be as per site requirement and metering system will be in the scope of bidder.

2.18 Provide documentation for design and expected performance through design calculations, software, design drawings, equipment drawings, and modifications to the existing drawings.

2.19 Develop detailed start up and site acceptance plan.

2.20 Provide training for the operators, engineers, technicians and maintenance personnel.

2.21 Supply any special equipment and tools required for the operation and maintenance of the project.

2.22 Provide a warranty for the battery energy storage system (BESS) and its constituents equipment as per technical specification.

2.23 All other details will be provided in the IFB

3.0 NGEL intends to finance the subject package through Own Resources/Borrowings.

4.0 Detailed specifications, Scope of work and Terms & Conditions are given in the bidding documents, which are available for examination and downloading at e-tender portal (as specified in this notice) and as per the following schedule:

ETS Portal Tender Search Code (TSC)	**NTPCREL-2025-TN000024**	
IFB Date	31.12.2025	
Period of Downloading of Bidding Documents	From 14.02.2026 to 28.02.2026 [up to 17:00 HRS (IST)]	
Pre-Bid Conference and Last Date for receipt of queries from prospective Bidders	03.03.2026	
Last Date and Time for receipt of bids comprising both Techno-Commercial Bid and Price Bid	16.03.2026	15:00 Hrs.
Date & Time of opening of Techno-Commercial Bid	16.03.2026	15:30 Hrs.

Cost of Bidding Documents in INR	Not Applicable

5.0 All bids must be accompanied by Bid Security for an amount of **INR 1.0 Crore** (INR One Crore only) in the form as stipulated in the Bidding Documents.

ANY BID NOT ACCOMPANIED BY AN ACCEPTABLE BID SECURITY IN A SEPARATE SEALED ENVELOPE SHALL BE REJECTED BY THE EMPLOYER AS BEING NON-RESPONSIVE AND RETURNED TO THE BIDDER WITHOUT BEING OPENED.

6.0 QUALIFYING REQUIREMENTS FOR BIDDERS

Qualifying Requirement for **EPC PACKAGE FOR DEVELOPMENT OF 6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWHR BATTERY ENERGY STORAGE SYSTEM (BESS) AT ABVTPS PROJECT OF CSPGCL**

PROJECT CONFIGURATION: 6 MW FSPV WITH 6 MW /24 MWHR BESS

In addition to the requirements stipulated under section Instruction to Bidder (ITB), the Bidder should also meet the qualifying requirements stipulated hereunder in Clause 1.0 and Clause 2.0

1.0 TECHNICAL CRITERIA

1.1 The Bidder should have designed, supplied, erected/ supervised erection and commissioned/ supervised commissioning of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or above, out of which at least one plant should have been of 2.0 MWp capacity or above. The reference plant of 2.0 MWp or above capacity must have been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening.

OR

1.2 The Bidder should be a developer of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or above, out of which at least one plant should have been of 2.0 MWp capacity or above. The reference plant of 2.0 MWp or above capacity must have been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening.

OR

1.3 (a) The Bidder should have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power/ steel/ oil and gas/ petrochemical/ fertilizer/cement/coal mining including coal handling plant and/ or any other process industry, of a value of INR 47 Crore (Indian Rupees Forty Seven Crore only) or more, in a single project or single work and the same should be in successful operation for at least one (1) year/Six(6)months* prior to the date of techno-commercial bid opening.

*Successful Operation:

At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind.

At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind).

And

(b) The Bidder should have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power/ steel/ oil and gas/ petrochemical/ fertilizer/cement/coal mining including coal handling plant and/ or any other process industry, of a value of **INR 47 Crore** (Indian Rupees Forty Seven Crore only) or more, in a single project or single work and the same should be in successful operation for at least one (1) year/Six(6)months* prior to the date of techno-commercial bid opening.

*Successful Operation:

At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind.

At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind).

1.4 The bidder should be an Indian company registered in India and should be Group company/Holding Company/Subsidiary company of a firm meeting the requirement (s) of Clause 1.1 or 1.2 or 1.3 above. In such a case, Bidder shall furnish an Undertaking jointly executed by the firm qualified as per clause 1.1 or 1.2 or 1.3 and the Bidder along with its bid for complete performance of the contract jointly and severally as per format enclosed in the bid document failing which the Bidder's bid is liable to be rejected.

Notes for clause 1.0:

a) The reference SPV based grid-connected power plant of 2MWp or above capacity should be at a single location developed by Bidder for itself or any other client.

b) SPV based Roof -top/Floating Solar power projects, which are grid connected, shall also be considered eligible for QR purposes.

c) For clause 1.1 & 1.3, bidder shall submit certificate of successful completion and operation from the Owner. However, if bidder in clause 1.3 is a developer, certificate of successful commissioning of the project issued from Government Renewable Nodal Agency/Government Enterprise/ Discom/ Electricity Board etc and evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc shall be submitted.

d) For Clause 1.3, bidder shall submit a documentary evidence for the value of the project certified by a Chartered Accountant. The specified value of executed work shall be exclusive of Taxes.

e) Direct/Indirect Order

The bidder shall also be considered qualified, in case the award for executing the reference work has been received by the bidder either directly from the owner of the plant or any other intermediary organization. In such a case, a certificate from such owner of plant or any other intermediary organization shall be required to be furnished by the bidder along with its techno-commercial bid in support of bidder's claim of meeting the qualification requirement as per clause 1.1 and 1.3 above. Bidder shall also submit a certificate of successful completion and operation from the Owner.

f) For Clause 1.2, bidder shall submit certificate of successful commissioning of the project issued from Government Renewable Nodal Agency/ Government Enterprise/ Discom/ Electricity Board etc.

g) For Clause 1.2, bidder shall submit evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc.

h) Developer means an entity who has either executed or got executed the work/ project as owner of industrial projects.

i) The execution of industrial project as EPC Contractor under Clause No. 1.3 means, such EPC Contractor is responsible for all the activities i.e. Design/Engineering, Procurement, Construction (with/without civil works) and Commissioning of a project/work.

j) The portion of work related to power transformer such as supply and or installation mentioned at cl.no. 1.3 (b) can either be done by EPC contractor by themselves or by the owner.

k) EPC projects with solar PV module supplied by developer/owner as free issue item to EPC contractor shall also be considered eligible for route 1.1 of QR.

l) if the value of industrial project in clause 1.3 (a) is indicated in foreign currency, the exchange rate as on date of award of the reference work shall be considered. in case the exchange rate as on the date of award not available, the exchange rate as on the next available day shall be considered.

2.0 FINANCIAL CRITERIA

2.1 The average annual turnover of the Bidder, should not be less than **INR 47 Crore (Indian Rupees Forty Seven Crore only)** during the preceding three (3) financial years as on date of techno-commercial bid opening.

In case a Bidder does not satisfy the annual turnover criteria, stipulated above on its own, its Holding Company would be required to meet the stipulated turnover requirements as above, provided that the Net Worth of such Holding Company as on the last day of the preceding financial year is at least equal to or more than the paid- up share capital of the Holding Company. In such an event, the Bidder would be required to furnish along with its Techno-Commercial Bid, a Letter of Undertaking from the Holding Company, supported by the Holding Company's Board Resolution, as per the format enclosed in the bid documents, pledging unconditional and irrevocable financial support for the execution of the Contract by the Bidder in case of award.

2.2 Net Worth of the Bidder as on the last day of the preceding financial year should not be less than 100% (hundred percent) of Bidder's paid-up share capital. In case the Bidder does not satisfy the Net Worth criteria on its own, it can meet the requirement of Net worth based on the strength of its Subsidiary(Ies) and/or Holding Company and/or Subsidiaries of its Holding companies wherever applicable, the Net worth of the Bidder and its Subsidiary(ies) and/or Holding Company and/or Subsidiary(ies) of the Holding Company, in combined manner should not be less than 100% (hundred percent) of their total paid up Share capital. However individually, their Net worth should not be less than 75% (seventy five percent) of their respective paid-up share capitals.

Net worth in combined manner shall be calculated as follows:

Net worth (combined) = (X1+X2+X3)/(Y1+Y2+Y3) X 100 where X1, X2, X3 are individual Net worth which should not be less than 75% of the respective paid-up share capitals and Y1, Y2, Y3 are individual paid-up share capitals.

2.3 In case the Bidder is not able to furnish its audited financial statements on standalone entity basis, the unaudited unconsolidated financial statements of the Bidder can be considered acceptable provided the Bidder further furnishes the following documents on substantiation of its qualification:

a) Copies of the unaudited unconsolidated financial statements of the Bidder along with copies of the audited consolidated financial statements of its Holding Company.
b) Certificate from the CEO/ CFO of the Holding Company, as per the format enclosed in the bidding documents, stating that the unaudited unconsolidated financial statements form part of the consolidated financial statement of the Holding Company.

In case where audited results for the last financial year as on date of techno-commercial bid opening are not available, the financial results certified by a practicing Chartered Accountant shall be considered acceptable. In case the Bidder is not able to submit the Certificate from a practicing Chartered Accountant certifying its financial parameters, the audited result of three consecutive financial years preceding the last financial year shall be considered for evaluating financial parameters. Further, a certificate would be required from the CEO/CFO as per the format enclosed in the bidding documents stating that the financial results of the company are under audit as on techno-commercial bid opening and the Certificate from a practicing Chartered Accountant certifying the financial parameters is not available.

Notes for Clause 2.0:

a) Net worth means the sum total of the paid-up share capital and free reserves. Free reserves means all reserves credited out of the profits and share premium account but does not include reserves credited out of the revaluation of the assets, write back of depreciation provision and amalgamation. Further any debit balance of Profit and Loss account and miscellaneous expenses to the extent not adjusted or written off, if any, shall be reduced from reserves and surplus.

b) Other income shall not be considered for arriving at annual turnover.

c) “Holding Company” and “Subsidiary” shall have the meaning ascribed to them as per Companies Act of India.

d) ‘Group Company’ means two or more enterprises which, directly or indirectly, are in a position to:

i. exercise twenty-six percent or more of voting rights in other enterprise; or

ii. appoint more than fifty percent of members of Board of Directors in the other enterprise.

The meaning of Holding/Subsidiary/Group Company mentioned above shall be applicable for Clause 1.4 also.

e) For the value of annual turnover indicated in foreign currency, the exchange rates as on seven (7) days prior to the date of Techno-commercial bid opening shall be used.

7.0 NGEL reserves the right to reject any or all bids or cancel/ withdraw the Invitation for Bids without assigning any reason whatsoever and in such case no bidder/ intending bidder shall have any claim arising out of such action.

8.0 (a) Interested parties are required to get registered with M/s ISN Electronic Tender Services (ETS) website https://www.bharat-electronictender.com (if not already registered).

8.0(b) The bidder shall be mandatorily required to submit a copy of “**Non-Disclosure Agreement**” duly signed by the authorized signatory as per the format enclosed (**Annexure-A**) along with the IFB to enable the Employer to authorize the Bidder for downloading of the Bidding Documents.

In case of any non-compliance in submission of Non-Disclosure Agreement (NDA), authorization shall not be provided to the bidders for downloading of bidding documents.

8.0(c)	**Interested bidders are required to submit duly signed NDA prior to closing of Bidding documents sale period to enable the employer for authorizing the bidder to download the bidding documents online from the ETS portal.**
8.1	Issuance of Bid Documents to any Bidder shall not construe that such Bidder is considered to be qualified. The bids shall be submitted online. Bidder shall furnish Bid Security, Pass Phrases and Power of Attorney separately as detailed in Bidding Documents before the stipulated bid submission closing date and time at the address given below.
8.2	After registration on the **ETS Portal**, bidders are required to submit the following documents via email to **prishantpathik@ntpc.co.in** and **vishaljain@ntpc.co.in** to request authorization for downloading the official bidding documents: 1. **Non-Disclosure Agreement (NDA)** 2. **Organisation ID on ETS Portal** (**Format: ETS-IN-20XX-RSXXXXXXX**) Upon receipt of the above documents and details, the bidder's Organisation ID will be authorized to download the official copy of bidding documents. Please note that the official copy of the complete set of bidding documents must be downloaded by any interested bidder from the ETS Portal: **https://www.bharat-electronictender.com** using **Tender Search Code: NTPCREL-2025-TN000024**. Interested bidders are required to ensure that they have downloaded the official copy of bidding documents against Tender Search code **NTPCREL-2025-TN000024** from website of ETS before closure of Bid Sale Period. If only free copy of Bidding Documents are downloaded from ETS portal or Bidding Documents are downloaded without confirmation or without generating official copy serial number, then the bidders will not be able to submit the bids. For technical assistance, interested parties may call ETS Helpdesk at 0124-4229071, 0124-4229072. ***Note: No hard copy of Bidding Documents shall be issued.***
9.0	Transfer of Bidding Documents purchased by one intending Bidder to another is not permissible.
10.0	Any 'Bidder from a country which shares a land border with India', as specified in the Bidding Documents, will be eligible to bid in this tender only if bidder is registered with the Competent Authority as mentioned in the Bidding Documents. Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, will be eligible to bid only if the bidder is registered with the same competent authority. However, the said requirement of registration will not apply to bidders from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects.
11.0	**ADDRESS FOR COMMUNICATION** **Dy. General Manager (CS)/ Addl. General Manager (CS)** Contracts Services NTPC Green Energy Limited

4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306
Telephone No., +91-120-2356627, +91-120-2356525 +91-9418084741
E-Mail: **prishantpathik@ntpc.co.in** and **vishaljain@ntpc.co.in**

Corporate Identification Number: U40100DL2022GOI396282, Website: www.ngel.co.in

SECTION – II

INSTRUCTION TO BIDDERS

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INSTRUCTIONS TO BIDDERS

Mode & Type of Bidding

NTPC Renewable Energy Ltd. (NTPC REL) invites online bids on Single Stage Two Envelope bidding basis (Envelope-I: Techno-Commercial Bid & Envelope-II: Price Bid) followed by **Reverse Auction** from eligible bidders for subject Package, as per the Scope of Work mentioned hereinafter.

The 'Terms & Conditions of Reverse Auction' and 'Business Rules for Reverse Auction' are placed at Annexure-I and Annexure-II to ITB respectively.

Instructions Related to e-Tendering:

Bidders are required to go through the Guidelines provided at following e-tendering site: (ETS Website) https://www.bharat-electronictender.com

A. Introduction

1. **Bidders Eligible for Bidding**

1.1 This bid is open to bidders from within the Employer's country only.

2. **Source of Funds**

2.1 Employer as defined in the Bid Data Sheets (BDS) intends to finance the package named in the Bid Data Sheet (BDS), through domestic funding and own resources.

2.2 For the purposes of these bidding documents, the word "facilities" means the plant and equipment to be supplied and installed, together with the services to be carried out by the contractor under the contract. The words "plant and equipment", "installation services" etc., shall be construed in accordance with the respective definitions given to them in the General Conditions of Contract.

3. **Cost of Bidding**

3.1 The Bidder shall bear all costs associated with the preparation and submission of its bid, and the Employer will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

B. The Bidding Documents

4. **Content of Bidding Documents**

4.1 The facilities required, bidding procedures, contract terms and technical requirements are prescribed in the bidding documents. The bidding documents include the following sections:

	Section I - Invitation for Bids (IFB)
	Section II - Instructions to Bidders (ITB)
	Section III - Bid Data Sheet (BDS)
	Section IV - General Conditions of Contract (GCC)
	Section V - Special Conditions of Contract (SCC)
	Section VI - Technical Specifications (TS)
	Section VII - Forms and Procedures (FP)
4.2	The Bidder is expected to examine all instructions, forms, terms, conditions, specifications and other information in the bidding documents. Failure to furnish all information required as per the bidding documents or submission of a bid not substantially responsive to the bidding documents in every respect will be at the Bidder's risk and may result in rejection of its bid.
5.	**Clarification on Bidding Documents**
5.1	A prospective Bidder requiring any clarification to the bidding documents may notify the Employer through e-mail in editable format (MS Excel or MS Word). The Employer will respond to any request for clarification or modification of the bidding documents that it receives not later than the date specified in IFB. EMPLOYER will post the Clarifications at ETS e-tender portal and Bidders can view these clarifications once they are posted at the ETS e-tender portal. Bidders shall be notified through system generated e-mail regarding posting of clarification at the ETS portal. Bidders are also advised to regularly check ETS e-tender portal regarding posting of clarification, if any. **Further, no queries from Bidders shall be entertained after last date of receipt of Queries/ Pre-Bid Conference (if applicable) as specified in IFB. Accordingly, any query(ies) received from Bidders after the cut-off date shall not be replied.**
5.2	The Bidder is advised to visit and examine the site where the facilities are to be installed and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the bid and entering into a contract for supply and installation of the facilities. The costs of visiting the site shall be borne by the bidder only.
5.3	The Bidder and any of its personnel or agents will be granted permission by the Employer to enter upon its premises and lands for the purpose of such inspection, but only upon the express condition that the Bidder, its personnel and agents will release and indemnify the Employer and its personnel and agents from and against all liability in respect thereof and will be responsible for death or personal injury, loss

of or damage to property and any other loss, damage, costs and expenses incurred as a result of the inspection

6. **Amendment to Bidding Documents**

6.1 At any time prior to the deadline for submission of bids, the Employer may, for any reason, whether at its own initiative, or in response to a clarification requested by a prospective Bidder, amend the bidding documents.

6.2 The amendments will be posted at ETS e-tender portal for viewing by the Bidder. Bidders shall be notified through system generated e-mail regarding posting of amendments at the portal. The amendments will be binding on Bidders and it will be assumed that the information contained therein will have been taken into account by the Bidder in its bid. Bidders are also advised to regularly check ETS e-tender portal regarding posting of Amendment, if any.

6.3 In order to afford prospective Bidders reasonable time in which to take the amendment into account in preparing their bid, the Employer may, at its discretion, extend the deadline for the submission of bids.

6.4 Bidders are advised to regularly check ETS-website/e-mail.

C. Preparation of Bids

7. **Language of Bid**

7.1 The bid prepared by the Bidder and all correspondence and documents related to the bid exchanged between the Bidder and the Employer shall be written in English language, provided that any printed literature furnished by the Bidder may be written in another language, as long as such literature is accompanied by a translation of its pertinent passages in English language in which case, for purposes of interpretation of the bid, the translation shall govern.

The English Translation of the documents shall be carried out by professional translators and the translator shall certify that he is proficient in both languages in order to translate the document and that the translation is complete and accurate. Further, translation shall be authenticated by the Indian Consulate located in the Country where the documents have been issued or the Embassy of that Country in India.

8. **Documents Comprising the Bid**

8.1 Single Stage-Two Envelope Bidding procedure shall be followed through e-tendering for the subject package as under:

Envelope - I : Techno-Commercial Bid

Envelope - II : Price Bid

The Envelope **- I: "Techno-Commercial Bid"** shall be evaluated for completeness and in regard to fulfillment of the qualification requirements (if applicable) and eligibility conditions.

8.2 **Envelope - I: Techno-Commercial Bid**

8.2.1 The bid submitted shall comprise of the following documents:

(a) Bid Form (Techno-Commercial Bid) Section-VII, Part 1 of 3 duly completed and digitally certified by the Bidder, together with all Attachments identified in ITB Sub-Clause 15.1.1 below and shall be uploaded at the ETS e-tender portal (Technical Part).

(b) Bid Security (in line with ITB Clause 12 below), Power of Attorney (in line with ITB Clause 8.2.4(b) below) and Pass Phrase for Technical Part and Pass Phrase for Financial Part have to be submitted offline in original in a separate sealed envelope.

(c) Details filled up in ETS website. The Attributes, if mentioned in General Data, Electronic Form, requiring any confirmation/information are to ticked/fill up suitably.

8.2.2 Bidders shall note that, if permitted according to ITB Clause 8.2.4 (h) below, they are entitled to submit an alternative bid within the scope specified. In such cases, Bidders shall submit full details and justifications, etc., in Attachment 7 to the bid as indicated in ITB Sub-Clause 8.2.4 (h) below.

8.2.3 **Techno-Commercial Bid should not contain any price content entry. In case, the Techno-Commercial Bid is found to contain any price content, such bid shall be liable for rejection.**

8.2.4 The Techno-Commercial Bid submitted by the Bidder shall comprise of the following documents:

Bid Form (Techno-Commercial Bid) Section-VII, (Part 1 of 3) duly completed and signed by the Bidder together with following Attachments shall be uploaded on ETS website https://www.bharat-electronictender.com:

(a) **Attachment 1: Bid Security (To be submitted offline)**

Bid security shall be furnished in accordance with ITB Clause 12 in a sealed envelope separately, super scribed on the top as under and be addressed to the Employer at the address mentioned in BDS:

"Original Bid Security for [Name of the Package], Specification No. ……………… Due on.......... (Date of Bid Opening)................ From.......................... (Name of the Bidder)."

The bidders are requested to send the Bid Security well in advance so as to be received by the Employer before the scheduled date of closing of submission of bids as described in the time schedule in IFB, failing which bid is liable for rejection. NTPC REL shall not be liable for loss/non-receipt/late receipt of Bid Security in postal transit.

Any Bid without an acceptable Bid Security shall be treated as non-responsive by the Employer and shall not be opened pursuant to ITB Sub-Clause 12.4.

(b) **Attachment 2: Power of Attorney (To be submitted offline)**

A power of attorney, duly notarized by a Notary Public, indicating that the person signing and submitting the bid digitally/ submitting the documents which are required to be submitted in physical form has the authority to sign the bid and the bid is binding upon the Bidder during the full period of its validity in accordance with ITB Clause 13 (The Authority of the person issuing the Power of Attorney shall also be submitted). It may be noted that notarized Power of Attorney is to be submitted offline in physical form along with Bid Security and scanned copy to be attached on ETS website.

(c) **Attachment 3: Bidder's Qualifications**

In the absence of pre-qualification, documentary evidence that the Bidder is eligible to bid and is qualified to perform the contract, if its bid is accepted, shall be furnished in Attachment-3 to Bid.

The documentary evidence of the Bidder's qualifications to perform the contract, if its bid is accepted, shall establish to EMPLOYER's satisfaction that the Bidder has the financial, technical, production, procurement, shipping, installation and other capacities and capabilities necessary to perform the contract and meets the experience and other criteria outlined below:

The Bidder shall provide satisfactory evidence that he and/or, where applicable, his collaborator/associate:

(i) is a manufacturer/supplier, who regularly manufactures equipment of the type specified and/or undertakes the type of work specified and has adequate technical knowledge and relevant experience.

(ii) does not anticipate a change in ownership during the proposed period of execution of work (If such a change is anticipated, a scope and effect thereof shall be defined).

(iii) has adequate financial stability and status to meet the financial obligations pursuant to the works covered in the Bidding Documents. (The Bidders should submit five (5) copies of their profit & loss account and balance sheet for the last five (5) years).

(iv) has adequate design, manufacturing and/or fabrication capability and capacity to perform the work properly and expeditiously within the time period specified. The evidence shall specifically cover, with written details, the installed manufacturing and/or fabrication capacities and present commitments (excluding those anticipated under this Specification) of the Bidder. If the present commitments are such that the installed capacity results in an inadequacy of manufacturing and/or fabrication capacities to meet the requirements appropriate to the works covered in his bid, then the details of alternative arrangements to be organised by the Bidder and/or his Collaborator/Associate for this purpose and which shall meet EMPLOYER's approval, shall be furnished.

(v) has an adequate Project management organization covering the areas related to engineering of equipment/systems, interface engineering, procurement of equipment and the necessary field & management services required for successful construction, erection, testing and commissioning the equipment/system as required by the Bidding Documents.

(vi) has established quality assurance systems and organisation designed to achieve high levels of equipment/system reliability, both during his manufacturing and/or fabrication and field installation activities.

(vii) a company formed by the merger of two or more companies or divisions of such companies engaged in supply and installation of subject Package/systems can also participate provided the constituent companies or divisions before merger individually or jointly meet the stipulated qualification requirements fully.

In addition to the requirements stipulated above, the Bidder should also meet the qualifying requirements stipulated in Bid Data Sheet (BDS) Item titled 'Qualification Requirements for Bidders'.

Notwithstanding anything stated above, the Employer reserves the right to undertake a physical assessment of the capacity and capabilities including financial capacity and capability of the Bidder / his Collaborator(s) / Associate(s) / Subsidiary(ies) / Group Company(ies) to perform the Contract, should the circumstances warrant such assessment in the overall interest of the Employer.

The physical assessment shall include but not be limited to the assessment of the office/facilities/banker's/reference works by the Employer. A negative determination of such assessment of capacity and capabilities may result in the rejection of the Bid.

The above right to undertake the physical assessment shall be applicable for the qualifying requirements stipulated in both Section - ITB and in Section - BDS.

Bids submitted by a Joint Venture of two or more firms as partners, if so permitted in the Bid Data Sheet, shall comply with the following requirements:

(i) The bid shall include all the information required for Attachment 3 as described above for each Joint Venture partner.

(ii) The bid shall be signed so as to be legally binding on all partners.

(iii) One of the partners shall be designated as leader; this authorisation shall be evidenced by submitting with the bid a power of attorney signed by legally authorised signatories of joint venture partners.

(iv) The leader shall be authorised to receive instructions for and on behalf of any and all partners of the Joint Venture and the entire execution of the contract, including payment, shall be done exclusively with the leader.

(v) All partners of the Joint Venture shall be liable jointly and severally for the execution of the Contract in accordance with the contract terms.

(vi) Copy of the agreement entered into by the joint venture partners as per the format provided in the Bidding Documents shall be submitted with the bid.

For joint venture to qualify, each of its partners must meet the minimum criteria listed for an individual Bidder for the component of the contract they are designated to perform. Failure to comply with this requirement will result in rejection of the Joint Venture's Bid.

A firm can be a partner in only one joint venture; bids submitted by joint ventures including the same firm as partner will be rejected.

In case Bidder is permitted in the Bid Data Sheets to offer to supply and/or install plant and equipment under the contract that the Bidder did not manufacture or otherwise produce and/or install, the Bidder shall (i) have the financial and other capabilities necessary to perform the contract; (ii) have been duly authorised by the manufacturer or producer of the related plant and equipment or component to supply and/or install that item in the Employer’s country; (iii) be responsible for ensuring that the manufacturer or producer of the related item meets the minimum criteria listed for that item.

(d) **Attachment 4: Eligibility and Conformity of the Facilities**

Documentary evidence establishing that the facilities offered by the Bidder in its bid or in any alternative bid (if permitted) are eligible and conform to the bidding documents.

The documentary evidence of the eligibility of the facilities shall consist of a statement on the country of origin of the plant and equipment offered, which shall be confirmed by a certificate of origin issued at the time of shipment.

The documentary evidence of the conformity of the facilities to the bidding documents may be in the form of literature, drawing and data, and shall include:

(i) a detailed description of the essential technical and performance characteristics of the facilities;

(ii) a list giving full particulars, including available sources, of all spare parts, special tools, etc. necessary for the proper and continuing functioning of the facilities following completion of facilities in accordance with provisions of contract; and

(iii) a commentary on the Employer’s Technical Specifications and adequate evidence demonstrating the substantial responsiveness of the facilities to those specifications. Bidders shall note that standards for workmanship, materials and equipment designated by the Employer in the bidding documents are intended to be descriptive (establishing standards of quality and performance) only and not restrictive. The Bidder may substitute alternative standards, brand names and/or catalog numbers in its bid, provided that it demonstrates to the Employer’s satisfaction that the substitutions are substantially equivalent or superior to the standards designated in the Technical Specifications.

(e) **Attachment 4A: Special Tools and Tackles**

- Not Applicable

(f) **Attachment 5: Subcontractors Proposed by the Bidder**

The Bidder shall include in its bid details of all major items of supply or services that it proposes to purchase or sublet and shall give details of the name and nationality of the proposed Subcontractor, including vendor, for each of those items. Bidders are free to list more than one Subcontractor/Vendor against each item of the facilities. Quoted rates and prices will be deemed to apply to whichever Subcontractor/Vendor is appointed, and no adjustment of the rates and prices will be permitted.

The Bidder shall be responsible for ensuring that any plant, equipment or services to be provided by the Sub-Contractor/Vendor comply with the requirements of ITB sub-clause 8.2.4(c).

The Employer reserves the right to delete any proposed Subcontractor/ Vendor from the list prior to award of contract. After discussion between the Employer and the Contractor, Appendix 5 to Contract Agreement shall be completed, listing the approved Subcontractor(s)/Vendor(s) for each item.

(g) **Attachment 6 : Deviations (Not applicable)**

(h) **Attachment 7: Alternative Bids (Not Applicable)**

(i) **Attachment 8: Erection Tools and Plant and Safety Equipments & Safety Personal Protective Equipments**

List of Erection Tools and Plant and Safety Equipments & Safety Personal Protective Equipments which the bidder proposes to bring to site in case the contract is awarded to him.

(j) **Attachment 9: Technical Data Sheets**

Technical Data Sheets duly filled in as per the Employer’s format, enclosed with the bidding documents. The details of Nos. of Switchyard Bays, Length of Transmission Line and Details of Land shall be provided in this Attachment.

(k) **Attachment 10: Bought Out Items**

Details of Bought Out Items to be directly dispatched by sub-vendor to site **without any Price Component.**

(l) **Attachment 11: Quality Assurance Programme**

Details regarding the overall quality management & procedures which the bidder proposes to follow during various phases of execution of the contract.

(m) **Attachment 12: Additional Information**

Additional Information which the bidder wishes to provide in his bid, without any price Component.

(n) **Attachment 13: Milestone Schedule**

Details regarding the timing & sequence of all key activities/important milestones necessary for successful completion of the contract, as per Employer’s format enclosed.

(o) **Attachment 14: Electronic Fund Transfer Authorization Form**

Authorization Form for release of payments through Electronic Fund Transfer System duly filled in by the bidder.

(p) **Attachment 15: Fraud Prevention Policy**

Form of acceptance of Fraud Prevention Policy duly filled in as per Employer's format.

(q) **Attachment 16: Integrity Pact**

Integrity Pact shall be submitted by the bidder in the form of mandatory confirmation of the attribute at e-tendering portal as **per BDS item no. 7.2 and BDS Item No. 19**, without which its bid cannot be submitted. **The bidder is not required to submit Integrity Pact offline.**

(r) **Attachment 17: Declaration on Policy for Debarment from Business Dealings**

Declaration on Policy for Debarment from Business Dealings duly filled in as per Employer's format.

(s) **Attachment 18:** - Applicable

(t) **Attachment 19: -** Not Applicable

(u) **Attachment 20:** Declaration on Local Content

Note: Techno-Commercial Bid should not contain any price content entry. If any of the Bidders indicates the price in Techno-Commercial Bid, such bid shall be liable for rejection.

8.3 **Envelope - II: Price Bid**

The Price Bid submitted by the Bidder shall comprise of the following:

8.3.1 The Bidder shall fill up the prices online at Electronic Form-Financial at ETS e-tender portal. The Bid Form (Price Bid) as per Section-VII, Part 2 of 3, duly completed together ~~with Price Schedules~~ and the following Attachments shall be uploaded at ETS e-tender portal (Financial Part):

(a) **Attachment 1(P) : -- Not Applicable –**

(b) **Attachment 2(P) : -- Not Applicable –**

(c) **Attachment 3(P) : -- Declaration Regarding Import Content**

Bidder may note that CIF value of import content in the Ex-works (India) price quoted in Schedule-1 of the bid, if any, shall be necessarily declared by the bidders in Attachment-3P. Bidder may further note that the relevant certificate for claiming the concessional custom duty benefits, if any shall be issued on the aforesaid declaration basis only. In case no such import content is envisaged in the bid or the CIF value of import content to be declared is zero, the bidder shall indicate “NIL” against the CIF value of import content.

In cases where no value is indicated by the bidder against the CIF value of import content in **Attachment-3P** or statement/ any declaration like ‘later’, ‘to be furnished later’, ‘NA’ etc. are indicated by the bidder, in such cases the CIF value of import content in the bid shall be considered as “NIL” for the purpose of issuance of relevant certificate for claiming the concessional custom duty benefits, if any. No further claim in this regard shall be entertained by the Employer.

(d) **Attachment 3P(A): Custom Duty benefits for import of Construction Equipment --Not applicable--**

(e) **Attachment 4(P): Bought Out Items - Deleted**

(f) **Attachment 5(P): Functional Guarantees**
The declaration on the Guaranteed parameters as per Employer's format enclosed.

(g) **Attachment 6(P): Price Adjustment Data Documents to be submitted for Price Bid — Not Applicable —**

(h) **Attachment 7P: Not A**pplicable

~~(i) **Attachment 7P1**: applicable~~

(Bidders may note that Bid Form (Price Bid) together with its attachment ~~and price schedule~~ should not be uploaded in Technical Part of ETS Portal)

8.3.2 Price Bid should not contain any matter in respect of Technical and/ or Commercial aspects other than the details specifically sought by the Employer in the Price Bid. If the Technical/ commercial matters indicated in Price Bid are found to be in contradiction with the details furnished in Techno-Commercial Bid, the details furnished in Techno-Commercial Bid shall prevail.

8.3.3 The price bid submitted by the bidder should be without any deviations and strictly in conformity with the provisions of all bidding documents and amendment/addenda/corrigenda/ errata/clarification to the bidding documents issued by Employer.

9. **Bid Forms (Price Bid) ~~and Price Schedules~~**

9.1 The Bidder shall complete the Bid Form (Price Bid) & Attachment ~~and Price Schedules (as per excel sheet)~~ furnished in the bidding documents as indicated therein, following the requirements of ITB Clauses 10 and 11 and attach them along with all annexures in respective section on ETS website.

10. **Bid Prices**

10.1	Unless otherwise specified in the Technical Specifications, Bidders shall **quote for the entire facilities on a "single responsibility" basis** such that the total bid price **(including Taxes & Duties)** covers all the Contractor's obligations mentioned in or to be reasonably inferred from the bidding documents in respect of the design, manufacture, including procurement and subcontracting (if any), delivery, construction [including, Structural Steel Works Civil & Allied Works etc.], installation, commissioning, completion of the facilities and conductance of Guarantee tests for the facilities including supply of mandatory spares (if any), operation and maintenance. This includes all requirements under the Contractor's responsibilities for testing, pre-commissioning and commissioning of the facilities, conducting Guarantee tests and, where so required by the bidding documents, the acquisition of all permits, approvals and licenses, etc.; the operation, maintenance and training services and such other items and services as may be specified in the bidding documents, all in accordance with the requirements of the General Conditions of Contract and Technical Specifications.
10.2	Bidders are required to **quote the total price (including Taxes & Duties)** for the commercial, contractual and technical obligations outlined in the bidding documents. **Bidders to apprise themselves with "Terms and Conditions of Reverse Auction" and "Business Rules for Reverse Auction" enclosed at Annexure-I and II respectively with ITB before quoting their prices,**
10.3	**Bidders are required to fill up their Bid Price in the Electronic Form on the ETS Portal and upload the same in the ETS Portal (Financial Part).** Separate numbered Schedules shall be used for each of the following elements and all the price schedules shall be furnished by successful bidder **within two (2) hours of Auction end time** without fail, **if required as per the "Terms and Conditions of Reverse Auction" and "Business Rules for Reverse Auction" enclosed at Annexure-I and II**. The sum total of each of the Schedule 1, 2, 3 , 6 and 7 shall be **equal to the** Award Price as defined in-**"Business Rules for Reverse Auction".** Schedule No. 1 — Ex-works supply of Plant and Equipment including Type Test Charges and Mandatory Spares. Schedule No. 2 — Local Transportation, Inland Transit Insurance and other local costs incidental to delivery of Plant & Equipment and Mandatory Spares. Schedule No. 3 — Installation Services including Civil works, **Safety Aspects/Compliance to Safety Rules** and O&M. Schedule No. 4 — Schedule of Unit Rate Schedule No. 5 — Recommended Spare Parts

Schedule No. 6	Goods and Services Tax (GST), applicable on Schedules - 1, 2 & 3, included in bid price quoted on ETS portal but not included in Schedules-1, 2 & 3.
Schedule-7	Year-wise quote for Comprehensive Operation & Maintenance (O&M). This quote shall include all O&M, replacement, and disposal costs. The scope covers five years of comprehensive O&M for the integrated Solar + BESS plant following the PG Test, followed by an additional ten-year O&M period exclusive to the BESS plant

Bidders shall note that the plant and equipment included in Schedule No. 1 above exclude all materials used for civil, building and other construction works. All such materials shall be included and priced under Schedule No.3 (Installation Services).

10.4 "Goods and Services Tax" or "GST" means taxes or cess levied under the Central Goods and Services Tax Act, Integrated Goods and Services Tax Act, Goods and Services Tax (Compensation to States) Act and various State/Union Territory Goods and Services Tax Laws and applicable cesses, if any under the laws in force (hereinafter referred to as relevant GST Laws) w.e.f. 01.07.2017, which shall be fully complied with by Bidders.

In the Schedules, Bidders shall give the required details and a breakdown of their prices as follows:

(a) Plant and Equipment (including Type Test Charges) and Mandatory Spares to be supplied from within the Employer's country (Schedule No. 1) shall be quoted on EXW (Ex-Factory, Ex-Works, Ex-Warehouse or Off-the-Shelf, as applicable) basis and shall be inclusive of all costs as well as taxes, duties and levies paid or payable on components and raw materials incorporated or to be incorporated in the facilities.

(b) Local Transportation, Inland Transit Insurance, and other local costs incidental to delivery of the Plant and Equipment including Mandatory Spares shall be quoted in Schedule-2.

(c) Installation Services including Erection and Civil & Allied Works (as applicable) shall be quoted separately (Schedule No. 3) and shall include rates or prices for all labour, contractor's equipment, temporary works, materials, consumables and all matters and things of whatsoever nature, charges for insurance covers other than inland transit Insurance, **charges for Safety Aspects/Compliance to Safety Rules** including operations and maintenance services **for Fifteen years**, the provision of operations and maintenance manuals, training of employer's personnel, etc., and other services, as identified in the Bidding Documents, as necessary for the proper execution of the Installation Services

(d) Recommended Spare parts shall be quoted separately in Schedule 5 on EXW basis in accordance with subparagraph (a) above. Local Transportation Charges including Inland Transit Insurance etc., for recommended spares shall also be quoted in Schedule-5 and shall not be included in Schedule No. 2 by the bidder.

(e) The prices quoted in Schedule Nos. 1, 2 & 3 shall be inclusive of all Taxes, Duties, Levies & charges, except Goods and Services Tax (GST), payable in the Employer's country as of seven (7) days prior to the deadline for submission of price bids. Further, all Taxes, Duties, Levies & Charges on the Materials incorporated in Erection and Civil & Allied Works (as applicable) shall also be included in the prices quoted in Schedule No. 3 & no Separate payment on this account, whatsoever, shall be made by Employer.

(f) Goods and Services Tax (GST) applicable on goods and services specified in Schedule Nos. 1, 2 & 3 shall not be included in respective schedules, but shall be quoted separately in Schedule No. 6. The Goods & Services Tax (GST) quoted by the bidder in Schedule No. 6 shall be as applicable in the Employer's country as on seven (7) days prior to the deadline for Bid submission.

Due Input Tax credits under GST as per the relevant Govt. Policy, wherever applicable, shall be taken into account by the Bidder while quoting his price.

10.5 The terms EXW etc., shall be governed by the rules prescribed in the current edition of Incoterms, published by the International Chamber of Commerce, 38, Cours Albert 1er, 75008, Paris, France.

10.6 **Concessional Custom Duty for Solar Photo Voltaic Power Generation Projects**

10.6.1 As per relevant Notifications of Govt. of India, the benefits of concessional rate of custom duty (applicable for Solar Photo Voltaic Power Generation Projects) may be available for the import of raw materials, components, subassemblies and equipments, if any, required for manufacture of equipment/ plant/ spares to be supplied under the contract. Bidder may appraise itself of the relevant policies and quote accordingly. The Employer shall issue the requisite certificate as specified in the relevant policy of Govt. of India. For issuance of such Certificate by the Employer, the bidders shall be required to indicate the import content included in their bid price, in relevant attachment of Price Bid. The relevant Certificate will be issued on this basis only. However, if the certificate is required to be issued by any department/ministry of Government of India or State Government where the Project is located other than Employer, the Bidder shall itself be responsible for obtaining such certificate from the concerned department/ministry. In such a case, the Employer may issue recommendatory letter to the bidder. To enable the Employer to issue such certificate / recommendatory letter, the Bidder shall furnish the requisite data.

10.6.2 In addition, the Bidder may also like to ascertain availability of Custom Duty benefits available for import of construction equipment, if any, as per the extant Customs Acts & Notifications of Govt. of India. The bidder shall furnish along with their bid, declaration to this effect in Attachment-3P(A) of the Bid.

	Where the bidder has quoted taking into account the Custom Duty benefits available for import of Construction Equipment, he must give all information required for issue of relevant Certificate by Employer along with its bid in Attachment-3P(A).
10.6.3	However, the bidders shall themselves be solely responsible for availing such benefits, which they have considered in their bid. In case of failure of the bidder to receive the benefits partly or fully from the Govt. of India and/or in case of delay in receipt of such benefits and/or withdrawal of such benefits by the Govt. of India, the Employer shall neither be responsible nor liable in this regard in any manner whatsoever.
10.7	**Price Basis**
	Prices quoted by the Bidder shall remain firm and fixed for the entire period of execution of the Contract.
11.	**Bid Currencies**
	Bidders shall indicate the entire Bid Price in Indian Rupees only.
12.	**Bid Security**
12.1	The bidder shall furnish, as part of its Bid, a Bid Security in a separate sealed envelope in the amount and currency as stipulated in the Bid Data Sheet.
12.2	The Bidder shall furnish the Bid Security in a separate sealed envelope, superscribed on the top as under:
	"ORIGINAL BID SECURITY for .... (NAME OF PACKAGE)......................... BID DOCUMENT NO. .... DUE DATE OF TECHNO-COMMERCIAL BID OPENING.................................. FROM....................... (NAME OF THE BIDDER)".
12.3	The Bid Security shall, at the Bidder's option, be in the form of Electronic Fund Transfer (EFT)/ irrevocable Letter of Credit or a bank guarantee from any of the banks specified in the Annexure-I to Section-III (Bid Data Sheets) or an Insurance Surety Bond (ISB) from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) or Payment on Order Instrument which is a letter of undertaking issued by either of the following three organizations, viz. (i) Indian Renewable Energy Development Agency Limited (IREDA) or (ii) Power Finance Corporation Limited or (iii) REC Limited.
	The format of the Bank Guarantee/ Insurance Surety Bond/ Payment on Order Instrument shall be in accordance with the form of bank guarantee/ Insurance Surety Bond/ Payment on Order Instrument towards bid security included in the Bidding Documents. In case bidder opts for Electronic Fund Transfer (EFT) in lieu of the Bid Security, Bidder shall provide details of EFT transaction as per Form at Section-VII (Book 3 of 3). Bid Security shall remain valid for a period of forty-five (45) days

beyond the original Bid validity period and beyond the original Bid Validity period and beyond any extension of Bid Validity subsequently requested under ITB Sub-clause 13.2.

Wherever Bids under Joint Venture route are permitted as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture.

12.4 **The Bid Security in original shall be submitted in a separate sealed envelope before the stipulated bid submission closing date and time. In case acceptable Bid Security in a separate sealed envelope is not received then online Bid shall be rejected by EMPLOYER as being nonresponsive and shall not be opened.**

12.5 The Bid Security of the Bidders whose Techno-Commercial Bid has not been found acceptable will be returned along with the letter communicating rejection of Techno-Commercial Bid. Further, the Bid Security of the Bidders who are not short-listed for Reverse Auction shall be returned within fifteen (15) days of the completion of Reverse Auction process. The Bid Security of the Bidders who are unsuccessful after opening of Price Bids and reverse auction shall be returned immediately after finalization of Evaluation by Employer.

12.6 The bid security of the successful bidder to whom the contract is awarded will be returned when said bidder has signed the Contract Agreement pursuant to ITB Clause 33 and has furnished the required Performance Securities pursuant to ITB Clause 34.

12.7 **Forfeiture of Bid Security**

The bid security shall be forfeited in any of the following circumstances by the Employer/Owner without any notice or proof of damage to the Owner, etc.:

(a) If the Bidder withdraws or varies its bid during the period of bid validity

(b) If the Bidder does not accept the arithmetical correction of its Bid Price pursuant to ITB Sub-Clause 26.1;

(c) If the bidder refuses to withdraw, without any cost to employer, any deviation, variation, additional condition or any other mention anywhere in the bid, contrary to the provisions of the bidding documents, read in conjunction with its amendments / errata / clarification / addenda.

(d) in case of a successful Bidder, if the Bidder fails within the specified time limit;
   (i) to sign the Contract Agreement, in accordance with ITB Clause 33, and/or

	(ii) to furnish the required Performance Securities, in accordance with ITB Clause 34.
	(e) If the Bidder/ his representatives commit any fraud while competing for this contract pursuant to 'Fraud Prevention Policy' of Employer.
	(f) In case the Bidder/Contractor is disqualified from the bidding process in terms of Section 3 and 4 of Integrity Pact.
13.	**Period of Validity of Bid (Techno-Commercial Bid and Price Bid)**
13.1	Bids shall remain valid for one hundred & eighty (180) days from the closing date prescribed by Employer for the receipt of bids pursuant to Clause 16. The bid valid for shorter period shall be rejected by the Employer as being non-responsive.
13.1.1	The bidder is required to keep the prices of recommended spares covered under Price Schedule No. 5 valid for a period of 6 months after Notification of Award for main equipment and mandatory spares.
13.2	In exceptional circumstances, the Employer may solicit the Bidder's consent to an extension of the bid validity period. The request and responses thereto shall be made in writing by post or by telefax followed by post confirmation. If a Bidder accepts to extend the period of bid validity, the validity of bid security shall also be suitably extended. A Bidder may refuse the request without forfeiting its bid security. A Bidder granting the request will not be required nor permitted to modify its bid.
14.	**Format and Signing of Bid**
14.1	The bid including all documents submitted online shall be digitally certified using Class-III signature by a duly authorised representative of the Bidder to bind him to the contract. The authorization shall be indicated by written power of attorney as per ITB Clause 8.2.4 (b) and shall be submitted in physical form prior to date & time for opening of Techno-Commercial Bid.
	D. Submission of Bids
15.1	**Bid (Envelope-I: Techno Commercial Bid and Envelope-II Price Bid) Submission:**
15.1.1	The bidder will submit his bid online in Technical Part and Financial Part at ETS e-tender website in the following manner after carefully examining the document/conditions etc:
	(i) Bid shall be submitted online at ETS Portal in the manner specified elsewhere in Bidding Document. Bidders to ensure that all uploaded documents on ETS Website must be digitally certified. **Bidder to further**

ensure that documents uploaded is being downloaded properly. Employer shall not be responsible for corrupted files, if any, uploaded online on ETS Website. Further file related to particular Attachment/Schedule including their annexure/ appendices, if any, shall be given name of that Attachment/Schedule only.

No Manual / Hard Copy of the Bid shall be acceptable.

(ii) No deviation, whatsoever, is permitted by Employer, to any provisions of the Bidding Documents. The bidders are advised that while making their Bid proposals and quoting prices, all conditions may appropriately be taken into consideration.

Bidders shall certify their full compliance to all the provisions of Bidding Documents and its subsequent Amendment(s) / Clarification(s) / Addenda / Errata, if any, issued by the Employer by accepting (i.e. selecting the option "YES") the following attribute in Electronic Form on ETS portal.

"DO YOU CERTIFY FULL COMPLIANCE TO ALL PROVISIONS OF BID DOC?"

Acceptance of above attribute shall be considered as bidder's confirmation to the following:

(a) Confirm that we comply with all terms, conditions and specifications of the Bidding Documents read in conjunction with Amendments(s)/ Clarification(s) /Addend/Errata (if any) issued by the Employer prior to opening of Techno-Commercial Bids and the same has been taken into consideration while making our Techno-Commercial Bid & Price Bid and we declare that we have not taken any deviation in this regard.

(b) Any deviation, variation or additional condition etc. or any mention, contrary to Bidding Documents and its Amendments(s)/Clarification(s) /Addend/Errata (if any) found anywhere in our Techno-Commercial Bid and/ or Price Bid, implicit or explicit shall stand unconditionally with drawn, without any cost implication whatsoever to Employer, failing which the bid security shall be forfeited.

(c) If a bidder selects the option "NO" against above attribute in Electronic Form on ETS portal, its bid will be rejected.

(iii) Bidders are required to certify their compliance on "Qualifying Requirements" of Employer by accepting (i.e. selecting the option "YES") the following in Electronic Form on ETS Website:

"Do you certify full compliance on Qualifying Requirements"

Bids cannot be submitted without acceptance of above attribute.

Acceptance of above attribute shall be considered as bidder's confirmation to the following conditions:

(a) The number of reference plants/works/installations quoted by bidder in Attachment 3 of their bid, for establishing compliance to the specified Qualifying Requirement (QR) are not more than the number of works as mentioned in Bid Data Sheets.

(b) The reference plants/works/installations declared more than the number of works as mentioned in Bid Data Sheets, shall not be considered for evaluation/establishing compliance to Qualifying Requirement (QR).

(c) No change or substitution in respect of reference plants/ works/ installation (as declared by bidder) by new/additional plants/ works/ installations for meeting the specified Qualifying Requirement (QR) shall be offered by bidders.

(d) If a bidder select the option “NO” against above attribute in Electronic Form on ETS portal, its bid will be rejected.

(iv) Bidders are required to certify their compliance to the “Fraud Prevention Policy” of Employer by accepting (i.e. selecting the option “YES”) the following attribute in Electronic Form on ETS e-tender site.

“Do you accept Fraud Prevention Policy of Employer?”

If a bidder select the option “NO” against above attribute in Electronic Form on ETS portal, its bid will be rejected.

(v) Bids can be submitted by clicking on the “Submit” Tab and attaching relevant Digital Certificates.

15.1.2 **Submission of Bid Security, ~~Integrity Pact~~, ~~Joint Deed of Undertaking (JDU), if applicable~~,** ~~Joint Venture / Consortium~~ and **Power of Attorney and Pass Phrases in Physical Form**

(a) The bidders are required to submit the following original documents in hard copy failing which bid shall not be opened.

- Bid Security (Refer clause no. 8.2.4 (a) of ITB)

(c) The bidders are also requested to submit Power of Attorney, duly notarized in hard copy as per provisions of bidding documents in a separate sealed envelope (Refer clause no. 8.2.4 (b) of ITB).

(d) The bidders are also required to submit the two separately sealed envelopes containing Pass Phrase for Technical Part and Pass phrase for Financial Part.

The envelopes containing Bid Security, ~~Integrity pact, JDU or Joint Venture/ Consortium Agreement(if applicable)~~ and Power of Attorney shall be sealed in an outer envelope super scribed on the top as under and be addressed to the Employer at the address mentioned in BDS. The above documents shall be submitted well in advance so as to be received by the Employer before the submission closing date and time of bids as described in the time schedule in IFB/ subsequent communications from Employer.

"Original Bid Security", "Power of Attorney" and "Pass Phrases" for …………….. [Name of the Package], Specification No ……………… Due on....... (Date of Bid Opening) .... From .... (Name of the Bidder)"

NTPC REL shall not be liable for loss/non-receipt/late receipt of above documents in postal transit. If Outer envelope is not sealed and marked as required above, the Employer will assume no responsibility for its misplacement.

15.2 Price Bid Submission:

15.2.1 Bidders will submit his **Price bid online in Electronic Form of Financial Part on ETS web site** in the following manner after carefully examining the document/conditions etc:

Bidders are required to fill up their **<u>Bid Price (including taxes and duties) as per the format in the Electronic Form</u>** of Financial Part on the ETS Portal and Annual Generation in Million Unit is to be quoted in Attachment-7P and uploaded in the ETS Portal (Financial Part). Bidders will attach **on ETS web site** the completed Bid Form (Price Bid), Attachments ~~and all Price Schedules~~ along with all annexure in Financial Part. Bidders to ensure that all uploaded documents **on ETS web site** must be digitally certified. **Bidder to further ensure that documents uploaded on ETS web site** is **being downloaded properly. Employer shall not be responsible for corrupted files, if any, uploaded on ETS web site. Further file related to particular Attachment/Schedule including their annexure/appendices, if any, shall be given name of that Attachment/Schedule only.**

(a) The Price Bid is strictly in conformity with the provisions of the Bidding Documents; Amendments/Clarifications thereof issued and does not contain any matter or deviation to any of the provisions of the Bidding Documents including all Amendments/Clarifications.

(b) After opening of Price Bid, if any deviation to any of the provisions of the Bidding Documents (including all amendments/Clarifications) is observed in the Price Bid, the same shall be ignored by Employer and considered as withdrawn by us without any cost implication to Employer.

(c) Bids can be submitted by clicking on the “Submit” Tab and attaching relevant Digital Certificates.

The ’Terms & Conditions of Reverse Auction’ and ‘Business Rules for reverse auction’ are placed at Annexure-I and Annexure-II to ITB respectively.

16. **Deadline for Submission of Bids**

16.1 Bids must be submitted online at ETS e-tender portal no later than the time and date stated in the Bid Data Sheet.

The Physical documents viz a viz Original Bid Security~~, Integrity pact, Deed of Joint Undertaking/JV Agreement (as applicable),~~ Power of Attorney and Pass Phrases shall be submitted in physical form before stipulated bid submission time at the address specified in BDS. Employer shall not be liable for loss/non-receipt/late receipt of above documents in postal transit.

In the event of the specified date for submission of bids being declared a holiday for the Employer, the bids will be received up to the appointed time on the next working day.

16.2 The Employer may, at its discretion, extend this deadline for submission of bids by amending the bidding documents in accordance with ITB Sub-Clause 6.0, in which case all rights and obligations of Employer and Bidders will thereafter be subject to the deadline as extended.

17. **Late Bid security**

17.1 Any Bid Security received by the Employer after the bid submission deadline prescribed by the Employer, pursuant to ITB Clause 16, will be rejected and returned unopened to the Bidder and online bid of such bidder, if submitted, shall also be rejected.

18. **Modification and Withdrawal of Bids**

18.1 The Bidder may modify or withdraw its bid upto the bid submission deadline as per the process of ETS Portal.

18.2 If a Bidder has submitted the required physical documents and wishing to withdraw its bid shall notify EMPLOYER in writing prior to the deadline prescribed for bid submission. A withdrawal notice may also be sent by post or by telefax followed by post confirmation postmarked not later than the deadline for submission of bids.

18.3 The notice of withdrawal shall:

(a) be addressed to EMPLOYER at the address named in Bid Data Sheet, and

(b) bear the Package name, the IFB number, and the words **"Bid Withdrawal Notice."**

Bid withdrawal notices received after the bid submission deadline will be ignored, and the submitted bid will be deemed to be a validly submitted bid.

18.4 No bid may be withdrawn in the interval between the bid submission deadline and the expiration of the bid validity period specified in ITB Clause titled 'Period of Validity of Bids'. Withdrawal of a bid during this interval may result in the Bidder's forfeiture of its bid security, pursuant to ITB Sub-Clause titled 'Forfeiture of Bid Security'.

E. Bid Opening and Evaluation

19. **Opening of Bids by Employer**

19.1 **Techno-Commercial Bid Opening**

19.1.1 The Employer will open the Techno-Commercial bids at the time, on the date and at the place specified in the Bid Data Sheet. In the event of the specified date for the opening of bids being declared a holiday for the Employer, the bids will be opened at the appointed time on the next working day. ***Bidder's attendance during the Techno-commercial Bid opening in NTPC REL Premises shall be restricted and Employer shall not be obligated to disclose any information of the bids to any bidders.***

The Employer shall first open the Bid Security and Power of Attorney (submitted offline) of all the bidders. Based on the Bid Security received, bids of only those bidders will be opened whose Bid Security is acceptable as per conditions of the bid document.

19.1.2 **Bids not accompanied by requisite bid security in a separate sealed envelope will be rejected and shall not be opened.**

19.1.3 Techno-Commercial Bids (and modifications sent pursuant to ITB Sub-Clause 18.2) that are not opened during bid opening will not be considered for further evaluation, regardless of the circumstances.

19.1.4 Techno-Commercial Bids which are generally responsive to the operating and performance requirements as laid out in Technical Specifications, Section-VI of bidding documents will then be considered for evaluation.

19.1.5 The Price Bid will remain unopened and shall be opened separately by EMPLOYER after completion of evaluation of Techno-Commercial Bids

19.2 **Price Bid Opening**

19.2.1 After evaluation process of Techno-Commercial bids is completed, Price bids shall be opened. **Bidder's attendance during the Price Bid opening in NTPC REL**

	Premises is not envisaged. *Any information on the quoted prices and/or the details of the bidders etc. shall be restricted by the Employer and the Employer shall not be obligated to disclose any information of the bids to any bidders*.
19.2.2	For opening of price bid and reverse auction please refer **the 'Terms & Conditions of Reverse Auction' and 'Business Rules for reverse auction' which are placed at Annexure-I and Annexure-II to ITB respectively.**
20.	**Clarification of Bids**
20.1	During the bid evaluation, the Employer may, at its discretion, ask the Bidder for a clarification of its bid including documentary evidence pertaining to only the reference plants declared in the bid for the purpose of meeting Qualifying Requirement specified in Bid Data Sheet. The request for clarification and the response shall be in writing and no change in the price or substance of the bid including substitution of reference plants in the bid by new/additional plant for conforming to Qualifying Requirement shall be sought, offered or permitted.
21.	**Preliminary Examination of Techno-Commercial Bids**
21.1	The Employer will examine the Bids to determine whether the same are complete, whether required documents have been furnished, whether the documents have been properly signed and whether the Bids are generally in order.
21.2	During evaluation and comparison of bids, the owner may, at his discretion ask the bidder for clarification on its bid. The request for clarification shall be in writing and no change in prices or substance of the bid shall be sought, offered or permitted. No post bid clarification at the initiative of the bidder shall be entertained as all such clarifications would have been obtained prior to the submission of the bid.
21.3	The Owner may waive any minor informality, nonconformity, or irregularity in a bid that does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any Bidder.
21.4	Prior to the detailed evaluation, the Employer will determine whether each Techno-commercial bid is of acceptable quality, is complete, and is substantially responsive to the Bidding Documents. For purposes of this determination, a substantially responsive bid is one that (a) materially conforms to all the terms, conditions and specifications of the bidding documents without material deviations, objections, conditionalities or reservations. A material deviation, exception, objection, conditionality, or reservation is one: (i) that affects in any substantial way the scope, quality, or performance of the contract; (ii) that limits, in any substantial way that is inconsistent with the Bidding Documents, the Employer's rights or the Successful bidder's obligations under the Contract; or (iii) whose rectification would unfairly affect the competitive position of other Bidders who have submitted substantially responsive bids.

21.5	No deviation, whatsoever, is permitted by EMPLOYER to any provisions of Bidding Documents. The Bidders are advised that while making their Bid proposals and quoting prices, all conditions may appropriately be taken into consideration. Bidders shall certify their compliance to the complete Bidding Documents through e tendering mode by accepting the following attribute at e-tender portal: **“Do you certify full compliance to all provisions of Bid Doc?”** Acceptance of above attribute shall be considered as Bidder's confirmation that any deviation to the any Provisions found anywhere in their Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which the bid security shall be forfeited.
21.6	The Employer’s determination of a bid's responsiveness is to be based on the contents of the bid itself without recourse to extrinsic evidence. If a bid is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by the Bidder by correction of the nonconformity.
21.7	**QUALIFICATION**
21.7.1	**Compliance on "Qualifying Requirements** Bidders shall certify their compliance on "Qualifying Requirements" of Employer by accepting the following attribute in Main Screen of Bid Invitation: **"Do you certify full compliance on Qualifying Requirements"** Acceptance of above attribute shall be considered as bidder's confirmation to the following conditions: (a) The number of reference Plants/Orders quoted by Bidder in Attachment- 3A of the bid, for establishing compliance to the specified Qualifying Requirement (QR), are in accordance with the provision specified in Bid Data Sheet. (b) The reference Plants/Orders/declared, shall only be considered for evaluation / establishing compliance to Qualifying Requirement (QR). Any reference Orders declared more than as specified in Bid Data Sheet shall not be considered for evaluation/establishing compliance to Qualifying requirements. (c) No change or substitution in respect of reference Plants/Orders for meeting the specified Qualifying Requirement (QR) shall be offered by the bidder.
21.7.2	EMPLOYER, by the examination of Techno-Commercial Bid, will determine to its satisfaction whether the participating bidders are qualified to satisfactorily perform the contract in terms of the qualifying requirements stipulated in the Bid Data Sheet. The determination will take into account the bidder’s financial and technical capabilities, in particular its contracts, works in hand, future commitments and

current litigation. It will be based upon an examination of documentary evidence of bidder's qualification submitted by the bidder in relevant attachment to the Bid Form of Techno-Commercial Bid as well as such other information as EMPLOYER deems necessary and appropriate. Notwithstanding anything stated anywhere else in the bidding documents, EMPLOYER reserves the right to seek in writing information relating to qualifying requirements in addition to details contained in the bid. The bidder shall furnish required information promptly to EMPLOYER. EMPLOYERS will shortlist the Bidders meeting the stipulated Qualifying Requirements.

21.7.3 An affirmative determination of meeting the qualifying requirements will be a prerequisite for further evaluation of Techno-Commercial bid and holding clarification meeting, if any, with the Bidder. A negative determination will result in rejection of the Bidder's Techno-Commercial Bid in which event EMPLOYER will not open the Price Bid of the concerned bidder and his bid security shall be returned.

22. **Evaluation of Techno-Commercial Bids**

Techno-Commercial Bid, prepared and comprising details/documents in line with ITB Sub-Clause No. 8.2, submitted by Bidder's will be evaluated as described below:

22.1 The Employer will carry out a detailed evaluation of Techno-Commercial Bids (of the qualified bidders short listed as above) previously determined to be substantially responsive in order to determine whether the technical aspects are in accordance with the requirements set forth in the bidding documents. In order to reach such a determination, the Employer will examine and compare the technical aspects of the bids on the basis of the information supplied by the bidders, taking into account the following factors:

(a) overall completeness and compliance with the Technical Specifications and Drawings; suitability of the facilities offered in relation to the environmental and climatic conditions prevailing at the site; and quality, function and operation of any process control concept included in the bid. The bid that does not meet acceptable standards of completeness, consistency and detail will be rejected for non-responsiveness.

(b) achievement of specified performance criteria by the facilities

(c) type, quantity and long-term availability of Mandatory and Recommended spare parts and maintenance services

(d) **Time schedule (program of performance)**

The plant and equipment covered by this bidding document are required to be shipped and installed and the facilities are to be completed within the period named in the Bid Data Sheet after the effective date specified in the Contract Agreement. Bidders are required to base their prices on the time schedule given in appendix-4 to the form of Contract Agreement (Time Schedule) or, where no time schedule is given, on the completion date(s) given in the Bid Data Sheet. No credit will be given for earlier completion.

	(e) Any other relevant factors, if any, listed in the Bid Data Sheet and Instruction to Bidders, or that the Employer deems necessary or prudent to take into consideration.
	(f) The Functional Guarantees of the facilities offered:
	Bidders shall state the Functional Guarantees (e.g. performance, efficiency) of the proposed facilities in response to the Technical specifications. In case a minimum (or a maximum, as the case may be) level of functional guarantee is specified in the Technical Specifications for the bids to be considered responsive, bids offering plant and equipment with such functional guarantees less (or more) than the minimum (or maximum) specified may be rejected.
22.2	The capabilities of the vendors and subcontractors, proposed in Attachment-5 to the Bid will also be evaluated for acceptability. Should a vendor or subcontractor be determined to be unacceptable, the bid will not be rejected but the Bidder will be required to substitute an acceptable vendor or subcontractor without any change in the bid price.
22.3	Bidder may note that deviations, variations and additional conditions etc. found elsewhere in the bid, shall not be given effect to in evaluation and it will be assumed that the Bidder complies to all the conditions of Bidding Documents. In case the Bidder refuses to withdraw deviation implicit or explicit found anywhere in the bid, without any financial implication whatsoever to the Employer, the bid security shall be forfeited.
23.0	NOT IN USE
24.0	NOT IN USE
25.0	NOT IN USE
26.0	**Preliminary Examination of Price Bids**
	The Employer will examine the Price Bids to determine whether they are complete, whether any computational errors have been made and whether the bids are generally in order.
	Refer the **'Terms & Conditions of Reverse Auction' and 'Business Rules for reverse auction' placed at Annexure-I and Annexure-II to ITB respectively.**
27.	**Evaluation of Price Bids**
27.1	The evaluation criteria shall be as specified at 'Business Rules for reverse auction' placed at Annexure-II to ITB.

28.	**Contacting the Employer**
28.1	Subject to ITB Clause 20, no Bidder shall contact the Employer on any matter relating to its bid, from the time of the opening of bids to the time the contract is awarded.
28.2	Information relating to examination, evaluation and comparison of bids and recommendation for the award of contract shall not be disclosed to bidders or any other persons not officially concerned with such process until the award to the successful bidder has been announced. Any effort by a Bidder to influence the Employer in the Employer's bid evaluation, bid comparison or contract award decisions may result in rejection of the Bidder's bid.
	F. AWARD OF CONTRACT
29.	- DELETED -
30.	**Award Criteria**
30.1	Subject to ITB Clause titled 'Employer's Right to Accept Any Bid and to Reject Any or All Bids' and Employer's Policy for Debarment from Business Dealings, the Employer will award the contract to the successful Bidder(s) whose bid has been determined to be substantially responsive and to be the lowest evaluated bid, further provided that the Bidder is determined to be qualified to perform the contract satisfactorily. **Further, the award criteria and Award Price shall be as specified at 'Business Rules for reverse auction' placed at Annexure-II to ITB.** No contract shall be awarded to a bidder against whom a Debarment Order has been issued as per Employer's Policy for Debarment from Business Dealings.
30.2	The Bidder will be required to comply with all requirements of the Bidding Documents and subsequent amendment thereof, if any without any extra cost to the Employer, failing which his bid security will be forfeited.
30.3	The Employer reserves the right to vary the quantity of any of Spares and / or delete any Item of Spares altogether at the time of Award of Contract.
30.4	The mode of contracting with the successful bidder will be as per stipulation outlined in GCC Clause 3.6 and briefly indicated below: The award shall be made as follows: (i) First Contract: For Ex-works (India) supply of all plant and equipment including mandatory spares. (ii) Second Contract: For providing all services i.e. Inland Transportation for Delivery at Site, Inland Transit Insurance, Unloading, Storage, Handling at Site, Installation (including civil, structural steel work & allied work, if applicable), insurance covers other than Inland Transit Insurance Testing

and Commissioning and conducting Guarantee tests in respect of all the equipments supplied under the 'First Contract', and other services specified in the Contract Documents.

Both the Contracts will contain a crossfall breach clause specifying that breach of one will constitute breach of the other Contract which will confer a right on the Employer to terminate the other contracts also at the risk and the cost of Contractor.

31. **Employer's Right to Accept Any Bid and to Reject any or All Bids**

31.1 The Employer reserves the right to accept or reject any bid, for any reasons including National defense and security consideration and to annul the bidding process and to reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected Bidder or bidders or any obligation to inform the affected Bidder or bidders on the grounds for the Employer's action.

32. **Notification of Award**

32.1 Prior to the expiration of the period of bid validity, the Employer will notify the successful Bidder in writing by registered letter or by telefax to be confirmed in writing by registered letter, that its bid has been accepted. The notification of award will constitute the formation of the contract.

32.2 Upon successful Bidder's furnishing of the performance securities pursuant to ITB Clause 34, the Employer will promptly notify each unsuccessful Bidder and will discharge its bid security, pursuant to ITB Sub-Clause 12.5.

33. **Signing the Contract Agreement**

33.1 The successful bidder shall prepare and finalize the Contract Documents for signing of the formal Contract Agreement and shall enter into the Contract Agreement with the Employer, as per the proforma enclosed with the Bidding Documents, on non-judicial stamp paper of appropriate value within 28 days from the date of this Notification of Award.

33.2 Cost of preparing Contract Agreement shall be borne by the bidder.

34. **Performance Security**

34.1. Within twenty-eight (28) days after receipt of the Notification of Award, the successful Bidder shall furnish performance securities for ten percent (10%) of Contract Price for all the contracts and in the form provided in the section "Forms and Procedures" of the bidding documents.

34.2 In case Joint Deed(s) of Undertaking by the Contractor along with his associate(s)/collaborator(s) form part of the Contract, then, unconditional Bank Guarantee(s)/ Insurance Surety Bond/ Payment on Order Instrument from such associate(s)/collaborator(s) towards faithful performance of the Joint Deed(s) of Undertaking for amount(s) specified in Bid Data Sheets shall be furnished within twenty eight (28) days after Notification of Award. These Bank Guarantees shall be furnished in the form provided in the section "Forms and Procedures" of the bidding documents and shall be valid till such period as specified in the corresponding format for Deed of Joint Undertaking.

34.3 Failure of the successful Bidder to comply with the requirements of ITB Clause 33 or Clause 34 shall constitute sufficient grounds for the annulment of the award and forfeiture of his bid security.

34.4 The Bank Guarantees submitted towards Performance Security shall be essentially from any of the Banks listed in Annexure-I to SCC. The Insurance Surety Bonds towards Performance Security shall be essentially from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI). Payment on Order Instrument towards Performance Security shall be issued by either of the following three organizations, viz. (i) Indian Renewable Energy Development Agency Limited (IREDA) or (ii) Power Finance Corporation Limited or (iii) REC Limited in the form of a letter of undertaking provided in Section-VII (Forms and Procedures)-Form of Performance Security of the bidding documents.

The Bank guarantee/ Insurance Surety Bonds / Payment on Order Instrument submitted from within India towards Performance Security shall be issued on Non-Judicial Stamp Paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG/ ISB /POI is submitted or is to be acted upon or the Non-Judicial Stamp Paper of appropriate prevailing in the State where the BG/ ISB / POI is executed, whichever is higher.

35. **~~Adjudicator~~**

35.1 ~~The adjudicator under the contract shall be appointed by the Appointing Authority as mentioned in the Bid Data Sheets.~~

36. **Corrupt or Fraudulent Practices**

36.1 The Employer requires that Bidders, Contractors and Suppliers observe the highest standard of ethics during the procurement / tendering and execution of the contracts. In pursuance of this policy, the Employer:

(a) Defines, for the purposes of this provision, the terms set forth below as follows:

(i) “corrupt practice” means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement / tendering process or in contract execution; and

(ii) “fraudulent practice” means a misrepresentation of facts in order to influence a procurement / tendering process or the execution of a contract to the detriment of the Employer, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Employer of the benefits of free and open competition;

(b) will reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;

(c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing a contract of the Employer.

36.2 Furthermore, Bidders shall be aware of the provision stated in Sub-Clause 42.2 of the General Conditions of Contract.

36.3 **Fraud Prevention Policy:**

The Bidder along with its associate / collaborator / subcontractors / sub-vendors / consultants / service providers shall strictly adhere to the Fraud Prevention Policy of NTPC displayed on its tender website http://www.ntpctender.com and shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice. A Certificate to this effect shall be furnished by the bidder along with its Techno-Commercial Bid in relevant attachment to Bid Form as per format enclosed in the Bidding Documents. If in terms of above policy it is established that the bidder/his representatives have committed any fraud while competing for this contract the Bid Security of the bidder shall be forfeited.

37.0 **Ineligibility for Participation in Re-Tender**

Notwithstanding the provisions specified in ITB sub-Clause 12.7 and ITB Sub-Clause 34.3, if a bidder after having been issued the Notification of Award, either does not sign the Contract Agreement pursuant to ITB Clause 33 or does not submit a acceptable Performance Security pursuant to ITB Clause 34 and which results in tender being annulled then such bidder shall be treated ineligible for participation in re-tendering of this particular Package.

CLAUSE NO.	ANNEXURE-I TO ITB: TERMS AND CONDITIONS OF REVERSE AUCTION
	Against this Tender enquiry for the subject package with detailed scope of supply as per bidding document, Employer shall resort to "REVERSE AUCTION PROCEDURE" after opening of price bids. The philosophy followed for Reverse Auction shall be English Reverse (No ties).
1	For the Reverse Auction, technically and commercially acceptable shortlisted bidders only shall be eligible to participate.
2	Bidders shall ensure online submission of their ***Price IN INR for the total 6 MW capacity with 24 MWh BESS and e-RA shall be conducted for the total capacity'***.
3	M/s ISN Electronic Tender Services (ETS) will provide all necessary training and assistance on direct payment basis to ETS before commencement of reverse auction. Bidder shall arrange on its own cost and initiative, to demonstrate/ train the bidder or bidder's nominated person(s), from ETS. ETS shall also explain the bidders, all the rules related to the Reverse Auction/ Business Rules Document to be adopted along with Reverse Auction. The rules have been described in the tender documents in General.
4	Business rules for Reverse Auction like event date, time, bid decrement, extension etc. shall be as per the business rules, enumerated in the bidding documents, for compliance.
5	Bidders have to accept 'Terms & Condition' and the 'Business rules of Reverse Auction' before start of Reverse auction. Without this, the bidder will not be eligible to submit bid in the Reverse Auction.
6	In line with the provisions of bidding document, NTPC REL will provide the Price Schedule format in MS EXCEL sheet which will help to arrive at "Total Price to NTPC REL" including taxes and duties. Bidder may take help of the excel sheet and keep it ready for keying in their Bid Price after the Reverse Auction. Bidders have to fill **"Bid Prices in INR"** in the manner specified at Annexure-II to ITB (Business Rules of Reverse Auction)**.** Reverse Auction shall be conducted on ***"Evaluated Bid Price in INR/ MU***. Bidders have to fill a Single Price in INR for the total 6 MW capacity with 24 MWh BESS and e-RA shall be conducted for the total capacity'. Single Reverse Auction shall be conducted for the total capacity'on "Evaluated Bid Price".
7	Reverse auction will be conducted on scheduled date & time, which shall be intimated to all the bidders in advance at least five (05) days prior to the scheduled date of Reverse Auction.
8	After conclusion of the Reverse Auction event, the successful bidder ~~for each block~~ has to e-mail from its registered e-mail id, the itemized breakup of the final prices quoted ~~for that particular block~~ during the online Reverse Auction duly signed by the authorized person. Separate numbered Schedules shall be used for each of the following elements and all the price schedules shall be furnished by the successful bidder ***within two (2) hours of Auction end time without fail, if required as per the provisions of bidding documents.*** The total amount of each of the Schedule 1, 2, 3 & 6 shall be **equal to the Award price determined in accordance with provisions specified in "Business Rules of Reverse Auction"**. The itemized breakup shall be provided in the prescribed Price Schedule format including that of line items, if required, within two (2) hours of Auction end time without fail.
9	Bidders should acquaint themselves of the 'Business Rules of Reverse Auction', which will be enclosed separately in the bidding documents.

10	If the Bidder or any of his representatives are found to be involved in Price manipulation/ cartel formation of any kind, directly or indirectly by communicating with other bidders, action *as per extant NTPC REL guidelines*, shall be initiated by NTPC REL.
11	The Bidder shall not divulge either his Bids or any other exclusive details of Employer to any other party.
12	Period of validity of Prices received through Reverse Auction shall be same as that of the period of validity of bids offered.
13	Bidders should also note that:
13.1	Although extension time is 'X' minutes, there is a time lag between the actual placing the bid on the local computer of the bidder and the refreshing of the data on to the server for the visibility to the Owner. Considering the processing time for data exchange and the possible network congestion, bidders must avoid the last minute hosting of the Price Bid.
13.2	Participating bidder will agree to non-disclosure of trade information regarding the purchase, identity of Employer, bid process, bid technology, bid documentation and bid details.
13.3	It is brought to the attention of the bidders that the bid event will lead to the final price only.
13.4	Technical and other non-commercial queries (not impacting price) can only be routed to the Employer contact personnel indicated in the bidding documents.
13.5	Order shall be placed outside the e-portal & further processing of the PO shall also be outside the system.
13.6	In case of any problem faced by the bidder during Reverse Auction and for all Bidding process related queries, bidders are advised to contact the persons indicated for the concerned location/project office in "Contact Us" link provided on the log-on page of ETS e-tender portal.
13.7	Short listed Bidders are advised to visit the auction page and enter the 'Live Auction' cockpit successfully well in advance to identify / rectify the problems to avoid last minute hitches.
13.8	NTPC REL will not be responsible for any PC configuration/Java related issues, software/hardware related issues, telephone line glitches and breakdown / slow speed in internet connection of PC at Bidder's end.
13.9	Bidders may note that it may not be possible to extend any help, during Reverse Auction, over phone or in person in relation to rectification of PC / Internet / Java related issues and Bidder may lose the chance of participation in the auction.
13.10	For access to the Auction site, the following URL is to be used: **https://www.bharat-electronictender.com**
13.11	No queries shall be entertained while Reverse Auction is in progress.
13.12	In case user ID is locked, you are requested to call ETS helpdesk.

CLAUSE NO.	ANNEXURE-I TO ITB: TERMS AND CONDITIONS OF REVERSE AUCTION
14	**USER HELP**
14.1	Log on to **https://www.bharat-electronictender.com**
14.2	Enter your Login ID & Password. Click on the link ‘Login’ You will reach your account Home Page 
14.3	Enter the Auction Cockpit. ***Check points for starting real time auction*** • Check the details of Reverse Auction participating for, • Had taken the vendor training • Correct Item name that is set for Reverse Auction • Opening price, duration, and bid decrement of the Reverse Auction, as communicated

ANNEXURE-II TO ITB : BUSINESS RULES OF REVERSE AUCTION

EPC Package for Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) AT ABVTPS Project of CSPGCL
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

BUSINESS RULES OF REVERSE AUCTION

1. Evaluation of Price Bids:

1.1 Bidders shall quote **their Bid Price in INR (including all taxes & duties and GST)** in the Electronic Forms **Pc**, **Po** of Financial Part on ETS portal, such that their sum total shall be their **Total Bid Price in INR (including all taxes & duties and GST)**. In other words,

P=Pc+Po

a. **P is sum of the Total Initial Cost of the Project in INR (Pc), and O&M Cost (Po) (**without NPV discounting**) in INR for Fifteen years.**

b. Pc= **Total Initial Cost of the Project** quoted (in INR), i.e., Schedule-1 + Schedule-2 + Schedule-3 + Schedule-6

c. Po= The O&M Cost (Po) shall be sum of year wise cost (including all taxes & duties and GST) **in INR** comprising of O&M, extended warranty cost, etc. for 15 years from the date of successful commissioning of the project, as quoted by bidder (i.e. without NPV discounting) in INR, in Price Schedule-7
Note: The fifteen-year O&M period includes comprehensive operation and maintenance services—including spares, warranty support, preventive maintenance, breakdown maintenance and round the clock operation —for both the Solar and BESS systems during the first five years, followed by comprehensive O&M including spares, augmentation, warranty, Preventive and Breakdown maintenance and round the clock operation for the BESS system for the remaining ten years

d. **G is the Total Annual Generation in MU** at output of Solar IDT (**Metering Point** as per technical specification and tender drawings) to be quoted in **Attachment 18** of bidding document)

e. G also remains fixed during Reverse Auction for the respective bidder as quoted in the Attachment-18 of Techno-commercial bid. The Bidder with the lowest '**Q**' shall be declared the successful bidder.

f. *Generation shall be considered up to three decimal points only.*

(A) The minimum quoted Generation at the metering point for the first year:

Table:1

Capacity (MW)	Minimum guaranteed Generation (MU)- GG
6	13.92 MU

The Break-up of these prices are to be furnished in the Price Schedules, as per provisions of BDS Clause 4.2 [ITB Clause 10.3]

Bidders shall quote **their Bid Price in INR (including all taxes & duties and GST)** in the Electronic Forms **Pc**, **Po** of Financial Part on ETS portal, such that their sum total shall be their **Total Bid Price in INR (including all taxes & duties and GST)** for the total 6 MW capacity with 24 MWh BESS including Comprehensive Operation and Maintenance (O&M), extended warranty cost, etc. for 15 years from the date of successful commissioning of the project. The fifteen-year O&M period includes comprehensive operation and maintenance services—including spares, warranty support, preventive maintenance, breakdown maintenance and round the clock operation —for both the Solar and BESS systems during the first five years, followed by comprehensive O&M including spares, augmentation, warranty, Preventive and Breakdown maintenance and round the clock operation for the BESS system for the remaining ten years

12 Single e-RA shall be conducted for the total capacity

1.3 BID EVALUATION Criteria The Evaluation criteria for the total 6MW with 6MW/24 MWh BESS capacity shall be as per the following formula:

$$L= Q + (A/G)$$

L = Evaluated Bid Price in INR/ MU (including all taxes & duties and GST)

$$Q= P/G$$

Where:

P=Pc+Po

P is sum of the Total Initial Cost of the Project in INR (Pc), and O&M Cost (Po) (without NPV discounting**) in INR for Fifteen years.**

Pc= **Total Initial Cost of the Project** quoted (in INR), i.e., Schedule-1 + Schedule-2 + Schedule-3 + Schedule-6

Po= The O&M Cost (Po) shall be sum of year wise cost (including all taxes & duties and GST) **in INR** comprising of O&M, extended warranty cost, etc. for 15 years from the date of successful commissioning of the project, as quoted by bidder (i.e. without NPV discounting) in INR, in Price Schedule-7

Note: The fifteen-year O&M period includes comprehensive operation and maintenance services—including spares, warranty support, preventive maintenance, breakdown maintenance and round the clock operation —for both the Solar and BESS systems during the first five years, followed by comprehensive O&M including spares, augmentation, warranty, Preventive and Breakdown maintenance and round the clock operation for the BESS system for the remaining ten years

G is the Total Annual Generation in MU at output of Solar IDT (**Metering Point** as per technical specification and tender drawings) to be quoted in **Attachment 18** of bidding document).

A= Net Present Value (NPV) of the sum of year wise O&M cost (including all taxes & duties and GST) **in INR = (**P_o **-**P_o'**)**

Where,

P_o' = Sum total of Net Present Value (NPV in INR, including all taxes & duties and GST) of year-wise O&M Cost quoted in Price Schedule-7

Discount rate of 7.5% will be adopted for NPV calculations for quoted year wise **O&M Cost** in schedule-7, as per following year-wise NPV factors:

Year	Year-wise NPV Factor [NPV of Nth year (N=1 to 15)]
1	0.93023
2	0.86533
3	0.80496
4	0.74880
5	0.69656
6	0.64796
7	0.60275
8	0.56070
9	0.52158
10	0.48519
11	0.45134
12	0.41985
13	0.39056
14	0.36331
15	0.33797

In case, schedule-7 is not uploaded or the break-up is not furnished in Schdule-7 then the quoted Sum total (Including taxes, duties and GST) of Schedule-7 (on ETS Portal) shall be equally divided by fifteen (15) to arrive at Yearly O&M Cost as mentioned in Schedule-7 and the same shall be considered for the purpose of evaluation of bid. ~~and the same shall be considered as break up of Schedule-7 in case of award~~

The Bidder shall quote a total O&M cost for Fifteen Years not **less than fifteen percent (15%) of the Initial Capital Cost Pc' (i.e.** sum total Schedule-1 + Schedule-2 + Schedule-3 + Schedule-6, as quoted by bidder in respective price schedules).

Calculation of Evaluated Bid Price in INR/ MU (Example for Illustration): A sample illustrative Bid Evaluation is shown below to help & guide the bidders:

S. No.	CAPACITY	QUOTED FOR	NPV Factor	QUOTED PRICE in relevant Price Schedule	EVALUATED PRICE
				(In INR)	(In INR)
(A)	(B)	(C)	(D)	(E)	(F)= (D) * (E)
1	6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWhr BATTERY ENERGY STORAGE SYSTEM (BESS)	Total Initial Cost of the Project in INR (Pc)	1	45,00,00,000.00	45,00,00,000.00

2	6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWhr BATTERY ENERGY STORAGE SYSTEM (BESS)	Total Bid Price of 15 years O&M of Solar+ BESS (**P_o**) as per technical specification		23,63,62,670.61	12,79,42,230.98
Total Quoted (P)				68,63,62,670.61	57,79,42,230.98
3	**Calculation of Net Present Value (NPV) Adjustment for O&M Costs= 'A' = (Po'-Po)**				
				Po	**P'_o**
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-1 (O&M of Solar+ BESS)	0.93023	1,00,00,000.00	93,02,300.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-2(O&M of Solar+ BESS)	0.86533	1,10,00,000.00	95,18,630.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-3(O&M of Solar+ BESS)	0.80496	1,21,00,000.00	97,40,016.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-4(O&M of Solar+ BESS)	0.7488	1,33,10,000.00	99,66,528.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M COST (O&M) – Year-5(O&M of Solar+ BESS)	0.69656	1,46,41,000.00	1,01,98,334.96
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-6 for BESS	0.64796	1,10,00,000.00	71,27,560.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE BESS SERVICE COST (O&M) – Year-7 for BESS	0.60275	1,21,00,000.00	72,93,275.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-8 for BESS	0.5607	1,33,10,000.00	74,62,917.00
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE BESS SERVICE COST (O&M) – Year-9 for BESS	0.52158	1,46,41,000.00	76,36,452.78
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-10 for BESS	0.48519	1,61,05,100.00	78,14,033.47

	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-11 for BESS	0.45134	1,77,15,610.00	79,95,763.42
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-12 for BESS	0.41985	1,94,87,171.00	81,81,688.74
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M COST (O&M) – Year-13 for BESS	0.39056	2,14,35,888.10	83,72,000.46
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-14 for BESS	0.36331	2,35,79,476.91	85,66,659.76
	6 MW COUPLED WITH 6 MW /24 MWhr (BESS)	YEAR-WISE O&M (O&M) – Year-15 for BESS	0.33797	2,59,37,424.60	87,66,071.39
	Sum total for 1st years to 15th year =			23,63,62,670.61	12,79,42,230.98
	Net Present Value (NPV) Adjustment for O&M Cost for 1st to 15th Year in INR (A)				**-10,84,20,439.64**
7	Total Bid Price of project in INR (**P**= Pc+Po)				68,63,62,670.61
8	Yearly Generation corresponding to actual DC:AC ratio selected (i.e. 'G') has been quoted as 2.3 MU in Attachment-18)				2.32
9	**Q**= P/G = Quoted Bid Price in INR/MU for complete project (i.e. Solar with BESS) (Assumption: Yearly Generation corresponding to actual DC:AC ratio selected (i.e. 'G') has been quoted as 2.3 MU in Attachment-18)				29,58,45,978.71
10	**A**= Net Present Value (NPV) Adjustment for O&M Cost for 1st to 15th Year in INR				-10,84,20,439.64
11	**E** = Q + A/G= Evaluated Bid Price in INR/ MU				24,91,13,030.59

Figures mentioned above are for illustrative purposes only.

2 Ceiling Limit of Evaluated Bid Price: Not Applicable.

1. Short listing of Bidders:

After completion of evaluation of Techno-Commercial bids, price bids of all qualified bidders shall be opened. Ranking of all the qualified bidders shall be done based on their **Evaluated Bid Price (L)** which shall be calculated as detailed at para no. 1.1 above. Highest Rank (Rank-1) will be given to the bidder who has the lowest Evaluated Bid price and so on.

If the Evaluated Bid Price is same for two or more bidders, then the following rules for tie break shall be applied in sequence as under:

(a) Rule-2 - Bidder with higher Annual Generation (G) shall be given higher ranking
(b) Rule-3 - The relative ranking shall be decided through draw of lots.

For shortlisting of the bidders for Reverse Auction, the following methodology shall be adopted before carrying out the Reverse Auction process:

Sl. No.	No. of Qualified Bidders	Action to be done
a)	Upto 3 bidders	Reverse Auction shall be carried out among all the Qualified Bidders.
b)	4 to 9 Bidders	Reverse Auction process shall be carried out after removing the one (1) Highest Evaluated Bidder (i.e. H1 Bidder).
c)	10 to 20 Bidders	Reverse Auction process shall be carried out after removing the two (2) Highest Evaluated Bidders (i.e. H1 and H2 Bidders).
d)	21 or more than 21 Bidders	Reverse Auction process shall be carried out after removing the three (3) Highest Evaluated Bidders (i.e. H1, H2 and H3 Bidders).

Subject to H1, H2, H3… elimination defined above, all the shortlisted bidders will be invited in the Reverse Auction.

2. Schedule for Reverse Auction:

After evaluation of Techno-Commercial Bids, date and time of start of Reverse Auction shall be intimated to all the bidders who have submitted their bids at least **Five (5) days** prior to Reverse Auction. **Initial duration of Reverse Auction shall be 30 minutes.**

All the shortlisted bidders for Reverse Auction (RA) shall be intimated about their eligibility for participation in Reverse Auction, two hours before the start of Reverse Auction. ***<u>Along with this intimation for eligibility for participation in Reverse Auction, the Evaluated Bid Price of a bidder calculated by the Employer in accordance with para no. 1.1 above shall also be intimated to the respective bidder. It may be noted that a bidder's own Evaluated Bid Price only shall be intimated.</u>*** The Reverse Auction shall be carried out on Evaluated Bid Price in **INR per MU** including all taxes and duties.

3. Auction extension time:

If a valid bid, accepted as lowest bid, is placed within 8 minutes of End Time of the Reverse Auction, then Reverse Auction duration shall get automatically extended for another 8 minutes from the existing end time. It may be noted that the auto-extension will take place only if a valid bid, which is defined as the lowest bid, comes in those last 8 minutes. **If the valid bid (i.e the lowest bid) is not received within** those last 8 minutes**, the auto-extension will not take place.** The above process will continue till no lowest bid is received in the last 8 minutes which shall mark the completion of Reverse Auction. However, bidders are advised not to wait till the last moment to enter their price to avoid complications related to internet connectivity, their network problems, system crash down, power failure etc.

The Reverse Auction will be conducted on 'Beat the L1' basis i.e. bidders will only be able to

reduce their Evaluated bid price to an amount lower than the Evaluated bid price of current L1 bidder.

4. Price to be Quoted During Reverse Auction:

The variable parameter in the reverse auction shall be the **Evaluated Bid Price (L)**. At the start of reverse auction each bidder shall be assigned its Evaluated Bid Price (L) determined by the Employer in accordance with **para no. 1.1** above and intimated to them as per provision at **para 2** above. On E-Reverse Auction overview page, the bidders are advised in their own interest to view their start price (which shall be same as their 'Evaluated Bid Price' and displayed in Bidder's window as 'My Financial Bid Price'). In case there is any discrepancy in the Start Price (which shall be same as their 'Evaluated Bid Price'), the same shall be immediately intimated to the Employer before start of Reverse Auction otherwise the Start Price will be considered final and binding on that bidder. The Reverse Auction shall be conducted on Evaluated Bid Price (L) i.e. a bidder shall reduce its Evaluated Bid Price. The minimum Bid Decrement shall be intimated before start of reverse auction.
Bidders will only be able to reduce their Evaluated bid price to an amount lower than the Evaluated bid price of current L1 bidder subject to the condition that the decrement cannot be less than the minimum bid decrement. However, no upward revision of Evaluated Bid Price will be allowed.

During the reverse auction, the following information will be displayed in the bidder's bidding window:

(i) Their initial Evaluated Bid Price as their Start Price initially and thereafter their last evaluated bid price.

(ii) The Lowest Evaluated Bid price (L1) at any particular moment of the Reverse Auction.

6. Post Reverse Auction Procedure, Award Criteria and Award Price:

6.1 Post Reverse Auction Procedure, Award Criteria

After the Reverse Auction, bidders would be ranked in ascending order of their Evaluated Bid Price as L-1, L-2, L-3, L-4 and so on with L-1 being the bidder with lowest '**Evaluated Bid Price INR per MU'**. The Project would be awarded to the L-1 Bidder.

In case of tie among two or more bidders (i.e. their last evaluated bide price being same), the resolution shall be done as under:

i) The First Criterion shall be the time stamping of last bid quoted by bidders in reverse auction. The preference shall be given to that bidder who has quoted its last bid earlier than other such bidders.

ii) The Second Criterion shall be applied in sequence as per para 2 above indicated for breaking the tie.

Notwithstanding to above Employer shall consider award for a block after conclusion of Reverse Auction and subject to the terms and conditions mentioned in the bidding documents.

It is expressly stated that the ranking of the bidder for block allocation shall purely be based on the 'Evaluated Bid Price per MU' received during Reverse Auction, irrespective of the no. of blocks/ capacity quoted by them. Employer shall not entertain any claim in this regard.

6.2 Award Price

6.2.1 After conclusion of the Reverse Auction event, the successful bidder shall submit item wise price break up for all the items to Employer in the prescribed Price Schedule format/price break up sheet (Price Break-up after Reverse Auction in excel) and in line with the provisions of Bidding Documents duly signed by the authorized person, within two (02) hours of Auction end time without fail.

6.2.2 Bidders to note that the Final Total Price as per item-wise detailed break-up (including taxes, duties and GST) of price shall be furnished in Price Schedule-1, 2, 3, 6, and 7 in such a manner that it derives the final Quoted price based on the **“Total Evaluated Bid Price”** received after completion of Reverse Auction (RA). It may be noted while preparing the price schedule, the final break up of prices furnished by the successful bidder, shall be equal to the **“Total Evaluated Bid Price** received after completion of reverse auction (i.e. **[total of prices in Price Schedules 1, 2, 3, 6 + the new NPV of revised price break-up in Price Schedule-7 i.e. “Total Evaluated Bid Price”]** of the successful bidder as mentioned at clause 27.5 of ITB). Any difference due to approximation shall be adjusted to the Auction Price Received.

6.2.3 Successful bidder is that bidder who is eligible for award in terms of clause 6.1 above.

The contract shall be awarded to successful bidder selected in terms of clause 6.1 above at the following price:

Award Price = (including taxes, duties GST)	**Total of prices in Price Schedule-1, 2, 3, 6 + O&M cost of Fifteen years (including taxes, duties and GST)* after e-RA**

However, the Contract Price shall be the sum of the prices in Price Schedules 1, 2, 3, 6, and 7 excluding ‘taxes, duties and GST’ furnished by the bidder after reverse auction matching the **Total Evaluated Bid Price** as discussed at para 6.2.2 above and the ‘taxes, duties and GST’ shall be paid/reimbursed by employer to the bidder as per the provisions of the bidding documents.

6.3 In case the L-1 bidder declines to accept the offer for award, it’s bid security shall be forfeited and the bidder shall be treated ineligible for participation in future tenders of NTPC REL as per relevant provisions of bidding document.

In case the successful bidders declines to accept the offer for award, then such bid shall be rejected and such bidder shall be treated as ineligible for participation in the future tenders issued from NTPC REL relevant provisions of bidding document.

6.4 Notwithstanding to above, Employer shall consider award for a Block after conclusion of Reverse Auction subject to the terms and conditions mentioned in the bidding documents.

7. If no bid is received in the auction system/ website within the specified time duration of the online RA, then Employer will scrap the online Reverse Auction process and proceed with the Bid Price received through e-tendering for further processing.

8. Online Reverse Auction shall be conducted by Employer on pre-specified date and time, while the bidders shall be quoting from their own offices/ place of their choice. Internet connectivity shall have to be ensured by bidders themselves.

However, in order to ward-off such contingent situation, bidders are requested to make all the necessary arrangements/ alternatives whatever required so that they are able to circumvent such situation and still be able to participate in the Reverse Auction successfully. Failure of power or loss of connectivity at the premises of bidders during the Reverse Auction cannot be the cause for not participating in the Reverse Auction. Employer shall not be responsible for such eventualities.

9. Bidders are advised to get fully trained and clear all their doubts such as Refreshing of Screen, Quantity being Auctioned, Tender Value being Auctioned, auction Rules etc.

10. After completion of the Reverse Auction event, successful bidder shall submit item wise price break up for all the items to Employer in the prescribed format / price break up sheet (Price Break-up Reverse Auction uploaded by Employer in excel) and in line with the provisions of Bidding Documents, within 2 hours of conclusion of the RA.

Bidder to note that the Final Total Price as per item wise detailed break-up (including taxes and duties) shall not exceed the **Award Price** **to be calculated as per para no. 6.2 above** after completion of RA, which means any difference due to approximation shall be adjusted to Award Price **to be determined as per para no. 6.2 above**. Bidder may categorically note that the Final Price quoted by them in the Reverse Auction should cover the complete scope of the package inclusive of all taxes and duties.

11. Any variation between the Final Bid Value and that in the Confirmatory Price Breakup, except approximation made in Final Bid Value, sent through registered e-mail will be considered as tampering the tender process and will invite action by Employer as per extant guidelines in vogue.

12. All bids made from the Login ID registered with ETS Portal **https://www.bharat-electronictender.com** will be deemed to have been made by the bidder/ bidders' company.

13. Employer's decision on Award of Contract shall be final and binding on all the Bidders.

14. NTPC REL reserves the right to cancel/reschedule/extend the Reverse Auction process/ tender at any time, before ordering, without assigning any reason.

14.1 NTPC REL shall not have any liability to bidders for any interruption or delay in access to the site irrespective of the cause. In such cases, the decision of Employer shall be bidding on the bidders.

15. Other Terms and Conditions shall be as per Bidder's Techno-Commercial offers and as NTPC REL's Bidding Documents and other correspondences, if any, till date.

16. Bidders are required to submit their acceptance to the stipulated Terms and Conditions before participating in the Reverse Auction.

The following would be parameters for e-Reverse Auction:

S#	Parameter	Value
1	Date and Time of Reverse-Auction Bidding Event	Will be intimated to the responsive bidders later.
2	Duration of Reverse-Auction Bidding Event	*30 minutes*
3	Automatic extension of the 'Reverse-Auction Closing Time', if last bid received is within a 'Pre-defined Time-Duration' before the 'Reverse-Auction Closing Time'	Yes (subject to conditions prescribed in para 5 above)
3.1	Pre-defined Time-Duration	08 Minutes
3.2	Automatic extension Time-Duration	08 Minutes
3.2	Maximum number of Auto-Extension	*n* Automatic Extension
4	Criteria of Bid-Acceptance	As per provisions of bidding documents
5	Entity – Start-Price	Will be informed before the start of Reverse Auction
6	Minimum Bid-Decrement	Will be informed before the start of Reverse Auction

SECTION – III

BID DATA SHEET (BDS)

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SECTION - III

"Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)"

The following bid specific data for the Plant & Equipment to be procured shall amend and/or supplement the provisions in the Instructions to Bidders (ITB). Whenever there is a conflict, the provisions herein shall prevail over those in the ITB.

Invitation for Bids (IFB) No. : NRE-CS-5839-CNGEL-EPC

		Mode & Type of Bidding Instructions Related to E-Tendering: Bidders are required to go through the Guidelines provided at following e-tendering site: **https://www.bharat-electronictender.com**
	A.	**INTRODUCTION**
1.	ITB 1	**Bidders Eligible for Bidding**
1.1	ITB 1.1	Bidding for the package named in the Bid Data Sheet (BDS) Item no. 1 is open to bidders from within the Employer's country only, subject to fulfillment of conditions specified in ITB Clause "Restrictions on procurement from a Bidder of a country which shares a land border with India".
1.2	ITB 1.2	Name of the Employer: **NTPC Renewable Energy Ltd.** Name of the Package: **Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL** Locations of the above blocks will be as indicated in the Section-VI (Technical Specifications).
	B.	**THE BIDDING DOCUMENTS**

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
2. (a)	ITB 5.1	Address of Employer : NTPC Renewable Energy Ltd. Contract Services, 4th Floor, NTPC Energy Technology Research Alliance Complex, E-3, Ecotech-II, Udyog Vihar, Greater Noida, Gautam Buddha Nagar, U.P. PIN-201306 Telephone No. +91-120-2356627, +91-120-2356525, +91-9418084741 E-mail: prishantpathik@ntpc.co.in/ vishaljain@ntpc.co.in
2. (b)	ITB 5.4	Add ITB Clause 5.4 as per following: The Bidder or his authorised representative is invited to attend pre-bid conference which will take place through online video-conferencing (on Microsoft Teams) and bidder can participate in the pre-bid conference from his own office/location. Bidder shall be required to furnish the e-mail IDs of its authorized persons who shall attend the pre-bid conference. Maximum two persons shall be allowed to participate in the pre-bid conference from each organization. The link of the tele-conferencing shall be shared by Employer through e-mail. Bidder can send their e-mail IDs on **prishantpathik@ntpc.co.in/ vishaljain@ntpc.co.in**. The pre-bid conference shall be arranged at **11.00 AM** onwards on the date specified in IFB. The purpose of the conference will be to clarify any issue regarding the Bidding Documents. The Bidder is requested to submit questions in writing to reach the Employer at the address indicated above, prior to the pre-bid conference. Record notes of the pre-bid conference including the Employer's responses to the queries released by the bidders in writing shall be transmitted to all the prospective bidders who have purchased the bidding documents. Further, any modifications of the Bidding Documents which may become necessary as a result of the pre-bid conference shall be made by the Employer exclusively through an amendment to the bidding documents and not through the record notes of the pre-bid conference. Non-attendance at the pre-bid conference will not be a case for disqualification of a bidder.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
	C.	**PREPARATION OF BIDS**
2. (c)	ITB 8.1.1	Add the following at the end of existing para: **General Technical Evaluation (GTE) Conditions:** Bidders shall be required to accept the following mandatory General Technical Evaluation (GTE) conditions of the Tender at e-Tender Portal prior to the submission of Bid: (a) "Do you certify full compliance on Qualifying Requirements?" (b) Do you certify full compliance to all provisions of Bidding Document? (c) "Do you accept Fraud Prevention Policy of Employer?" (d) "Do you certify full compliance on ITB Clause "Restrictions on procurement from a Bidder of a country which shares a land border with India"?" (e) "Do you Commit to all the provisions of the Integrity Pact?" (f) "Do you Commit to all the provisions of the Non-Disclosure Agreement?" Acceptance of above GTE shall be considered as Bidder's confirmation that any deviation to the provisions of Bidding Documents found anywhere in their Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which the bid shall be rejected and bid security shall be forfeited.
3.	ITB 8.2.4(c)	**Qualification Requirements for Bidders (QR)** **In addition to the requirements stipulated under section Instruction to Bidder (ITB), the Bidder should also meet the qualifying requirements stipulated hereunder in Clause 1.0 and Clause 2.0**
3.1		Qualifying Requirement for **EPC PACKAGE FOR DEVELOPMENT OF 6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWHR BATTERY ENERGY STORAGE SYSTEM (BESS) AT ABVTPS PROJECT OF CSPGCL** **PROJECT CONFIGURATION: 6 MW FSPV WITH 6 MW /24 MWHR BESS** In addition to the requirements stipulated under section Instruction to Bidder (ITB), the Bidder should also meet the

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		qualifying requirements stipulated hereunder in Clause 1.0 and Clause 2.0 **1.0 TECHNICAL CRITERIA** 1.1 The Bidder should have designed, supplied, erected/ supervised erection and commissioned/ supervised commissioning of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or above, out of which at least one plant should have been of 2.0 MWp capacity or above. The reference plant of 2.0 MWp or above capacity must have been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening. OR 1.2 The Bidder should be a developer of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or above, out of which at least one plant should have been of 2.0 MWp capacity or above. The reference plant of 2.0 MWp or above capacity must have been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening. OR 1.3 (a) The Bidder should have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power/ steel/ oil and gas/ petrochemical/ fertilizer/cement/coal mining including coal handling plant and/ or any other process industry, of a value of INR 47 Crore (Indian Rupees Forty Seven Crore only) or more, in a single project or single work and the same should be in successful operation for at least one (1) year/Six(6)months* prior to the date of techno-commercial bid opening. *Successful Operation:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind. At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind). And (b) The Bidder should have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power/ steel/ oil and gas/ petrochemical/ fertilizer/cement/coal mining including coal handling plant and/ or any other process industry, of a value of **INR 47 Crore** (Indian Rupees Forty Seven Crore only) or more, in a single project or single work and the same should be in successful operation for at least one (1) year/Six(6)months* prior to the date of techno-commercial bid opening. *Successful Operation: At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind. At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind). 1.4 The bidder should be an Indian company registered in India and should be Group company/Holding Company/Subsidiary company of a firm meeting the requirement (s) of Clause 1.1 or 1.2 or 1.3 above. In such a case, Bidder shall furnish an Undertaking jointly executed by the firm qualified as per clause 1.1 or 1.2 or 1.3 and the Bidder along with its bid for complete performance of the contract jointly and severally as per format enclosed in the bid document failing which the Bidder's bid is liable to be rejected. **Notes for clause 1.0:**

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		a) The reference SPV based grid-connected power plant of 2MWp or above capacity should be at a single location developed by Bidder for itself or any other client. b) SPV based Roof -top/Floating Solar power projects, which are grid connected, shall also be considered eligible for QR purposes. c) For clause 1.1 & 1.3, bidder shall submit certificate of successful completion and operation from the Owner. However, if bidder in clause 1.3 is a developer, certificate of successful commissioning of the project issued from Government Renewable Nodal Agency/Government Enterprise/ Discom/ Electricity Board etc and evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc shall be submitted. d) For Clause 1.3, bidder shall submit a documentary evidence for the value of the project certified by a Chartered Accountant. The specified value of executed work shall be exclusive of Taxes. e) Direct/Indirect Order The bidder shall also be considered qualified, in case the award for executing the reference work has been received by the bidder either directly from the owner of the plant or any other intermediary organization. In such a case, a certificate from such owner of plant or any other intermediary organization shall be required to be furnished by the bidder along with its techno-commercial bid in support of bidder's claim of meeting the qualification requirement as per clause 1.1 and 1.3 above. Bidder shall also submit a certificate of successful completion and operation from the Owner. f) For Clause 1.2, bidder shall submit certificate of successful commissioning of the project issued from

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Government Renewable Nodal Agency/ Government Enterprise/ Discom/ Electricity Board etc. g) For Clause 1.2, bidder shall submit evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc. h) Developer means an entity who has either executed or got executed the work/ project as owner of industrial projects. i) The execution of industrial project as EPC Contractor under Clause No. 1.3 means, such EPC Contractor is responsible for all the activities i.e. Design/Engineering, Procurement, Construction (with/without civil works) and Commissioning of a project/work. j) The portion of work related to power transformer such as supply and or installation mentioned at cl.no. 1.3 (b) can either be done by EPC contractor by themselves or by the owner. k) EPC projects with solar PV module supplied by developer/owner as free issue item to EPC contractor shall also be considered eligible for route 1.1 of QR. l) if the value of industrial project in clause 1.3 (a) is indicated in foreign currency, the exchange rate as on date of award of the reference work shall be considered. in case the exchange rate as on the date of award not available, the exchange rate as on the next available day shall be considered. **2.0 FINANCIAL CRITERIA** 2.1 The average annual turnover of the Bidder, should not be less than **INR 47 Crore (Indian Rupees Forty Seven Crore only)** during the preceding three (3) financial years as on date of techno-commercial bid opening. In case a Bidder does not satisfy the annual turnover criteria, stipulated above on its own, its Holding Company would be required to meet the stipulated turnover requirements as above, provided that the Net Worth of such Holding Company as on

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		the last day of the preceding financial year is at least equal to or more than the paid- up share capital of the Holding Company. In such an event, the Bidder would be required to furnish along with its Techno-Commercial Bid, a Letter of Undertaking from the Holding Company, supported by the Holding Company's Board Resolution, as per the format enclosed in the bid documents, pledging unconditional and irrevocable financial support for the execution of the Contract by the Bidder in case of award. 2.2 Net Worth of the Bidder as on the last day of the preceding financial year should not be less than 100% (hundred percent) of Bidder's paid-up share capital. In case the Bidder does not satisfy the Net Worth criteria on its own, it can meet the requirement of Net worth based on the strength of its Subsidiary(Ies) and/or Holding Company and/or Subsidiaries of its Holding companies wherever applicable, the Net worth of the Bidder and its Subsidiary(ies) and/or Holding Company and/or Subsidiary(ies) of the Holding Company, in combined manner should not be less than 100% (hundred percent) of their total paid up Share capital. However individually, their Net worth should not be less than 75% (seventy five percent) of their respective paid-up share capitals. Net worth in combined manner shall be calculated as follows: Net worth (combined) = (X1+X2+X3)/(Y1+Y2+Y3) X 100 where X1, X2, X3 are individual Net worth which should not be less than 75% of the respective paid-up share capitals and Y1, Y2, Y3 are individual paid-up share capitals. 2.3 In case the Bidder is not able to furnish its audited financial statements on standalone entity basis, the unaudited unconsolidated financial statements of the Bidder can be

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		considered acceptable provided the Bidder further furnishes the following documents on substantiation of its qualification: a) Copies of the unaudited unconsolidated financial statements of the Bidder along with copies of the audited consolidated financial statements of its Holding Company. b) Certificate from the CEO/ CFO of the Holding Company, as per the format enclosed in the bidding documents, stating that the unaudited unconsolidated financial statements form part of the consolidated financial statement of the Holding Company. In case where audited results for the last financial year as on date of techno-commercial bid opening are not available, the financial results certified by a practicing Chartered Accountant shall be considered acceptable. In case the Bidder is not able to submit the Certificate from a practicing Chartered Accountant certifying its financial parameters, the audited result of three consecutive financial years preceding the last financial year shall be considered for evaluating financial parameters. Further, a certificate would be required from the CEO/CFO as per the format enclosed in the bidding documents stating that the financial results of the company are under audit as on techno-commercial bid opening and the Certificate from a practicing Chartered Accountant certifying the financial parameters is not available. Notes for Clause 2.0: a) Net worth means the sum total of the paid-up share capital and free reserves. Free reserves means all reserves credited out of the profits and share premium account but does not include reserves credited out of the revaluation of the assets, write back of depreciation provision and amalgamation. Further any debit balance of Profit and Loss account and miscellaneous

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		expenses to the extent not adjusted or written off, if any, shall be reduced from reserves and surplus. b) Other income shall not be considered for arriving at annual turnover. c) “Holding Company” and “Subsidiary” shall have the meaning ascribed to them as per Companies Act of India. d) ‘Group Company’ means two or more enterprises which, directly or indirectly, are in a position to: i. exercise twenty-six percent or more of voting rights in other enterprise; or ii. appoint more than fifty percent of members of Board of Directors in the other enterprise. The meaning of Holding/Subsidiary/Group Company mentioned above shall be applicable for Clause 1.4 also. e) For the value of annual turnover indicated in foreign currency, the exchange rates as on seven (7) days prior to the date of Techno-commercial bid opening shall be used.
3.3	ITB 8.2.4 (c)	Bids not meeting the requirements as stated above shall be rejected.
3.4	ITB 8.2.4 (c)	The reference plants whose details have been declared as per the specified format in the relevant attachment (i.e. Attachment No. 3A) shall only be considered to ascertain the bidder's compliance to the specified Qualifying Requirement (QR). Bidders wishing to provide additional reference plants are required to declare the same in similar format which shall be additionally attached. However, bidders are not permitted to quote more than three (3) times of number of reference plants for this purpose. Bidders are required to furnish the details of the past experiences based on which selection is to be made as per format enclosed in the bidding documents for the same and enclose relevant documents like copies of authentic work order, completion certificate, agreements, etc. supporting the details/data provided in the format. No claims without supporting documents shall be accepted in this regard. However, if any of the reference work pertains to the Contract(s)/ Works executed by bidder for NTPC/ NTPC REL

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		in the past then in respect of such Contract(s)/ Works Bidder shall not be required to enclose Client Certificate(s) along with its bid. **Bidders may take note of the following points regarding submission of reference plants:** i. After issuance of IFB/ NIT, Employer shall issue a communication separately to prospective bidders, who have been considered qualified meeting similar Technical QR in another tender in the past, stating that while submitting their bid, they are not required to submit the details/ documents pertaining to reference plants/ works/ past experiences in support of meeting Technical QR to the extent mentioned in the communication. In case the bidder who has been issued such communication from the Employer, intends to seek qualification under the same clause/ route (along with the same Associate/ Collaborator/ JV partner/ Consortium partner, if applicable) as mentioned in such communication, then such bidder shall not be required to submit details/ documents pertaining to reference plants / works / past experiences in support of meeting Technical QR while submitting their bid. Such bidder shall be required to declare in Attachment-3A (Attachment seeking Bidder's Technical Qualification Detail) that they have received communication from the Employer and are not required to submit details/ documents pertaining to reference plants/ works/ past experiences for meeting Technical QR. However, the bidder shall be required to submit any other details pertaining to Technical QR such as applicable Deed of Joint Undertakings/ Joint Venture Agreements/ Technology Transfer Agreements etc. (as applicable). ii. In case such bidder, who has been issued above communication from Employer, wishes to seek qualification under a different clause/ route of QR and/ or with the support of a different Associate/ Collaborator/ JV partner/ consortium partner, then the bidder shall be required to furnish the requisite details pertaining to reference plants/ works along with supporting documents as sought in the bidding documents. In such a case, communication issued by the Employer as mentioned above shall not be considered applicable.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		iii. All other bidders, who are required to submit the details of the past experiences, shall submit all the documents, in support of Technical Qualification Requirements (such as copy of Purchase Orders/ Work Orders/ Contract Agreements/ Client Certificates etc.), duly certified and verified for authenticity from Independent Statutory Auditor of their Company or specified Third-Party Inspection Agency (TPIA). Further, wherever information can be drawn from books of accounts, records and other relevant documents, Bidders can also submit a certificate issued by their Independent Statutory Auditor certifying the data required for meeting the Technical Qualification Requirements. Such bidder shall be required to submit duly certified and verified documents from their Statutory Auditors or specified TPIA in support of meeting Technical QR along with a certificate regarding verification of authenticity of documents as per the format placed at Appendix-B to Attachment-3A (Undertaking from Statutory Auditor) and/ or Appendix-C to Attachment-3A (Undertaking from TPIA). All the documents submitted by the bidder in support of meeting Technical QR shall be digitally signed by the Statutory Auditor and/ or specified TPIA. iv. In case documents are certified & verified for authenticity through TPIA, the verification and certification of authenticity of documents is acceptable from any of the TPIAs as mentioned at NTPC tender website (https://ntpctender.ntpc.co.in/) under “Policy for Document Authentication Process in Tenders of NTPC Ltd” tab. However, Bidders must verify the accreditation validity of the designated TPIA before proceeding to engage them for document certification. The following website may be referred for contact details and accreditation validity of above mentioned TPIAs: http://nabcb.qci.org.in/accreditation/reg_bod_inspection_bodies.php Any document pertaining to reference works/ plants in support of Technical QR, which is not certified by specified TPIA or Statutory Auditor of the bidder, as per the format enclosed with the bidding documents, shall not be considered verified/ certified for the purpose of evaluation, and the bid shall be liable for rejection.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		v. The Bidder shall be responsible to get their documents/ credentials in support of Qualifying Requirements verified & certified by their Statutory Auditor(s) and/ or specified TPIAs. All the costs pertaining to third party verification and certification (including those by statutory auditors) shall be borne by the Bidder. Employer shall have no liability (financial or otherwise) towards the same and shall not be liable for any claim/ dispute between the bidder and TPIA and/ or Statutory Auditor. The Employer at its discretion may seek any clarification and/or documentary evidence only for the reference plants as mentioned above. However, no change or substitution of the reference plants by new/ additional plant for conforming to the specified Qualifying Requirement shall be sought, offered, or permitted.
3.5	ITB 8.2.4(c)	Whether Joint Ventures are permitted : NO
3.6	ITB 8.2.4(c)	Whether Associate / Collaborator Permitted : NO Whether Consortium Permitted : NO
3.7		NOT USED
3.8	ITB 8.2.4 (j)	**Attachment 9: Technical Data Sheets** Technical Data Sheets duly filled in as per the Employer's format, enclosed with the bidding documents. The details of Nos. of Switchyard Bays, Length of Transmission Line and Details of Land shall be provided in this Attachment. -- **NOT APPLICABLE --**
3.9	ITB 8.2.4 (s)	Add New ITB Clause 8.2.4 (s) as follows: **Attachment 18:** Applicable.
3.10	ITB 8.2.4 (t)	Add New ITB Clause 8.2.4 (t) as follows: **Attachment 19:** Not Applicable.
3.11	ITB 8.2.4(u)	Replace ITB Clause 8.2.4 (u) as under:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		(u) **Attachment 20: Declaration on Local Content** Declaration regarding local content as per the Employer's format, for assessing evaluation eligibility. In case a bidder does not submit the aforesaid declaration or statement/any declaration like 'later', 'to be furnished later', 'NA' etc. are indicated by the bidder, then **its bid is liable to be considered non-responsive and may be rejected".** Further, Bidder shall be required to submit a certificate from the statutory auditor or cost auditor (in the case the bidder is a company) or from a practicing cost accountant or practicing chartered accountant (in respect of bidders other than companies) giving the percentage of local content during execution prior to submission of last bill for payment. In case aforesaid Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same may be treated as false declaration and may be dealt in line with the Fraud Prevention Policy of NTPC.
3.12	8.2.4 (v)	Add a new ITB Clause 8.2.4 (v) as under: **(v) Attachment No 21: Details of Foreign Principals of Indian Bidders** The Bidder shall furnish information with regard to disclosure of the details of its foreign principals or associates (if applicable).
3.13	8.2.4(w)	Add a New Clause No - ITB 8.2.4(w) **Attachment-22: Non-Disclosure Agreement** The "Non-Disclosure Agreement" shall be submitted by the bidder in the form of mandatory confirmation of the following attribute at e-tendering portal failing which its bid shall be rejected. **"Do you Commit to all the provisions of the Non-Disclosure Agreement?"** Bidder is not required to submit the "Non-Disclosure Agreement" offline. On Bidder's acceptance to the above attribute, Bidder / JV Partner(s)/ Consortium members confirm to have read,

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		understood and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Non-Disclosure Agreement as enclosed with the Bidding Documents. On Acceptance of the above attribute, Non-Disclosure Agreement shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid.
3.14	8.2.1(b)	Modify ITB 8.2.1(b) as follows: Bid Security (in line with ITB Clause 12), Power of Attorney (in line with ITB Clause 8.2.4(b)), ~~**Non-Disclosure Agreement (in line with ITB Clause 8.2.4(w))**~~ and Pass Phrase for Technical Part and Pass Phrase for Financial Part have to be submitted offline in original in a separate sealed envelope.
3.15	ITB 8.3.1 (h)	**Attachment 7P**:Not Applicable **Attachment 3P: - Not Applicable**
3.16	ITB 8.3.1 (i)	**Attachment 7P1:** Declaration of Monthwise Generation from one MWp Fixed Tilt based Solar PV Project – **Not Applicable**
3.16a	**ITB** 8.2.4 (c)	Attachment-3L- Declaration regarding insolvency, bankruptcy and Liquidation
3.18	ITB 8.2.4 (r)	**Replace ITB Clause 8.2.4 (r) with the following:** **Attachment 17: Declaration on Policy for debarment from Business Dealings** Declaration on Policy for debarment from Business dealings as per Employer's format. Acceptance to be given online through Electronic Forms on ETS Portal.
3.19	ITB 8.2.4 (x)	**Add a New Clause No - ITB 8.2.4(x)** **Attachment-23:** Declaration for PV Module Performance Insurance. To be submitted along with the Techno-Commercial bid.
4.0	ITB 10.1	Replace ITB clause 10.1 as below: The above bid price shall be without guaranteed generation as the Module is issued as Free Issue item to the bidder and design parameters are predetermined.
4.1	ITB 10.2	Not Used

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
4.2	ITB 10.3	Replace ITB clause 10.3 as below: Bidders are required to fill up their Bid Price per Million Unit in the Electronic Form on the ETS Portal and uploaded on ETS Portal (Financial Part). Further, Generation in Million Unit is to be quoted in Attachment-18 and uploaded in the ETS Portal (Techno-Commercial Part). Bids not containing Attachment-18 liable to be rejected. Separate numbered Schedules shall be used for each of the following elements and all the price schedules shall be furnished within two (2) hours of Auction end time without fail, if required as per the “Terms and Conditions of Reverse Auction “and “Business Rules for Reverse Auction” enclosed at Annexure-I and II to ITB. The sum total of the Schedule-1 + Schedule-2 +Schedule-3 + Schedule-6 shall be equal to the Award Price as defined in “Business Rules for Reverse Auction”.

Schedule No. 1	Ex-works supply of Plant and Equipment including Type Test Charges and Mandatory Spares.
Schedule No. 2	Local Transportation, Inland Transit Insurance and other local costs incidental to delivery of Plant & Equipment and Mandatory Spares
Schedule No. 3	Installation Services including Civil works, Safety Aspects/Compliance to Safety Rules and O&M.
Schedule No. 4	Schedule of Unit Rate (not Applicable)
Schedule No. 5	Recommended Spare Parts (not Applicable)
Schedule No. 6	Goods and Service Tax (GST), applicable on Schedules - 1, 2 & 3, included in the bid price but not included in Schedules-1, 2 & 3.
Schedule No. 7	Year-wise quote for Comprehensive Operation & Maintenance (O&M). This quote shall include all O&M, replacement, and disposal costs. The scope covers five years of comprehensive O&M for the integrated Solar + BESS plant

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		<table><tr><td></td><td>following the PG Test, followed by an additional ten-year O&M period exclusive to the BESS plant</td></tr></table> Bidders shall note that the plant and equipment included in Schedule No. 1 above exclude all materials used for civil, building, and other construction works. All such materials shall be included and priced under Schedule No. 3 (Installation Services). Installation services including erection and Civil/Structural works (as applicable), Insurance covers other than Inland Transit insurance, Safety Aspects/Compliance to Safety Rules and other services as specified in the bidding documents.
4.3	ITB 10.4 (c)	Add the following at the end of existing ITB Clause 10.4(c): (i) Bidders are advised to price their bids in such a manner that Installation Price Component of the bid price (excluding Civil/Structural works price) should not be less than **5%** and should not be more than **10%** of the Ex-works Price of Main Equipment. In case the Installation Price is below the minimum percentage specified above, the amount by which it is lower shall be retained proportionately from the Ex-Works component of Contract price while releasing payments due on receipt of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid on pro-rata basis upon completion of installation of the respective equipment and its certification by the Project Manager. In case the Installation Price is above the maximum percentage specified above, the amount by which it is higher shall be retained while releasing progressive payments due on installation of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid along with payment due on completion of Trial Operation / Completion of Facilities. (ii) Bidders are advised to price their bids in such a manner that the Civil Works Price Component of the bid price (including Site Fabricated Structural works price) should not be less than **5%** and should not be more than **10%** of the total of Ex-works Price of Main Equipment.

In case the Civil Works Price (including Site Fabricated Structural works price) is below the minimum percentage specified above, the amount by which it is lower shall be retained proportionately from Ex-Works component of Contract price while releasing payments due on dispatch of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid on pro-rata basis upon completion of Civil Works including Structural works (if any) corresponding to the respective equipment and its certification by the Project Manager.

In case the Civil Works Price (including Site Fabricated Structural Works Price) is above the maximum percentage specified above, the amount by which it is higher shall be retained while releasing progressive payments due on completion of civil works (including Site Fabricated Structural works), and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid along with payment due on completion of Trial Operation / Completion of Facilities.

(iii) Bidders shall quote their O&M charges as minimum 15% **for Fifteen (15) years** of their Total quoted price excluding O&M Charges and GST. In case O&M Charges are below the minimum percentage of **15 %** as mentioned, the amount by which it is lower shall be retained from the Ex-Works component of Contract price while releasing payments due on receipt of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid on pro-rata basis upon completion of O&M Period and its certification by the project manager.

(iv) Bidders are advised to price their bids in such a manner that the component for ‘Amount linked to Safety Aspects/ compliance to Safety Rules’ should not be less than **5 %** of the cumulative total of Service Portion of the Contract, i.e. Civil + Installation/ Erection + Structural Works. In case ‘Amount linked to Safety Aspects/ compliance to Safety Rules’ is less than aforesaid minimum percentage specified of the cumulative total of Service Portion of the Contract, i.e. Civil + Installation/ Erection + Structural Works, the amount by which it is lower shall be retained proportionately from the other components of Schedule-3 of the Contract price while releasing

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		payments of each RA bill. No interest shall be payable on the amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount. The amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount shall be payable in part or full based on safety compliance duly certified by Project Manager and Safety in-charge on quarterly basis
4.4	ITB 10.6.1	**Modify ITB Clause 10.6.1 as under:** As per relevant Notifications of Govt. of India, the benefits of concessional rate of custom duty (applicable for Solar Photo Voltaic Power Generation Projects) may be available for the import of raw materials, components, subassemblies and equipments, if any, required for manufacture of equipment/ plant/ spares to be supplied under the contract. Bidder may appraise itself of the relevant policies and quote accordingly. The Employer shall issue the requisite certificate as specified in the relevant policy of Govt. of India. For issuance of such Certificate by the Employer, the bidders shall be required to indicate the import content, **at the time of submitting the request for issuance of requisite certificate from Employer for availing benefits of concessional rate of custom duty (if applicable)**. The relevant Certificate will be issued on this basis only. However, if the certificate is required to be issued by any department/ministry of Government of India or State Government where the Project is located other than Employer, the Bidder shall itself be responsible for obtaining such certificate from the concerned department/ministry. In such a case, the Employer may issue recommendatory letter to the bidder. To enable the Employer to issue such certificate / recommendatory letter, the Bidder shall furnish the requisite data. 5.1 ITB 12.1 (a) Amount **of Bid Security: INR1,00,00,000/- (Indian Rupees One Crore only)** (b) **Period of validity of Bid Security:** 45 days beyond expiry of the validity of bid i.e. 165 days from the deadline for submission of bid.
5.2	ITB 12.3	**Add a new BDS item 5.2 as under:** Modify ITB Clause 12.3 as following: The Bank Guarantee for Bid Security shall be from a Bank as listed in Annexure-I to this Section-III (Bid Data Sheet) of Bidding Documents.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		12.3 The Bid Security shall, at the Bidder's option, be in the form of Electronic Fund Transfer (EFT)/ irrevocable Letter of Credit or a bank guarantee from any of the banks specified in the Annexure-I to Section-III (Bid Data Sheets) or an Insurance Surety Bond (ISB) from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) **or Payment on Order Instrument which is a letter of undertaking issued by either of the following three organizations, viz. (i) Indian Renewable Energy Development Agency Limited (IREDA) or (ii) Power Finance Corporation Limited or (iii) REC Limited.** The format of the Bank Guarantee/ Insurance Surety Bond**/ Payment on Order Instrument** shall be in accordance with the form of bank guarantee/ Insurance Surety Bond**/ Payment on Order Instrument** towards bid security included in the Bidding Documents. In case bidder opts for Electronic Fund Transfer (EFT) in lieu of the Bid Security, Bidder shall provide details of EFT transaction as per Form 2B at Section-VII (Book 3 of 3). Bid Security shall remain valid for a period of forty-five (45) days beyond the original Bid validity period and beyond any extension of bid validity subsequently requested under ITB Sub-clause 13.2. Wherever Bids under Joint Venture route are permitted as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture.
5.3	ITB 12.4	Replace ITB clause 12.4 as under: **(a) The Bid Security in original shall be submitted in a separate sealed envelope before the stipulated bid submission closing date and time. In case acceptable Bid Security in a separate sealed envelope is not received then online Bid shall be rejected by EMPLOYER as being non-responsive and shall not be opened.** (b) In case of Bidders opting for Bank Guarantee as Bid Security but unable to submit the Original Bank Guarantee in physical form at the tender opening location, before the deadline for submission of bids, following shall also be considered acceptable:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		(i) The issuing bank shall intimate through their own official e-mail id to concerned C&M department with a copy to Bidder regarding issuance / extension of Bank Guarantee (BG) along with following documents, before the deadline of submission of bids: - a) The scanned copy of the BG b) SFMS / SWIFT message acknowledgement copy sent to Employer's banker stating the date of sending. c) An undertaking from the issuing Bank strictly as per format enclosed at Form 2A Section VII (Book 3 of 3) of bidding documents. SFMS / SWIFT message must be sent to the Employer's bank, details of which are mentioned in Bidding documents. (ii) Bidders shall also be required to upload the scanned copy of the BG on GePNIC (Fee Cover) / e-tendering portal. The bidder shall be required to submit all the documents in the manner as specified at para (b) above, to reach Employer before the deadline for submission of bids, failing which its bid shall be rejected as being nonresponsive and not opened. In such a case, Bidder shall also be required to submit the Original BG in physical form to reach Employer at the address mentioned in Bidding Documents, not later than 10 days from the date of submission of Techno-Commercial bids or before the Price Bid opening, whichever is earlier, failing which its bid shall be rejected and not considered for further evaluation.
5.4	ITB 12.4.1	Add a new ITB clause 12.4.1 as under: Confirmation of BGs (including Bid Security) through Structured Financial Messaging System (SFMS)/SWIFT: While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below: Bank Name: Axis Bank Branch: Axis Bank Ltd,

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		B2-B-3 Sector 16, Noida, Dist: Gautam Buddha Nagar, UP 201301. Account No.: 921020013636047 IFSC Code: UTIB0000022 **While submitting the Bank Guarantee, bidders shall also enclose copy of electronic message sent to the above beneficiary bank.**
6.1	ITB 13.1	Replace the ITB clause 13.1 as follows: **Bids shall remain valid for one hundred & Twenty (120) days** from the closing date prescribed by Employer for the receipt of bids pursuant to Clause 16. The bid valid for shorter period shall be rejected by the Employer as being non-responsive.
6.2	ITB 13.2	Replace the ITB Clause 13.2 as under: In exceptional circumstances, the Employer may solicit the Bidder's consent to an extension of the bid validity period. The request and responses thereto shall be made in writing by post or by telefax/ e-mail followed by post confirmation. If a Bidder accepts to extend the period of bid validity, the validity of bid security shall also be suitably extended. A Bidder may refuse the request without forfeiting its bid security. A Bidder granting the request will not be required nor permitted to modify its bid.
	D.	**SUBMISSION OF BIDS**
7.1	ITB 15.1	Add a new para at the end of the existing clause as under: NTPC REL has invited online bids for the subject package. Request for issuance of Bidding Documents, any clarification sought on the bidding documents, the bid, any modification or withdrawal of bids shall be addressed to NTPC REL as per address given at BDS Item No. 8 and Address for communication given in the detailed IFB included in Section-I of the bidding documents.
7.2	ITB 15.1.1 (vi)	Add a New ITB Clause 15.1.1 (vi) as under: **Integrity Pact:** "The following attribute shall be required to be mandatorily confirmed by the bidder at e-tendering portal, without which its bid cannot be submitted:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		"Do you Commit to all the provisions of the Integrity Pact?" On Bidder's acceptance to the above attribute, Bidder / JV Partner(s)/ Consortium members confirm to have read, understood, and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Integrity Pact which has been pre-signed by the Employer and enclosed with the Bidding Documents. On Acceptance of the above attribute, Integrity Pact shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid. Please refer to Attachment-16, Section VII (Book 1 of 3) for detailed Integrity Pact.
7.3	ITB 15.1.2	Modify ITB Clause no 15.1.2 as below: **Submission of Bid Security, ~~Joint Deed of Undertaking (JDU), if applicable,~~** ~~Joint Venture/ Consortium~~, **Pass Phrases and Power of Attorney in Physical Form.** (a) The bidders are required to submit following original documents in hard copy failing which bid shall not be opened. i. Bid Security (Refer clause no. 8.2.4 (a) of ITB) (b) Deleted (c) The bidders are also requested to submit Power of Attorney, duly notarized in hard copy as per provisions of bidding documents in a separate sealed envelope (Refer clause no. 8.2.4 (b) of ITB). (d) The bidders are also required to submit the two separately sealed envelopes containing Pass Phrase for Technical Part and Pass phrase for Financial Part. (e) Bidders are required to unconditionally accept the "Non-Disclosure Agreement" as per Attachment - 22 to the Bidding Documents **through Attributes on the e-tender Portal**. For the purpose of NDA, the Name, Address and Contact Details of the Bidder shall be the Name, Address and Contact Details mentioned in its bid/Contract. On Bidder's acceptance to provisions of Non-Disclosure Agreement on the etender Portal, Bidder / JV Partner(s)/

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Consortium members confirm to have read, understood and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Non-Disclosure Agreement as enclosed with the Bidding Documents. On Acceptance of the above attribute, Non-Disclosure Agreement shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid. **Bidder's failure to comply with the aforesaid requirement regarding acceptance of provisions of 'Non-Disclosure Agreement' shall lead to outright rejection of the bid**. It may also be noted that subsequent to Employer's evaluation of Bids, resulting into award of Contract to a particular Bidder, the Non-Disclosure Agreement shall form an integral part of the Contract. The envelopes containing Bid Security, ~~JDU or Joint Venture/ Consortium Agreement (if applicable),~~ Power of Attorney, and Pass Phrases shall be sealed in an outer envelope superscribed on the top as under and be addressed to the Employer at the address mentioned in BDS. The above documents shall be submitted well in advance so as to be received by the Employer before the submission closing date and time of bids as described in the time schedule in IFB. "**Original Bid Security**", "**Pass Phrases**", "**Power of Attorney**" for ……………. [Name of the Package], Specification/Package No ……………… Due on....... (Date of Bid Opening) .... From .... (Name of the Bidder)" NTPC REL shall not be liable for loss/non-receipt/late receipt of above documents in postal transit. If Outer envelope is not sealed and marked as required above, the Employer will assume no responsibility for its misplacement.
8.0	ITB 16	Bids shall be submitted online. **Only Bid Security, notarized Power of Attorney, and Pass Phrases** are to be submitted in original hard copy at the following address. Address to which Bids shall be submitted: Dy. General Manager (CS)/ Addl. General Manager (CS) NTPC Renewable Energy Ltd. Contract Services, 4th Floor, NTPC Energy Technology Research Alliance Complex,

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		E-3, Ecotech-II, Udyog Vihar, Greater Noida, Gautam Buddha Nagar, U.P. PIN-201306 Telephone No. 0120-2356627/ 0120-2356525/ +91-9418084741 E-mail: prishantpathik@ntpc.co.in / vishaljain@ntpc.co.in
8.1	ITB 16.1	Add the following at ITB Clause 16.1 as under: Deadline for Bid Submission on the date and time as stated in IFB/any subsequent communication from the Employer.
9.		NOT USED
	E.	**BID OPENING AND EVALUATION**
10.1	ITB 19.1	Location of Bid Opening: Dy. General Manager (CS)/ Addl. General Manager (CS) NTPC Renewable Energy Ltd. Contract Services, 4th Floor, NTPC Energy Technology Research Alliance Complex, E-3, Ecotech-II, Udyog Vihar, Greater Noida, Gautam Buddha Nagar, U.P. India PIN-201306 Date and Time for Techno-Commercial Bid Opening: Please refer Section-I (IFB) / any subsequent communication from the Employer.
10.2	ITB 19.1.2	Replace ITB 19.1.2 as under: 19.1.2 In case requisite Bid Security pursuant to ITB Clause 12 is not submitted in a separate sealed envelope before the stipulated bid submission closing date and time, then bid shall be rejected by Employer as being non-responsive and shall not be opened
11.	ITB 21.8	Add new para 21.8 under ITB clause 21.0 titled **"Preliminary Examination of Techno-Commercial Bid"** 21.8 Bidders shall certify their compliance to ITB Clause "Restrictions on procurement from a Bidder of a country which shares a land border with India" by accepting the

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		following attribute in the Electronic Forms on the ETS e-tender Portal: **"Do you certify full compliance on ITB Clause "Restrictions on procurement from a Bidder of a country which shares a land border with India"?"** Acceptance of above attribute shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding "Restrictions on procurement from a Bidder of a country which shares a land border with India" and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected and bid security shall be forfeited. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practices as mentioned in Policy for Debarment of Business Dealings and shall be dealt accordingly.
12.0	ITB 22.1(d)	Time for Completion of Facilities from the date of Notification of Award: 10 Months Contractor shall also provide Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run. Further, Bidder to provide comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. Bidder has also to provide the 10 year AMC for critical solar equipment's..as detailed in Technical Specifications (Section-VI). The program for furnishing and erecting (including testing and putting into satisfactory operation) the plant and equipment covered in the package shall be in the form of Master Network identifying the Key phases in various areas of total works, like design, procurement, manufacture and field activities including civil construction and erection works. In addition, key

		milestone dates (10-15 nos. minimum milestones to be referred are listed at Appendix-4 to 'Form of Contract Agreement'. Section-VII, Part 3 of 3 of bidding Documents) shall also be identified for the complete facilities under the package.
12.1	ITB 22.1(d)	The Master Network shall confirm the following schedule dates for the key milestones:

S. N	Activities/Milestone	Period from LOA (Months)	
		Start	Finish
General Works			
1	Site Mobilization, Site office opening and Preparatory works	0	0.5
2	Topographical Survey, Bathymetry study and Geo-Technical investigation.	0	0.5
3	Site clearance, Grading work, etc.	0.5	1
4	Grid study studies, Interconnection studies and Reactive Power Compensation studies and its approval	1	3
5	Basic Engineering, SLD, Site Layout & approvals	0	1
Detail Engineering, BOI and Execution			
6	Ordering of BOIs	1	2
7	Detailed Engineering and Approvals	2	3
Supply of Floaters, BESS and other associate systems			
8	Supply of Floaters	4	5
9	Supply of Modules	4.5	5.5
10	Supply of BESS and associated systems	5	6
11	Supply of Power Transformer	4	6
12	Supply of AC cables, DC cables, Inverters, Switchgears & other electrical equipment	4	5

13	Supply of equipment for Grid interface and Bay works i.e bay equipment, HT Panels, Structure etc for Interconnection with the existing thermal power plant facilities	4	6
Civil Works			
14	Fencing, Road and Drainage works	1	2
15	All civil Works associates with Floaters	2	4
16	Control Room works: Civil & Electrical works	1.5	3
17	IDT and Inverter Room works: Civil & Electrical works	1.5	3
18	All associated civil works for BESS	2	4
19	Civil works for Switchyard, Grid interface, Bay works, Trench for cable laying, foundation etc	2	5
Installation Works			
20	Launching of Floater and Erection of Modules	4	6
21	Erection of BESS and associated systems	6	8
22	Erection of Power Transformer, Bay equipment, cable laying etc. for Interconnection with the existing thermal power plant facilities	6	8
23	Installation of Cables, Inverter Transformer, Inverters & other Electrical Equipment	6	7
24	Testing & Readiness of Equipment and communication system	8	9
Commissioning, Trial Run and Completion of Facilities			

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		<table><tr><td>25</td><td>Commissioning, Stabilization & Trial Run of Plant</td><td>9</td><td>9.5</td></tr><tr><td>26</td><td>Completion of facilities</td><td>9</td><td>10</td></tr></table> Time for completion of facilities under the Package is as per details given in the Appendix-4 to Contract Agreement, Section-VII, Part 3 of 3 of the bidding documents. Contractor shall also provide Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run. Further, Bidder to provide comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. Bidder has also to provide the 10 year AMC for critical solar equipment's..as detailed in Technical Specifications (Section-VI).
12.2	ITB 22.1(d)	The Bidder shall also be required to submit a brief integrated PERT Network (L2 Schedule) matching the above work schedule. The Master Network shall inter-alia; include the major activities listed below for each of the systems listed above showing their interrelationship and duration so as to meet the schedule dates mentioned at 8.0 above: **(i) Activities to be incorporated in Master Network to be submitted with bid:** 1. Ordering on sub-vendor(s) (wherever applicable) 2. Start of engineering 3. Completion of engineering 4. Start of manufacturing/fabrication 5. Completion of manufacturing/fabrication 6. Readiness and completion of Type Test 7. Commencement of despatch 8. Completion of despatch 9. Start of Erection 10. Commissioning of the System 11. Completion of the Facilities.
12.3	ITB 22.1(d)	The master network and the key milestone dates will be discussed with the successful bidder, if required, and agreed upon before the issue of Notification of Award as per tender

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		schedule. Engineering Drawing and Data Submission Schedule shall also be discussed and finalised before the issue of Notification of Award.
12.4	ITB 22.1(d)	After the Notification of Award, the contractor shall plan the sequence of work of manufacture, supply, and erection to meet the above stated dates of successful completion of facilities and shall ensure all work, manufacture, shop testing, inspection and shipment of the equipment in accordance with the required construction/erection sequence.
13.	ITB 22.4	NOT USED
14.	ITB 26.1	Add new ITB clause 26.1 as following: Arithmetical errors (if any) will be rectified on the following basis. If there is a discrepancy between the unit price and the total price, which is obtained by multiplying the unit price and quantity, or between subtotals and the total price, the unit or subtotal price shall prevail and the total price shall be corrected accordingly. If there is a discrepancy between words and figures, the amount in words will prevail. If the Bidder does not accept such correction of errors, its bid will be rejected and the bid security will be forfeited in accordance with ITB subclause 12.7.
15.		NOT USED
	F.	**AWARD OF CONTRACT**
16.	ITB 30.4	Replace ITB CL 30.4 as per following: The mode of contracting with the successful bidder will be as per stipulation outlined in GCC Clause 3.6 and briefly indicated below. The award shall be made as follows: (i) **First Contract:** For Ex-works (India) supply of all plant and equipment including mandatory spares. (i) **Second Contract:** For providing all services i.e. Inland Transportation for Delivery at Site, Inland Transit Insurance, Unloading, Storage, Handling at Site, Installation (including civil, structural steel work & allied work, if applicable), insurance covers other than Inland Transit Insurance Testing and Commissioning and conducting Guarantee tests in respect of all the

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		equipments supplied under the 'First Contract', and Civil Works and all other services specified in the Contract Documents. 1.01 **Third Contract:** Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run including comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. And 10 year AMC for critical solar equipment's.as detailed in Technical Specifications (Section-VI). All the above "**Three**" Contracts will contain a crossfall breach clause specifying that breach of one will constitute breach of the other Contract which will confer a right on the Employer to terminate the other contracts also at the risk and the cost of Contractor.
17.1	ITB 34.1	Replace clause 34.1 of ITB as under: Within twenty-eight (28) days after receipt of the Notification of Award, the successful Bidder shall furnish performance securities for **ten percent (10%) of Contract Price** for all the contracts **except Operation and Maintenance (O&M) Contract** and in the form provided in the section "Forms and Procedures" of the bidding documents.
17.2	ITB 34.5	Add a new ITB clause 34.5 as under: Confirmation of BGs (including Bid Security) through Structured Financial Messaging System (SFMS)/SWIFT: While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below: Bank Name: Axis Bank Branch: Axis Bank Ltd, B2-B-3 Sector 16, Noida, Dist: Gautam Buddha Nagar, UP 201301. Account No.: 921020013636047 IFSC Code: UTIB0000022

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		While submitting the Bank Guarantee, bidders shall also enclose copy of electronic message sent to the above beneficiary bank.
18	ITB 37	Replace ITB Clause 37.0 with the following: **37.1 Ineligibility for participation in re-tender / future tenders** i) Notwithstanding the provisions specified in ITB Clause titled 'Forfeiture of Bid Security and ITB Clause titled 'Annulment of award', if a bidder after having been issued the Notification of Award, either does not sign the Contract Agreement pursuant to ITB Clause titled 'Signing the Contract Agreement' or does not submit an acceptable Performance Security pursuant to ITB Clause titled 'Performance Security', and which result in retendering of the package, then such bidder/contractor shall be treated ineligible for participation in re-tendering of this particular package. Further, such bidder/contractor shall also be dealt as per the provisions of policy for Debarment from Business Dealings. ii) If a bidder after opening of tenders where EMD is 'NIL/ Not applicable' or exempted for bidders as per policy guidelines, withdraws its offer within the validity period of the offer, then such bidder shall be treated as ineligible for participation in the future tenders for a period of 6 months from the date of withdrawal of the bid, and also in re-tendering of this particular package. iii) If a bidder after having been issued the Notification of Award/Purchase Order of a package where EMD is 'NIL/Not applicable' or exempted for bidder as per policy guidelines, either does not accept the Notification of Award/Purchase Order or does not sign the Contract Agreement pursuant to ITB Clause titled 'Signing the Contract Agreement' or does not submit an acceptable Performance Security pursuant to ITB Clause titled 'Performance Security', and which result in retendering of the package, then such bidder/contractor shall be treated ineligible for participation in re-tendering of this particular package. Further, such bidder/contractor shall also be dealt as per the provisions of the contract and policy for Debarment from Business Dealings.
19	ITB 38	Add a New Clause 38 as under:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		38. Integrity Pact: Bidders are required to unconditionally accept the "Integrity Pact (IP)" as per Attachment - 16 to the Bidding Documents through Electronic Forms on the ETS Portal. On Bidder's acceptance to provisions of Integrity Pact on the e-tender Portal, Bidder / JV Partner(s)/ Consortium members confirm to have read, understood and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Integrity Pact which has been pre-signed by the Employer and enclosed with the Bidding Documents. On Acceptance of the above attribute, Integrity Pact shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid. Bidder's failure to comply with the aforesaid requirement regarding acceptance of provisions of 'Integrity Pact (IP)' shall lead to outright rejection of the bid and in such case the bids shall not be opened. It may also be noted that subsequent to Employer's evaluation of Bids, resulting into award of Contract to a particular Bidder, the Integrity Pact so submitted shall form an integral part of the Contract.
20	ITB 39	Add a New Clause 39 as under: **39. Independent External Monitor (IEM):** In respect of this package, the Independent External Monitors (IEMs) would be monitoring the implementation and effectiveness of the Integrity Pact Program as per the SOP issued by CVC from time to time and available in its website https://cvc.gov.in/. The Independent External Monitor(s) (IEMs) as mentioned at NTPC tender website(https://ntpctender.ntpc.co.in/) under Integrity Pact tab have been appointed by NTPC, in terms of Integrity Pact (IP) which forms part of the NTPC Tenders/Contracts. This panel is authorized to examine /consider all references made to it under this tender. The bidder(s), in case of any representation/grievance/complaint pertaining to this package may raise the issue directly with the IEMs at following Address or through e-mail as mentioned in https://ntpctender.ntpc.co.in/ *The IEMs' Secretariat*

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Contract Services, *6th Floor, EOC NTPC Limited,* *A-8A, Sector-24 Noida – 201301 (UP)*
21	ITB 40	Add new Clause 40 as under: **40. Policy of Debarment from Business Dealing** The Employer has in place a Policy for Debarment from Business Dealings displayed on the website www.ntpc.co.in / www.ntpctender.ntpc.co.in. The version of Policy presently followed by NTPC REL is **Rev-4**. Business dealings may be withheld or banned with the Bidder/Contractor on account of any of the grounds and following the procedures as detailed in the said Policy for Debarment from Business Dealings. Bidders shall certify their compliance on "Policy for Debarment from Business Dealings " of Employer by accepting the following General Technical Evaluation (GTE) of the Tender at e-Tender Portal. **“Do you certify full compliance to all provisions of Bid Doc?”** Acceptance of above GTE shall be considered as bidder's confirmation to the following conditions: (1) Bidder has read the contents of Debarment Policy (version mentioned in BDS) displayed on the website www.ntpc.co.in / www.ntpctender.ntpc.co.in and agreed to abide by this policy. a) Bidder has not been Banned / Blacklisted as on date of submission of bid by Ministry of Power or Deptt. Of Expenditure, Ministry of Finance. b) Bidder has not employed any public servant dismissed / removed or person convicted for an offence involving corruption or abetment of such offences. c) Bidder’s Director(s) / Owner(s) / Proprietor / Partner(s) have not been convicted by any court of law for offences involving corrupt and fraudulent practices including moral turpitude in relation to business dealings with Government of India or NTPC or NTPC's group companies during the last five years. (2) Bidder further confirms as under:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		that if at any point subsequent to award of Contract, the declarations given above are found to be incorrect, NTPC / Employer shall have the full right to terminate the Contract and take any action as per applicable laws for breach of contract including forfeiture of Bid Security / Performance Security.
22	ITB 41	Add a new clause 41 as under: **41. Exemption of GST or any other taxes and duties (if applicable) on Items Manufactured for Grid Connected Solar Photo Voltaic Power Generation Projects** As per extant guidelines of Department of Revenue, Ministry of Finance, Govt. of India, the benefits of exemption of Excise Duty GST or any other taxes and duties (if applicable on items manufactured for grid connected Solar Photo Voltaic Power Generation Projects) may be available for the items to be supplied under the contract. Bidder may appraise itself of the relevant policies and quote accordingly. The Employer shall issue the requisite certificate (if required) as specified in the relevant policy of Govt. of India. However, if the certificate is required to be issued by any department/ ministry of Government of India or State Government where the Project is located other than Employer, the Bidder shall itself be responsible for obtaining such certificate from the concerned department/ministry. In such a case, the Employer may issue recommendatory letter to the bidder. The Bidder shall be solely responsible for obtaining the benefits of exemption on excise duty GST or any other taxes and duties (if applicable) on the items to be supplied under the contract from the Govt. of India. In case of failure of the bidder to receive the benefits partly or fully from Govt. of India or in case of delay in receipt of such benefits, the Employer shall neither be responsible nor liable in this regard in any manner whatsoever.
23	ITB 42	Add New Clause 42 in ITB **42. Royalty** The Bid Price shall be inclusive of any Royalties or Seigniorage Fee or Cess or other charges payable on the quarried or mined metal, minerals, or minor minerals, as the case may be, at the rate(s) prevailing as on seven (7) days prior to the date of Techno-Commercial bid opening.
24	ITB 43	Add new ITB clause 43 as under:

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		43. Restrictions on procurement from a Bidder of a country which shares a land border with India 43.1. Any Bidder (including its Collaborator/Associate/DJU Partner/JV partner/Consortium Member/Assignee, wherever applicable) from a country which shares a land border with India will be eligible to bid in this tender only if bidder is registered with the Competent Authority as mentioned in Special Conditions of Contract (SCC). Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, will be eligible to bid only if the bidder is registered with the same competent authority as mentioned in Special Conditions of Contract (SCC). **(Definition/Requirement of ToT shall be as specified in DOE OM Ref. No. F.7/10/2021-PPD(1) dated 23.02.2023)** Further, the Ministry of Power has waived the requirement of registration, in respect of para 3 of DoE Order (Public Procurement No. 4) vide F No.7II0I2021-PPD (1) dated 23.02.2023, for bidders utilizing lithium-ion cell technology, as per Letter No. F.No. 48-15/23/2025 dated 09.01.2026 issued from Ministry of Power (NRE Section) enclosed at **Annexure-III to ITB.** Such registration should be valid for the entire period of bid validity or any extension thereof. However, in case the validity period of registration is less than bid validity period, the Bidder shall be required to submit the extension of the validity period of registration before the opening of price bids, failing which the bid shall be rejected. Further the successful bidder shall not be allowed to subcontract supplies/services/works to any “Sub-contractor” from a country which shares a land border with India unless such Subcontractor is registered with the competent Authority as mentioned in SCC. However, the said requirement of registration will not apply to bidders/sub- contractors from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		which the Government of India is engaged in development projects. Bidders may apprise themselves of the updated lists of such countries available in the website of the Ministry of External Affairs. 43.2. “Bidder” (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process. 43.3. “Sub-contractor” (including the term ‘Sub-vendor’/Sub-supplier’ in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of Sub-contractors stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process. 43.4 “Bidders from a country which shares a land border with India” / “Subcontractor from a country which shares a land border with India” / “Entity from a country which shares a land border with India” mentioned in para 43.1 above means; a) An entity incorporated, established or registered in such a country; or b) A subsidiary of an entity incorporated, established or registered in such a country; or c) An entity substantially controlled through entities incorporated, established or registered in such a country; or d) An entity whose beneficial owner is situated in such a country; or e) An Indian (or other) agent of such an entity; or f) A natural person who is a citizen of such a country; or g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above. 43.5. The beneficial owner for the purpose of clause “43.4” above

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		will be as under; a) In case of company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means. Explanation. i. “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company; ii. “Control” shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholdings or management rights or shareholders agreements or voting agreements; b) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership; c) In case of an unincorporated associations or body of individuals, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals; d) Where no natural person is identified under (a) or (b) or (c) above, the beneficial owner is the relevant natural person who holds the position of senior managing officials; e) In case of a trust, the identifications of beneficial owner(s) shall include identification of the author of trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership. 43.6. An Agent for the purpose of clause “43.4” is a person employed to do any act for another, or to represent another in dealings with third person.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		[Note: i. A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent. ii. However, a bidder who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.]
25	ITB 44	Add new ITB clause 44 as under: **44. Preference to Make in India** NTPC REL shall allow 'Preference to Make in India', as indicated in the bidding documents. The bidders may apprise themselves of the relevant provisions of bidding documents in this regard before submission of their bids. Detailed conditions regarding Preference to Make in India are enclosed at **Annexure-II to BDS.**
26	ITB 45	Add new ITB clause 45 as under: **45. Anti-Bribery and Anti-Corruption (ABAC) Policy:** The Bidder and its employees along with its Associate/ Collaborator/ Sub-Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with business of Employer shall strictly adhere to Anti-Bribery and Anti-Corruption (ABAC) Policy of Employer displayed on tender website https://ntpctender.ntpc.co.in/. Bidders shall certify their compliance on "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer by accepting the following GTE at the e-Tender Portal: **"Do you certify full compliance to all provisions of Bidding Document?"** Acceptance of General Technical Evaluation (GTE) of the Tender at e-Tender Portal shall be considered as bidder's confirmation that they and their employees along with their associate / collaborator/ subcontractors / sub vendors / consultants / service providers shall strictly abide by "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer as displayed on tender website at https://ntpctender.ntpc.co.in/

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		under section 'policy docs' and undertake that they represent and confirm that they are aware of, understand, and will comply with all applicable laws and regulations relating to anticorruption and anti-bribery and the ABAC Policy of Employer.
27	ITB 46	Add a new ITB clause 46 as under: **46. Conflict of Interest:** 46.1 A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Employer's interests. A bidder may be considered to have a conflict of interest with one or more parties in the bidding process, if: a) they directly or indirectly control, or are controlled by or are under common control of another entity. or b) they have the same legal representative/agent for purposes of their bids; or c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or e) Bidder participates in more than one bid in this bidding process. For the purposes of this clause the term 'control' shall have the following meaning: "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders' agreements or voting agreements or in any other manner.

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Note: If two or more CPSEs/State PSEs participate in a tender, they will not be deemed to fall under the 'Conflict of Interest' provisions solely because they are under common control of Government of India / State Government. **46.2** Bidders shall certify their compliance to ITB Clause "Conflict of Interest" by accepting the following attribute of the Tender at eTender Portal: "**Do you certify full compliance to all provisions of Bidding Document?**" Acceptance of above attribute shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding "Conflict of Interest" and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected and bid security shall be forfeited. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practices as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.
28		Modify ITB Clause 34.4 as following: 34.4 The Bank Guarantees submitted towards Performance Security shall be essentially from any of the Banks listed in Annexure-I to SCC. **The Insurance Surety Bonds towards Performance Security shall be essentially from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI). Payment on Order Instrument towards Performance Security shall be issued by either of the following three organizations, viz. (i) Indian Renewable Energy Development Agency Limited (IREDA) or (ii) Power Finance Corporation Limited or (iii) REC Limited in the form of a letter of undertaking provided in Section-VII (Forms and Procedures)-Form of Performance Security of the bidding documents.**

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		The Bank guarantee/ **Insurance Surety Bonds / Payment on Order Instrument** submitted from within India towards Performance Security shall be issued on Non-Judicial Stamp Paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG/ **ISB /POI** is submitted or is to be acted upon or the Non-Judicial Stamp Paper of appropriate prevailing in the State where the BG**/ ISB / POI** is executed, whichever is higher.**29**

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Add a new ITB Clause 47 as under 47. "**Declaration regarding insolvency, bankruptcy and Liquidation** The Bidder shall not be eligible for bidding, if the Bidder has become the subject of proceedings under any bankruptcy or insolvency laws either by way of voluntary insolvency initiation or upon a judicial order being passed to that effect, thereby admitting the Bidder to Corporate Insolvency Resolution Process (CIRP) or Liquidation proceedings under Insolvency and Bankruptcy Code, 2016 or has a receiver appointed over its properties under any law for the time being in force in accordance with the guidelines of the Reserve Bank of India issued under the Banking Regulation Act, 1949. The aforesaid ineligibility provision owing to the pendency of CIRP, Liquidation, appointed receiver shall also be applicable to any Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary company from whom the Bidder has taken, or intends to take, technical and/or financial support for qualification in the bid. In case of a Foreign Company who is participating either as a Bidder or an Associate, Collaborator, Technology Provider which is undergoing insolvency, bankruptcy or liquidation proceedings, as per the extant laws of the respective jurisdiction, shall also not be eligible for bidding or associating or collaborating or providing Technology or partnership with the Bidder. If, at the time of bid submission, any Bidder or its Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary Company, from whom the Bidder has taken, or intends to take technical and/or financial support for qualification in the bid, was not undergoing CIRP , Liquidation, Bankruptcy or similar proceedings but subsequently during the period of evaluation of bids, including but not limited to technical, commercial and financial evaluation, or any time before the work is awarded, any such application is admitted by the Adjudicating Authority under the IBC, 2016 or any similar proceedings have started by any Judicial / Quasi-Judicial Body, the Bidder shall, with immediate effect, be considered as ineligible and his bid shall be rejected forthwith. An undertaking as per enclosed Proforma **(Attachment-3L** of Techno-commercial bid form, Section-VII) to the effect that the Bidder or its Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary Company, from whom the

BDS Item No.	ITB Clause Ref., if any	BID DATA SHEET
		Bidder has taken, or intends to take, technical and/or financial support for qualification in the bid, is not undergoing any Insolvency, Liquidation or Bankruptcy proceedings, shall be submitted by the Bidder along with its Techno-Commercial bid on the letter head of the Bidder duly signed by the authorized representative of the Bidder. Further, any Foreign Company which is acting as an Associate, Collaborator or Technology Provider, shall also submit an undertaking along with the Techno-Commercial bid of the Bidder that they are not undergoing insolvency, bankruptcy or liquidation as per the relevant laws of their respective jurisdiction. Further, the Bidder, from the submission of bid until the award of work, shall immediately inform the Employer of any proceedings / admission / orders passed for admitting the Bidder or any of its Associate, Collaborator or Technology Provider or Bidder's Parent/Holding/Subsidiary Company (from whom the Bidder has taken or intends to take technical and/ or financial support for qualification of bid) to CIRP by the Adjudicating Authority under IBC, 2016 or any similar proceedings under other applicable laws (in cases where IBC, 2016 is not applicable). Any suppression of such material facts or false declaration shall immediately render the Bidder liable for rejection of his bid, forfeiture of bid security/EMD and banning of business dealing as per terms and conditions of the Policy & Procedure for Debarment from Business Dealings. **In case of non-submission of the Attachment / Declaration with authorized seal and signature, the bid shall not be entertained.**

LIST OF BANKS ACCEPTABLE FOR SUBMISSION OF BANK GUARANTEE FOR BID SECURITY

SCHEDULED COMMERCIAL BANKS

A STATE BANK OF INDIA

B NATIONALISED BANKS

1. Allahabad Bank
2. Andhra Bank
3. Bank of India
4. Bank of Maharashtra
5. Canara Bank
6. Central Bank of India
7. Corporation Bank
8. Dena Bank
9. Indian Bank
10. Indian Overseas Bank
11. Oriental Bank of Commerce
12. Punjab National Bank
13. Punjab & Sind Bank
14. Syndicate Bank
15. Union Bank of India
16. United Bank of India
17. UCO Bank
18. Vijaya Bank
19. Bank of Baroda

C SCHEDULED PRIVATE BANKS (INDIAN BANKS)

1. Catholic Syrian Bank
2. City Union Bank
3. Dhanlaxmi Bank Ltd.
4. Federal Bank Ltd
5. Jammu & Kashmir Bank Ltd
6. Karnataka Bank Ltd
7. Karur Vysya Bank Ltd
8. Lakshmi Vilas Bank Ltd
9. Nainital Bank Ltd
10. Kotak Mahindra Bank
11. RBL Bank Ltd
12. South Indian Bank Ltd
13. Tamilnadu Mercantile Bank Ltd
14. ING Vysya Bank Ltd
15. Axis Bank Ltd.
16. IndusInd Bank Ltd
17. ICICI Bank
18. HDFC Bank Ltd.
19. DCB Bank Ltd
20. Yes Bank Ltd
21. IDFC Bank Limited
22. Bandhan Bank Limited

D SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

1. Abu Dhabi Commercial Bank Ltd
2. Bank of America NA

3. Bank of Bahrain & Kuwait B.S.C.
4. Mashreq Bank p.s.c.
5. Bank of Nova Scotia
6. Crédit Agricole Corporate and Investment Bank
7. BNP Paribas
8. Barclays Bank
9. Citi Bank N.A.
10. Deutsche Bank A.G.
11. The HongKong Shangai Banking Corporation Ltd
12. Societe Generale
13. Sonali Bank Ltd.
14. Standard Chartered Bank
15. J.P. Morgan Chase Bank, National Association
16. State Bank of Mauritius Ltd.
17. DBS Bank Ltd.
18. Bank of Ceylon
19. PT Bank Maybank Indonesia TBK
20. A B Bank
21. Shinhan Bank.
22. CTBC Bank Co. Ltd.
23. Mizuho Bank Ltd
24. Krung Thai Bank Public Company Ltd.
25. The Bank of Tokyo-Mitsubishi UFJ Limited.
26. Austalia & Newzealand Banking Group Limited
27. Sumitomo Mitsui Banking Corporation

28. American Express Banking Corporation
29. Qatar National Bank SAQ
30. Credit Suisse A.G.
31. First Rand Bank Ltd.
32. Industrial & Commercial Bank of China Ltd.
33. JSC VTB Bank
34. National Australia Bank
35. Cooperative Rabobank U.A.
36. Sberbank
37. United Overseas Bank Ltd.
38. Westpac Banking Corporation
39. Woori Bank
40. The Royal Bank of Scotland plc.
41. Doha Bank Qsc
42. Industrial Bank of Korea
43. KEB Hana Bank
44. First Abu Dhabi Bank PJSC
45. Emirates NBD Bank (P.J.S.C)

E OTHER PUBLIC SECTOR BANKS

1. IDBI Bank Ltd.

* Bidder to take note of NTPC letter Ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter Ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 enclosed herewith.

ANNEXURE-II TO BID DATA SHEETS (BDS)

Preference to Make in India

It is the policy of the Government of India to encourage 'Make in India' and promote manufacturing and production of Goods and Services in India with a view to enhancing income and employment. In this regard, the following conditions, concerning the procedure to be adopted for Preference to Make in India, shall be applicable:

1. **Definitions**
   1.1. **'Local content'** means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

   1.2. **'Class-I local supplier'** means a supplier or service provider, whose goods, services or works offered for procurement, has local content equal to or more than 50%.

   1.3. **'Class-II local supplier'** means a supplier or service provider, whose goods, services or works offered for procurement, has local content more than 20% but less than 50%.

   1.4. **'Non-Local supplier'** means a supplier or service provider, whose goods, services or works offered for procurement, has local content less than or equal to 20%.

   1.5. **'L1'** means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjudged in the evaluation process as per the tender or other procurement solicitation.

   1.6. **'Margin of purchase preference'** means the maximum extent to which the price quoted by a "Class-I local supplier" may be above the L1 for the purpose of purchase preference.

   1.7. **'Procuring entity'** means a Ministry or department or attached or subordinate office of, or autonomous body controlled by, the Government of India and includes Government companies as defined in the Companies Act.

   1.8. **Fraud Prevention Policy** – shall mean the policy related to prevention of fraud displayed on NTPC tender website https://ntpctender.ntpc.co.in

2. **Margin of Purchase Preference**
   The margin of purchase preference shall be 20%

3. **Eligibility for Price Bid Evaluation shall be determined as specified hereunder:**

   3.1. For EPC Packages – with or without Land/ BOS Packages/ Supply-cum-Installation/ Supply-cum-Installation-cum-Civil Packages**

   The following list of goods/ services are to be supplied/ sourced as/ from Class-I Local Suppliers only:

ANNEXURE-II TO BID DATA SHEETS (BDS)

Sl. No.	List of Goods/ Services to be supplied/ sourced as/ from Class-I Local Supplier
1.	**Common items for Transmission, Distribution and Generation Sector** at Annexure-IA to Ministry of Power OM No. A-1/2021-FSC-Part(5) dated 16.11.2021. The Minimum Local Content (%) as mentioned under the aforementioned OM shall be complied.

i. The bidder shall **declare in Attachment-20 of their techno-commercial bid regarding supply/ sourcing of above listed goods/ services, as/ from Class-I Local Supplier.**
ii. In case the bidder **declares supply/ sourcing of all the Goods/ Services as per the above list** as/ from Class-I Local Supplier, their **bid shall be considered for further evaluation**.
iii. For those bidders who **do not declare, or declare for only some of the listed items**, the supply/ sourcing of Goods/ Services as/ from Class-I Local Supplier, their **bid shall not be considered for further evaluation and shall be technically rejected.**

4. Verification of Local Content

4.1. The bidder shall be required to provide, in Attachment-18 of Techno-Commercial Bid, self-certification/ declaration that the **supply/ sourcing of listed goods/ services, as/ from Class-I Local Supplier**.

4.2. In cases of procurement for the value in excess of INR 10 crore, the contractor/ supplier shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content of item(s) as per the defined list during execution prior to submission of last bill for payment.
In case aforesaid Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration.

4.3. False declarations / complaints regarding false declarations will be dealt in line with the Fraud Prevention Policy of NTPC.

4.4. A contractor/ supplier who has been debarred/ banned by any other procuring entity for violation of 'Public Procurement (Preference to Make In India), Order 2017' (PPP-MII Order) dated 15.06.2017 and its subsequent revisions/ amendments, as issued by Department of Industrial Policy and Promotion (DIPP) shall not be eligible for preference under the aforesaid procedures for duration of the debarment. The supplier shall be required to furnish a declaration in this regard in Attachment-18 of Techno-Commercial Bid.

NTPC RENEWABLE ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

SECTION – IV

GENERAL CONDITIONS OF CONTRACT (GCC)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

INDEX: SECTION IV (GENERAL CONDITIONS OF CONTRACT)

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GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
A.	**CONTRACT AND INTERPRETATION**
1	**Definitions**
1.1	The following words and expressions shall have the meanings hereby assigned to them: **“Contract”** means the Contract Agreement entered into between the Employer and the Contractor, together with the Contract Documents referred to therein; they shall constitute the Contract, and the term “the Contract” shall in all such documents be construed accordingly. **“Contract Documents”** means the documents listed in Article 1.1 (Contract Documents) of the Form of Contract Agreement (including any amendments thereto). **“GCC”** means the General Conditions of Contract hereof. **“SCC”** means the Special Conditions of Contract. **“Day”** means calendar day of the Gregorian Calendar. **“Month”** means calendar month of the Gregorian Calendar. **“Employer”** means the person named as such in the SCC and includes the legal successors or permitted assigns of the Employer. **“Project Manager”** means the person appointed by the Employer in the manner provided in GCC Sub-Clause 17.1 (Project Manager) hereof and named as such in the SCC to perform the duties delegated by the Employer. **“Contractor”** means the person(s) whose bid to perform the Contract has been accepted by the Employer and is named as such in the Contract Agreement, and includes the legal successors or permitted assigns of the Contractor. **“Contractor’s Representative”** means any person nominated by the Contractor and approved by the Employer in the manner provided in GCC Sub-Clause 17.2 (Contractor’s Representative and Construction Manager) hereof to perform the duties delegated by the Contractor. **“Subcontractor” or ‘Subvendor’,** including vendors, means any person to whom execution of any part of the Facilities, including preparation of any design or supply of any Plant and Equipment, is sub-contracted directly or indirectly by the Contractor, and includes its legal successors or permitted assigns. **“Contract Price”** means the sum specified in Article 2.1 (Contract Price) of the Contract Agreement, subject to such additions and adjustments thereto or deductions therefrom, as may be made pursuant to the Contract. **“Facilities”** means the Plant and Equipment to be supplied and installed, as well as all the Installation Services to be carried out by the Contractor under the Contract.

“Plant and Equipment” means permanent plant, equipment, machinery, apparatus, articles and things of all kinds to be provided and incorporated in the Facilities by the Contractor under the Contract (including the spare parts to be supplied by the Contractor under GCC Sub-Clause 7.3 hereof), but does not include Contractor’s Equipment.

“Installation Services” means all those services ancillary to the supply of the Plant and Equipment for the Facilities, to be provided by the Contractor under the Contract; e.g., transportation and provision of marine or other similar insurance, inspection, expediting, Site preparation works (including the provision and use of Contractor’s Equipment and the supply of all use structural and construction materials required), installation including civil and allied works etc., testing, pre-commissioning, commissioning, operations, maintenance, the provision of operations and maintenance manuals, training of Employer’s Personnel etc.

“Contractor’s Equipment” means all plant, facilities, equipment, machinery, tools, apparatus, appliances or things of every kind required in or for installation, completion and maintenance of Facilities that are to be provided by the Contractor, but does not include Plant and Equipment, or other things intended to form or forming part of the Facilities.

“Site” means the land and other places upon which the Facilities are to be installed, and such other land or places as may be specified in the Contract as forming part of the Site.

“Effective Date” means the date from which the Time for Completion shall be determined as stated in Article 3 (Effective Date for Determining Time for Completion) of the Form of Contract Agreement.

“Time for Completion” means the time within which Completion of the Facilities as a whole (or of a part of the Facilities where a separate Time for Completion of such part has been prescribed) is to be attained in accordance with the stipulations in the SCC and the relevant provisions of the Contract.

“Completion” means that the Facilities (or a specific part thereof where specific parts are specified in the SCC) have been completed operationally and structurally and put in a tight and clean condition, and that all work in respect of Pre-commissioning of the Facilities or such specific part thereof has been completed; and Commissioning has been attained as per Technical Specifications.

“Pre-commissioning” means the testing, checking and other requirements specified in the Technical Specifications that are to be carried out by the Contractor in preparation for Commissioning as provided in GCC Clause 24 (Commissioning and Completion of Facilities) hereof.

“Commissioning” means trial/initial operation of the Facilities or any part thereof by the Contractor, which operation is to be carried out by the Contractor as provided in GCC Sub-Clause 24 (Commissioning and Completion of Facilities) hereof, for the purpose of carrying out Guarantee Test(s).

“Guarantee Test(s)” means the test(s) specified in the Technical Specifications to be carried out to ascertain whether the Facilities or a specified part thereof is able to attain the Functional Guarantees specified in the Technical Specifications in accordance with the provisions of GCC Sub-Clause 25.1 (Guarantee Test) hereof.

“Operational Acceptance” means the acceptance by the Employer of the Facilities (or any part of the Facilities where the Contract provides for acceptance of the Facilities in parts), which certifies the Contractor’s fulfillment of the Contract in respect of Functional Guarantees of the Facilities (or the relevant part thereof) in accordance with the provisions of GCC Clause 28 (Functional Guarantees) hereof and shall include deemed acceptance in accordance with GCC Clause 25 (Guarantee Tests and Operational Acceptance) hereof.

“Defect Liability Period” means the period of validity of the warranties given by the Contractor commencing at Completion of the Facilities or a part thereof, during which the Contractor is responsible for defects with respect to the Facilities (or the relevant part thereof) as provided in GCC Clause 27 (Defect Liability) hereof.

“Goods and Services Tax” or “GST” means taxes levied under the Central Goods and Services Tax Act, Integrated Goods and Services Tax Act, Goods and Services Tax (Compensation to States) Act, and various State/Union Territory Goods and Services Tax Laws and applicable cesses, if any under the laws in force (hereinafter referred to as relevant GST Laws).

“Trial Run” shall be as defined in the Technical Specifications.

“Operational Acceptance” shall be as defined in the Technical Specifications.

"Act" or **"Electricity Act, 2003"** shall mean the Electricity Act, 2003 and include any modifications, amendments and substitution from time to time;

“Commercial Operation Date (COD)” shall mean the date as defined at under OWNER’S REQUIREMENT as mentioned in Section VI (Technical Specifications).

1.2 “Sub-contractor from a country which shares a land border with India” means:
a) An entity incorporated, established or registered in such a country; or
b) A subsidiary of an entity incorporated, established or registered in such a country; or
c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
d) An entity whose beneficial owner is situated in such a country; or
e) An Indian (or other) agent of such an entity; or
f) A natural person who is a citizen of such a country; or
g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

1.2.1 The beneficial owner for the purpose of clause “1.2” above will be as under.

a) In case of company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

	Explanation i. “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company. ii. “Control” shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholdings or management rights or shareholders agreements or voting agreements. b) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership. c) In case of an unincorporated associations or body of individuals, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals. d) Where no natural person is identified under (a) or (b) or (c) above, the beneficial owner is the relevant natural person who holds the position of senior managing officials; e) In case of a trust, the identifications of beneficial owner(s) shall include identification of the author of trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
1.2.2	An Agent for the purpose of clause “1.2” is a person employed to do any act for another, or to represent another in dealings with third person: [Note: (i) A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent. (ii) However, a person who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.
2	**Contract Documents**
2.1	Subject to Article1.2 (Order of Precedence) of the Contract Agreement, all documents forming part of the Contract (and all parts thereof) are intended to be correlative, complementary and mutually explanatory. The Contract shall be read as a whole.
2.2	The Contract will be signed in three originals and the Contractor shall be provided with one signed original and the rest will be retained by the Employer.

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2.3	The Contractor shall provide free of cost to the Employer all the engineering data, drawing and descriptive materials submitted with the bid, in three (3) copies to form a part of the Contract immediately after Notification of Award.
2.4	Subsequent to signing of the Contract, the Contractor at his own cost shall provide the Employer electronic version of the signed Contract Agreement in USB drive/ SSD/ Cloud based platforms within thirty (30) days of its signing.
3	**Interpretation**
3.1	**Language**
3.1.1	Unless the Contractor is a national of the Employer's country and the Employer and the Contractor agree to use the local language, all Contract Documents, all correspondence and communications to be given, and all other documentation to be prepared and supplied under the Contract shall be written in English, and the Contract shall be construed and interpreted in accordance with that language.
3.1.2	If any of the Contract Documents, correspondence or communications are prepared in any language other than the governing language under GCC Sub-Clause 3.1.1 above, the English translation of such documents, correspondence or communications shall prevail in matters of interpretation.
3.1.3	The English Translation of the documents shall be carried out by professional translators and the translator shall certify that he is proficient in both languages in order to translate the document and that the translation is complete and accurate. Further, translation shall be authenticated by the Indian Consulate located in the Country where the documents have been issued or the Embassy of that Country in India.
3.2	**Singular and Plural** The singular shall include the plural and the plural the singular, except where the context otherwise requires.
3.3	**Headings** The headings and marginal notes in the General Conditions of Contract are included for ease of reference and shall neither constitute a part of the Contract nor affect its interpretation.
3.4	**Persons** Words importing persons or parties shall include firms, corporations, and government entities.
3.5	**Incoterms** Unless inconsistent with any provision of the Contract, the meaning of any trade term and the rights and obligations of parties thereunder shall be as prescribed by Incoterms. Incoterms means international rules for interpreting trade terms published by the International Chamber of Commerce (latest edition), 38 Cours Albert 1er, 75008 Paris, France.

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3.6	**Construction of the Contract**
3.6.1	The Contracts to be entered into between the Employer and the successful bidder shall be as specified in SCC.
3.6.2	The award of separate Contracts shall not in any way dilute the responsibility of the Contractor for the successful completion of the Facilities as per Contract Documents and a breach in one Contract shall automatically be construed as a breach of the other Contract(s) which will confer a right on the Employer to terminate the other Contract(s) also at the risk and the cost of the Contractor.
3.7	**Entire Agreement** Subject to GCC Sub-Clause 16.4 hereof, the Contract constitutes the entire agreement between the Employer and Contractor with respect to the subject matter of Contract and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the date of Contract.
3.8	**Amendment** No amendment or other variation of the Contract shall be effective unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorized representative of each party hereto.
3.9	**Independent Contractor** The Contractor shall be an independent contractor performing the Contract. The Contract does not create any agency, partnership, joint venture or other joint relationship between the parties hereto. Subject to the provisions of the Contract, the Contractor shall be solely responsible for the manner in which the Contract is performed. All employees, representatives or Subcontractors engaged by the Contractor in connection with the performance of the Contract shall be under the complete control of the Contractor and shall not be deemed to be employees of the Employer, and nothing contained in the Contract or in any subcontract awarded by the Contractor shall be construed to create any contractual relationship between any such employees, representatives or Subcontractors and the Employer.
3.10	**Joint Venture or Consortium** If the Contractor is a joint venture or consortium of two or more firms, all such firms shall be jointly and severally bound to the Employer for the fulfillment of the provisions of the Contract and shall designate one of such firms to act as a leader with authority to bind the joint venture or consortium. The composition or the constitution of the joint venture or consortium shall not be altered without the prior consent of the Employer.
3.11	**Non-Waiver**
3.11.1	Subject to GCC Sub-Clause 3.11.2 below, no relaxation, forbearance, delay or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of

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	time by either party to the other shall prejudice, affect or restrict the rights of that party under the Contract, nor shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.
3.11.2	Any waiver of a party's rights, powers or remedies under the Contract must be in writing, must be dated and signed by an authorized representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.
3.12	**Severability** If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.
3.13	**Country of Origin** "Origin" means the place where the materials, equipment and other supplies for the facilities are mined, grown, produced or manufactured and from which the services are provided.
4	**Notices**
	Unless otherwise stated in the Contract, all notices to be given under the Contract shall be in writing, and shall be sent by personal delivery, airmail post, special courier, or e-mail to the address of the relevant party set out in the Contract Coordination Procedure to be finalised pursuant to GCC Sub-Clause 17.2.3.1, with the following provisions.
4.1.1	Any notice sent by airmail post or special courier shall be deemed (in the absence of evidence of earlier receipt) to have been delivered ten (10) days after despatch. In proving the fact of despatch, it shall be sufficient to show that the envelope containing such notice was properly addressed, stamped and conveyed to the postal authorities or courier service for transmission by airmail or special courier.
4.1.2	Any notice delivered personally or sent by e-mail shall be deemed to have been delivered on date of its despatch.
4.1.3	Either party may change its postal or e-mail address or addressee for receipt of such notices by ten (10) days' notice to the other party in writing.
~~**4.1.4**~~	~~Either party may change its postal, cable, telex, facsimile or EDI address or addressee for receipt of such notices by ten (10) days' notice to the other party in writing.~~
4.2	Notices shall be deemed to include any approvals, consents, instructions, orders and certificates to be given under the Contract.
5	**Governing Laws**
5.1	The Contract shall be governed by and interpreted in accordance with laws in force in India. The Courts of Delhi shall have exclusive jurisdiction in all matters arising under the Contract.
6	**Settlement of Disputes**
6.1	**Mutual Consultation**

If any dispute of any kind whatsoever shall arise between the Employer and the Contractor in connection with or arising out of the Contract, including without prejudice to the generality of the foregoing, any question regarding its existence, validity or termination, or the execution of the Facilities, whether during the progress of the Facilities or after their completion and whether before or after the termination, abandonment or breach of the Contract, the parties shall seek to resolve any such dispute or difference by mutual consultation.

On reference of such a dispute by either party, the Employer shall invite the Contractor for mutual consultation, within seven (07) working days of such reference.

Without admitting the Employer's liability, the Employer may obtain, within 30 days of such reference of the dispute, further details from the Contractor and examine it relating to the dispute. Such examination (if any) by the Employer shall not be construed as or imply acceptance of the claim or liability or accuracy or completeness of the details set forth in such request or reference. The Employer may hold discussions with Contractor with an effort to resolve the dispute.

If the parties fail to resolve such a dispute or difference by mutual consultation within a period of forty-five (45) days from the date of receipt of reference of such dispute or within such extended period as the parties shall agree in writing, then the dispute may be settled through Independent Engineer (if applicable) and/ or Mediation through Independent External Monitors (if applicable) and/or through Conciliation and/or Arbitration (if applicable) / other remedies available under the applicable laws.

Notwithstanding anything contained in any other law for the time being in force, the parties shall keep confidential all matters relating to the Mutual consultation proceedings. Confidentiality shall extend also to any agreement reached during Mutual consultation, except where its disclosure is necessary for purposes of implementation and enforcement.

The parties shall not rely on or treat as evidence in Independent Engineer/ Mediation/ Conciliation/ and in any way Arbitral or Judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Mutual consultation proceedings-

a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;

b) admissions made by the other party in the course of the mutual consultation proceedings;

c) the fact that the other party had indicated his willingness to accept a proposal for mutual settlement.

6.2 Resolution of Dispute through Independent Engineer (IE)

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	If the parties fail to resolve the dispute or difference by mutual consultation within the period specified at Cl. 6.1 above, the dispute shall be referred to Independent Engineer (IE), as follows: **I. Appointment, Selection and Removal of IEs/Experts:** i) The Employer and Contractor shall jointly select only one Member for the Contract from the panel of Experts, as specified in Special Conditions of Contract, as amended from time to time by Ministry of Power. After the award of the contract, the Contractor shall shortlist at least 3 Experts from the ‘Panel of Experts as Independent Engineer’ enclosed in the Special Conditions of Contract, as amended from time to time by Ministry of Power and send to EMPLOYER who shall appoint one of them as ‘Independent Engineer’ for the Contract. The Expert would be designated as 'Independent Engineer' (IE) for the contract. Appointment of IE/ Expert shall be finalized within twenty-eight (28) days from award of Contract. (ii) The initial term of appointment of IE would be for a period of five (5) years or contract period whichever is lesser and may be further renewed on a year-on year basis as may be mutually agreed between the Employer and the Contractor subject to the consent of IE and final approval by the Ministry of Power. (iii) It will be mandatory for the IE to visit the site once in every two months to be constantly aware of the ongoing project activities and to have a fair idea of any situation that may lead to disagreement between the parties. Further, additional visits may also be undertaken as and when called upon to address issues of disagreements. (iv) Employer or Contractor will not be able to change the IE in any case. In case of adverse finding about IE such as not performing duties or complaints of integrity, that Expert would be dropped by the Ministry from the panel itself and a new Expert would be selected by the Employer and Contractor jointly from the panel for performing the duties of IE. **II. Standard Operating Procedure (SOPs) for Independent Engineer (IE)** (i) IE shall act as per the Standard Operating Procedures (SOPs) attached at Annexure-C. (ii) Resolution by IE shall commence when the claimant Party submits detailed information as per Standard Format (for Disagreement Case filing attached as Annexure-D) to IE for intervention along with the necessary documentary evidences. Demand for IE intervention will not be admissible without initial documentary evidence. (iii) Necessary information sought by IE during the course of investigation shall be provided in a time bound manner by both the Parties and non-compliance of the

same shall lead to imposition of penalties, as specified in Special Conditions of Contract (SCC).

(iv) IE will examine the issue(s) raised by the Parties concerned as mentioned at point number (ii) above by conducting inspections involving field measurements as may be required to further investigate and to also conduct hearing/mediation with both the parties.

(v) Based on the preliminary hearing of the parties, IE shall prescribe resolution timeline depending upon the number and nature of disagreements subject to a maximum duration of thirty (30) days or within extended timeline under extraordinary circumstances and for reasons to be recorded in writing.

(vi) There shall not be any conflict of interest and it shall be ensured that IE should not have been engaged for providing any other services to any of the parties i.e. either Employer or Contractor in the last three years. An Undertaking in this regard shall be furnished by the Contractor for the purpose of avoiding any conflict of interest, at the time of bidding and finalization of IE/ Expert.

(vii) In the event of non-performance of obligations/services by the IEs at any time during the duration of its contract, the Employer and the Contractor, on mutually agreed basis, shall have the right and discretion to terminate IEs contract by giving a termination notice of thirty (30) days to IEs.

(viii) The role of 'Independent Engineer' under the Contract is an impartial and fair exercise, where the 'Independent Engineer' has to act as a neutral third-party facilitator. The decision of Independent Engineer shall not be binding on the parties unless the parties sign the written settlement agreement and the same is authenticated by IE. Such Settlement agreement would then be binding on the parties and both parties shall implement the same forthwith.

III. Terms and Conditions for Payments to 'Independent Engineer' –

(i) Retainership Fee: A retainer fee, as specified in Special Conditions of Contract (SCC), for 'Independent Engineer for a specific project shall be considered as payment in full for:

(a) being available on a notice of 2 weeks for all site visits and hearings,
(b) becoming and remaining conversant with all the project developments and maintaining relevant files;
(c) compensating all office and overhead expenses including secretarial services, photocopying and office supplies incurred in connection with his duties; and

The retainer fee of Experts, shall be increased annually by 10%. Further, an Expert, shall not be in the retainership of more than two Hydro power contracts concurrently in Employer's Organization. In case of two contracts, expert shall draw retainership fee limited to one contract only (i.e. the amount specified in Special Conditions of Contract (SCC)). The duration of retainership shall be for such duration as may be mutually decided by the Employer and Contractor but shall not, in any case, extend beyond 3 months after the completion of works as per the contract.

The retainership fee shall be shared by the Employer and the Contractor equally but shall initially be paid to the IE by the Employer.

(ii) Site Visit Fee: A daily visiting fee, as specified in Special Conditions of Contract (SCC), to either project site or project office, anywhere in India, limited to a maximum of 10 days in a month for Expert, shall be paid for hearing, preparing reports etc. initially by the Employer. The daily visiting fee of Expert shall be increased on yearly basis @10%.

(iii) Reimbursement of travel, boarding/lodging expenses incurred by Independent Engineer: The travel, boarding/lodging expenses of the 'Independent Engineer', as per entitlement of Executive Director of Employer, would be made initially by the Employer. If any expert of 'Independent Engineer does not receive payment of the amount due within 30 days after submitting claim, the expert shall be free to suspend his/her services without notice until the payment is received.

(iv) Meeting Expenses: All the payments for holding the meeting would be initially borne by the Employer and shall be shared equally by the Employer and Contractor.

(v) Sharing of Expenses on Independent Engineer: All the payments for holding the meeting, site visits, reimbursement of travel, boarding/lodging expenses and monthly compensation of Independent Engineer' shall be shared equally by both the parties i.e. Employer and Contractor.

(vi) The Employer shall maintain an account of all the expenses incurred by it on 'Independent Engineer'.

Notwithstanding anything contained in any other law for the time being in force, the Independent Engineer and the parties shall keep confidential all matters relating to the Independent Engineer proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.

The parties shall not rely on or introduce as evidence in Mediation/ Conciliation/ Arbitral or Judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Independent Engineer proceedings, —

a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;

b) admissions made by the other party in the course of the Independent Engineer proceedings;

c) proposals made by the Independent Engineer; and

d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Independent Engineer.

6.3 Mediation through Independent External Monitors (IEMs)

If the parties fail to resolve a dispute or difference by mutual consultation and through Independent Engineer (if applicable) within a period specified at Cl. 6.1 and 6.2 above, the dispute, if the parties agree, may be referred to the Panel of IEMs for Mediation.

The Mediation proceedings shall be completed in a time bound manner, in **not more than 45 days from the date of reference to IEMs for Mediation.**

The IEMs may conduct the Mediation proceedings in the manner, they consider appropriate. In case of 3-member Panel of IEMs, 2 members will constitute a valid quorum and the meeting can take place to proceed in the matter after seeking consent from the member who is not available. However, IEMs recommendations will be signed by all the members.

The fees for such meetings shall be as specified in the SCC. The travel and stay arrangement for such meetings shall be equal to that of Independent Board Member of Employer's Organization. However, not more than five meetings shall be held for a particular dispute resolution. The fees/ expenses on dispute resolution shall be equally shared by both the parties.

If decision of IEMs is acceptable to both the parties, a Settlement Agreement will be signed to the extent agreed by the parties within 15 days of acceptance by the parties and same shall be authenticated by all the IEMs.

Notwithstanding anything contained in any other law for the time being in force, the Mediator and the parties shall keep confidential all matters relating to the Mediation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.

The parties shall not rely on or introduce as evidence in Conciliation or Arbitral or Judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Mediation proceedings, —

a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;

b) admissions made by the other party in the course of the Mediation proceedings;

c) proposals made by the Mediator; and

d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Mediator.

6.4	**Resolution of Dispute through Conciliation** If the parties fail to resolve such a dispute or difference by mutual consultation and through Independent Engineer (if applicable) and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 and 6.3 above, the dispute if the parties agree, may be referred to Conciliation. (i) For cases where the disputed amount (Claim/ Counter claim, whichever is higher) is upto Rs. 25 Cr. (excluding interest), the matter for conciliation shall be referred to Expert Settlement Council (ESC), constituted by Employer (ii) For cases where the disputed amount (Claim/ Counter claim, whichever is higher) is above Rs. 25 Cr. (excluding interest), the matter for conciliation shall be referred to Conciliation Committee of Independent Experts (CCIE), constituted by Ministry of Power (MoP). If the claim/Counter-claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee. The Conciliation process shall be conducted as per Part III of the Arbitration and Conciliation Act, 1996. In case of failure of the conciliation process at the level of the CCIE, the parties may withdraw from conciliation process and take recourse to Arbitration proceedings or the laid down legal process of Courts.
6.4.1	**Resolution of Dispute through Expert Settlement Council (ESC), constituted by EMPLOYER {For cases with Disputed amount (Claim/ Counter claim, whichever is higher) upto Rs. 25 Crore excl. interest}** If the parties fail to resolve such a dispute or difference by mutual consultation and through Independent Engineer (if applicable) and/or through Mediation (if applicable) within a period specified at Cl. 6.1, 6.2 and 6.3 above, the dispute, if the parties agree, may be referred to Conciliation through Expert Settlement Council (ESC), in cases where the Disputed amount (Claim/ Counter claim, whichever is higher) is upto Rs.25 crore (excl. interest).
6.4.1.1	**Invitation for Conciliation through ESC:**
6.4.1.1.1	A party shall notify the other party in writing about such a dispute it wishes to refer for Conciliation through ESC within a period of 15 days from the date of failure to resolve the dispute through Mutual Consultation and Independent Engineer (if applicable) and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 and 6.3 above. Such Invitation for Conciliation shall contain sufficient information as to the dispute to enable the other party to be fully informed as to the nature of the dispute, amount of the monetary claim, if any, and apparent cause of action.

6.4.1.1.2	Upon acceptance of the invitation to conciliate, the other party shall submit its counter claim, if any, within a period of 15 days from the date of the invitation to conciliate. If the other party rejects the invitation or Disputed amount (Claim/ Counter claim, whichever is higher) exceeds Rs 25crore (excl. Interest), there will be no Conciliation proceedings through ESC. There shall be no Conciliation where disputed amount (Claim/ Counter claim, whichever is higher excl. interest) is only up to Rs 5 lakhs.
6.4.1.1.3	If the party initiating Conciliation does not receive a reply within fifteen (15) days from the date on which it sends the invitation, or within such other period of time as specified in the invitation, it shall treat this as a rejection of the invitation to conciliate from the other party.
6.4.1.2	**Conciliation through ESC:**
6.4.1.2.1	Where Invitation for Conciliation has been furnished under GCC sub clause 6.4.1.1, the parties shall attempt to settle such dispute through Expert Settlement Council (ESC) which shall be constituted by CMD/Chairman of Employer.
6.4.1.2.2	ESC will be formed from experts comprising three members from the panel of Conciliators maintained by EMPLOYER. However, there will be single member ESC for disputes involving disputed amount (Claim/ Counter claim, whichever is higher excl. interest) is up to Rs. 1 crore. CMD/ Chairman of Employer shall have the authority to reconstitute the ESC to fill any vacancy.
6.4.1.2.3	The ESC shall be amongst Civil Servants of Govt. of India retired from the level of Joint Secretary and above, Retired Judges, Officers retired from the level of Executive Director and above of any Maharatna /Navratna company in India, other than NTPC Ltd, Retired Independent Directors who have served on the Board of any Maharatna / Navratna company in India, other than NTPC Ltd.
6.4.1.3	**Proceedings before ESC:**
6.4.1.3.1	The claimant shall submit its Statement of Claims (SOC) along with relevant documents to ESC members, and to the party(s) indicated in the appointment letter within 15 days of appointment of ESC. The respondent shall file its reply/Statement of Defence (SOD) and counter claim (if any) within 15 days of the receipt of the Statement of claims. Each party shall send a copy of such Statement along with relevant documents to the other party. Parties may file their rejoinder/additional documents, if any in support of their Claim/Counterclaim within next 7 days. No documents shall be allowed thereafter, except with the permission of ESC.
6.4.1.3.2	The parties shall file their claim and counterclaim in the following format a. Chronology of the dispute b. Brief of the contract c. Brief history of the dispute

d. Issues.

Sl. No.	*Description of Claims/ Counter claims*	*Amount (in foreign currency/INR)*	*Relevant Contract Clause*

e. Details of Claim(s)/Counter Claim(s)
f. Basis/Ground of claim(s)/counter claim(s) (along with relevant clause of contract

Note: Statement of claims shall be restricted to maximum limit of 20 pages.

6.4.1.3.3 In case of 3 members ESC, 2 members will constitute a valid quorum and the meeting can take place to proceed in the matter after seeking consent from the member who is not available. However, ESC recommendations will be signed by all the members.

If required, meetings can be conducted through video conferencing/other digital means subject to the agreement between the parties and the ESC.

6.4.1.3.4 The parties shall be represented by their in house employees. No party shall be allowed to bring any advocate or outside consultant/advisor/agent to contest on their behalf. Ex-officers of Employer's Organization who have handled the subject matter in any capacity shall not be allowed to attend and present the case before ESC on behalf of contractor. However, ex-employees of parties may represent their respective organizations. Parties shall not claim any interest on claims/counter-claims from the date of notice invoking Conciliation till execution of settlement agreement, if so arrived. In case, parties are unable to reach a settlement, no interest shall be claimed by either party for the period from the date of notice invoking Conciliation till the date of ESC recommendations and 30 days thereafter in any further proceeding.

6.4.1.3.5 ESC will conclude its proceedings in maximum 5 meetings and give its recommendations within 90 days from the date of reference to ESC. ESC will give its recommendations to both the parties recommending possible terms of settlement. CMD/ Chairman of Employer may extend the time/number of meetings, in exceptional cases, if ESC requests for the same with sufficient reasons and as agreed by the parties.
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6.4.1.3.6 Depending upon the location of ESC members and the parties, the venue of the ESC meeting shall be either Delhi/Mumbai/Kolkata/Chennai or any other city whichever is most economical from the point of view of travel and stay etc. All the expenditure incurred in ESC proceedings shall be shared by the parties in equal proportion.

6.4.1.4 **Fees & Facilities to the Members of the ESC**

The cost of Conciliation proceedings including but not limited to fees for Conciliator, Airfare, Local transport, Accommodation, cost towards conference facility etc shall be as provided herein below*:*

Sl. No.	Fees/ Facility	Entitlement
1	Fees	Lumpsum fee of Rs. 2,50,000 per conciliator irrespective of the no. of meetings. *
2	Secretarial expenses	Rs. 10,000 lump sum (to 1 member only).
3	Transportation in the city of the meeting	Car as per entitlement or Rs. 2,000 per day
4	Venue for meeting	Employer's conference rooms
Facilities to be provided to the out-stationed member		
5	Travel from the city of residence to the city of meeting	As per entitlement of Independent Directors. Executive class air tickets / first class AC train tickets/ Luxury car/ reimbursement of actual fare. However, entitlement of air travel by Business class shall be subject to austerity measures, if any, ordered by Govt of India.
6	Transport to and fro airport/ railway station in the city of residence	Car as per entitlement or Rs. 3,000
7	Stay for out stationed members	As per entitlement of Independent Directors.
8	Transport in the city of meeting	Car as per entitlement or Rs. 2000 per day

** Due to unavoidable circumstances, if there is requirement of more than 5 meeting to conclude the Conciliation proceedings, the same may be done at the discretion of ESC within the capping of fee of Rs 2.5 Lakhs per conciliator. However, logistic arrangements, including travel, etc. may be provided as per the extant Policy for such additional sittings.*

Aforesaid fees is subject to revision by Employer from time to time and subject to government guidelines on austerity measures, if any. All the expenditure incurred in the ESC proceedings shall be shared by the parties in equal proportions. The Parties shall maintain the account of expenditure and present to the other for the purpose of sharing on conclusion of the ESC proceedings.

6.4.1.5 If recommendations/ report of ESC is acceptable to both the parties, a Settlement Agreement under Section 73 of the Arbitration and Conciliation Act, 1996 will be signed to the extent agreed by the parties within 15 days of acceptance by the parties and same shall be authenticated by all the ESC members.

Parties are free to terminate Conciliation proceedings at any stage as provided under the Arbitration and Conciliation Act 1996.

6.4.1.6 Notwithstanding anything contained in any other law for the time being in force, the Conciliator and the parties shall keep confidential all matters relating to the Conciliation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.

The parties shall not rely on or introduce as evidence in Arbitral or judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Conciliation proceedings,—

a) a views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;

b) admissions made by the other party in the course of the Conciliation proceedings;

c) proposals made by the Conciliator; and

d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Conciliator.

6.4.2 **Resolution of Dispute through Conciliation Committee of Independent Experts (CCIE), constituted by Ministry of Power (MoP) {For cases with Disputed amount (Claim/ Counter claim whichever is higher) above Rs. 25 Crore excl. interest}**

If the parties fail to resolve such a dispute or difference by mutual consultation and through Independent Engineer (if applicable) and/or through Mediation (if applicable) within a period specified at Cl. 6.1, 6.2, 6.3 above, the dispute, if the parties agree, may be referred to Conciliation Committee of Independent Experts (CCIE), in cases where the Disputed amount (Claim/ Counter claim whichever is higher) is above Rs. 25 crore excl. interest.

6.4.2.1 **Invitation for Conciliation through CCIE:**

6.4.2.1.1 A party shall notify the other party in writing about such a dispute it wishes to refer for CCIE within a period of 15 days from the date of failure to resolve the dispute through Mutual Consultation and Independent Engineer (if applicable) and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 and 6.3 above. Such Invitation for Conciliation shall contain sufficient information as to the dispute to enable the other party to be fully informed as to the nature of the dispute, amount of the monetary claim, if any, and apparent cause of action.

6.4.2.1.2 If the party initiating Conciliation does not receive a reply within fifteen (15) days from the date on which it sends the invitation, or within such other period of time as specified in the invitation, it shall treat this as a rejection of the invitation to conciliate from the other party.

6.4.2.2 **Conciliation Committee of Independent Experts:**

6.4.2.2.1 Where Invitation for Conciliation has been consented to under GCC sub clause 6.4.2.1, the same shall be referred to the Conciliation Committee of Independent Experts (CCIE) within 30 days.

Conciliation Committees of Independent Experts (CCIE) have been constituted and notified by MoP for settlement of disputes arising in the Contract. There are three CCIEs, as specified in Special Conditions of Contract.

6.4.2.2.2 The Contractor may select three CCIEs, in priority order, from the list of CCIEs enclosed with the Special Conditions of Contract, for finalization by Central Electricity Authority (CEA).

	There shall not be any conflict of interest for the members of the CCIE due to their past assignments. Individuals CCIE members shall submit an undertaking in this regard to the Employer, prior to appointment. It shall be ensured that they have not been engaged for providing any services to any of the parties i.e. either Employer or the Contractor in the last five years. An Undertaking in this regard, shall also be furnished by the Contractor for the purpose of avoiding any conflict of interest.
6.4.2.3	**Proceedings before CCIE:**
6.4.2.3.1	The procedure of CCIE shall not be treated as alternate arbitration proceedings where both parties come with Statement of claims/defence, arguments/counter arguments, rejoinders, written submissions etc., aided by their respective lawyers.
6.4.2.3.2	The parties shall be brief and to the point before the Committee with regard to their respective stance and view the exercise in the spirit of conciliation/settlement.
6.4.2.3.3	The possibility of non-availability of any one of the members of CCIE in any proceedings cannot be ruled out. As such, the Committee comprising the other two members shall be competent to proceed in the matter. The proceedings of the Committee shall not be vitiated if one of the three members of CCIE is not present in the deliberations of the Committee. When the parties sign the settlement agreement, at least two members of CCIE shall authenticate the same. Such conciliation proceedings shall be considered valid and the settlement agreement will be binding on the parties.
6.4.2.3.4	The parties shall be represented by their in house employees. No party shall be allowed to bring any advocate or outside consultant/advisor/agent to contest on their behalf. Ex-officers of Employer's Organization who have handled the subject matter in any capacity shall not be allowed to attend and present the case before CCIE on behalf of contractor. However, ex-employees of parties may represent their respective organizations.
6.4.2.3.5	The Conciliation proceedings shall be completed in each case through 5 sittings in a period of not more than three months from the date the reference made to the CCIE. In exceptional cases, if any dispute so merits, the time period may be extended at the discretion of Conciliation Committee (with reasons to be recorded in writing), for a further period of three months.
6.4.2.3.6	The CCIE shall hold day to day sitting at a suitable place (preferably the headquarter of the Employer or New Delhi) and may hold as many sittings every month as it deems appropriate keeping in view the volume of work.
6.4.2.4	**Fees & Facilities to the Members of the CCIE**
	Each member of CCIE would be paid a sum of Rs. 50,000/- as sitting fee per sitting. In addition, Rs. 5,000/- per sitting will be paid for local transport charges for each day of proceeding.

In case, a particular dispute requires more than 5 sittings, the same may be held at the discretion of the CCIE but with a cap on payment of fee for 5 sittings only. The local transport charges shall, however, be paid as provided for each day of sitting beyond the 5 sittings.

All expenditure incurred on the conciliation proceedings including payment of fees to the Conciliators, office space, logistic, secretarial assistance and other incidental expenses etc. shall be borne by the Employer initially. Thereafter it shall be shared equally by both parties on completion of the conciliation process.

6.4.2.5 The Parties shall maintain the account of expenditure and present to the other for the purpose of sharing on conclusion of the CCIE proceedings.

The Conciliation process shall be conducted under Part III of the Arbitration and Conciliation Act, 1996.

In case of failure of the conciliation process at the level of the Conciliation Committee, the parties may withdraw from conciliation process and take recourse to Arbitration proceedings or the laid down legal process of Courts.

In the event of the conciliation proceedings being successful, the parties to the dispute would sign the written settlement agreement and the conciliators would authenticate the same. Such settlement agreement would then be binding on the parties in terms of Section 73 of the Arbitration and Conciliation Act, 1996.

After successful conclusion of proceedings, the Parties to the conciliation process, have to undertake and complete all necessary actions for implementation of the terms of settlement within a period of 30 days from execution of settlement agreement, unless a different timeline not exceeding 60 days is agreed upon in settlement agreement. All pending claims of parties, in connection with the dispute, before any other legal forum are to be withdrawn within the said 30 days in pursuance of the settlement agreement.

6.4.2.6 Notwithstanding anything contained in any other law for the time being in force, the Conciliator and the parties shall keep confidential all matters relating to the Conciliation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.

The parties shall not rely on or introduce as evidence in Arbitral or judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Conciliation proceedings, —

a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;

b) admissions made by the other party in the course of the Conciliation proceedings;

c) proposals made by the Conciliator; and

d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Conciliator.

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6.5	**Arbitration**
6.5.1	If the process of mutual consultation and IE (if applicable)and/or Mediation (if applicable) and/or ESC fails to arrive at a settlement between the parties and/or settlement of dispute through CCIE not exercised as mentioned at GCC Sub-Clauses 6.1, 6.2, 6.3, 6.4 above, Employer or the Contractor may, within Thirty (30) days of such failure, give notice to the other party, of its intention to commence arbitration, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given. The mechanism of settling the disputes through arbitration shall be applicable only in cases where the disputed amount (i.e. Claim/ Counter claim, whichever is higher, excluding interest) does not exceed Rs. 25 crores. If the claim/ counter claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee In case the disputed amount (Claim/ Counter claim, whichever is higher, excl. interest) exceeds Rs. 25 Crores, the parties shall be within their rights to take recourse to remedies as may be available to them under the applicable laws other than Arbitration after prior intimation to the other party. There shall be no arbitration where the disputed amount (Claim/ counter claim, whichever is higher) is only up to Rs. 5 lakhs. The parties at the time of invocation of arbitration shall submit all the details of the claims and the counter-claims including the Heads/Sub-heads of the Claims/Counter-Claims and the documents relied upon by the parties for their respective claims and counter-claims. The parties shall not file any documents/details of the claims and counter-claims thereafter. The claims and the counter claims raised by the parties at the time of invocation of the arbitration shall be final and binding on the parties and no further change shall be allowed in the same at any stage during arbitration under any circumstances whatsoever.
6.5.2	Any dispute in respect of which a notice of intention to commence arbitration has been given, in accordance with GCC Sub Clause 6.3.1, shall be finally settled by arbitration.
6.5.3	It is agreed between the parties that the Arbitration proceedings shall be conducted as per the provisions of Fast Track Procedure as provided under The Arbitration and Conciliation Act, 1996, as amended from time to time. Any dispute or difference raised by a party to arbitration shall be adjudicated by an arbitral tribunal consisting of three arbitrators, in the following manner: a) A party willing to commence arbitration proceeding shall invoke Arbitration Clause by giving notice to the other party. b) The EMPLOYER and the Contractor shall each appoint one arbitrator, and these two arbitrators shall jointly appoint a third arbitrator within 30 days, who shall act as presiding arbitrator of the arbitral tribunal. If the two arbitrators do not succeed in appointing a third arbitrator within 30 days of the latter of the two arbitrators has been appointed, the third arbitrator shall be appointed by the High Court of Delhi.

c) If one party fails to appoint its arbitrator within 30 days after the other party has named its arbitrator, the party which has named its arbitrator may approach the High Court of Delhi to appoint the second arbitrator.

d) If any member of the arbitral tribunal dies, resigns, becomes incapacitated or withdraws for any reason from the proceedings or his mandate is terminated by the Court, a substitute shall be appointed in the same manner as the arbitrator whose mandate has terminated as above. After substitution of new member, the arbitration tribunal shall proceed with reference from the stage where the mandate of the arbitrator has been terminated.

e) Arbitrator tribunal shall be paid fees as per the Fee Schedule (presently Fourth Schedule) provided in 'The Arbitration and Conciliation Act, 1996' as amended from time to time. If the claim/ counter claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee which may be used for determining the arbitration fee.

f) If after commencement of the Arbitration proceedings, the parties agree to settle the dispute mutually or refer the dispute to mediation or Conciliation, the arbitral tribunal shall put the proceedings in abeyance until such period as requested by the parties. Where the proceedings are put in abeyance or terminated on account of mutual settlement of dispute by the parties, the fees payable to the arbitrator shall be determined as under:

(i) 40% of the fees if the Pleadings are complete.
(ii) 60% of the fees if the Hearing has commenced.
(iii) 80% of the fees if the Hearing is concluded but the Award is yet to be passed.

g) Each party shall pay its share of arbitrator's fees in stages as under or as per the directions of Arbitrator:

(i) 40 % of the fees on Completion of Pleadings.
(ii) 40% of the fees on Conclusion of the Final Hearing.
(iii) 20% at the time when arbitrator notifies the date of final award.

h) The Claimant shall be responsible for making all necessary arrangements for the travel/ stay of the Arbitrator including venue of arbitration, hearings. The parties shall share the expenses for the same equally.

i) The Arbitration shall be held at Delhi only.

j) The arbitral tribunal shall give reasoned and speaking award in prompt manner and it shall be final and binding on the parties.

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	k) Subject to the aforesaid conditions, provisions of the Arbitration and Conciliation Act, 1996 and any statutory modifications or re-enactment thereof as amended from time to time, shall apply to the arbitration proceedings under this clause.
6.5.4	In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract (s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between CPSEs and Government Departments/ Organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Departments), such disputes or difference shall be taken up by either party for resolution through Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) as mentioned in DPE Office Memorandum No. 05/0003/2019-FTS-10937 dated 14.12.2022 issued by Department of Public Enterprises, Government of India and its further clarifications, modifications and amendments, issued from time to time. The aforesaid limit of Rs 25 crore shall not be applicable and matter may be referred to AMRCD irrespective of the amount involved in dispute, if the dispute could not be resolved through Mutual Consultation and IE (if applicable) as brought out at GCC Sub Clause 6.1 and 6.2 above.
6.6	Notwithstanding any reference to the Independent Engineer or Mediation or Conciliation or Arbitration herein, (a) the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree. (b) The Employer shall pay the Contractor any monies due to the Contractor. Settlement of Dispute clause cannot be invoked by the Contractor, if the Contract has been mutually closed or 'No Demand Certificate' has been furnished by the Contractor or any Settlement Agreement has been signed between the Employer and the Contractor.
,B.	**SUBJECT MATTER OF CONTRACT**
7	**Scope of Facilities**
7.1	Unless otherwise expressly limited in the Technical Specifications, the Contractor's obligations cover the provision of all Plant and Equipment including structural steel and the performance of all Installation Services and civil works, allied works etc. required for the design, the manufacture (including procurement, quality assurance, construction, installation, associated civil works, Pre-commissioning and delivery) of the Plant and Equipment and the installation, completion, commissioning and performance testing of the Facilities in accordance with the plans, procedures, specifications, drawings, codes and any other documents as specified in the Technical Specifications. Such specifications include, but are not limited to, the provision of supervision and engineering services; the supply of labour, materials, equipment, spare parts (as specified in GCC Sub-Clause 7.3 below) and accessories; Contractor's Equipment; construction utilities and supplies; temporary materials, structures and facilities; transportation (including, without limitation, unloading and hauling to, from and at the Site); and storage, except for those supplies, works and services

	that will be provided or performed by the Employer, as set forth in Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement.
7.2	The Contractor shall, unless specifically excluded in the Contract, perform all such work and/or supply all such items and materials not specifically mentioned in the Contract but that can be reasonably inferred from the Contract as being required for attaining Completion of the Facilities as if such work and/or items and materials were expressly mentioned in the Contract.
7.3	In addition to the supply of Mandatory Spare Parts included in the Contract, the Contractor agrees to supply spare parts required for the operation and maintenance of the Facilities. However, the identity, specifications and quantities of such spare parts and the terms and conditions relating to the supply thereof are to be agreed between the Employer and the Contractor, and the price of such spare parts shall be that given in Price Schedule No. 5, which shall be added to the Contract Price. The price of such spare parts shall include the purchase price therefor and other costs and expenses (including the Contractor’s fees) relating to the supply of spare parts. Prices of recommended spares covered under Price Schedule No. 5 shall be kept valid for a period of six (6) months after placement of Notification of Award for Main Equipment and Mandatory Spares.
7.3.1	The Contractor agrees that the spare parts recommended by him for 3 years operation and quoted in Price Schedule No. 5 shall be supplied by him at the same terms and conditions as are otherwise applicable to this Contract. Further, the Contractor also agrees to supply spare parts required for the operation and maintenance of the Facilities as per provision of subsequent paragraphs of this Sub-Clause.
7.3.1.1	All the spares for the equipment under the Contract will strictly conform to the Specification and other relevant documents and will be identical to the corresponding main equipment/components supplied under the Contract and shall be fully interchangeable.
7.3.1.2	All the mandatory spares covered under the Contract shall be produced along with the main equipment as a continuous operation and the delivery of the spares will be effected along with the main equipment in a phased manner and the delivery would be completed by the respective dates for the various categories of equipment as per the agreed network. In case of recommended spares the above will be applicable provided the order for the recommended spares have been placed with the Contractor prior to commencement of manufacture of the main equipment.
7.3.1.3	The Contractor will provide the Employer with the manufacturing drawings, catalogues, assembly drawings and any other document required by the Employer so as to enable the Employer to identify the recommended spares. Such details will be furnished to the Employer as soon as they are prepared but in any case, not later than six months prior to commencement of manufacture of the corresponding main equipment.
7.3.1.4	To enable the Employer to finalise the requirement of recommended spares which are ordered subsequent to placement of order for main equipment/plant, in addition to necessary technical details, catalogue and such other information brought-out herein above, the Contractor will also provide a justification in support of reasonableness of the quoted prices of spares which will, inter-alia, include documentary evidence that the prices quoted by the

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	Contractor to the Employer are not higher than those charged by him from other customers in the same period.
7.3.1.5	In addition to the spares recommended by the Contractor, if the Employer further identifies certain items of spares, the Contractor will submit the prices and delivery quotation for such spares within thirty (30) days of receipt of such request with a validity period of six (6) months for consideration by the Employer and placement of order for additional spares if the Employer so desires.
7.3.1.6	The quality plan and the inspection requirement finalised for the main equipment will also be applicable to the corresponding spares.
7.3.1.7	The Contractor will provide the Employer with all the addresses and particulars of his sub-suppliers while placing the order on vendors for items/components/equipment covered under the Contract and will further ensure with his vendors that the Employer, if so desires, will have the right to place order for spares directly on them on mutually agreed terms based on offers of such vendors.
7.3.1.8	The Contractor shall guarantee the long term availability of spares to the Employer for the full life of the equipment covered under the Contract. The Contractor shall guarantee that before going out of production of spare parts of the equipment covered under the Contract, he shall give the Employer at least 2 years advance notice so that the latter may order his bulk requirement of spares, if it so desires. The same provision will also be applicable to Sub- contractors. Further, in case of discontinuance of manufacture of any spares by the Contractor and/or his Sub-contractor, Contractor will provide the Employer, two years in advance, with full manufacturing drawings, material specification and technical information including information on alternative equivalent makes required by the Employer for the purpose of manufacture/ procurement of such items.
7.3.1.9	The prices of all future requirements of item of spares beyond 3 years operational requirement will be derived from the corresponding ex-works price at which the order for such spares have been placed by Employer as a part of mandatory spares or recommended spares, or from the rates of mandatory spares or recommended spares as quoted by/negotiated with the Contractor. Ex-works order price of future spares shall be computed in accordance with the price adjustment provisions covered under the main Contract and there will be no ceiling on the amount of variation in the prices. The above option for procuring future recommended spares by the Employer shall remain valid for the period of 5 years from the date of Commissioning of the equipment.
7.3.1.10	The Contractor will indicate in advance the delivery period of the items of spares, which the Employer may procure in accordance with above sub-clause. In case of emergency requirements of spares, the Contractor would make every effort to expedite the manufacture and delivery of such spares on the basis of mutually agreed time schedule.
7.3.1.11	In case the Contractor fails to supply the mandatory spares, recommended spares or long-term spares in the terms stipulated above, the Employer shall be entitled to purchase the same from the alternate sources at the risk and the cost of the Contractor and recover from

the Contractor, the excess amount paid by the Employer over the rates worked on the above basis. In the event of such risk purchase by the Employer, the purchases will be as per the Works and Procurement Policy of the Employer prevalent at the time of such purchases and the Employer at his option may include a representative from the Contractor in finalising the purchases.

7.3.1.12 It is expressly understood that the final settlement between the parties in terms of relevant clauses of the Contract Documents shall not relieve the Contractor of any of his obligations under the provision of long-term availability of spares and such provisions shall continue to be enforced till the expiry of 5 years period reckoned from the scheduled date of Commissioning of the Plant and Equipment unless otherwise discharged expressly in writing by the Employer. Further, the provisions pertaining to long term availability of spares shall be extended beyond 5 years applicability period mentioned hereinabove if so desired by the Employer and at the mutually acceptable escalation formula.

7.3.1.13 The Contractor shall warrant that all spares supplied will be new and in accordance with the Contract Documents and will be free from defects in design, material and workmanship and shall further guarantee as under:

(i) For 3 years operational spares (both mandatory and recommended)

(a) For any item of spares ordered or to be ordered by the Employer for 3 years operational requirement of the plant which are manufactured as a continuous operation together with the corresponding main equipment/component, the Defect Liability Period will be twelve (12) months from the scheduled date of commercial operation of main equipment/plant under the Contract or 2 months from the date of Completion of Facilities whichever is earlier. 'Commercial Operation' shall mean the conditions of operation in which the complete equipment covered under the Contract is officially declared by the Employer to be available for continuous operation at different loads up to and including rated capacity. Such declaration by the Employer, however, shall not relieve or prejudice the Contractor any of his obligations under the Contract. In case of any failure in the original component/ equipment due to faulty designs, materials and workmanship, the corresponding spare parts, if any, supplied will be replaced without any extra cost to the Employer unless a joint examination and analysis by the Employer and the Contractor of such spare parts prove that the defect found in the original part that failed, can safely be assumed not to be present in spare parts. Such replaced spare parts will have the same Defect Liability as applicable to the replacement made for the defective original part/component provided that such replacement for the original equipment and the spare replaced are again manufactured together. The discarded spare parts will become the property of the Contractor as soon as they have been replaced by the Contractor.

b) For the item of spares ordered or to be ordered by the Employer for 3 years operational requirement of the plant, which with the written approval of the Employer, are not manufactured as a continuous operation will be warranted for 7000 hrs of trouble free operation if used within a period of eighteen (18) months reckoned from the date of delivery at site. However, if such spare parts are put to use after eighteen (18) months of the delivery at Site then the guarantee of such spares will stand valid

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	till the expiry of thirty six (36) months from the scheduled date of Commissioning of equipment/ plant covered under the contract or 7000 hrs of trouble free operation after such spares are put in service, whichever is earlier. d) For long term requirement: For item of spares that may be ordered by the Employer to cover requirements beyond 3 years of Initial Operation of the plant, the warranty will be till the expiry of 7000 hrs of trouble-free operation if used within a period of eighteen (18) months from the date of delivery at site. For item of spares that may be used after eighteen (18) months from the date of delivery at site, the warranty period will be 12 months from the date they are put to use or 7000 hrs of trouble free operation, whichever is earlier. In any case the defect liability of spares will expire at the end of forty-eight (48) months from the date of their receipt at site. ii) The Defect Liability of spares covered in para (b) & (c) above, that are not used within 18 months from the respective date of the delivery at Site will, however, be subject to condition that all such spares being stored/maintained/preserved in accordance with Contractor's standard recommended practice, if any, and the same has been furnished to the Employer.
8	**Time for Commencement and Completion**
8.1	The Contractor shall commence work on the Facilities from the date of Notification of Award and without prejudice to GCC Sub-Clause 26.2 hereof, the Contractor shall thereafter proceed with the Facilities in accordance with the time schedule specified in Appendix 4 (Time Schedule) to the Contract Agreement.
8.2	The Contractor shall attain Completion of the Facilities (or of a part where a separate time for Completion of such part is specified in the Contract) within the time stated in the SCC or within such extended time to which the Contractor shall be entitled under GCC Clause 40 (Extension of Time for Completion) hereof.
9	**Contractor's Responsibilities**
9.1	The Contractor shall design, manufacture (including associated purchases and/or subcontracting), install, complete the Facilities, carry out the Guarantee tests (If Applicable) and carry out the Comprehensive Operation & Maintenance of the Facilities (if applicable), with due care and diligence in accordance with the Contracts.
9.2	The Contractor confirms that it has entered into this Contract on the basis of a proper examination of the data relating to the Facilities (including any data as to boring tests) provided by the Employer, and on the basis of information that the Contractor could have obtained from a visual inspection of the Site (if access thereto was available) and of other data readily available to it relating to the Facilities as at the date fifteen (15) days prior to bid submission. The Contractor acknowledges that any failure to acquaint itself with all such data and information shall not relieve its responsibility for properly estimating the difficulty or cost of successfully performing the Facilities.

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9.3	The Contractor shall acquire in its name all permits, approvals and/or licenses from all local, state or national government authorities or public service undertakings in the country where the Site is located that are necessary for the performance of the Contract, including, without limitation, visas for the Contractor's and Subcontractor's personnel and entry permits for all imported Contractor's Equipment. The Contractor shall acquire all other permits, approvals and/or licenses that are not the responsibility of the Employer under GCC Sub-Clause 10.3 hereof and that are necessary for the performance of the Contract.
9.4	The Contractor shall comply with all laws in force in the country where the Facilities are installed and where the Installation Services are carried out. The laws will include all national, provincial, municipal or other laws that affect the performance of the Contract and bind upon the Contractor. The Contractor shall indemnify and hold harmless the Employer from and against any and all liabilities, damages, claims, fines, penalties and expenses of whatever nature arising or resulting from the violation of such laws by the Contractor or its personnel, including the Subcontractors and their personnel, but without prejudice to GCC Sub-Clause 10.1 hereof.
9.5	Any plant, material and services that will be incorporated in or be required for the facilities and other supplies shall have their origin as specified under GCC Clause 3.13 (Country of Origin).
10	**Employer's Responsibilities**
10.1	The Employer shall ensure the accuracy of all information and/or data to be supplied by the Employer as described in Appendix 6 (Scope of Works and Supply by the Employer) to the Contract, except when otherwise expressly stated in the Contract.
10.2	The Employer shall be responsible for acquiring and providing legal and physical possession of the Site and access thereto, and for providing possession of and access to all other areas reasonably required for the proper execution of the Contract, including all requisite rights of way, as specified in Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement. The Employer shall give full possession of and accord all rights of access thereto on or before the date(s) specified in Appendix 6. The Employer reserves the right to hand over the Site in parts progressively to the Contractor. The Contractor will be required to take possession of the Site without any undue delay and do work on the released fronts in parts without any reservation whatsoever.
10.3	The Employer shall acquire and pay for all permits, approvals and/or licenses from all local, state or national government authorities or public service undertakings in the country where the Site is located which such authorities or undertakings require the Employer to obtain them in the Employer's name, are necessary for the execution of the Contract (they include those required for the performance by both the Contractor and the Employer of their respective obligations under the Contract), including those specified in Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement.
10.4	If requested by the Contractor, the Employer shall use its best endeavors to assist the Contractor in obtaining in a timely and expeditious manner all permits, approvals and/or

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	licenses necessary for the execution of the Contract from all local, state or national government authorities or public service undertakings that such authorities or undertakings require the Contractor or Subcontractors or the personnel of the Contractor or Subcontractors, as the case may be, to obtain.
10.5	Unless otherwise specified in the Contract or agreed upon by the Employer and the Contractor, the Employer shall provide sufficient, properly qualified operating and maintenance personnel; shall supply and make available all raw materials, utilities, lubricants, chemicals, catalysts, other materials and facilities ; and shall perform all work and services of whatsoever nature, to enable the Contractor to properly carry out Pre-commissioning, Commissioning and Guarantee Tests, all in accordance with the provisions of Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement at or before the time specified in the program furnished by the Contractor under GCC Sub-Clause 18.2 (Program of Performance) hereof and in the manner thereupon specified or as otherwise agreed upon by the Employer and the Contractor.
10.6	The Employer shall be responsible for the continued operation of the Facilities after Completion, in accordance with GCC Sub-Clause 24.8, and shall be responsible for facilitating the Guarantee Test(s) for the Facilities, in accordance with GCC Sub-Clause 25.2.
10.7	All costs and expenses involved in the performance of the obligations under this GCC Clause 10 shall be the responsibility of the Employer, save those to be incurred by the Contractor with respect to the performance of Guarantee Tests, in accordance with GCC Sub-Clause 25.2.
C.	**PAYMENT**
11	**Contract Price**
11.1	The Contract Price shall be as specified in Article 2 (Contract Price and Terms of Payment) of the Form of Contract Agreement.
11.2	The Contract Price shall be adjusted in accordance with provisions of Appendix-2 (Price Adjustment) to the Contract Agreement.
11.3	Subject to GCC Sub-Clauses 9.2, 10.1 and 35 (Unforeseen Conditions) hereof, the Contractor shall be deemed to have satisfied itself as to the correctness and sufficiency of the Contract Price, which shall, except as otherwise provided for in the Contract, cover all its obligations under the Contract.
12	**Terms of Payment**
12.1	The Contract Price shall be paid as specified in Appendix 1 (Terms and Procedures of Payment) to the Contract Agreement. The procedures to be followed in making application for and processing payments shall be those outlined in the same Appendix 1.
12.2	No payment made by the Employer herein shall be deemed to constitute acceptance by the Employer of the Facilities or any part(s) thereof.
12.3	

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	The currency or currencies in which payments are made to the Contractor under this Contract shall be specified in Appendix 1 (Terms and Procedures of Payment) to the Contract Agreement, subject to the general principle that payments will be made in the currency or currencies in which the Contract Price has been stated in the Contractor's bid.
13	**Securities**
13.1	**Issuance of Securities** The Contractor shall provide the securities specified below in favour of the Employer at the times, and in the amount, manner and form specified below.
13.2	**Advance Payment Security**
13.2.1	The Contractor shall, within twenty-eight (28) days of the Notification of Award of Contract, provide a security in an amount equal to the advance payment for supply of Plant & Equipment and 110% of the advance amount for Installation Services and Civil & Allied Works calculated in accordance with Appendix 1 (Terms and Procedures of Payment) to the Contract Agreement, and in the currency or currencies of the Contract, with an initial validity of up to ninety (90) days beyond the schedule date of Completion of the last facility covered under the package in accordance with GCC Clause 24. However, in case of delay in completion of the facilities under the package, the validity of this security shall be extended by the period of such delay. The advance payment security shall also cover the amount of GST as applicable on the advance payment to be paid to the contractor.
13.2.2	The security shall be in the form of an unconditional bank guarantee as per the proforma provided in Section VII (Forms and Procedures)- Form of Advance Payment Security. The Advance payment Security shall be reduced pro-rata every three (3) months after First Running Account Bill/Stage Payment under the Contract based on the value of the respective equipment/facilities received and applicable GST. The cumulative amount of reduction at any point of time shall not exceed ninety (90%) of the advance and the amount of GST paid on the advance amount corresponding to cumulative value of the respective equipment/Facilities supplied and received as per certificate issued by the Project Manager. The balance shall be released upon release of respective milestone linked payments as identified in Appendix-1 of form of Contract Agreement. In case milestone payment is not envisaged in the package, the balance shall be released after Completion of those Facilities on certification by the Project Manager. It should be clearly understood that reduction in the value of security for advance shall not in any way dilute the Contractor's responsibility and liabilities under the Contract including in respect of the Facilities for which the reduction in the value of security is allowed.
13.3	**Contract Performance Security**
13.3.1	The Contractor shall, within twenty-eight (28) days of the Notification of Award, provide securities for the due performance of the Contract ***as Specified in SCC*** for all the Contracts, with an initial validity up to ninety (90) days beyond the end of scheduled Defect Liability Period of the last equipment covered under the Contract. However, in case of delay in completion of the defect liability period, the validity of all the contract performance securities shall be extended by the period of such delay.

13.3.2	The performance security shall be denominated in the currency of the Contract and shall be in the form of either an unconditional Bank Guarantee or an Insurance Surety Bond provided in Section-VII (Forms and Procedures)-Form of Performance Security of the bidding documents.
13.3.3	Unless otherwise stipulated in SCC, the security shall be reduced pro rata to the Contract Price of a part of the Facilities for which a separate time for Completion is provided, twenty one (21) months after Completion of the Facilities or where relevant part thereof, or fifteen (15) months after Operational Acceptance of the Facilities (or the relevant part thereof), whichever occurs first; provided, however, that if the Defects Liability Period has been extended on any part of the Facilities pursuant to GCC Sub-Clause 27.8 hereof, the Contractor shall issue an additional security in an amount proportionate to the Contract Price of that part. The security shall be returned to the Contractor immediately after its expiration. Provided, however, that if the Contractor, pursuant to GCC Sub-Clause 27.10, is liable for an extended warranty obligation, the performance security shall be extended for the period and up to the amount agreed upon or as specified in the SCC.
13.3.4	Whenever adjustments under Clause 39 [Change in the Facilities] result in an accumulative increase or decrease of the Contract Price by more than fifteen percent (15%) of the Contract Price stated in the Contract Agreement: (a) in the case of such an increase, at the Project Manager's request the Contractor shall promptly increase the amount of the Performance Security in that currency by a percentage equal to the accumulative increase; or (b) in the case of such a decrease, subject to the Project Manager's prior consent the Contractor may decrease the amount of the Performance Security in that currency by a percentage equal to the accumulative decrease.
13.4	**Security for Deed of Joint Undertaking** In case Deed(s) of Joint Undertaking by the Contractor along with his Collaborator(s) / Associate(s) form part of the Contract, then, in addition to the Contract performance securities furnished by the Contractor, the Collaborator(s) / Associate(s) shall furnish, within twenty eight (28) days of the Notification of Award, separate unconditional Bank Guarantee(s) towards faithful performance of the Deed(s) of Joint Undertaking for amount(s) specified in relevant Item of Bid Data Sheets and with validity till such period as specified in the corresponding format for Deed of Joint Undertaking. However, in case of delay in completion of defect liability period, the validity of Bank Guarantee(s) submitted towards faithful performance of Deed(s) of Joint Undertaking shall be extended by such period of delay. The Bank Guarantee(s) shall be denominated in the currency or currencies of Contract and shall be as per the proforma provided in Section-VII (Forms and Procedures) - Form of Bank Guarantee to be furnished by Associate(s) / Collaborator(s).
13.5	The Bank Guarantees submitted towards Advance Payment Security, Contract Performance Security and Security in compliance to the Deed of Joint Undertaking (if applicable) shall be essentially from any of the Banks listed at **Annexure-I** to Section-V (Special Conditions of

	Contract) of the bidding documents. The Insurance Surety Bond towards the Contract Performance Security and the Security towards the Deed of Joint Undertaking (if applicable) shall be essentially from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI). In case of guarantees issued by branches outside India for foreign banks, the bank guarantees shall be routed through the correspondent Bank in India for due verification of signatures of the executant and lodgement of claim. The bank guarantee submitted from within India towards Advance Payment Security, Contract Performance Security and Security for Deed of Joint Undertaking (if applicable) shall be executed on a stamp paper of appropriate value as per stamp act prevailing in the State of the issuing Bank in India or the state of submission of BG or the State from where the BG shall be acted upon, whichever is higher.
13.6	Where a BG issued by a Bank outside India and Insurance Surety Bond issued by an Indian Insurance company outside India also needs to bear Stamp Duty of appropriate value applicable to the place of Employer where BG / Insurance Surety Bond is to be submitted, the BG / Insurance Surety Bond will be adjudicated from Collector of Stamps, within 3 months of arrival of BG / Insurance Surety Bond in India and the expenses incurred in this regard shall be borne by the Contractor.
13.7	a) All BGs and all Insurance Surety Bonds shall be received from issuing Bank/Insurance company directly through post/ courier, to address mentioned in SCC. The BG/ Insurance Surety Bond also needs to bear stamp duty of appropriate value applicable to the place of Employer where BG/ Insurance Surety Bond is to be submitted. The BG/ Insurance Surety Bond may be got adjudicated by the employer from Collector of Stamps, within 3 months of arrival of BG/ Insurance Surety Bond in India. Expenses incurred in this regard shall be adjusted from the payment due to the contractor. b) A soft copy of the BG/ Insurance Surety Bond is mandatorily required to be mailed to the e-mail address mentioned in SCC by the issuing Bank/ Insurance company. c) Confirmation of BGs through Structured Financial Messaging System (SFMS)/SWIFT: While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are mentioned in SCC. BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI. The format of the message for confirmation of the BG shall be as below: **BG advising message: IFN 760COV/ IFN 767COV via SFMS** **Field Number: Particulars (to be mentioned in Row 1)**

	7037: NTPCBG (unique identifier) e) All Bank Guarantees/ Insurance Surety Bonds should be enforceable for minimum ninety (90 days) after expiry of its validity. f) Extension of all BGs/ Insurance Surety Bonds should be on Stamp paper of same value as that of the original BG/ Insurance Surety Bond. Minimum extension of any BG/ Insurance Surety Bond should be three months.
14	**Taxes and Duties**
14.1	Except as otherwise specifically provided in the Contract, the Contractor shall bear and pay all taxes, duties, levies and charges assessed on the Contractor, its Sub-contractor or their employees by all municipal, state or national government authorities in connection with the Facilities in and outside of the country where the Site is located.
14.2	Notwithstanding GCC Sub-Clauses 14.1 above, the Employer shall bear and pay/reimburse to the Contractor Goods and Services Tax (GST) applicable on: (a) Plant and Equipment (including Type Test Charges) and Mandatory Spares to be supplied from within the Employer's country specified in Price Schedule No. 1 (and also on locally supplied Recommended Spare Parts quoted in Price Schedule No. 5, when awarded) to be incorporated in the Facilities, by the law of country where the site is located, (b) local transportation & insurance, other local costs incidental to delivery of plant & equipment including mandatory spares specified in Price Schedule No. 2 (and also of locally supplied Recommended Spare Parts quoted in Price Schedule No. 5, when awarded) and (c) Installation Services including Erection, Civil & Allied Works and other services specified in Price Schedule No. 3. However, all other taxes, duties & levies as may be applicable on goods and services specified in Price Schedules Nos. 1, 2 & 3 and on the materials used for civil construction works and erection & commissioning shall be to the contractor's account and no separate claim in this regard will be entertained by the Employer. Notwithstanding anything to contrary contained in the Contract, the Contractor's right to payment under the Contract is subject to issuance of valid tax invoice, payment of applicable GST to the credit of appropriate Government and submission of valid particulars of tax invoice under GST returns in accordance with GST Law. The Contractor shall issue tax invoices, file appropriate returns, and deposit the applicable GST to the account of appropriate government within the time limit prescribed under the GST Law. In the event of any default, Contractor shall be liable to pay any penalty/demand raised on NTPC -REL due to default by Contractor, and the same shall be recovered/Contractor shall make good the loss. The Contractor shall be responsible for the issuance of e-way bill and other compliances relating to e-way bill as per GST law. The Employer will deduct GST at source at the applicable rates in case transactions under the contract are liable to GST deduction at source as per the prevailing provisions of GST Law.

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14.3	If any tax exemptions, reductions, allowances or privileges are available to the Contractor in the country where the Site is located, the Employer shall use its best endeavours to enable the Contractor to benefit from any such tax savings to the maximum allowable extent.
14.4	For the purpose of the Contract, it is agreed that the Contract Price specified in Article 2 (Contract Price and Terms of Payment) of the Contract Agreement is based on the taxes, duties, levies and charges prevailing on seven (7) days prior to the deadline set for price bid submission in the country where the Site is located (hereinafter called "Tax" in this GCC Sub-Clause 14.4). If any rates of Tax are increased or decreased, a new Tax is introduced, an existing Tax is abolished, or any change in interpretation or application of any Tax occurs in the course of the performance of Contract, which was or will be assessed on the Contractor in connection with performance of the Contract, an equitable adjustment of the Contract Price shall be made to fully take into account any such change by addition to the Contract Price or deduction therefrom, as the case may be, in accordance with GCC Clause 36 (Change in Laws and Regulations) hereof. However, these adjustments shall not be applicable on procurement of raw materials, intermediary components and intermediary services etc. by the Contractor. **Income Tax:** As per Indian Income Tax Act & Rules, Employer is required to deduct Income Tax at source from all the payments to be made to Non-resident/ Foreign Contractor. For this purpose, the Contractor shall be required to either furnish (i) the certificate from Indian Tax Authority or (ii) Ruling from "the Authority for Advance Ruling (AAR)" determining the applicable rate of Income tax in India before release of first payment. The Contractor will be required to submit PAN details to the Project Manager before the submission of the first bill.
14.5	If the Employer orders any spare at a later date as per GCC Cl 7.3, all applicable additional taxes & duties, if any, not included in the original price shall be to the account of Employer.
14.6	The Contractor will be required to submit PAN details to the Project Manager before the submission of the first bill.
D.	**INTELLECTUAL PROPERTY**
15	**Copyright**
15.1	The copyright in all drawings, documents and other materials containing data and information furnished to the Employer by the Contractor herein shall remain vested in the Contractor or, if they are furnished to the Employer directly or through the Contractor by any third party, including suppliers of materials, the copyright in such materials shall remain vested in such third party. The Employer shall however be free to reproduce all drawings, documents and other material furnished to the Employer for the purpose of the contract including, if required, for operation and maintenance of the facilities.

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16	**Confidential Information**
16.1	The Employer and the Contractor shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following termination of the Contract. Notwithstanding the above, the Contractor may furnish to its Subcontractor(s) such documents, data and other information it receives from the Employer to the extent required for the Subcontractor(s) to perform its work under the Contract, in which event the Contractor shall obtain from such Subcontractor(s) an undertaking of confidentiality similar to that imposed on the Contractor under this GCC Clause 16.
16.2	The Employer shall not use such documents, data and other information received from the Contractor for any purpose other than the operation and maintenance of the Facilities. Similarly, the Contractor shall not use such documents, data and other information received from the Employer for any purpose other than the design, procurement of Plant and Equipment, construction or such other work and services as are required for the performance of the Contract.
16.3	The obligation of a party under GCC Sub-Clauses 16.1 and 16.2 above, however, shall not apply to that information which (a) now or hereafter enters the public domain through no fault of that party (b) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party hereto (c) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality. (d) is required to be disclosed in accordance with a judicial or governmental order or decree
16.4	The above provisions of this GCC Clause 16 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Facilities or any part thereof.
16.5	The provisions of this GCC Clause 16 shall survive termination, for whatever reason, of the Contract.
E.	**WORK EXECUTION**
17	**Representatives**
17.1	**Project Manager** If the Project Manager is not named in the Contract, then within fourteen (14) days of the Effective Date, the Employer shall appoint and notify the Contractor in writing of the name of the Project Manager. The Employer may from time to time appoint some other person as the Project Manager in place of the person previously so appointed, and shall give a notice of

	the name of such other person to the Contractor without delay. The Employer shall take reasonable care to see that no such appointment is made at such a time or in such a manner as to impede the progress of work on the Facilities. The Project Manager shall represent and act for the Employer at all times during the currency of the Contract. All notices, instructions, orders, certificates, approvals and all other communications under the Contract shall be given by the Project Manager, except as herein otherwise provided. All notices, instructions, information and other communications given by the Contractor to the Employer under the Contract shall be given to the Project Manager, except as herein otherwise provided.
17.2	**Contractor's Representative & Construction Manager**
17.2.1	The Contractor shall appoint the Contractor's Representative within fourteen (14) days of the Effective Date or before the start of work whichever is earlier and shall request the Employer in writing to approve the person so appointed.
17.2.1.1	The Contractor's representative shall be a regular Employee/ Partner/ Director only and the Contractor shall be required to submit a Power of Attorney in original in favour of its representative. Notarized photocopy of the Power of Attorney shall be acceptable only if the Power of Attorney has been registered by the Contractor. The Employer may verify the photocopy of the Power of Attorney with the Original and the Contractor shall be required to produce the original Power of Attorney for verification, if required by the Employer. The relation of the Contractor's representative with the contractor such as Partner/ Employee etc. should be clearly brought out in the Power of Attorney. The Contractor would be required to submit a documentary proof of the relation of the Contractor's representative with the contractor in the form of self-attested copy of any of the following documents: (i) Previous financial year's Form 16 as available at TRACES site of Income tax department, if the Contractor's representative is an employee of contractor or his Appointment Letter/ Salary Slip/ other documentary evidence (only in case of recent appointment or where Form 16 details are not uploaded at TRACES). Further, the Contractor shall submit the copy of Form 16 as available through TRACES site for every subsequent year also in respect of the Contractor's representative till the period of authorization. (ii) Article of Association/ Registered Partnership Deed if the Contractor's representative is a partner or stake holder in Company. In case, the Contractor is not able to submit any of the documentary proofs as mentioned above at para (i) & (ii), he would be required to submit an affidavit stating the relationship between the Contractor's representative and the Contractor.
17.2.1.2	In case, the Contractor's representative is also doing some other Contract(s)/ Work(s) as nominee of the same contractor, the Contractor shall give a declaration citing list of all works where the Contractor's representative is the nominee.

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17.2.1.3	If the Employer objects to the appointment giving the reason therefore, then the Contractor shall appoint a replacement within fourteen (14) days of such objection, and the foregoing provisions of this GCC Sub-Clause 17.2.1 shall apply thereto.
17.2.2	The Contractor's Representative shall represent and act for the Contractor at all times during the currency of the Contract and shall give to the Project Manager all the Contractor's notices, instructions, information and all other communications under the Contract. All notices, instructions, information and all other communications given by the Employer or the Project Manager to the Contractor under the Contract shall be given to the Contractor's Representative or, in its absence, its deputy, except as herein otherwise provided. The Contractor shall not revoke the appointment of the Contractor's Representative without the Employer's prior written consent, which shall not be unreasonably withheld. If the Employer consents thereto, the Contractor shall appoint some other person as the Contractor's Representative, pursuant to the procedure set out in GCC Sub-Clause 17.2.1.
17.2.3	The Contractor's Representative may, subject to the approval of the Employer (which shall not be unreasonably withheld), at any time delegate to any person any of the powers, functions and authorities vested in him or her. Any such delegation may be revoked at any time. Any such delegation or revocation shall be subject to a prior notice signed by the Contractor's Representative, and shall specify the powers, functions and authorities thereby delegated or revoked. No such delegation or revocation shall take effect unless and until a copy thereof has been delivered to the Employer and the Project Manager. Any act or exercise by any person of powers, functions and authorities so delegated to him or her in accordance with this GCC Sub-Clause 17.2.3 shall be deemed to be an act or exercise by the Contractor's Representative.
17.2.3.1	Notwithstanding anything stated in GCC Sub-clause 17.1 and 17.2.1 above, for the purpose of execution of contract, the Employer and the Contractor shall finalise and agree to a Contract Co-ordination Procedure and all the communication under the Contract shall be in accordance with such Contract Co-ordination Procedure.
17.2.4	From the commencement of installation of the Facilities at the Site until Operational Acceptance, the Contractor's Representative shall appoint a suitable person as the construction manager (hereinafter referred to as "the Construction Manager"). The Construction Manager shall supervise all work done at the Site by the Contractor and shall be present at the Site throughout normal working hours except when on leave, sick or absent for reasons connected with the proper performance of the Contract. Whenever the Construction Manager is absent from the Site, a suitable person shall be appointed to act as his or her deputy.
17.2.5	The Employer may by notice to the Contractor object to any representative or person employed by the Contractor in the execution of the Contract who, in the reasonable opinion of the Employer, may behave inappropriately, may be in-competent or negligent, or may commit a serious breach of the Site regulations provided under GCC Sub-clause 22.3. The Employer shall provide evidence of the same, whereupon the Contractor shall remove such person from the Facilities.

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17.2.6	If any representative or person employed by the Contractor is removed in accordance with GCC Sub-Clause 17.2.5, the Contractor shall, where required, promptly appoint a replacement.
17.2.7	In case any of the information/ declaration/ undertaking provided by Contractor/Contractor's representative is found to be false and/ or the Contractor/ Contractor's representative suppresses any relevant information at any stage, the Contractor will be liable for actions in terms of Employer's Debarment policy.
18	**Work Program**
18.1	**Contractor's Organization** The Contractor shall supply to the Employer and the Project Manager a chart showing the proposed organization to be established by the Contractor for carrying out work on the Facilities. The chart shall include the identities of the key personnel together with the curricula vitae of such key personnel to be employed within twenty-one (21) days of the Effective Date. The Contractor shall promptly inform the Employer and the Project Manager in writing of any revision or alteration of such an organization chart.
18.2	**Program of Performance** Within twenty-eight (28) days after the date of notification of award of Contract, the Contractor shall prepare and submit to the Project Manager a detailed program of performance of the Contract, made in the form of PERT Network and showing the sequence in which it proposes to design, manufacture, transport, assemble, install and pre-commission the Facilities, as well as the date by which the Contractor reasonably requires that the Employer shall have fulfilled its obligations under the Contract so as to enable the Contractor to execute the Contract in accordance with the program and to achieve Completion and Acceptance of the Facilities in accordance with the Contract. The program so submitted by the Contractor shall accord with the Time Schedule included in Appendix 4 (Time Schedule) to the Contract Agreement and any other dates and periods specified in the Contract. The Contractor shall update and revise the program as and when appropriate or when required by the Project Manager, but without modification in the Times for Completion given in the SCC and any extension granted in accordance with GCC Clause 40, and shall submit all such revisions to the Project Manager.
18.3	**Progress Report** The Contractor shall monitor progress of all the activities specified in the program referred to in GCC Sub-Clause 18.2 (Program of Performance) above, and supply a progress report to the Project Manager every month. The progress report shall be in a form acceptable to the Project Manager and shall also indicate: (a) percentage completion achieved compared with the planned percentage completion for each activity; and (b) where any activity is behind the program, giving comments and likely consequences and stating the corrective action being taken.
18.4	**Progress of Performance**

If at any time the Contractor's actual progress falls behind the program referred to in GCC Sub-Clause 18.2 (Program of Performance), or it becomes apparent that it will so fall behind, the Contractor shall, at the request of the Employer or the Project Manager, prepare and submit to the Project Manager a revised program, taking into account the prevailing circumstances, and shall notify the Project Manager of the steps being taken to expedite progress so as to attain Completion of the Facilities within the Time for Completion under GCC Sub-Clause 8.2 (Time for Commencement and Completion), any extension thereof entitled under GCC Sub-Clause 40.1 (Extension of Time for Completion), or any extended period as may otherwise be agreed upon between the Employer and the Contractor.

18.5 Work Procedures

The Contract shall be executed in accordance with the Contract Documents and the procedures given in the section on Forms and Procedures of the Contract Documents.

If agreed between the Employer and the Contractor, the Contractor may execute the Contract in accordance with its own standard project execution plans and procedures to the extent that they do not conflict with the provisions contained in the Contract.

18.6 Maintenance of Records of Weekly Progress Review Meeting at Site

The Contractor shall be required to attend all weekly site progress review meetings organized by the 'Project Manager' or his authorized representative. The deliberations in the meetings shall inter alia include the weekly program, progress of work (including details of manpower, tools and plants deployed by the contractor vis-a-vis agreed schedule), inputs to be provided by Employer, delays, if any, and recovery program, specific hindrances to work and work instructions by Employer. Record of Hindrances / events that lead to slow/ stoppage of smooth execution of work shall be maintained in "Hindrance Register". The minutes of the weekly meetings shall be recorded in triplicate in a numbered register available with the 'Project Manager', or his authorized representative.

These recordings shall be jointly signed by the Project Manager or his authorized representative and the Contractor and one copy of the signed records shall be handed over to the Contractor.

19 Subcontracting

19.1 Appendix 5 (List of Approved Subcontractors) to the Contract Agreement specifies major items of supply or services and a list of approved Subcontractors against each item, including vendors. Insofar as no Subcontractors are listed against any such item, the Contractor shall prepare a list of Subcontractors for such item for inclusion in such list. The Contractor may from time to time propose any addition to or deletion from any such list. The Contractor shall submit any such list or any modification thereto to the Employer for its approval in sufficient time so as not to impede the progress of work on the Facilities. Such approval by the Employer for any of the Subcontractors shall not relieve the Contractor from any of its obligations, duties or responsibilities under the Contract.

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19.2	The Contractor shall select and employ its Subcontractors for such major items from those listed in the lists referred to in GCC Sub- Clause 19.1.
19.3	For items or parts of the Facilities not specified in Appendix 5 (List of Approved Subcontractors) to the Contract Agreement, the Contractor may employ such Subcontractors as it may select, at its discretion.
19.4	The Contractor shall not be allowed to sub-contract works to any subcontractor/ sub-vendor from a country which shares a land border with India unless such sub-contractor is registered with the competent Authority **[except for 'Supply Contract' referred at GCC Clause 3.6.1 as modified through SCC**]. The Competent Authority for the purpose of registration shall be as mentioned in the relevant Annexure of SCC. However, the said requirement of registration will not apply to subcontractors from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. The Contractor may apprise itself of the updated lists of such countries available in the website of the Ministry of External Affairs. Procurement of raw material, components, etc. does not constitute subcontracting.
20	**Design and Engineering**
20.1	**Specifications and Drawings**
20.1.1	The Contractor shall execute the basic and detailed design and the engineering work in compliance with the provisions of the Contract, or where not so specified, in accordance with good engineering practice. The Contractor shall be responsible for any discrepancies, errors or omissions in the specifications, drawings and other technical documents that it has prepared, whether such specifications, drawings and other documents have been approved by the Project Manager or not, provided that such discrepancies, errors or omissions are not because of inaccurate information furnished in writing to the Contractor by or on behalf of the Employer.
20.1.2	The Contractor shall be entitled to disclaim responsibility for any design, data, drawing, specification or other document, or any modification thereof provided or designated by or on behalf of the Employer, by giving a notice of such disclaimer to the Project Manager.
20.2	**Codes and Standards** Wherever references are made in the Contract to codes and standards in accordance with which the Contract shall be executed, the edition or the revised version of such codes and standards current at the date fifteen(15) days prior to date of bid submission shall apply unless otherwise specified. During Contract execution, any changes in such codes and standards shall be applied after approval by the Employer and shall be treated in accordance with GCC Clause 39 (Changes Originating from Contractor).

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20.3	**Approval/Review of Technical Documents by Project Manager**
20.3.1	The Contractor shall prepare (or cause its Subcontractors to prepare) and furnish to the Project Manager the documents listed in Appendix 7 (List of Documents for Approval or Review) to the Contract Agreement for its approval or review as specified and as in accordance with the requirements of GCC Sub-Clause 18.2 (Program of Performance). Any part of the Facilities covered by or related to the documents to be approved by the Project Manager shall be executed only after the Project Manager's approval thereof. GCC Sub-Clauses 20.3.2 through 20.3.7 shall apply to those documents requiring the Project Manager's approval, but not to those furnished to the Project Manager for its review only.
20.3.2	Within twenty one (21) days after receipt by the Project Manager of any document requiring the Project Manager's approval in accordance with GCC Sub-Clause 20.3.1, the Project Manager shall either return one copy thereof to the Contractor with its approval endorsed thereon or shall notify the Contractor in writing of its disapproval thereof and the reasons therefore and the modifications that the Project Manager proposes.
20.3.3	The Project Manager shall not disapprove any document, except on the grounds that the document does not comply with some specified provision of the Contract or that it is contrary to good engineering practice.
20.3.4	If the Project Manager disapproves the document, the Contractor shall modify the document and resubmit it for the Project Manager's approval in accordance with GCC Sub- Clause 20.3.2. If the Project Manager approves the document subject to modification(s), the Contractor shall make the required modification(s), and upon resubmission with the required modifications the document shall be deemed to have been approved. The procedure for submission of the documents by the Contractor and their approval by the Project Manager shall be discussed and finalised with the Contractor.
20.3.5	If any dispute or difference occurs between the Employer and the Contractor in connection with or arising out of the disapproval by the Project Manager of any document and/or any modification(s) thereto that cannot be settled between the parties within a reasonable period, then such dispute or difference may be referred to Expert Settlement Council (ESC) for determination in accordance with GCC Sub-Clause 6.4.1 hereof. If such dispute or difference is referred to ESC, the Project Manager shall give instructions as to whether and if so, how, performance of the Contract is to proceed. The Contractor shall proceed with the Contract in accordance with the Project Manager's instructions, provided that if the ESC upholds the Contractor's view on the dispute and if the Employer has not given notice under GCC Sub-Clause 6.5.1 hereof, then the Contractor shall be reimbursed by the Employer for any additional costs incurred by reason of such instructions and shall be relieved of such responsibility or liability in connection with the dispute and the execution of the instructions as the ESC shall decide, and the Time for Completion shall be extended accordingly.
20.3.6	The Project Manager's approval, with or without modification of the document furnished by the Contractor, shall not relieve the Contractor of any responsibility or liability imposed upon

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	it by any provisions of the Contract except to the extent that any subsequent failure results from modifications required by the Project Manager.
20.3.7	The Contractor shall not depart from any approved document unless the Contractor has first submitted to the Project Manager an amended document and obtained the Project Manager's approval thereof, pursuant to the provisions of this GCC Sub-Clause 20.3. If the Project Manager requests any change in any already approved document and/or in any document based thereon, the provisions of GCC Clause 39 (Change in the Facilities) shall apply to such request.
21	**Procurement**
21.1	**Plant and Equipment** Subject to GCC Sub-Clause 14.2, the Contractor shall manufacture or procure and transport all the Plant and Equipment in an expeditious and orderly manner to the Site.
21.2	**Employer-Supplied Plant, Equipment, and Materials** If Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement provides that the Employer shall furnish any specific items of machinery, equipment or materials to the Contractor, the following provisions shall apply:
21.2.1	The Employer shall, at its own risk and expense, transport each item to the place on or near the Site as agreed upon by the parties and make such item available to the Contractor at the time specified in the program furnished by the Contractor, pursuant to GCC Sub-Clause 18.2 (Program of Performance), unless otherwise mutually agreed.
21.2.2	Upon receipt of such item, the Contractor shall inspect the same visually and notify the Project Manager of any detected shortage, defect or default. The Employer shall immediately remedy any shortage, defect or default, or the Contractor shall, if practicable and possible, at the request of the Employer, remedy such shortage, defect or default at the Employer's cost and expense. After inspection, such item shall fall under the care, custody and control of the Contractor. The provision of this GCC Sub-Clause 21.2.2 shall apply to any item supplied to remedy any such shortage or default or to substitute for any defective item, or shall apply to defective items that have been repaired.
21.2.3	The foregoing responsibilities of the Contractor and its obligations of care, custody and control shall not relieve the Employer of liability for any undetected shortage, defect or default, nor place the Contractor under any liability for any such shortage, defect or default whether under GCC Clause 27 (Defect Liability) or under any other provision of Contract.
21.3	**Transportation**
21.3.1	The Contractor shall at its own risk and expense transport all the Plant and Equipment and the Contractor's Equipment to the Site by the mode of transport that the Contractor judges most suitable under all the circumstances. In case, the Contractor decides to transport the Plant and Equipment and the Contractor's Equipment by road, then such Plant and Equipment and the Contractor's Equipment must

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	necessarily be transported through a registered common carrier as per Carriage by Road Rules 2011 of Central Government of India. **Packing Material** The Contractor shall ensure that all the plant and equipment are suitably packed and protected to prevent damage or deterioration during its transportation to site, handling and storage at site till the time of its installation. The ownership of all such packing material (except empty shipper's containers on which the customs duty has been paid by the Contractor pursuant to GCC Clause 14.2) shall stand transferred to the Employer upon dispatch of the plant and equipment and endorsement of dispatch documents in favour of the Employer. Responsibility of removal of the packing material from site and handover to Employer (except in case of mandatory spares) shall be in the scope of Contractor.
21.3.2	Unless otherwise provided in the Contract, the Contractor shall be entitled to select any safe mode of transport operated by any person to carry the Plant and Equipment and the Contractor's Equipment.
21.3.3	Upon despatch of each shipment of the Plant and Equipment and the Contractor's Equipment, the Contractor shall notify the Employer by telex, cable, facsimile or Electronic Data Interchange (EDI) of the description of the Plant and Equipment and of the Contractor's Equipment, the point and means of dispatch, and the estimated time and point of arrival in the country where the Site is located, if applicable, and at the Site. The Contractor shall furnish the Employer with relevant shipping documents to be agreed upon between the parties.
21.3.4	The Contractor shall be responsible for obtaining, if necessary, approvals from the authorities for transportation of the Plant and Equipment and the Contractor's Equipment to the Site. The Employer shall use its best endeavors in a timely and expeditious manner to assist the Contractor in obtaining such approvals, if requested by the Contractor. The Contractor shall indemnify and hold harmless the Employer from and against any claim for damage to roads, bridges or any other traffic facilities that may be caused by the transport of the Plant and Equipment and the Contractor's Equipment to the Site.
22	**Installation**
22.1	**Setting Out/Supervision/Labour**
22.1.1	Bench Mark: The Contractor shall be responsible for the true and proper setting-out of the Facilities in relation to bench marks, reference marks and lines provided to it in writing by or on behalf of the Employer. If, at any time during the progress of installation of the Facilities, any error shall appear in the position, level or alignment of the Facilities, the Contractor shall forthwith notify the Project Manager of such error and, at its own expense, immediately rectify such error to the reasonable satisfaction of the Project Manager. If such error is based on incorrect data

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	provided in writing by or on behalf of the Employer, the expense of rectifying the same shall be borne by the Employer.
22.1.2	Contractor's Supervision: The Contractor shall give or provide all necessary superintendence during the installation of the Facilities, and the Construction Manager or its deputy shall be constantly on the Site to provide full-time superintendence of the installation. The Contractor shall provide and employ only technical personnel who are skilled and experienced in their respective callings and supervisory staff who are competent to adequately supervise the work at hand.
22.1.3	Labour:
	(a) The Contractor shall provide and employ on the Site in the installation of the Facilities such skilled, semi-skilled and unskilled labour as is necessary for the proper and timely execution of the Contract. The Contractor shall preferably engage skilled/ semiskilled/ unskilled workers from amongst the land oustees of the Project (b) Unless otherwise provided in the Contract, the Contractor shall be responsible for the recruitment, transportation, accommodation and catering of all labour, local or expatriate, required for the execution of the Contract and for all payments in connection therewith.
	(c) The Contractor shall be responsible for obtaining all necessary permit(s) and/or visa(s) from the appropriate authorities for the entry of all labour and personnel to be employed on the Site into the country where the Site is located.
	(d) The Contractor shall at its own expense provide the means of repatriation to all of its and its Subcontractor's personnel employed on the Contract at the Site to their various home countries. It shall also provide suitable temporary maintenance of all such persons from the cessation of their employment on the Contract to the date programmed for their departure. In the event that the Contractor defaults in providing such means of transportation and temporary maintenance, the Employer may provide the same to such personnel and recover the cost of doing so from the Contractor.
	(e) The Contractor shall at all times during the progress of the Contract use its best endeavors to prevent any unlawful, riotous or disorderly conduct or behavior by or amongst its employees and the labour of its Subcontractors.
	(f) The Contractor shall, in all dealings with its labour and the labour of its Subcontractors currently employed on or connected with the Contract, pay due regard to all recognized festivals, official holidays, religious or other customs and all local laws and regulations pertaining to the employment of labour.
22.2	**Contractor's Equipment**
22.2.1	All Contractors' Equipment brought by the Contractor onto the Site shall be deemed to be intended to be used exclusively for the execution of the Contract. The Contractor shall not remove the same from the Site without the Project Manager's consent that such Contractor's Equipment is no longer required for the execution of the Contract.

22.2.2	Unless otherwise specified in the Contract, upon completion of the Facilities, the Contractor shall remove from the Site all Equipment brought by the Contractor onto the Site and any surplus materials remaining thereon.
22.2.3	The Employer will, if requested, use its best endeavour to assist the Contractor in obtaining any local, state or national government permission required by the Contractor for the export of the Contractor's Equipment imported by the Contractor for use in the execution of the Contract that is no longer required for the execution of the Contract.
22.3	**Site Regulations and Safety**
22.3.1	The Employer and the Contractor shall establish Site regulations setting out the rules to be observed in the execution of the Contract at the Site and shall comply therewith. The Contractor shall prepare and submit to the Employer, with a copy to the Project Manager, proposed Site regulations for the Employer's approval, which approval shall not be unreasonably withheld. Such Site regulations shall include, but shall not be limited to, rules in respect of security, safety of the Facilities in line with para 22.3.2, gate control, sanitation, medical care, and fire prevention.
22.3.2	The Employer has formulated Safety Rules for Construction & Erection of Power Plants and is enclosed at Annexure-B to GCC. These Safety Rules lay down the safety requirements for safe execution of project activities, responsibilities of the Contractor, and all concerned involved in Construction and Erection. The Contractor, including his sub-contractors, while executing the Works, shall strictly comply with these Safety rules and statutory requirements (including amendments thereof), as applicable, in respect of safety of personnel, equipment and materials at site area under execution of the Contractor.
22.3.3	In addition to other clauses specified in 'NTPC Safety Rules for Construction and Erection of Power Plants' [as enclosed with GCC], Contractor shall adhere to the following provisions for payment linked to Safety Compliances as specified in Payment Terms: **(i) Safety Personnel** Contractor shall adhere to the requirements of Clause 2.3 (requirement of Safety personnel) of 'NTPC Safety Rules for Construction and Erection of Power Plants' (ii) Personal Protective Equipment & Safety Equipment Contractor shall adhere to the requirements of Clause 4 (Personal Protective Equipment) of 'NTPC Safety Rules for Construction and Erection of Power Plants' and the provisions of the Bidding Documents with regards to number of Safety Equipment/PPEs to be provided by the Contractor. In case Contractor fails to comply with aforesaid requirement, Project Manager /Safety Officer shall issue a warning letter/Non-compliance Memo to the Contractor regarding the same advising him to take corrective action.

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	Project Manager /NTPC Safety Officer shall maintain written record of all such incidents when Warning letter/Noncompliance Memo is issued to the Contractor for not meeting the requirements of Clause 4.0 (Personal Protective Equipment) and the provisions of the Bidding Documents.
	iii) Safety Induction and Training
	Contractor shall adhere to the requirements of imparting Safety training as per Clause 8.0 (Safety Induction and Training) of 'NTPC Safety Rules for Construction and Erection of Power Plants. Contractor shall maintain written record of Safety trainings imparted to its Employees/ workmen for purpose of aforesaid payment. These records shall be available for review of Project Manager /NTPC Safety Officer all the time.
	iv) Medical and First Aid Amenities
	Contractor shall adhere to the requirements of Clause 13 (Medical and First Aid Amenities) of 'NTPC Safety Rules for Construction and Erection of Power Plants. NTPC Safety Officer/ Project Manager shall maintain written record of incidences when requisite Medical and first aid amenities as per Clause 13 of Safety Rules were not available for purpose of aforesaid payment.
	v) Compliance to Work Permit System
	Contractor shall adhere to the requirements of Clause 17 (Work Permit System) of 'NTPC Safety Rules for Construction and Erection of Power Plants'.
	In case Contractor fails to obtain work permit or fails to comply to any requirements of aforesaid Work permit system, he will be issued a warning letter/Non-compliance Memo by Project Manager /Safety Officer of NTPC regarding the same advising him to take corrective action.
	NTPC Safety Officer / Project Manager shall maintain written record of all such incidents when Warning letter / Non-compliance Memo is issued to Contractor for not complying with the requirements of Work Permit System as per Clause 17 of Safety Rules for purpose of aforesaid payment.
22.4	**Opportunities for Other Contractors**
22.4.1	The Contractor shall, upon written request from the Employer or the Project Manager, give all reasonable opportunities for carrying out the work to any other contractors employed by the Employer on or near the Site.
22.4.2	If the Contractor, upon written request from the Employer or the Project Manager, makes available to other contractors any roads or ways the maintenance for which the Contractor is responsible, permits the use by such other contractors of the Contractor's Equipment, or provides any other service of whatsoever nature for such other contractors, the Employer shall fully compensate the Contractor for any loss or damage caused or occasioned by such

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	other contractors in respect of any such use or service, and shall pay to the Contractor reasonable remuneration for the use of such equipment or the provision of such services.
22.4.3	The Contractor shall also so arrange to perform its work as to minimize, to the extent possible, interference with the work of other contractors. The Project Manager shall determine the resolution of any difference or conflict that may arise between the Contractor and other contractors and the workers of the Employer in regard to their work.
22.4.4	The Contractor shall notify the Project Manager promptly of any defects in the other Contractors' work that come to its notice, and that could affect the Contractor's work. The Project Manager shall determine the corrective measures, if any, required to rectify the situation after inspection of the Facilities. Decisions made by the Project Manager shall be binding on the Contractor.
22.5	**Emergency Work**
	If, by reason of an emergency arising in connection with and during the execution of the Contract, any protective or remedial work is necessary as a matter of urgency to prevent damage to the Facilities, the Contractor shall immediately carry out such work.
	If the Contractor is unable or unwilling to do such work immediately, the Employer may do or cause such work to be done as the Employer may determine is necessary in order to prevent damage to the Facilities. In such event the Employer shall, as soon as practicable after the occurrence of any such emergency, notify the Contractor in writing of such emergency, the work done and the reasons therefor. If the work done or caused to be done by the Employer is work that the Contractor was liable to do at its own expense under the Contract, the reasonable costs incurred by the Employer in connection therewith shall be paid by the Contractor to the Employer. Otherwise, the cost of such remedial work shall be borne by the Employer.
22.6	**Site Clearance**
22.6.1	Site Clearance in Course of Performance: In the course of carrying out the Contract, the Contractor shall keep the Site reasonably free from all unnecessary obstruction, store or remove any surplus materials, clear away any wreckage, rubbish or temporary works from the Site, and remove any Contractor's Equipment no longer required for execution of the Contract.
22.6.2	Clearance of Site after Completion: After Completion of all parts of the Facilities, the Contractor shall clear away and remove all wreckage, rubbish and debris of any kind from the Site, and shall leave the Site and Facilities clean and safe.
22.6.3	**Disposal of Scrap**
	The Contractor shall with the agreement of the Employer promptly remove from the site any 'Scrap' generated during performance of any activities at site in pursuance of the Contract. The term 'Scrap' shall refer to scrap/waste/remnants arising out of the fabrication of structural steel work and piping work at the project site in the course of execution of the

	contract and shall also include any wastage of cables during the termination process while installing the cables. The ownership of such Scrap shall vest with the Contractor except in cases where the items have been issued by the Employer from its stores for their installation only without any adjustment to the Contract Price. The removal of scrap shall be subject to the Contractor producing the necessary clearance from the relevant authorities (GST, Custom,etc.), if required by the law, in respect of disposal of the scrap. The liability for the payment of the applicable taxes/duties shall be that of the Contractor. The Contractor shall also indemnify to keep the Employer harmless from any act of omission or negligence on the part of the Contractor in following the statutory requirements with regard to removal/disposal of scrap. The **Indemnity-cum-Undertaking Agreement** shall be furnished by Contractor as per proforma enclosed in Section-VII (Forms and Procedure). Further, in case the laws require the Employer to take prior permission of the relevant Authorities before handing over the scrap to the Contractor, the same shall be obtained by the Contractor on behalf of the Employer.
22.7	**Watching and Lighting**
	The Contractor shall provide and maintain at its own expense all lighting, fencing, and watching when and where necessary for the proper execution and the protection of the Facilities, or for the safety of the owners and occupiers of adjacent property and for the safety of the public.
22.8	**Shift Work**
22.8.1	To achieve the required rate of progress in order to complete the Facilities within the Time for Completion, the Contractor may carry on the work, round the clock, in multiple shifts per day, as may be necessary. The Contractor shall however be responsible to comply with all applicable laws in this regard.
22.8.2	No additional payment will be made on account of round the clock working in multiple shifts.
22.8.3	Wherever the work is carried out at night adequate lighting of working areas and access routes for pedestrians or vehicles shall be provided by the Contractor at his cost. Sufficient notice should be given by the Contractor to the Employer regarding the details of works in shifts so that necessary supervision could be provided.
23	**Test and Inspection**
23.1	The Contractor shall at its own expense carry out at the place of manufacture and/or on the Site all such tests and/or inspections of the Plant and Equipment and any part of the Facilities as are specified in the Contract.
23.2	The Employer and the Project Manager or their designated representatives shall be entitled to attend the aforesaid test and/or inspection, provided that the Employer shall bear all costs and expenses incurred in connection with such attendance including, but not limited to, all travelling and board and lodging expenses.

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23.3	Whenever the Contractor is ready to carry out any such test and/or inspection, the Contractor shall give a reasonable advance notice of such test and/or inspection and of the place and time thereof to the Project Manager. The Contractor shall obtain from any relevant third party or manufacturer any necessary permission or consent to enable the Employer and the Project Manager (or their designated representatives) to attend the test and/or inspection.
23.4	The Contractor shall provide the Project Manager with a certified report of the results of any such test and/or inspection. If the Employer or Project Manager (or their designated representatives) fails to attend the test and/or inspection, or if it is agreed between the parties that such persons shall not do so, then the Contractor may proceed with the test and/or inspection in the absence of such persons, and may provide the Project Manager with a certified report of the results thereof.
23.5	The Project Manager may require the Contractor to carry out any test and/or inspection not required by the Contract, where the purpose of these tests/ inspection is to verify compliance with the Technical Specifications and are feasible without creating a risk of damage to the Works, provided that the Contractor’s reasonable costs and expenses incurred in the carrying out of such test and/or inspection shall be added to the Contract Price. Further, if such test and/or inspection impedes the progress of work on the Facilities and/or the Contractor’s performance of its other obligations under the Contract, due allowance will be made in respect of the Time for Completion and the other obligations so affected.
23.6	If any Plant and Equipment or any part of the Facilities fails to pass any test and/or inspection, the Contractor shall either rectify or replace such Plant and Equipment or part of the Facilities and shall repeat the test and/or inspection upon giving a notice under GCC Sub-Clause 23.3.
23.7	If any dispute or difference of opinion shall arise between the parties in connection with or arising out of the test and/or inspection of the Plant and Equipment or part of the Facilities that cannot be settled between the parties within a reasonable period of time, it may be referred to the Expert Settlement Council (ESC) for determination in accordance with GCC Sub-Clause 6.4.1.
23.8	The Contractor shall afford the Employer and the Project Manager, at the Employer’s expense, access at any reasonable time to any place where the Plant and Equipment are being manufactured or the Facilities are being installed, in order to inspect the progress and the manner of manufacture or installation, provided that the Project Manager shall give the Contractor a reasonable prior notice.
23.9	The Contractor agrees that neither the execution of a test and/or inspection of Plant and Equipment or any part of the Facilities, nor the attendance by the Employer or the Project Manager, nor the issue of any test certificate pursuant to GCC Sub-Clause 23.4, shall release the Contractor from any other responsibilities under the Contract.
23.10	No part of the Facilities or foundations shall be covered up on the Site without the Contractor carrying out any test and/or inspection required under the Contract. The Contractor shall

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	give a reasonable notice to the Project Manager whenever any such part of the Facilities or foundations are ready or about to be ready for test and/or inspection; such test and/or inspection and notice thereof shall be subject to the requirements of the Contract.
23.11	The Contractor shall uncover any part of the Facilities or foundations, or shall make openings in or through the same as the Project Manager may from time to time require at the Site, and shall reinstate and make good such part or parts. If any part of the Facilities or foundations have been covered up at the Site after compliance with the requirement of GCC Sub-Clause 23.10 and are found to be executed in accordance with the Contract, the expenses of uncovering, making openings in or through, reinstating, and making good the same shall be borne by the Employer, and the Time for Completion shall be reasonably adjusted to the extent that the Contractor has thereby been delayed or impeded in the performance of any of its obligations under the Contract.
24	**Completion of the Facilities**
24.1	As soon as installation of the Facilities or any part thereof has, in the opinion of the Contractor, been completed as specified in the Technical Specifications, excluding minor items not materially affecting the operation or safety of the Facilities, the Contractor shall so notify the Employer in writing.
24.2	Within seven (7) days after receipt of the notice from the Contractor under GCC Sub-Clause 24.1, the Employer shall supply the operating and maintenance personnel and the raw materials, utilities, lubricants, chemicals, catalysts, facilities, services as specified in Appendix-6 (Scope of work and supply by the Employer) to the Contract Agreement, required for Pre-commissioning of the Facilities or any part thereof.
24.3	As soon as reasonably practicable after the operating and maintenance personnel have been supplied by the Employer and the raw materials, utilities, lubricants, chemicals, catalysts, facilities, services and other matters, if so specified in Appendix 6 (Scope of Works and Supply by the Employer) to Contract Agreement in accordance with GCC Sub-Clause 24.2, the Contractor shall commence Pre-commissioning of the Facilities or the relevant part thereof in preparation for Commissioning.
24.4	As soon as all works in respect of Pre-commissioning are completed and, in the opinion of the Contractor, the Facilities or any part thereof is ready for Commissioning, the Contractor shall commence Commissioning as per procedures stipulated in Technical Specifications, and as soon as Commissioning is satisfactorily completed, the Contractor shall so notify the Project Manager in writing.
24.5	The Project Manager shall, within fourteen (14) days after receipt of the Contractor's notice under GCC Sub-Clause 24.4, either issue a Completion Certificate in the form specified in the Forms and Procedures section in the bidding documents, stating that the Facilities or that part thereof have reached Completion as at the date of the Contractor's notice under GCC Sub-Clause 24.4, or notify the Contractor in writing of any defects and/or deficiencies.

	If the Project Manager notifies the Contractor of any defects and/or deficiencies, the Contractor shall then correct such defects and/or deficiencies and shall repeat the procedure described in GCC Sub- Clause 24.4. If the Project Manager is satisfied that the Facilities or that part thereof have reached Completion, the Project Manager shall, within seven (7) days after receipt of the Contractor's repeated notice, issue a Completion Certificate stating that the Facilities or that part thereof have reached Completion as at the date of the Contractor's repeated notice. If the Project Manager is not so satisfied, then it shall notify the Contractor in writing of any defects and/or deficiencies within seven (7) days after receipt of the Contractor's repeated notice, and the above procedure shall be repeated.
24.6	If the Project Manager fails to issue the Completion Certificate and fails to inform the Contractor of any defects and/or deficiencies within fourteen (14) days after receipt of the Contractor's notice under GCC Sub-Clause 24.4 or within seven (7) days after receipt of the Contractor's repeated notice under GCC Sub-Clause 24.5, or if the Employer makes use of the Facilities or part thereof, then the Facilities or that part thereof shall be deemed to have reached Completion as of the date of the Contractor's notice or repeated notice, or as of the Employer's use of the Facilities, as the case may be.
24.7	As soon as possible after Completion, the Contractor shall complete all outstanding minor items so that the Facilities are fully in accordance with the requirements of the Contract, failing which the Employer will undertake such completion and deduct the costs thereof from any monies owing to the Contractor.
24.8	Upon Completion, the Employer shall be responsible for the care and custody of the Facilities or the relevant part thereof, together with the risk of loss or damage thereto, and shall thereafter take over the Facilities or the relevant part thereof. However, in case Operation & Maintenance (O&M) of the Facilities or any part thereof for an initial period is in the scope of Contractor, the Contractor shall be responsible for the care and custody of the Facilities or the relevant part thereof, together with the risk of loss or damage thereto up to the completion of O&M period and the final take-over by the Employer shall take place only after completion of O&M period. On completion of O&M period, If the Employer is satisfied with the completion of O&M of the Facilities or relevant part thereof as per the provisions of the Contract, the Employer shall issue to the Contractor a Taking Over Certificate as a proof of final acceptance of the entire Facilities. Such certificate shall not relieve the Contractor of any of its obligation which otherwise survive, by the terms and conditions of the Contract after issuance of such certificate.
25	**Commissioning, Guarantee Tests and Operational Acceptance**
25.1	**Commissioning:**
25.1.1	Commissioning of the Facilities or any part thereof shall be completed by the Contractor as per procedures detailed in the Technical Specifications.

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	The Employer shall, unless otherwise specified in Appendix 6 (Scope of Works and Supply by the Employer)/ Technical Specifications, supply the operating and maintenance personnel and all raw materials, utilities, lubricants, chemicals, catalysts, facilities, services and other matters required for Commissioning of the Facilities.
25.2	**Guarantee Test:**
25.2.1	The Guarantee Test (and repeats thereof) shall be conducted by the Contractor as specified in the Technical Specifications or the relevant part thereof to ascertain whether the Facilities or the relevant part can attain the Functional Guarantees specified in the Contract Documents. The Contractor's and Project Manager's advisory personnel shall attend the Guarantee Test. The Employer shall promptly provide the Contractor with such information as the Contractor may reasonably require in relation to the conduct and results of the Guarantee Test (and any repeats thereof).
25.2.2	If for reasons solely attributable to the Employer, the Guarantee Test of the Facilities or the relevant part thereof cannot be successfully completed within the period of 3 months from the date of Completion of respective facility, the payment towards Successful Completion of Guarantee Test, shall be released to the contractor against Bank Guarantee. Such Bank Guarantee shall have initial validity of one (1) year. The Bank Guarantee shall be extended for any subsequent period, if required, such that the same remains valid till the successful Completion of Guarantee Test.
25.3	**Operational Acceptance**
25.3.1	Subject to GCC Sub-Clause 25.4 (Partial Acceptance) below, Operational Acceptance shall occur in respect of the Facilities or any part thereof when any minor items mentioned in GCC Sub- Clause 24.7 hereof relevant to the Facilities or that part thereof have been completed and (a) the Guarantee Test has been successfully completed and the Functional Guarantees are met; or (b) the Contractor has paid the liquidated damages specified in GCC Sub-Clause 28.3 hereof; and
25.3.2	At any time after any of the events set out in GCC Sub-Clause 25.3.1 have occurred, the Contractor may give a notice to the Project Manager requesting the issue of an Operational Acceptance Certificate in the form provided in the Bidding Documents or in another form acceptable to the Employer in respect of the Facilities or the part thereof specified in such notice as at the date of such notice.
25.3.3	The Project Manager shall, after consultation with the Employer, and within forty-five (45) days after receipt of the Contractor's notice, issue an Operational Acceptance Certificate.
25.3.4	If within forty five (45) days after receipt of the Contractor's notice, the Project Manager fails to issue the Operational Acceptance Certificate or fails to inform the Contractor in writing of

	the justifiable reasons why the Project Manager has not issued the Operational Acceptance Certificate, the Facilities or the relevant part thereof shall be deemed to have been accepted as at the date of the Contractor's said notice.
25.4	**Partial Acceptance**
25.4.1	If the Contract specifies that Commissioning, Completion and Guarantee Tests shall be carried out in respect of parts of the Facilities, the provisions relating to Commissioning Completion and the Guarantee Test shall apply to each such part of the Facilities individually, and the Operational Acceptance Certificate shall be issued accordingly for each such part of the Facilities.
25.4.2	If a part of the Facilities comprises facilities such as buildings, for which no Commissioning or Guarantee Test is required, then the Project Manager shall issue the Operational Acceptance Certificate for such facility when it attains Completion, provided that the Contractor shall thereafter complete any outstanding minor items that are listed in the Operational Acceptance Certificate.
F.	**GUARANTEES AND LIABILITIES**
26	**Completion Time Guarantee**
26.1	The Contractor guarantees that it shall attain Completion of the Facilities (or a part for which a separate time for completion is specified in the SCC) within the Time for Completion specified in the SCC pursuant to GCC Sub-Clause 8.2, or within such extended time to which the Contractor shall be entitled under GCC Clause 40 (Extension of Time for Completion) hereof.
26.2	If the Contractor fails to attain Completion of the Facilities or any part thereof within the Time for Completion or any extension thereof under GCC Clause 40 (Extension of Time for Completion), the Contractor shall pay to the Employer liquidated damages in the amount computed at the rates specified in the SCC. The aggregate amount of such liquidated damages shall in no event exceed the amount specified as "Maximum" in the SCC. Once the "Maximum" is reached, the Employer may consider termination of the Contract, pursuant to GCC Sub-Clause 42.2.2. Such payment shall completely satisfy the Contractor's obligation to attain Completion of the Facilities or the relevant part thereof within the Time for Completion or any extension thereof under GCC Clause 40 (Extension of Time for Completion). The Contractor shall have no further liability whatsoever to the Employer in respect thereof. However, the payment of liquidated damages shall not in any way relieve the Contractor from any of its obligations to complete the Facilities or from any other obligations and liabilities of the Contractor under the Contract. Save for liquidated damages payable under this GCC Sub-Clause 26.2, the failure by the Contractor to attain any milestone or other act, matter or thing by any date specified in Appendix 4 (Time Schedule) to the Contract Agreement and/or other program of work

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	prepared pursuant to GCC Clause 18 (Program of Performance) shall not render the Contractor liable for any loss or damage thereby suffered by the Employer.
26.3	No bonus shall be given for earlier completion of the facilities as part thereof.
27	**Defect Liability**
27.1	The Contractor warrants that the Facilities or any part thereof shall be free from defects in the design, engineering, materials and workmanship of the Plant and Equipment supplied and of the work executed.
27.2	The Defect Liability Period shall be eighteen (18) months from the date of Completion of the Facilities (or any part thereof) or twelve (12) months from the date of Operational Acceptance of the Facilities (or any part thereof), whichever first occurs, unless specified otherwise in the SCC. If during the Defect Liability Period any defect should be found in the design, engineering, materials and workmanship of the Plant and Equipment supplied or of the work executed by the Contractor, the Contractor shall promptly, in consultation and agreement with the Employer regarding appropriate remedying of the defects, and at its cost, repair, replace or otherwise make good (as the Contractor shall, at its discretion, determine) such defect as well as any damage to the Facilities caused by such defect. The Contractor shall not be responsible for the repair, replacement or making good of any defect or of any damage to the Facilities arising out of or resulting from any of the following causes: (a) improper operation or maintenance of the Facilities by the Employer (b) operation of the Facilities outside specifications provided in the Contract (c) normal wear and tear
27.3	The Contractor's obligations under this GCC Clause 27 shall not apply to (a) any materials that are supplied by the Employer under GCC Sub-Clause 21.2 (Employer-Supplied Plant, Equipment and Materials), are normally consumed in operation, or have a normal life shorter than the Defect Liability Period stated herein (b) any designs, specifications or other data designed, supplied or specified by or on behalf of the Employer or any matters for which the Contractor has disclaimed responsibility herein (c) any other materials supplied or any other work executed by or on behalf of the Employer, except for the work executed by the Employer under GCC Sub-Clause 27.7.
27.4	The Employer shall give the Contractor a notice stating the nature of any such defect together with all available evidence thereof, promptly following the discovery thereof. The Employer shall afford all reasonable opportunity for the Contractor to inspect any such defect.
27.5	The Employer shall afford the Contractor all necessary access to the Facilities and the Site to enable the Contractor to perform its obligations under this GCC Clause 27.

	The Contractor may, with the consent of the Employer, remove from the Site any Plant and Equipment or any part of the Facilities that are defective, if the nature of the defect, and/or any damage to the Facilities caused by the defect is such that repairs cannot be expeditiously carried out at the Site.
27.6	If the repair, replacement or making good is of such a character that it may affect the efficiency of the Facilities or any part thereof, the Employer may give to the Contractor a notice requiring that tests of the defective part of the Facilities shall be made by the Contractor immediately upon completion of such remedial work, whereupon the Contractor shall carry out such tests.
	If such part fails the tests, the Contractor shall carry out further repair, replacement or making good (as the case may be) until that part of the Facilities passes such tests. The tests in character shall in any case be not less than what has already been agreed by the Employer and the Contractor for the original equipment/part of the Facilities.
27.7	If the Contractor fails to commence the work necessary to remedy such defect or any damage to the Facilities caused by such defect within a reasonable time (which shall in no event be considered to be less than fifteen (15) days), the Employer may, following notice to the Contractor, proceed to do such work, and the reasonable costs incurred by the Employer in connection therewith shall be paid to the Employer by the Contractor or may be deducted by the Employer from any monies due to the Contractor or claimed under the Performance Securities.
27.8	If the Facilities or any part thereof cannot be used by reason of such defect and/or making good of such defect, the Defect Liability Period of the Facilities or such part, as the case may be, shall be extended by a period equal to the period during which the Facilities or such part cannot be used by the Employer because of any of the aforesaid reasons. Upon correction of the defects in the Facilities or any part thereof by repair/replacement, such repair/replacement shall have the Defect Liability Period extended by a period of twelve (12) month from the time such replacement/repair of the Facilities or any part thereof.
27.8.1	At the end of the Defect Liability Period, the contractor liability ceases except for latent defects. The contractor’s liability for latent defects warranty shall be limited to a period of five (5) years from the end of Defect Liability Period of the respective plant and equipment including spares. For the purpose of this clause, the latent defects shall be the defects inherently lying within the material or arising out of design deficiency which do not manifest themselves during the Defect Liability Period in this GCC clause 27, but later.
	In case, there is any dispute between Employer and Contractor regarding latent defects, a third party as mutually agreed upon by the Employer and the Contractor shall be engaged by the Employer for settling the dispute.
	The third party, so engaged by the Employer, shall be paid fee plus reasonable expenditures incurred in the execution of its duties as mentioned above. These costs shall be initially paid by the Employer. In case of latent defect being proved, such costs shall be recoverable from the Contractor and the Contractor shall bear and reimburse such costs to the Employer.

	If the dispute regarding latent defects cannot be settled as above, then the dispute shall be settled as per provision of GCC clause 6 (Settlement of Disputes).
27.9	Except as provided in GCC Clauses 27 and 33 (Loss of or Damage to Property / Accident or Injury to Workers /Indemnification), the Contractor shall be under no liability whatsoever and howsoever arising, and whether under the Contract or at law, in respect of defects in the Facilities or any part thereof, the Plant and Equipment, design or engineering or work executed that appear after Completion of the Facilities or any part thereof, except where such defects are the result of the gross negligence, fraud, criminal or wilful action of the Contractor.
27.10	In addition, the Contractor shall also provide an extended warranty for any such component of the Facilities and during the period of time as may be specified in the SCC. Such obligation shall be in addition to the defect liability specified under GCC Sub-Clause 27.2.
28	**Functional Guarantees**
28.1	The Contractor guarantees that during the Guarantee Test, the Facilities and all parts thereof shall attain the Functional Guarantees specified under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification), subject to and upon the conditions therein specified.
28.2	If, for reasons attributable to the Contractor, the guaranteed level of the Functional Guarantees specified under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification) are not met either in whole or in part, the Contractor shall, within a mutually agreed time, at its cost and expense make such changes, modifications and/or additions to the Plant or any part thereof as may be necessary to meet such Guarantees. The Contractor shall notify the Employer upon completion of the necessary changes, modifications and/or additions, and shall seek the Employer’s consent to repeat the Guarantee Test. If the guaranteed level of specified Functional Guarantees parameter(s) are still not met under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification), then the Employer will accept the equipment/system/plant after levy of liquidated damages in accordance with the provisions specified under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification). However, if the level of the specified Functional Guarantee parameters, as demonstrated even during repeat of the Guarantee Test(s), are outside the acceptable shortfall limit as specified under "Functional Guarantees and Liquidated Damages", Part-A of Section-VI (Technical Specification), the Employer may at its option, either (a) Accept the equipment after levy of liquidated damages in accordance with the provisions specified under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification) to the Contract Agreement. Or (b) Reject the Equipment and recover the payments already made,

Or

(c) Terminate the Contract pursuant to GCC Sub-Clause 42.2.2 and recover the payments already made,

28.3 In case the Employer exercises its option to accept the equipment after levy of liquidated damages, the payment of liquidated damages under GCC Sub-Clause 28.2, up to the limitation of liability specified under 'Functional Guarantees and Liquidated Damages', Part-A of Section-VI (Technical Specification) to the Contract Agreement, shall completely satisfy the Contractor’s guarantees under GCC Sub- Clause 28.2, and the Contractor shall have no further liability whatsoever to the Employer in respect thereof. Upon the payment of such liquidated damages by the Contractor, the Project Manager shall issue the Operational Acceptance Certificate for the Facilities or any part thereof in respect of which the liquidated damages have been so paid.

29 Patent Indemnity

29.1 The Contractor shall, subject to the Employer’s compliance with GCC Sub-Clause 29.2, indemnify and hold harmless the Employer and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of whatsoever nature, including attorney’s fees and expenses, which the Employer may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright or other intellectual property right registered or otherwise existing at the date of the Contract by reason of: (a) the installation of the Facilities by the Contractor or the use of the Facilities in the country where the Site is located; and (b) the sale of the products produced by the Facilities in any country.

Such indemnity shall not cover any use of the Facilities or any part thereof other than for the purpose indicated by or to be reasonably inferred from the Contract, any infringement resulting from the use of the Facilities or any part thereof, or any products produced thereby in association or combination with any other equipment, plant or materials not supplied by the Contractor, pursuant to the Contract Agreement.

29.2 If any proceedings are brought or any claim is made against the Employer arising out of the matters referred to in GCC Sub-Clause 29.1, the Employer shall promptly give the Contractor a notice thereof, and the Contractor may at its own expense and in the Employer’s name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim.

If the Contractor fails to notify the Employer within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Employer shall be free to conduct the same on its own behalf. Unless the Contractor has so failed to notify the Employer within the twenty-eight (28) day period, the Employer shall make no admission that may be prejudicial to the defense of any such proceedings or claim.

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	The Employer shall, at the Contractor's request, afford all available assistance to the Contractor in conducting such proceedings or claim, and shall be reimbursed by the Contractor for all reasonable expenses incurred in so doing.
29.3	The Employer shall indemnify and hold harmless the Contractor and its employees, officers and Subcontractors from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of whatsoever nature, including attorney's fees and expenses, which the Contractor may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright or other intellectual property right registered or otherwise existing at the date of the Contract arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided or designed by or on behalf of the Employer.
30	**Limitation of Liability**
30.1	Except in cases of criminal negligence or willful misconduct, (a) neither Party shall be liable to the other Party, whether in contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, which may be suffered by the other Party in connection with the Contract, provided that this exclusion shall not apply to any obligation of the Contractor to pay liquidated damages to the Employer and (b) the aggregate liability of the Contractor to the Employer, whether under the Contract, in tort or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to any obligation of the Contractor to indemnify the Employer with respect to patent infringement. (c) the aggregate liability of the Employer to the Contractor except for GCC sub-clause 29.3, whether under the Contract, in tort or otherwise, at any point of time during the execution/performance of the Contract, shall not exceed the 'total Contract Price less payments already released to the Contractor'.
G.	**RISK DISTRIBUTION**
31	**Transfer of Ownership**
31.1	Ownership of the Plant and Equipment (including spare parts) procured in the country where the Site is located shall be transferred to the Employer when the Plant and Equipment are loaded on to the mode of transport to be used to convey the Plant and Equipment from the works to the site and upon endorsement of the despatch documents in favour of the Employer.
31.2	Ownership of the Contractor's Equipment used by the Contractor and its Subcontractors in connection with the Contract shall remain with the Contractor or its Subcontractors.

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31.3	Ownership of any Plant and Equipment in excess of the requirements for the Facilities shall revert to the Contractor upon Completion of the Facilities or at such earlier time when the Employer and the Contractor agree that the Plant and Equipment in question are no longer required for the Facilities, provided quantity of any Plant and Equipment specifically stipulated in the Contract shall be the property of the Employer whether or not incorporated in the Facilities.
31.4	Ownership of any Plant and Equipment in excess of the requirements for the Facilities (i.e. surplus material) shall revert to the Contractor upon Completion of the Facilities and Guarantee Test or at such earlier time when the Employer and the Contractor agree that the Plant and Equipment in question are no longer required for the Facilities, provided quantity of any Plant and Equipment specifically stipulated in the Contract shall be the property of the Employer whether or not incorporated in the Facilities. The Contractor shall remove from the site such surplus material brought by him in pursuance of the Contract, subject to the Contractor producing the necessary clearance from the relevant authorities (Customs, Excise etc.), if required by law, in respect of re-export or disposal of the surplus material locally. The liability for the payment of the applicable taxes/duties, if any, on the surplus material so re- exported and/or disposed locally shall be that of the Contractor. The Contractor shall also indemnify to keep the Employer harmless from any act of omission or negligence on the part of the Contractor in following the statutory requirements with regard to removal/disposal of surplus material. The **Indemnity-cum-Undertaking Agreement** shall be furnished by contractor as per proforma enclosed in Section-VII (Part 3 of 3 - Forms and Procedures). Further, in case the laws require the Employer to take prior permission of the relevant Authorities before handing over the surplus material to the Contractor, the same shall be obtained by the Contractor on behalf of the Employer.
31.5	Notwithstanding the transfer of ownership of the Plant and Equipment, the responsibility for care and custody thereof together with the risk of loss or damage thereto shall remain with the Contractor pursuant to GCC Clause 32 (Care of Facilities) hereof until Completion of the Facilities or the part thereof in which such Plant and Equipment are incorporated.
31.6	In case of two or more Contracts entered into between the Employer and the Contractor as per GCC Sub-Clause 3.6 or where the Employer hands over his equipment/plant to the Contractor for executing the Contract, then the Contractor shall at the time of taking over the Equipment/ plant furnish Trust Receipt for Plant, Equipment and Materials and also execute an Indemnity Bond in favour of the Employer in the form acceptable to Employer for keeping the equipment in safe custody and to utilise the same exclusively for the purpose of the said Contract as well as for safe Operation and Maintenance of the Plant as per Contract Scope, as the case may be. Proforma for the Trust Receipt and Indemnity Bond is enclosed under Section-VII (Forms and Procedures). The Employer shall also issue a separate Authorisation Letter to the Contractor to enable him to take physical delivery of plant, equipment and materials from the Employer as per proforma enclosed under Section-VII (Forms and Procedures).
32	**Care of Facilities**

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32.1	The Contractor shall be responsible for the care and custody of the Facilities or any part thereof until the date of Completion of Facilities or, where the Contract provides for Completion of the Facilities in parts, until the date of Completion of Facilities, and shall make good at its own cost any loss or damage that may occur to the Facilities or the relevant part thereof from any cause whatsoever during such period. The Contractor shall also be responsible for any loss or damage to the Facilities caused by the Contractor or its Subcontractors in the course of any work carried out, pursuant to GCC Clause 27 (Defect Liability). Notwithstanding the foregoing, the Contractor shall not be liable for any loss or damage to the Facilities or that part thereof caused by reason of any of the matters specified or referred to in paragraphs (a), (b) and (c) of GCC Sub-Clauses 32.2 and 38.1.
32.2	If any loss or damage occurs to the Facilities or any part thereof or to the Contractor's temporary facilities by reason of (a) (in so far as they relate to the country where the Site is located) nuclear reaction, nuclear radiation, radioactive contamination, pressure wave caused by aircraft or other aerial objects, or any other occurrences that an experienced contractor could not reasonably foresee, or if reasonably foreseeable could not reasonably make provision for or insure against, insofar as such risks are not normally insurable on the insurance market and are mentioned in the general exclusions of the policy of insurance, including War Risks and Political Risks, taken out under GCC Clause 34 (Insurance) hereof (b) any use or occupation by the Employer or any third party (other than a Subcontractor) authorized by the Employer of any part of the Facilities (c) any use of or reliance upon any design, data or specification provided or designated by or on behalf of the Employer, or any such matter for which the Contractor has disclaimed responsibility herein. The Employer shall pay to the Contractor all sums payable in respect of the Facilities executed, notwithstanding that the same be lost, destroyed or damaged, and will pay to the Contractor the replacement value of all temporary facilities and all parts thereof lost, destroyed or damaged. If the Employer requests the Contractor in writing to make good any loss or damage to the Facilities thereby occasioned, the Contractor shall make good the same at the cost of the Employer in accordance with GCC Clause 39 (Change in the Facilities). If the Employer does not request the Contractor in writing to make good any loss or damage to the Facilities thereby occasioned, the Employer shall either request a change in accordance with GCC Clause 39 (Change in the Facilities), excluding the performance of that part of the Facilities thereby lost, destroyed or damaged, or, where the loss or damage affects a substantial part of the Facilities, the Employer shall terminate the Contract pursuant to GCC Sub-Clause 42.1 (Termination for Employer's Convenience) hereof, except that the Contractor shall have no entitlement to profit under paragraph (e) of GCC Sub-Clause 42.1.3 in respect of any unexecuted Facilities as at the date of termination.
32.3	The Contractor shall be liable for any loss of or damage to any Contractor's Equipment, or any other property of the Contractor used or intended to be used for purposes of the Facilities, except (i) as mentioned in GCC Sub-Clause 32.2 (with respect to the Contractor's temporary facilities), and (ii) where such loss or damage arises by reason of any of the matters specified in GCC Sub-Clauses 32.2(b) and (c) and 38.1.

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32.4	With respect to any loss or damage caused to the Facilities or any part thereof or to the Contractor's Equipment by reason of any of the matters specified in GCC Sub-Clause 38.1, the provisions of GCC Sub-Clause 38.3 shall apply.
33	**Loss of or Damage to Property; Accident or Injury to Workers; Indemnification**
33.1	Subject to GCC Sub-Clause 33.3, the Contractor shall indemnify and hold harmless the Employer and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of whatsoever nature, including attorney's fees and expenses, in respect of the death or injury of any person or loss of or damage to any property (other than the Facilities whether accepted or not), arising in connection with the supply and installation of the Facilities and Operation and Maintenance of the Plant as per Contract Scope and by reason of the negligence of the Contractor or its Subcontractors, or their employees, officers or agents, except any injury, death or property damage caused by the negligence of the Employer, its contractors, employees, officers or agents.
33.2	If any proceedings are brought or any claim is made against the Employer that might subject the Contractor to liability under GCC Sub- Clause 33.1, the Employer shall promptly give the Contractor a notice thereof and the Contractor may at its own expense and in the Employer's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim. If the Contractor fails to notify the Employer within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Employer shall be free to conduct the same on its own behalf. Unless the Contractor has so failed to notify the Employer within the twenty-eight (28) day period, the Employer shall make no admission that may be prejudicial to the defense of any such proceedings or claim. The Employer shall, at the Contractor's request, afford all available assistance to the Contractor in conducting such proceedings or claim, and shall be reimbursed by the Contractor for all reasonable expenses incurred in so doing.
33.3	The Employer shall indemnify and hold harmless the Contractor and its employees, officers and Subcontractors from any liability for loss of or damage to property of the Employer, other than the Facilities not yet taken over, that is caused by fire, explosion or any other perils, in excess of the amount recoverable from insurances procured under GCC Clause 34 (Insurances), provided that such fire, explosion or other perils were not caused by any act or failure of the Contractor.
33.4	The party entitled to the benefit of an indemnity under this GCC Clause 33 shall take all reasonable measures to mitigate any loss or damage which has occurred. If the party fails to take such measures, the other party's liabilities shall be correspondingly reduced.
34	**Insurance**
34.1	To the extent specified in Appendix 3 (Insurance Requirements) to the Contract Agreement, the Contractor shall at its expense take out and maintain in effect, or cause to be taken out

and maintained in effect, during the performance of the Contract, the insurances set forth below in the sums and with the deductibles and other conditions specified in the said Appendix. The identity of the insurers and the form of the policies shall be subject to the approval of the Employer, who should not unreasonably withhold such approval.

(a) **Cargo Insurance During Transport**
Covering loss or damage occurring while in transit from the Contractor's or Subcontractor's works or stores until arrival at the Site, to the Plant and Equipment (including spare parts therefor) and to the Contractor's Equipment.

(b) **Installation All Risks Insurance**
Covering physical loss or damage to the Facilities at the Site, occurring prior to Completion of the Facilities, with extended maintenance coverage for the Contractor's liability in respect of any loss or damage occurring during the Defect Liability Period while the Contractor is on the Site for the purpose of performing its obligations during the Defect Liability Period.

(c) **Third Party Liability Insurance**
Covering bodily injury or death suffered by third parties (including the Employer's personnel) and loss of or damage to property occurring in connection with the supply and installation of the Facilities.

(d) **Automobile Liability Insurance**
Covering use of all vehicles used by the Contractor or its Subcontractors (whether or not owned by them) in connection with the execution of the Contract.

(e) **Workers' Compensation**
In accordance with the statutory requirements applicable in any country where the Contract or any part thereof is executed.

(f) **Employer's Liability**
In accordance with the statutory requirements applicable in any country where the Contract or any part thereof is executed.

(g) **Other Insurances**
Such other insurances as may be specifically agreed upon by the parties hereto as listed in the said Appendix 3.

34.2 The Employer shall be named as co-insured under all insurance policies taken out by the Contractor pursuant to GCC Sub-Clause 34.1, except for the Third Party Liability, Workers' Compensation and Employer's Liability Insurances, and the Contractor's Subcontractors shall be named as co-insureds under all insurance policies taken out by the Contractor pursuant to GCC Sub-Clause 34.1 except for the Cargo Insurance During Transport, Workers' Compensation and Employer's Liability Insurances. All insurer's rights of subrogation against such co-insureds for losses or claims arising out of the performance of the Contract shall be waived under such policies.

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34.3	The Contractor shall, in accordance with the provisions of Appendix 3 (Insurance Requirements) to the Contract Agreement, deliver to the Employer certificates of insurance (or copies of the insurance policies) as evidence that the required policies are in full force and effect. The certificates shall provide that no less than twenty-one (21) days' notice shall be given to the Employer by insurers prior to cancellation or material modification of a policy.
34.4	The Contractor shall ensure that, where applicable, its Sub-contractor(s) shall take out and maintain in effect adequate insurance policies for their personnel and vehicles and for work executed by them under the Contract, unless such Subcontractors are covered by the policies taken out by the Contractor.
34.5	The Employer shall at its expense take out and maintain in effect during the performance of the Contract those insurances specified in Appendix 3 (Insurance Requirements) to the Contract Agreement.
34.6	If the Contractor fails to take out and/or maintain in effect the insurances referred to in GCC Sub-Clause 34.1, the Employer may take out and maintain in effect any such insurances and may from time to time deduct from any amount due the Contractor under the Contract any premium that the Employer shall have paid to the insurer, or may otherwise recover such amount as a debt due from the Contractor. If the Employer fails to take out and/or maintain in effect the insurances referred to in GCC 34.5, the Contractor may take out and maintain in effect any such insurances and may from time to time deduct from any amount due the Employer under the Contract any premium that the Contractor shall have paid to the insurer, or may otherwise recover such amount as a debt due from the Employer. If the Contractor fails to or is unable to take out and maintain in effect any such insurances, the Contractor shall nevertheless have no liability or responsibility towards the Employer, and the Contractor shall have full recourse against the Employer for any and all liabilities of the Employer herein.
34.7	Unless otherwise provided in the Contract, the Contractor shall prepare and conduct all and any claims made under the policies effected by it pursuant to this GCC Clause 34, and all monies payable by any insurers shall be paid to the Contractor as per the procedure outlined in GCC Sub-Clause 34.8 below. The Employer shall give to the Contractor all such reasonable assistance as may be required by the Contractor. With respect to insurance claims in which the Employer's interest is involved, the Contractor shall not give any release or make any compromise with the insurer without the prior written consent of the Employer. With respect to insurance claims in which the Contractor's interest is involved, the Employer shall not give any release or make any compromise with the insurer without the prior written consent of the Contractor.
34.8	(i) Wherever total damages/loss of equipment/material, would occur, the Contractor will be entitled to payment of all payments received from the underwriters except the following amounts: (a) The amount paid to the Contractor under the Contract in respect of equipment/material damaged/lost (excluding the pro-rata initial advance) but including the entire amount of escalation, if any, already paid to the Contractor. (b) Taxes and duties which have already been paid by the Employer

In the event the claim money settled, is less than the total of the amount in a & b above, then the entire claim money settled will be retained by the Employer and the Contractor will forthwith pay the Employer the short fall amount between the claim money and the total of amounts as per a & b mentioned above.

Subsequent payments, if any, due under the Contract shall be regulated by the relevant terms of payment.

(ii) In case of partial damage to any equipment/material during any stage, the Contractor upon rectification of the damaged equipment to the satisfaction of the Employer shall be paid to the extent of full claims settled by the underwriters.

34.9 Insurance for the Plant and Equipment supplied by the Employer free of cost:

34.9.1 All the Plants & Equipment being supplied by the Employer free of cost for installation of the equipment, cabling, earthing and lightning protection etc. by the Contractor, covered by this specification shall be kept insured by the Contractor against loss, damage, theft, pilferage, fire etc. from the point of unloading at Site upto the time of taking over by the Employer including handling, in plant transportation, storage, installation, testing and commissioning, etc. and the Contractor shall be fully responsible for making good of any loss or damage at his own cost within a reasonable time as mutually agreed upon by the Employer and the Contractor. Any loss / damage shall be brought to the Employer’s notice immediately. The premium paid by the Contractor to the Insurance Company for such insurance shall be reimbursed by the Employer to the Contractor at actuals against documentary proof to be furnished by the Contractor.

The Contractor shall obtain competitive quotation for such insurance and shall take prior approval from the Employer before taking the insurance. The insurable value of the equipment being procured by the Employer will be intimated to the Contractor for the purpose of insurance.

34.9.2 It will be the responsibility of the Contractor to lodge, pursue and settle all claims with the Insurance Company in case of any damage, loss, theft, pilferage, fire, etc. and the Employer shall be kept informed about it. The losses, if any, will have to be borne by the Contractor, if the claims are not lodged and pursued properly or in the time or if the same are not settled by the Insurance.

35 Unforeseen Conditions

35.1 If, during the execution of the Contract, the Contractor shall encounter on the Site any physical conditions (other than climatic conditions) or artificial obstructions that could not have been reasonably foreseen prior to the date of the Contract Agreement by an experienced contractor on the basis of reasonable examination of the data relating to the Facilities (including any data as to boring tests) provided by the Employer, and on the basis of information that it could have obtained from a visual inspection of the Site (if access thereto was available) or other data readily available to it relating to the Facilities, and if the Contractor determines that it will in consequence of such conditions or obstructions incur additional cost and expense or require additional time to perform its obligations under the

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	Contract that would not have been required if such physical conditions or artificial obstructions had not been encountered, the Contractor shall promptly, and before performing additional work or using additional Plant and Equipment or Contractor's Equipment, notify the Project Manager in writing of: (a) the physical conditions or artificial obstructions on the Site that could not have been reasonably foreseen (b) the additional work and/or Plant and Equipment and/or Contractor's Equipment required, including the steps which the Contractor will or proposes to take to overcome such conditions or obstructions (c) the extent of the anticipated delay (d) the additional cost and expense that the Contractor is likely to incur. On receiving any notice from the Contractor under this GCC Sub- Clause 35.1, the Project Manager shall promptly consult with the Employer and Contractor and decide upon the actions to be taken to overcome the physical conditions or artificial obstructions encountered. Following such consultations, the Project Manager shall instruct the Contractor, with a copy to the Employer, of the actions to be taken.
35.2	Any reasonable additional cost and expense incurred by the Contractor in following the instructions from the Project Manager to overcome such physical conditions or artificial obstructions referred to in GCC Sub-Clause 35.1 shall be paid by the Employer to the Contractor as an addition to the Contract Price.
35.3	If the Contractor is delayed or impeded in the performance of the Contract because of any such physical conditions or artificial obstructions referred to in GCC Sub-Clause 35.1, the Time for Completion shall be extended in accordance with GCC Clause 40 (Extension of Time for Completion).
36	**Change in Laws and Regulations**
36.1	If, after the date seven (7) days prior to the date of Price Bid submission, in the country where the Site is located, any law, regulation, ordinance, order or by-law having the force of law is enacted, promulgated, abrogated or changed (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the costs and expenses of the Contractor and/or the Time for Completion, the Contract Price shall be correspondingly increased or decreased, and/or the Time for Completion shall be reasonably adjusted to the extent that the Contractor has thereby been affected in the performance of any of its obligations under the Contract. However, these adjustments would be restricted to items in respect of direct transactions between the Employer and the Contractor and Bought out items (to be dispatched directly from the sub-vendor's works to Employer's site). These adjustments shall not be applicable on procurement of raw materials, intermediary components and intermediary services etc. by the Contractor. Notwithstanding the foregoing, such additional or reduced costs shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where applicable, in accordance with the Appendix 2 to the Contract Agreement.

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	Notwithstanding the foregoing, such additional or reduced costs shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where applicable, in accordance with the Appendix 2 to the Contract Agreement. The above adjustment however shall be restricted to schedule date of dispatch or actual whichever is less.
37	**Force Majeure**
37.1	"Force Majeure" shall mean any event beyond the reasonable control of the Employer or of the Contractor, as the case may be, and which is unavoidable notwithstanding the reasonable care of the party affected.
37.2	If either party is prevented, hindered or delayed from or in performing any of its obligations under the Contract by an event of Force Majeure, then it shall notify the other in writing of the occurrence of such event and the circumstances thereof within fourteen (14) days after the occurrence of such event.
37.3	The party who has given such notice shall be excused from the performance or punctual performance of its obligations under the Contract for so long as the relevant event of Force Majeure continues and to the extent that such party's performance is prevented, hindered or delayed. The Time for Completion shall be extended in accordance with GCC Clause 40 (Extension of Time for Completion).
37.4	The party or parties affected by the event of Force Majeure shall use reasonable efforts to mitigate the effect thereof upon its or their performance of the Contract and to fulfil its or their obligations under the Contract, but without prejudice to either party's right to terminate the Contract under GCC Sub-Clauses 37.6 and 38.5.
37.5	No delay or non-performance by either party hereto caused by the occurrence of any event of Force Majeure shall (a) constitute a default or breach of the Contract (b) (subject to GCC Sub-Clauses 32.2, 38.3 and 38.4) give rise to any claim for damages or additional cost or expense occasioned thereby if and to the extent that such delay or non-performance is caused by the occurrence of an event of Force Majeure.
37.6	If the performance of the Contract is substantially prevented, hindered or delayed for a single period of more than sixty (60) days or an aggregate period of more than one hundred and twenty (120) days on account of one or more events of Force Majeure during the currency of the Contract, the parties will attempt to develop a mutually satisfactory solution, failing which the dispute shall be resolved in accordance with GCC Clause 6.
37.7	Notwithstanding GCC Sub-Clause 37.5, Force Majeure shall not apply to any obligation of the Employer to make payments to the Contractor herein.

38	**War Risks**
38.1	"War Risks" shall mean any of the following events occurring or existing in or near the country (or countries) where the Site is located: (a) war, hostilities or warlike operations (whether a state of war is declared or not), invasion, act of foreign enemy and civil war (b) rebellion, revolution, insurrection, mutiny, usurpation of civil or military government, conspiracy, riot, civil commotion and terrorist acts, and (c) any explosion or impact of any mine, bomb, shell, grenade or other projectile, missile, munitions or explosive of war.
38.2	Notwithstanding anything contained in the Contract, the Contractor shall have no liability whatsoever for or with respect to (a) destruction of or damage to Facilities, Plant & Equipment, or any part thereof (b) destruction of or damage to property of the Employer or any third party (c) injury or loss of life If such destruction, damage, injury or loss of life is caused by any War Risks, and the Employer shall indemnify and hold the Contractor harmless from and against any and all claims, liabilities, actions, lawsuits, damages, costs, charges or expenses arising in consequence of or in connection with the same.
38.3	If the Facilities or any Plant and Equipment or Contractor's Equipment or any other property of the Contractor used or intended to be used for the purposes of the Facilities shall sustain destruction or damage by reason of any War Risks, the Employer shall pay the Contractor for: (a) any part of the Facilities or the Plant and Equipment so destroyed or damaged (to the extent not already paid for by the Employer) (b) replacing or making good any Contractor's Equipment or other property of the Contractor so destroyed or damaged so far as may be required by the Employer, and as may be necessary for completion of the Facilities, (c) replacing or making good any such destruction or damage to the Facilities or the Plant and Equipment or any part thereof. If the Employer does not require the Contractor to replace or make good any such destruction or damage to the Facilities, the Employer shall either request a change in accordance with GCC Clause 39 (Change in the Facilities), excluding the performance of that part of the Facilities thereby destroyed or damaged or, where the loss, destruction or damage affects a substantial part of the Facilities, shall terminate the Contract, pursuant to GCC Sub-Clause 42.1 (Termination for Employer's Convenience)

38.4	Notwithstanding anything contained in the Contract, the Employer shall pay the Contractor for any increased costs or incidentals to the execution of the Contract that are in any way attributable to, consequent on, resulting from, or in any way connected with any War Risks, provided that the Contractor shall as soon as practicable notify the Employer in writing of any such increased cost.
38.5	If during the performance of the Contract any War Risks shall occur that financially or otherwise materially affect the execution of the Contract by the Contractor, the Contractor shall use its reasonable efforts to execute the Contract with due and proper consideration given to the safety of its and its Subcontractors' personnel engaged in the work on the Facilities, provided, however, that if the execution of the work on the Facilities becomes impossible or is substantially prevented for a single period of more than sixty (60) days or an aggregate period of more than one hundred and twenty (120) days on account of any War Risks, the parties will attempt to develop a mutually satisfactory solution, failing which the dispute will be resolved in accordance with GCC Clause 6.
38.6	In the event of termination pursuant to GCC Sub-Clauses 38.3, the rights and obligations of the Employer and the Contractor shall be specified in GCC Sub-Clauses 42.1.2 and 42.1.3, except that the Contractor shall have no entitlement to profit under paragraph (e) of GCC Sub-Clause 42.1.3 in respect of any unexecuted Facilities as of the date of termination.
H	**CHANGE IN CONTRACT ELEMENTS**
39	**Change In The Facilities**
39.1	**Introducing a Change**
39.1.1	The Employer shall have the right to propose, and subsequently require, that the Project Manager order the Contractor from time to time during the performance of the Contract to make any change, modification, addition or deletion to, in or from the Facilities (hereinafter called "Change"), provided that such Change falls within the general scope of the Facilities and does not constitute unrelated work and that it is technically practicable, taking into account both the state of advancement of the Facilities and the technical compatibility of the Change envisaged with the nature of the Facilities as specified in the Contract.
39.1.2	The Contractor may from time to time during its performance of the Contract propose to the Employer (with a copy to the Project Manager) any Change that the Contractor considers necessary or desirable to improve the quality, efficiency or safety of the Facilities. The Employer may at its discretion approve or reject any Change proposed by the Contractor.
39.1.3	Notwithstanding GCC Sub-Clauses 39.1.1 and 39.1.2, no change made necessary because of any default of the Contractor in the performance of its obligations under the Contract shall be deemed to be a Change, and such change shall not result in any adjustment of the Contract Price or the Time for Completion.
39.1.4	The procedure on how to proceed with and execute Changes is specified in GCC Sub-Clauses 39.2 and 39.3.

39.2	**Changes Originating from Employer**
39.2.1	If the Employer proposes a Change pursuant to GCC Sub- Clause 39.1.1, it shall send to the Contractor a “Request for Change Proposal,” requiring the Contractor to prepare and furnish to the Project Manager as soon as reasonably practicable a “Change Proposal,” which shall include the following: (a) brief description of the Change (b) effect on the Time for Completion (c) estimated cost of the Change (d) effect on Functional Guarantees (if any) (e) effect on any other provisions of the Contract.
39.2.2	The pricing of any change shall, as far as practicable, be calculated in accordance with the rates and prices included in the Contract. If the rates and prices of any change are not available in the Contract, the parties thereto shall agree on specific rates for the variation of the change.
39.2.3	If before or during the preparation of the Change Proposal it becomes apparent that the aggregate effect of compliance therewith and with all other Change Orders that have already become binding upon the Contractor under this GCC Clause 39 would be to increase or decrease the Contract Price as originally set forth in Article 2 (Contract Price) of the Contract Agreement by more than fifteen (15) percent, the Contractor may give a written notice of objection thereto prior to furnishing the Change Proposal as aforesaid. If the Employer accepts the Contractor’s objection, the Employer and the Contractor shall agree on specific rates for valuation of the change.
39.2.4	Upon receipt of the Change Proposal, the Employer and the Contractor shall mutually agree upon all matters therein contained including agreement on rates if such rates are not available in the Contract or if the limit of 15% set forth in Clause 39.2.3 has been exceeded. Within fourteen (14) days after such agreement, the Employer shall, if it intends to proceed with the Change, issue the Contractor with a Change Order. If the Employer is unable to reach a decision within fourteen (14) days, it shall notify the Contractor with details of when the Contractor can expect a decision. If the Employer decides not to proceed with the Change for whatever reason, it shall, within the said period of fourteen (14) days, notify the Contractor accordingly.
39.2.5	If the Employer and the Contractor cannot reach agreement on the price for the Change, an equitable adjustment to the Time for Completion, or any other matters identified in the Change Proposal, the Employer may nevertheless instruct the Contractor to proceed with the Change by issue of a “Pending Agreement Change Order.” Upon receipt of a Pending Agreement Change Order, the Contractor shall immediately proceed with effecting the Changes covered by such Order. The parties shall thereafter attempt to reach agreement on the outstanding issues under the Change Proposal.

	If the parties cannot reach agreement within sixty (60) days from the date of issue of the Pending Agreement Change Order, then the matter may be referred to the Expert Settlement Council (ESC) in accordance with the provisions of GCC Sub-Clause 6.4.1.
39.3	**Changes Originating from Contractor**
39.3.1	If the Contractor proposes a Change pursuant to GCC Sub- Clause 39.1.2, the Contractor shall submit to the Project Manager a written "Application for Change Proposal," giving reasons for the proposed Change and including the information specified in GCC Sub-Clause 39.2.1. Upon receipt of the Application for Change Proposal, the parties shall follow the procedures outlined in GCC Sub- Clauses 39.2.4 and 39.2.5.
40	**Extension of Time for Completion**
40.1	The Time(s) for Completion specified in the SCC shall be extended if the Contractor is delayed or impeded in the performance of any of its obligations under the Contract by reason of any of the following: (a) any Change in the Facilities as provided in GCC Clause 39 (Change in the Facilities) (b) any occurrence of Force Majeure as provided in GCC Clause 37 (Force Majeure), unforeseen conditions as provided in GCC Clause 35 (Unforeseen Conditions), or other occurrence of any of the matters specified or referred to in paragraphs (a), (b) and (c) of GCC Sub-Clause 32.2 (c) any suspension order given by the Employer under GCC Clause 41 (Suspension) hereof or reduction in the rate of progress pursuant to GCC Sub-Clause 41.2 or (d) any changes in laws and regulations as provided in GCC Clause 36 (Change in Laws and Regulations) or (e) any default or breach of the Contract by the Employer, specifically including failure to supply the items listed in Appendix 6 (Scope of Works and Supply by the Employer) to the Contract Agreement, or any activity, act or omission of any other contractors employed by the Employer (f) any other matter specifically mentioned in the Contract. by such period as shall be fair and reasonable in all the circumstances and as shall fairly reflect the delay or impediment sustained by the Contractor.
40.2	Except where otherwise specifically provided in the Contract, the Contractor shall submit to the Project Manager a notice of a claim for an extension of the Time for Completion, together with particulars of the event or circumstance justifying such extension as soon as reasonably practicable after the commencement of such event or circumstance. As soon as reasonably practicable after receipt of such notice and supporting particulars of the claim, the Employer and the Contractor shall agree upon the period of such extension. In the event that the Contractor does not accept the Employer's estimate of a fair and reasonable time extension, the Contractor shall be entitled to refer the matter to the Expert Settlement Council (ESC), pursuant to GCC Sub-Clause 6.4.1.

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40.3	The Contractor shall at all times use its reasonable efforts to minimize any delay in the performance of its obligations under the Contract.
40.4	**Documents for Consideration of Time Extension** The following documents shall form the principal basis for consideration of Time Extension pursuant to GCC clause 40 with or without LD, levy of liquidated damages pursuant to GCC clause 26 and settlement of extra claims during the execution of contract: 1. The joint recordings in "Hindrance Register" and "Weekly Review Register". 2. Records of Technical Coordination Meetings. 3. Records of Contract Review meetings. 4. Written notices issued by the "Project Manager" or his authorized representative to Contractor in the relevant period.
41	**Suspension**
41.1	The Employer/ Project Manager may, by notice to the Contractor, order the Contractor to suspend performance of any or all of its obligations under the Contract. Such notice shall specify the obligation of which performance is to be suspended, the effective date of the suspension and the reasons therefor. The Contractor shall thereupon suspend performance of such obligation (except those obligations necessary for the care or preservation of the Facilities) until ordered in writing to resume such performance by the Project Manager/ Employer. If, by virtue of a suspension order given by the Project Manager/ Employer, other than by reason of the Contractor's default or breach of the Contract, the Contractor's performance of any of its obligations is suspended for an aggregate period of more than ninety (90) days, then at any time thereafter and provided that at that time such performance is still suspended, the Contractor may give a notice to the Project Manager requiring that the Employer shall, within twenty-eight (28) days of receipt of the notice, order the resumption of such performance or request and subsequently order a change in accordance with GCC Clause 39 (Change in the Facilities), excluding the performance of the suspended obligations from the Contract. If the Employer fails to do so within such period, the Contractor may, by a further notice to the Project Manager, elect to treat the suspension, where it affects a part only of the Facilities, as a deletion of such part in accordance with GCC Clause 39 (Change in the Facilities) or, where it affects the whole of the Facilities, as termination of the Contract under GCC Sub-Clause 42.1 (Termination for Employer's Convenience).
41.2	If (a) the Employer has failed to pay the Contractor any sum due under the Contract within the specified period, has failed to approve any invoice or supporting documents without just cause pursuant to Appendix 1 (Terms and Procedures of Payment) to the Contract Agreement, or commits a substantial breach of the Contract, the Contractor may give a notice to the Employer that requires payment of such sum, requires approval of such invoice or supporting documents, or specifies the

	breach and requires the Employer to remedy the same, as the case may be. If the Employer fails to pay such sum, fails to approve such invoice or supporting documents or give its reasons for withholding such approval, or fails to remedy the breach or take steps to remedy the breach within fourteen (14) days after receipt of the Contractor's notice or
	(b) the Contractor is unable to carry out any of its obligations under the Contract for any reason attributable to the Employer, including but not limited to the Employer's failure to provide possession of or access to the Site or other areas in accordance with GCC Sub-Clause 10.2, or failure to obtain any governmental permit necessary for the execution and/or completion of the Facilities; then the Contractor may by fourteen (14) days' notice to the Employer suspend performance of all or any of its obligations under the Contract, or reduce the rate of progress.
41.3	If the Contractor's performance of its obligations is suspended or the rate of progress is reduced pursuant to this GCC Clause 41, then the Time for Completion shall be extended in accordance with GCC Sub-Clause 40.1, and any and all additional costs or expenses incurred by the Contractor as a result of such suspension or reduction shall be paid by the Employer to the Contractor in addition to the Contract Price, except in the case of suspension order or reduction in the rate of progress by reason of the Contractor's default or breach of the Contract. The Bank Guarantee Charges and Insurance Charges for the extended period shall be reimbursed at actuals based on the written request of Contractor. The reimbursement of BG charges shall be made on the basis of documentary evidence submitted by the Contractor (such as debit advice of Bank) along with a Certificate from the issuing Bank, as per the format enclosed in Section-VII (Forms & Procedures). Further, the reimbursement of Insurance charges shall also be made on the basis of documentary evidence submitted by the Contractor. In addition, the Contractor should obtain Insurance Policy directly from the Insurance Company and not through Brokers. The aforesaid reimbursement of Bank Guarantee Charges and Insurance Charges shall be inclusive of GST.
41.4	During the period of suspension, the Contractor shall not remove from the Site any Plant and Equipment, any part of the Facilities or any Contractor's Equipment, without the prior written consent of the Employer.
42	**Termination**
42.1	**Termination for Employer's Convenience**
42.1.1	The Employer may at any time terminate the Contract for any reason by giving the Contractor a notice of termination that refers to this GCC Sub-Clause 42.1.
42.1.2	Upon receipt of the notice of termination under GCC Sub- Clause 42.1.1, the Contractor shall either immediately or upon the date specified in the notice of termination:

(a) cease all further work, except for such work as the Employer may specify in the notice of termination for the sole purpose of protecting that part of the Facilities already executed, or any work required to leave the Site in a clean and safe condition

(b) terminate all subcontracts, except those to be assigned to the Employer pursuant to paragraph (d)(ii) below

(c) remove all Contractor's Equipment from the Site, repatriate the Contractor's and its Subcontractors' personnel from the Site, remove from the Site any wreckage, rubbish and debris of any kind, and leave the whole of the Site in a clean and safe condition

(d) In addition, the Contractor, subject to the payment specified in GCC Sub-Clause 42.1.3, shall

(i) deliver to the Employer the parts of the Facilities executed by the Contractor up to the date of termination

(ii) to the extent legally possible, assign to the Employer all right, title and benefit of the Contractor to the Facilities and to the Plant and Equipment as at the date of termination, and, as may be required by the Employer, in any subcontracts concluded between the Contractor and its Subcontractors

(iii) deliver to the Employer all non-proprietary drawings, specifications and other documents prepared by the Contractor or its Subcontractors as at the date of termination in connection with the Facilities.

42.1.3 In the event of termination of the Contract under GCC Sub- Clause 42.1.1, the Employer shall pay to the Contractor the following amounts:

(a) the Contract Price, properly attributable to the parts of the Facilities executed by the Contractor as of the date of termination

(b) the costs reasonably incurred by the Contractor in the removal of the Contractor's Equipment from the Site and in the repatriation of the Contractor's and its Subcontractors' personnel

(c) any amounts to be paid by the Contractor to its Subcontractors in connection with the termination of any subcontracts, including any cancellation charges

(d) costs incurred by the Contractor in protecting the Facilities and leaving the Site in a clean and safe condition pursuant to paragraph (a) of GCC Sub-Clause 42.1.2

(e) the cost of satisfying all other obligations, commitments and claims that the Contractor may in good faith have undertaken with third parties in connection with the Contract and that are not covered by paragraphs (a) through (d) above.

42.2 **Termination for Contractor's Default**

42.2.1 The Employer, without prejudice to any other rights or remedies it may possess, may terminate the Contract forthwith in the following circumstances by giving a notice of termination and its reasons therefor to the Contractor, referring to this GCC Sub-Clause 42.2:

(a) if the Contractor becomes bankrupt or insolvent, has a receiving order issued against it, compounds with its creditors, or, if the Contractor is a corporation, a resolution is passed or order is made for its winding up (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), a receiver is appointed over any part of its undertaking or assets, or if the Contractor takes or suffers any other analogous action in consequence of debt

(b) if the Contractor assigns or transfers the Contract or any right or interest therein in violation of the provision of GCC Clause 43 (Assignment).

(c) if the Contractor, in the judgement of the Employer has engaged in corrupt or fraudulent practices in competing for or in executing the Contract.

For the purpose of this Sub-Clause:

"corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution.

"fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Employer and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Employer of the benefits of free and open competition.

(d) If the Contractor, sub-contracts any part of the works in violation of the provision of GCC Clause 19.4.

42.2.2 If the Contractor:

(a) has abandoned or repudiated the Contract

(b) has without valid reason failed to commence work on the Facilities promptly or has suspended (other than pursuant to GCC Sub-Clause 41.2) the progress of Contract performance for more than twenty-eight (28) days after receiving a written instruction from the Employer to proceed

(b) persistently fails to execute the Contract in accordance with the Contract or persistently neglects to carry out its obligations under the Contract without just cause

(d) refuses or is unable to provide sufficient materials, services or labour to execute and complete the Facilities in the manner specified in the program furnished under GCC Clause 18 (Program of Performance) at rates of progress that give reasonable assurance to the Employer that the Contractor can attain Completion of the Facilities by the Time for Completion as extended then the Employer may, without prejudice to any other rights it may possess under the Contract, give a notice to the Contractor stating the nature of the default and requiring the Contractor to remedy the same. If the Contractor fails to remedy or to take steps to remedy the same within fourteen (14) days of its receipt of such notice, then the Employer may terminate the

Contract forthwith by giving a notice of termination to the Contractor that refers to this GCC Sub-Clause 42.2.

42.2.3 Upon receipt of the notice of termination under GCC Sub- Clauses 42.2.1 or 42.2.2, the Contractor shall, either immediately or upon such date as is specified in the notice of termination,

(a) cease all further work, except for such work as the Employer may specify in the notice of termination for the sole purpose of protecting that part of the Facilities already executed, or any work required to leave the Site in a clean and safe condition

(b) terminate all subcontracts, except those to be assigned to the Employer pursuant to paragraph (d) below

(c) deliver to the Employer the parts of the Facilities executed by the Contractor up to the date of termination

(d) to the extent legally possible, assign to the Employer all right, title and benefit of the Contractor to the Works and to the Plant and Equipment as at the date of termination, and, as may be required by the Employer, in any subcontracts concluded between the Contractor and its Subcontractors

(e) deliver to the Employer all drawings, specifications and other documents prepared by the Contractor or its Subcontractors as at the date of termination in connection with the Facilities.

42.2.4 The Employer may enter upon the Site, expel the Contractor, and complete the Facilities itself or by employing any third party. The Employer may, to the exclusion of any right of the Contractor over the same, take over and use with the payment of a fair rental rate to the Contractor, with all the maintenance costs to the account of the Employer and with an indemnification by the Employer for all liability including damage or injury to persons arising out of the Employer’s use of such equipment, any Contractor’s Equipment owned by the Contractor and on the Site in connection with the Facilities for such reasonable period as the Employer considers expedient for the supply and installation of the Facilities.

Upon completion of the Facilities or at such earlier date as the Employer thinks appropriate, the Employer shall give notice to the Contractor that such Contractor’s Equipment will be returned to the Contractor at or near the Site and shall return such Contractor’s Equipment to the Contractor in accordance with such notice. The Contractor shall thereafter without delay and at its cost remove or arrange removal of the same from the Site.

42.2.5 Subject to GCC Sub-Clause 42.2.6, the Contractor shall be entitled to be paid the Contract Price attributable to the Facilities executed as at the date of termination, the value of any unused or partially used Plant and Equipment on the Site, and the costs, if any, incurred in protecting the Facilities and in leaving the Site in a clean and safe condition pursuant to paragraph (a) of GCC Sub-Clause 42.2.3. Any sums due to the Employer from the Contractor accruing prior to the date of termination shall be deducted from the amount to be paid to the Contractor under this Contract.

42.2.6 If the Employer completes the Facilities, the cost of completing the Facilities by the Employer shall be determined.

If the sum that the Contractor is entitled to be paid, pursuant to GCC Sub-Clause 42.2.5, plus the reasonable costs incurred by the Employer in completing the Facilities, exceeds the Contract Price, the Contractor shall be liable for such excess.

If such excess is greater than the sums due to the Contractor under GCC Sub-Clause 42.2.5, the Contractor shall pay the balance to the Employer, and if such excess is less than the sums due to the Contractor under GCC Sub-Clause 42.2.5, the Employer shall pay the balance to the Contractor.

The Employer and the Contractor shall agree, in writing, on the computation described above and the manner in which any sums shall be paid.

42.3 **Termination by Contractor**

42.3.1 If

(a) the Employer has failed to pay the Contractor any sum due under the Contract within the specified period, has failed to approve any invoice or supporting documents without just cause pursuant to Appendix 1 (Terms and Procedures of Payment) of the Contract Agreement, or commits a substantial breach of the Contract, the Contractor may give a notice to the Employer that requires payment of such sum, requires approval of such invoice or supporting documents, or specifies the breach and requires the Employer to remedy the same, as the case may be. If the Employer fails to pay such sum, fails to approve such invoice or supporting documents or give its reasons for withholding such approval, fails to remedy the breach or take steps to remedy the breach within fourteen (14) days after receipt of the Contractor's notice, or

(c) the Contractor is unable to carry out any of its obligations under the Contract for any reason attributable to the Employer, including but not limited to the Employer's failure to provide possession of or access to the Site or other areas or failure to obtain any governmental permit necessary for the execution and/or completion of the Facilities which the Employer is required to obtain as per provision of the Contract or as per relevant applicable laws of the country, then the Contractor may give a notice to the Employer thereof, and if the Employer has failed to pay the outstanding sum, to approve the invoice or supporting documents, to give its reasons for withholding such approval, or to remedy the breach within twenty-eight (28) days of such notice, or if the Contractor is still unable to carry out any of its obligations under the Contract for any reason attributable to the Employer within twenty-eight (28) days of the said notice, the Contractor may by a further notice to the Employer referring to this GCC Sub-Clause 42.3.1, forthwith terminate the Contract.

42.3.2 The Contractor may terminate the Contract forthwith by giving a notice to the Employer to that effect, referring to this GCC Sub-Clause 42.3.2, if the Employer becomes bankrupt or insolvent, has a receiving order issued against it, compounds with its creditors, or, being a corporation, if a resolution is passed or order is made for its winding up (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), a receiver is appointed over any part of its undertaking or assets, or if the Employer takes or suffers any other analogous action in consequence of debt.

42.3.3	If the Contract is terminated under GCC Sub-Clauses 42.3.1 or 42.3.2, then the Contractor shall immediately: (a) cease all further work, except for such work as may be necessary for the purpose of protecting that part of the Facilities already executed, or any work required to leave the Site in a clean and safe condition (b) terminate all subcontracts, except those to be assigned to the Employer pursuant to paragraph (d)(ii) (c) remove all Contractor's Equipment from the Site and repatriate the Contractor's and its Subcontractor's personnel from the Site (d) In addition, the Contractor, subject to the payment specified in GCC Sub-Clause 42.3.4, shall (i) deliver to the Employer the parts of the Facilities executed by the Contractor up to the date of termination (ii) to the extent legally possible, assign to the Employer all right, title and benefit of the Contractor to the Facilities and to the Plant and Equipment as of the date of termination, and, as may be required by the Employer, in any subcontracts concluded between the Contractor and its Subcontractors (iii) deliver to the Employer all drawings, specifications and other documents prepared by the Contractor or its Subcontractors as of the date of termination in connection with the Facilities.
42.3.4	If the Contract is terminated under GCC Sub-Clauses 42.3.1 or 42.3.2, the Employer shall pay to the Contractor all payments specified in GCC Sub-Clause 42.1.3 and reason-able compensation for all loss or damage sustained by the Contractor arising out of, in connection with or in consequence of such termination.
42.3.5	Termination by the Contractor pursuant to this GCC Sub- Clause 42.3 is without prejudice to any other rights or remedies of the Contractor that may be exercised in lieu of or in addition to rights conferred by GCC Sub-Clause 42.3.
42.4	In this GCC Clause 42, the expression "Facilities executed" shall include all work executed, Installation Services provided, any or all Plant and Equipment acquired (or subject to a legally binding obligation to purchase) by the Contractor and used or intended to be used for the purpose of the Facilities, up to and including the date of termination.
42.5	In this GCC Clause 42, in calculating any monies due from the Employer to the Contractor, account shall be taken of any sum previously paid by the Employer to the Contractor under the Contract, including any advance payment paid pursuant to Appendix 1 (Terms and Procedures of Payment) to the Contract Agreement.
43	**Assignment**
43.1	The Contractor shall not, without the express prior written consent of the Employer, assign to any third party the Contract or any part thereof, or any right, benefit, obligation or interest therein or thereunder, except that the Contractor shall be entitled to assign either absolutely or by way of charge any monies due and payable to it or that may become due and payable to it under the Contract.

I	**OTHER CONDITIONS**
44	**Contractor Performance & Feedback Evaluation System** The Employer has in place an established ‘Contractor Performance and Feedback System’ against which the Contractor’s performance during the execution of Contract shall be evaluated on a continuous basis at regular intervals on the following seven parameters: - Engineering & Quality Assurance Capability - Finance - Supply - Construction / Installation - Field Quality - Safety - Claims & Disputes The score-based feedback formats based on which Contractor’s performance shall be evaluated is enclosed at Annexure-A to the GCC. In case the performance of the Contractor is found unsatisfactory, the Contractor shall be considered ineligible for participating in future tenders for two years. On completion of the above ineligibility period, the Contractor would be required to submit a request to Employer/NTPC for participating in future tenders specifying the measures taken to improve their performance. The Contractor may also request for early revocation of suspension after completion of at least one (1) year of the suspension period. On receipt of such request, the performance of the Contractor shall be assessed/evaluated by Employer/NTPC and if the performance is found to be satisfactory, the Contractor shall be considered eligible for participation in future tenders.
45	**Fraud Prevention Policy**
	The contractor along with their associate / collaborator / subcontractors / sub-vendors / consultants / service providers shall strictly adhere to the Fraud Prevention policy of the Employer displayed on its tender website http://www.ntpctender.ntpc.co.in.The Contractor along with their associate / collaborator / subcontractors / sub-vendors / consultants / service providers shall observe the highest standard of ethics and shall not indulge or allow anybody else working in their organization to indulge in fraudulent activities during execution of the contract. The contractor shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice.
46	**Debarment**
	The Employer has in place a Policy for Debarment from Business Dealings displayed on the website www.ntpc.co.in / ntpctender.ntpc.co.in The version of Policy presently followed by NTPC is as mentioned in Special Conditions of Contract (SCC) of the Bidding Documents. Business dealings may be withheld or banned with the Contractor on account of any Default

	by the Contractor under GCC Clause 42.2.1 & 42.2.2 or any of the grounds as detailed in the said Debarment Policy.
47	**Integrity Pact**
	If the Employer has terminated the Contract pursuant to Section-3 of the Integrity Pact (IP), the Employer shall encash the Contract Performance Bank Guarantee, in accordance with Section-4 of the Integrity Pact.
48	**Independent External monitors**
	The Nodal officer for necessary coordination with Independent External Monitors (IEM) shall be as under: (i) Concerned Group Head in Contract Services : if the issue pertains to awarding of Contract-by Contract Services (ii) Concerned Head of Department : If the issue pertains to other departments (iii) Head of Project/ Station : if the issue pertains to post-award execution
49	**Contractor's Labour Information Management System (CLIMS)**
49.1	(a) The Contractor has to necessarily get itself registered in the Contractor's Labour Information Management System (CLIMS), which will be installed by the Employer. (b) The entry and exit of all contract labour to the plant premises will be through Gate Access Control System of above 'Contractor's Labour Information Management System'. (c) It will be responsibility of the Contractor to ensure timely exit of all labours from the plant premises after completion of job of that day. (d) The Contractor has to abide with all the statutory compliance applicable to its workers and employees and update the details of the same in the above system.
50	**No Claim for interest or damage**
50.1	**Interest on money due to the contractor**: Contractor shall not be entitled to any interest or damage in case of any delay on the part of the Employer to pay the amount due upon measurement or as per Contract or otherwise. Contractor shall also not be entitled to interest upon any guarantee/ security/ retention money or payments in arrears or upon any balance which may on the final settlement of his account be due to him.
50.2	**No claim for interest or damage:**

GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
	No claim for interest or damage will be entertained or be payable by the Employer in respect of any amount or balance which may be lying with the Employer or may become due upon settlement/adjudication of any dispute, difference or misunderstanding between the parties by way of arbitration or court proceedings or otherwise or in respect of any delay or omission on the part of the Employer in making intermediate or final payment or in respect of any amount/damage which may be claimed through arbitration or court proceedings or in any other respect whatsoever.
51	**Human Resources**
51.1	The Contractor for the purpose of the Contract shall engage / employ adequate number of key personnel in all areas such as design, engineering, construction, installation, planning, scheduling and carrying out of all maintenance of his plant and equipment, safety and competent and skilled work force as directed by the Project Manager. The Project Manager will approve any proposed replacement of such key personnel including work force only if their qualifications, experience, competence and capabilities are substantially equal to or better than those personnel originally identified and approved by the Project Manager.
51.2	The Project Manager may require the Contractor to remove from Site of Works or from any other area of Work related to the Contract, any member of the Contractor personnel or work force who (i) Persists in any misconduct or lack of care. (ii) Performs his duties incompetently or negligently or otherwise carelessly. (iii) Fails to conform with any provisions of the Contract or (iv) Persists in any conduct which is prejudicial to the safety, health or protection of the Work and environment.
51.3	If appropriate, the Contractor shall appoint a suitable replacement within fourteen (14) days or within such period as may be agreed between the Project Manager and Contractor. The Contractor shall unless otherwise provided in the Contract, make his own arrangement for engagement of all staff and labor, local or otherwise and for their payment, housing, transport, lodging and welfare as may be required by law and or by industry practice. The Contractor shall provide the Project Manager a return in detail in such form and at such intervals as he may reasonably prescribe showing the staff and number of the several classes of labour and other staff from time to time employed by the Contractor at Site or in connection with the Work along with such information as the Project Manager may reasonably require.
51.4	**Labor laws and Regulations and compliance thereof**
51.4.1	During the entire period of Contract, the Contractor and his Sub-Contractors shall, at all times abide by all existing labor enactments, rules made therein, regulations, notifications and bye-laws by the appropriate government, local authority or any other labor laws or notification that may be issued under any labor law prevailing as on the date seven (7) days prior to the date set for opening of the Techno-Commercial Bids, published by the State or Central Government or Local Authorities. An illustrative list of applicable acts, notifications, rules etc.

	in connection with the labor as applicable as mentioned subsequently at para 51.4.8 in GCC. This list is not in any way exhaustive and shall not absolve the Contractor from any of his liabilities or responsibilities in compliance with any other laws, regulations, notifications that may be in force during the tenure of Contract.
51.4.2	The Contractor and his Sub-Contractors shall indemnify the Employer, from any action taken against the Employer by any competent authority in connection with the enforcement of the applicable laws, regulations, notifications, on account of contravention of any of the provisions therein, including amendments thereto. If the Employer is caused to pay or otherwise made liable, such amounts as may be necessary for non-observance of the provisions stipulated in the laws, rules, notifications including amendments, if any on the part of the Contractor and/or his Sub-Contractors, the Project Manager / Employer shall have the right to deduct any such money from any amount due to the Contractor including his performance security, under the Contract. The Employer shall also have the right to recover from the Contractor any sum required or estimated as required for making good any loss or damage suffered / likely to be suffered by the Employer, on this account.
51.4.3	If due to an enactment of any new Act or Statute and rules made thereunder or any modification to the Acts/ Statute or rules made thereunder, all after seven (7) days prior to the date set for opening of the Techno-Commercial Bids and as a consequence thereof, the Contractor has to incur additional cost or expenditure, the same will be reimbursed by the Employer to the Contractor, excepting those due to reasons attributable to the Contractor and those being already compensated by other provisions of the Contract, like Price Adjustment, Taxes and Duties etc.
51.4.4	It is specifically agreed that the Contractor and his Sub- Contractors shall obtain all the necessary registration, licenses, permits, authorizations etc. required under various enactments/ Regulations enforced from time to time, specifically registration as employer under Provident Fund Act and Contract Labor Regulation & Abolition Act, and the Employer shall not be liable for any violation by the Contractor in this regard.
51.4.5	The employees of the Contractor or his Sub-Contractor(s) shall in no case be treated as the employees of the Employer at any point of time.
51.4.6	The Contractor and his Sub-Contractors shall be liable to make all due payments to all their employees and ensure compliance with labor laws. If the Employer, is held liable as 'PRINCIPAL EMPLOYER' or otherwise to incur any expenditure or to make any contributions under any legislation of the Government or Court decision, in respect of the employees of the Contractor or his Sub Contractors, then the Contractor would reimburse the amounts of such expenditure/contribution so made by the Employer.
51.4.7	In case the ESI act is not applicable to the area where the Work is executed, as evidenced by the Certificate/Letter submitted to this effect from the local authorities, the Contractor shall be liable to arrange and pay for the expenses towards the medical treatment in respect of all labor employed by him for the execution of the Contract.

GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
51.4.8	The number and other relevant details of key personnel required to be engaged/ employed by the Contractor in all areas shall be finalized with the successful bidder during post bid discussions (if required). During the entire period of Contract, the Contractor and his Sub-Contractors shall, at all times abide by the following Acts/ Statutes related to Human Resources: (1) Factories Act, 1948; Contract Labor (Regulation & Abolition) Act, 1970; (2) EPF & MP Act, 1952; (3) Building & Other Construction Workers (Regulation of Employment & Conditions of Service) Act, 1996; (4) ESI Act, 1948; (5) Minimum Wages Act, 1948; (6) Payment of Wages Act, 1936; (7) Payment of Bonus Act, 1965; (8) Payment of Gratuity Act, 1972; (9) Workmen's Compensation Act, 1923; (10) ID Act, 1947; (11) Maternity Benefit Act, 1961; (12) Inter-State Migrant Workmen (Regulation of Employment & Conditions of Service) Act, 1979; (13) Fatal Accidents Act, 1855 (14) Model Welfare Code The above will deem to include all relevant/applicable rules made thereunder, regulations, notifications and bye laws of the State or Central Govt. or the local authority and any other labor law (including rules) regulations, bye laws as well as those that may be passed or notification that may be issued under any labor law present and in future either by State or Central Govt. or by local authority.
52	**Materials obtained from Excavation**
	Materials of any kind obtained from excavation on the Site shall remain the property of the Employer and shall be disposed of as the Project Manager may direct.
53	**Treasure, Trove, Fossils, etc** All fossils, coins, articles of value or antiquity and structures and other remains or things of geological or archaeological interest discovered on the Site shall be the absolute property of the Employer and the Contractor shall take reasonable precautions to prevent his workmen or any other person from removing or damaging any such article or thing, shall immediately upon discovery thereof and before removal acquaint the Project Manager with such discovery and carry out the Project Manager's directions as to the disposition of the same, at the cost of the Employer.
54	**Protection of Trees**

GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
	Trees shall be protected from damage during the course of the Works and earth level within at least one (1) meter of each such tree shall not be disturbed. Where necessary, such trees shall be protected by providing temporary fencing at the cost of the Employer
55	**Security Watch and Lighting** The Contractor shall provide and maintain at his own expense all lights, guards, fencing and watching when and where necessary or required by the Project Manager for the protection of the Works or for the safety and convenience of those employed on the Works or the public.
56	**Prevention of Pollution** The Contractor shall make necessary arrangement to prevent pollution of the water in any adjacent water bodies including stream, springs, nallah, river and lakes etc. The Contractor shall be solely responsible and liable for all damage caused by any pollution that may take place during the execution of the Work.
57	**Explosives** Permission for the use of explosives shall be obtained from the Project Manager or from any appropriate authority as directed by the Project Manager and all explosive materials shall be used only under close supervision. It shall be the responsibility of the Contractor to seek and obtain any necessary permits, and to ensure that the requirements of the authorities are complied with, in all respects. Failure to do so may result in the Project Manager withdrawing permission to use explosives. The indemnification provided for, under the General Condition of Contract shall include indemnification against all claims in respect of any incident arising from the use of explosives.
58	**Royalty (Applicable in Packages involving Civil Works)**
58.1	If the Contractor intends to engage itself in quarrying or mining of soil/earth, sand, stone/aggregates, metals, minerals or minor minerals required for the Civil works, as the case may be, it shall obtain necessary permits under the applicable law for such mining or quarrying from the State/Central Government authorities and pay the fee or charges applicable thereto.
58.2	The Civil works component of the Contract Price shall be inclusive of any Royalties or Seigniorage Fee or Cess or other charges payable on the quarried or mined metal, minerals, or minor minerals, as the case may be, at the rate(s) prevailing as on seven (7) days prior to the deadline set for Price Bid submission.
58.2.1	It shall be the responsibility of the Contractor to ensure that the Royalties or Seigniorage Fee or Cess or other charges on the quarried or mined metal, minerals or minor minerals are paid to the statutory authorities
58.2.2	The component of Royalties or Seigniorage Fee or Cess or other charges, if applicable in a running account bill, shall only be released by the Employer to the Contractor on submission of the following documents in original:

GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
	A) In case the Contractor is the primary license holder of the quarry / mines: i) Vehicle wise challan / transit permit and proof of payment of royalty, and ii) Any other document required as per the relevant Acts/Rules of the concerned state. (B) In case the Contractor is the purchaser of soil/earth, sand, stone/aggregates, metals, minerals or minor minerals: i) Purchase voucher and vehicle wise challan / transit permit and proof of payment of royalty, and ii) Any other document required as per the relevant Acts/Rules of the concerned state.
58.2.3	In case the Contractor fails to provide the required proof of royalty payment with the RA bill then an amount based on the prevailing rates of the royalty shall be retained from the respective RA bill, as security against royalty, which shall be refunded to the Contractor on submission of proof of royalty payment.
58.2.4	The Contractor shall pay and indemnify the Employer against any default in payment of Royalties or Seigniorage Fee or Cess or other charges by the Contractor or the agency from which the Contractor purchases soil/earth, sand, stone/aggregates, metals, minerals or minor minerals.
58.2.5	In the event of there being a statutory increase in the rates of royalty charges/fresh levy of royalty on materials, the same shall be reimbursed to the Contractor upon submission of original challan by him of having made the payments at revised rates. In the event of there being a decrease in such rates, the same shall be recovered from the Contractor. The base date for calculating the increase or decrease shall be the rate as on seven (7) days prior to the deadline set for Price Bid submission. The total reimbursement (positive or negative) as specified above, to be paid or recovered, shall however be calculated on the quantity of materials actually considered while making the royalty payments to the concerned authorities, or the theoretical consumption of these materials (calculated on the basis of the volume of concrete or fill accepted for payment), whichever is less, and on the basis of documentary evidence of Govt. Notification. However, the Contractor will settle claims, if any, on account of over charge by the State Authorities.
59	**Procedure for Contract Closing**
59.1	**Stage Closure of Contract**

GCC CLAUSE NO.	GENERAL CONDITIONS OF CONTRACT
59.1.1	The Stage Closure of the Contract shall be effected after successful completion of Guarantee Test in accordance with GCC Clause 25.0. Subsequent to successful completion of Guarantee Test, the Contractor shall be responsible for completion of all pending obligations within the stipulated timelines as mentioned hereunder:

S. No	Contractor's Obligation	Timelines
01	Any inputs regarding Scope Change in accordance with GCC Clause 39.0 titled "Change in Facilities"	Within 01 month from the date of successful completion of Guarantee Test
02	Submission of pending Engineering Documents/Drawings including O&M Manuals.	Within 01 month from the date of successful completion of Guarantee Test
03	Contractor's compliance to all the pending points recorded in writing by the Employer during Performance Guarantee Test.	Within 01 month from the date of successful completion of Guarantee Test
04	Any other obligations of the Contractor set forth in the Contract	Within 01 month from the date of successful completion of Guarantee Test.

59.1.2	The Contractor shall ensure that all obligations pertaining to statutory requirement and labour payments set forth in the contract are completed and the compliance of the same shall be furnished by the Contractor to the Employer in the form of certificate as per the proforma enclosed at Section-VII (Forms and Procedures) – Forms for Stage Closing Activities not later than two (02) months from the date of completion of Guarantee Test.
59.1.3	Upon successful fulfilment of all the obligation of the Contractor pursuant to GCC Sub-Clause 59.1.1 and 59.1.2, the Employer shall require the Contractor to furnish a "No Demand Certificate" as per the format enclosed at Section-VII (Forms and Procedures) – Forms for Stage Closing Activities.
59.2	**Final Closure of Contract**
59.2.1	The final closing of the contract shall be effected after the warranty period/Defect Liability Period is successfully completed and the CPG of the Contractor is returned/ discharged.
60.0	**Non-Disclosure Agreement**
	Provisions of "Non-Disclosure Agreement" The contractor/supplier shall be required to sign a Non-Disclosure Agreement with the Employer thereby keeping the complete process of "evaluation" [As defined under the Agreement] confidential in nature. Further, the contractor shall not disclose any data and/or parameters and/or details and/or information to any

	entities without any prior permission of the Employer. In case it is found that confidential information is being disclosed to any third-party entity without any consent of the Employer, the Employer shall be liable to initiate action under the provisions of GCC Clause titled "Termination" and/or any other action as per the provision of the contract. In case the contractor/supplier for the execution of contract is allowed to engage subcontractors/sub vendors under the provisions of GCC Clause titled "Subcontracting", they shall be required to sign back-to-back "Non-Disclosure Agreement" so that interest of the Employer is protected.
61.0	**Confidential Information's/Details**
61.1	All plans, design calculations, studies, data, maps, drawings, documents and specifications prepared by the Contractor in connection with the contract shall be the property of the Employer. As and when required or upon termination of the Contract, the aforesaid Documents, prepared specifically under the contract (including originals), shall be handed over to the Employer before final acceptance or thereafter.
61.2	The contractor shall take all necessary steps to ensure confidential handling of all matters pertaining to plans, designs, drawings, specifications, methods and any other information developed or acquired by him from the Employer under terms of the Contract or in performance thereof.
61.3	The Contractor shall not prepare articles or photographs for publication or speeches or presentations about the work and/or site and/or plant, Contracts and installations in which Employer has an interest without prior written consent of Employer.
61.4	The Contractor shall take necessary steps to ensure that all persons employed on any work in connection with this Contract have noticed that the Indian Official Secrets Act, 1923 (XIX of 1923) applies to them and shall continue to apply even after the execution of such work(s) under the Contract.
62	**Land**
62.1	In line with provision of Section-VI and of Appendix-I (Terms and Procedures of Payments) to Form of Contract Agreement, Section-VII (book 3 of 3), the following documents are required to be submitted to establish clear title of the land has been transferred to NTPC REL: i. Transfer Permission by the Authority ii. Title Search report of period not less than 30 years validated by Registered Lawyer or Law Firm appointed by Contractor, certifying that the offered land title is undisputable, marketable and suitable for registered lease or Ownership transfer without claim and protest. Report shall clearly indicate name(s) of the title holder(s) of the land iii. Twelve (12) years latest Non-encumbrance certificate by Sub-registrar (Encumbrance certificate/letter from competent land registering authority) iv. Mutation Certificate / Entry in Land Records according to local laws

	v. Indemnity Bond/ Undertaking as per the Employer's format in line with requirement of GCC sub-clause 62.2 vi. No Dues Certificate vii. Payment receipt of Lease Rent/ Property Tax/Diversion Fee or Tax/other municipal & Development Tax as the case may be viii. Affidavit of the contractor to the effect that proper Due Diligence has been conducted with respect to the land and it is transferred to NTPC Renewable Energy Limited in good faith & due consideration has been received by bonafide land owner.
62.2	The Contractor shall indemnify and hold harmless the Employer and its employees and officers for a period up to 12 years (in case of private land) or up to period of limitation as per Law (for Govt. Land) from the date of the transfer of the land from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of whatsoever nature, including attorney's fees and expenses, which the Employer may suffer as a result of any encumbrance on the project land arising out in relation to the transfer of title of the land in favour of the Employer.
62.3	If any proceedings are brought or any claim is made against the Employer arising out of the matters referred to in GCC Sub-Clause 62.2, the Employer shall promptly give the Contractor a notice thereof, and the Contractor may at its own expense and in the Employer's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim. If the Contractor fails to notify the Employer within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Employer shall be free to conduct the same on its own behalf at the risk and cost of Contractor. Unless the Contractor has so failed to notify the Employer within the twenty-eight (28) day period, the Employer shall make no admission that may be prejudicial to the defense of any such proceedings or claim. The Employer shall, at the Contractor's request, afford all available assistance to the Contractor in conducting such proceedings or claim, and shall be reimbursed by the Contractor for all reasonable expenses incurred in so doing.
62.4	In case the title of the land is being transferred directly from land owner to Employer and the existing Land Laws requires the payment to be made by Employer to the such Land Owners, then Employer shall make direct payments to Land Owners at the time of the sale deed / registry of the land subject to the following: i. Submission of all documents listed at 62.1 above, as applicable ii. The direct payments to the land owners made by Employer shall be deducted from the Contract Price for the Land Contract. If sum of such direct payments exceeds the contract price of Land, then the amount shall be deducted from progressive payments due under other Contracts pertaining to supply and services. In case after the direct payment to Land Owners, the land is not transferred in the name of Employer for whatsoever reasons, the Contractor shall refund the amount paid by the Employer and arrange separate land as per the requirement.

63	**Anti-Bribery and Anti-Corruption (ABAC) Policy:**
	The Contractor and its employees along with its Associate/ Collaborator/ Sub- Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with Employer in the performance of Contract shall strictly adhere to Employer's Anti-Bribery and Anti-Corruption (ABAC) Policy displayed on website https://ntpctender.ntpc.co.in/ under section 'policy docs'. The Contractor and its employees along with its Associate/ Collaborator/ Sub- Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with Employer in the performance of Contract shall comply with all applicable laws and regulations relating to anti-corruption and anti-bribery and the ABAC Policy of Employer.
64	Caution regarding Publishing of articles / information in Print/Digital Media: The contractor(s) (and their sub-vendors) are restrained from publishing any content(s), updates or facts in public domain without any prior consent of Employer after award as well as during execution of the contract.

PERFORMANCE REPORT OF CONTRACTOR

GUIDELINES FOR FILLING THE FORMAT

1.0 The feedback shall be based on records, evidences and documents (hindrance register, DPR, monthly PRT MoM, contractor's MPR, etc). Due diligence shall be taken to capture the actual progress, hindrances, if any from the monthly progress report to be submitted by the concerned agency. As Daily Progress Report / Weekly Progress Report / Monthly Progress Report are key documents / inputs for Vendor Performance measurement. Non-submission of the aforesaid documents may also be reckoned as poor performance.

2.0 For measurement of contractor performance in various activities in supply, site execution etc, the Contractor shall submit quantified L-2 schedule within 3 months after scheduled completion of Basic Engg or 180 days from date of award, whichever is earlier. Based on the progress of detailed Engg, quantified L-2 shall be updated as and when required.

3.0 This vendor performance rating system is applicable for a particular package being executed by the vendor. If the same vendor is executing multiple packages in a project or at number of NTPC projects, the performance report shall be prepared package wise and the screening committee may then take a final view for evaluating the overall performance of the vendor before initiating action for issuance of Notice for Withholding of business dealings with the concerned contractor, in case the performance is found unsatisfactory.

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FORMAT FOR ENGG & QA SCORE

(TO BE FILLED IN BY NTPC ENGG.)

S.No.	Parameters	Max Score (A)	Act % age w.r.t. sch (B)	Marks obtained (C) = (A)x(B)
(i)	%age of "**Approval**" category drgs/ docs submitted within submission schedule.	30		
(ii)	%age of "**Information**" category drgs/ docs submitted within submission schedule.	20		
(iii)	%age of drgs/docs approved within approval schedule (in Cat-I/IV)*	20		
(iv)	%age of drgs/docs approved within approval schedule (in Cat-II/IVR)*	20		
(v)	%age of Sub-vendor proposal for items identified in "DR" category & submitted within agreed schedule (i.e. 3 months prior to schedule date of ordering identified in L2)**	10		
	TOTAL	**100**		

* For (iii) & (iv) above - If all drawings/documents due for approval are approved in Cat-I/IV within approval schedule, then marks allocated against (iii) & (iv) above shall be clubbed for calculation purpose.

** In case no "DR" proposal is submitted and orders are placed on already approved vendors, then full marks shall be given for calculation purpose against item (v).

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FORMAT FOR FINANCE SCORE

(TO BE FILLED IN BY NTPC PP&M PRT COORDINATOR ON MONTHLY BASIS DURING PRT MEETING, BASED ON DETAILS TO BE FURNISHED BY NTPC SITE P&S)

S. no	Parameters	Max Score (A)	% Rating (B)	Marks Obtained (C) = (A) *(B)
(i)	Number of instances NTPC has to issue Comfort letters to sub-vendors for getting supplies.	25		
(ii)	Number of instances vendor has requested for advance against BG from NTPC (beyond contractual provision)	25		
(iii)	Number of instances of supply delay beyond 1 month after issuance of MDCC.	25		
(iv)	Number of instances of direct supply / diversion of materials / consumables by NTPC.	25		
	TOTAL	**100**		

*Performance to be captured by NTPC PP&M PRT Coordinator on monthly basis during PRT Meeting, based on details to be furnished by site P&S.

*(No instances = 100%

Up to 1 instance = 50%

more than 1 instances = 0%).

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FORMAT FOR SUPPLY SCORE

(TO BE FILLED IN BY NTPC CONTRACTS)

S. no	Parameters	Max Score (A)	Actual % w.r.t. L2 schedule (B)	Marks Obtained (C) = (A) *(B)
(i)	Ordering of Bought out items as per approved L2 network*			
	Major Bought out items	20		
	Minor Bought out items	5		
	Number of instances of cancellation / changes of BoI orders (No instances = 100% Up to 1 instances = 50% more than 1 instances = 0%).	10		
(ii)	Supply of Main Equipment per approved L2 network	60		
(iii)	Supply of Mandatory spares as per approved L2 network	5		
	TOTAL	**100**		

*If Major & Minor Bought out items are not separately identified in L-2 network then both shall be clubbed into single line item with Max score of 25.

Note: Overall % of actual progress vis-à-vis L2 schedule in Col (B) shall be arrived in the following manner:

(i) Let there be n type of Items/systems identified in L2/Quantified L2 schedule i.e. E1, E2, E3 …..En.

(ii) Let % progress for each type of Item/system vis-à-vis L2 schedule be %E1, %E2, %E3……%En.

(iii)Overall % in Col (B) = (%E1+ %E2+ %E3……+%En)/n

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FORMAT FOR CONSTRUCTION/INSTALLATION SCORE

(TO BE FILLED IN BY NTPC SITE)

S. no	Parameters	Max Score (A)	% of actual vis-à-vis L2 schedule (B)	Marks Obtained (C)=(A) *(B)
(i)	**Physical progress** i.e. Installation of equipment / item, Civil works (i.e. Excavation, RCC, Piling, etc), Structural Works (i.e. Structural Fabrication, Erection, etc) as per approved L2 network	95		
(ii)	Project Management Capability and resource Management by Vendor at site. **(5 Negative marks per instance)**			
	Number of instances of delay due to inadequate deployment of equipment and T&P, based on record maintained in hindrance register, monthly PRT MoM, contractor's MPR, etc.	(-)5		
	Number of instances of direct payment by NTPC to Contractor's sub-vendors to expedite supplies / services / the progress of work at site affected due to strike / delay in payments to labourers.	(-)5		
(iii)	Submission of Monthly Report in specified formats.	5		
	TOTAL	**100**		

Details of Area-wise performance is mentioned below:

Sr No.	Activities	Scope	L2 Finish Date	Actual Completed till L2 Finish	%age Comp
1	Excavation				
2	RCC				
3	Structural / Equipment Erection				
				Avg Comp %	

Note: For Physical Progress, overall % of actual progress vis-à-vis quantified L2 schedule in Col (B) shall be arrived in the following manner (Unit of measurement shall be as per approved BBU for respective activities):

(i) Let there be n category of works identified in L-2/Quantified L2 schedule i.e. W1, W2, W3 …..Wn.

(ii) Let % progress for each category of work vis-à-vis L2 schedule be %W1, %W2, %W3……%Wn.

(iii) Overall %in Col (B) = (%W1+ %W2+ %W3……+%Wn)/n

Note:

- All incidences shall be relevant to the current performance evaluation cycle.
- In case of delay in front (including construction drawings for civil packages and other inputs, if any) release by NTPC, measurement of delay in execution by the contractor shall be normalized proportionally.
- Contractor will have to submit monthly progress report capturing actual physical progress viv-a-vis L2 schedule and delay in hand over of front by NTPC, if any. In case of front delay the same has to be jointly signed by NTPC engineer & Vendor.

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FORMAT FOR QUALITY SCORE

(TO BE FILLED IN BY NTPC SITE)

S. no	Parameters	Max Score (A)	% Rating (B)	Marks Obtained (C)=(A) *(B)
(i)	Availability of Testing facilities (Available as per contractual requirement – 100% Not available – 0%)	25		
(ii)	Preventing recurrence of defects/complaints (up to 5 cases – 100%, Up to 10 cases – 40%, more than 10 cases – 0%)	25		
(iii)	Proper Storage & Preservation of Equipment/Material (Nil violation – 100%, Up to 1 case of violation – 40%, more than 1 cases of violation – 0%)	25		
(iv)	Deployment of Qualified Quality Officers/Manpower as per Contract (% deployment w.r.t. contractual requirement)	25		
	TOTAL	**100**		

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FORMAT FOR SAFETY SCORE

(TO BE FILLED IN BY NTPC SITE)

S. no	Parameters	Max Score (A)	% Rating (B)	Marks Obtained (C)=(A) *(B)
(i)	Having safety policy and approved Safety Assurance Plan (available as per requirement – 100%, Not-available – 0%)	10		
(ii)	Violation of safety requirement as per Safety Assurance Plan. (0 violation = 100% Upto 3 violations = 50% more than 3 = 0%)	20		
(iii)	No. of incidence of Fatal accidents due to contractor's negligence (0 incidence = 100% 1 incidence = 50% more than 1 cases, or multiple fatalities in one instance = 0%)	50		
(iv)	No. of incidence of Non-Fatal accidents due to contractor's negligence (0 incidence = 100% Up to 5 incidence = 50% more than 5 = 0%)	10		
(v)	Deployment of Qualified Safety Officers as per contract (% deployment w.r.t. contractual requirement)	10		
	TOTAL	**100**		

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FORMAT FOR CLAIMS & DISPUTE SCORE

(TO BE FILLED IN BY NTPC SITE)

S. no	Parameters	Max Score (A)	% Rating (B)	Marks Obtained (C)=(A) *(B)
(i)	No. of cases where Contractor stopped work on account of non-admittance/non settlement of claims (No case = 100% Upto 3 cases = 50% more than 3 cases = 0%)	70		
(ii)	No. of arbitration/legal cases resorted to by the Contractor (No case – 100%, otherwise 0%)	30		
	TOTAL	**100**		

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Overall Performance Evaluation

S. No.	Parameters	Max Score (A)	Score Obtained (B)	Weightage (C)	Max Weighted Score (D) = (A)*(C)	Weighted Score obtained (E) = (B)*(C)
(i)	Engineering & QA	100		0.20	20	
(ii)	Finance	100		0.20	20	
(iii)	Supply	100		0.20	20	
(iv)	Construction/Installation	100		0.20	20	
(v)	Quality	100		0.05	05	
(vi)	Safety	100		0.10	10	
(vii)	Claims & Disputes	100		0.05	05	
	Total			**1.00**	**100**	

Note: In case of Civil Contracts, score of Engineering & QA and Supply shall be NIL and weightage of Construction/Installation shall be 0.60.

Performance Rating

Total Weighted Score obtained	Performance Grade
Upto 50	Unsatisfactory
>50 to 70	Satisfactory
>70 to 80	Good
>80	Excellent

NTPC RENEWABLE ENERGY LIMITED
(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

SECTION – V

SPECIAL CONDITIONS OF CONTRACT (SCC)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

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6.0	GCC 11.2	Contract Price	2
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SCC CLAUSE NO.	GCC CLAUSE REFERENCE	GCC CLAUSE DESCRIPTION	PAGE NO.
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FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT

SECTION-V

SPECIAL CONDITIONS OF CONTRACT (SCC)

"EPC PACKAGE WITH LAND FOR DEVELOPMENT OF 300MW GRID CONNECTED SOLAR PV PROJECT ANYWHERE IN GOA BIDDING"

The following Special Conditions of Contract (SCC) shall supplement the General Conditions of Contract (GCC). Wherever there is a conflict, the provisions herein shall prevail over those in the GCC. The corresponding clause number of the GCC is indicated.

INVITATION FOR BIDS (IFB) NO. NRE-CS-5834-004(EPC)-9

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
1.0	1	**Employer:** **NTPC Renewable Energy Limited (NTPC REL)** **Address:** **NTPC Renewable Energy Limited** 4th Floor, Renewables Building E-3, Ecotech-II, Udyog Vihar Greater Noida – 201306 Dist. Gautam Buddha Nagar Uttar Pradesh Telephone No. Telephone No. +91-120-2356627/ +91-120-2356525 **Project Manager** **Name of Project Manager:** Head of Project **Address of Project Manager:** To be intimated later **Time for Completion:** Refer SCC Clause 5.0
2.0	3.6.1	**Replace GCC Clause 3.6.1 with the following:**
		The Contracts to be entered into between the Employer and the successful bidder shall be as under: The award shall be made as follows: (i) **First Contract:** For Ex-works (India) supply of all plant and equipment including mandatory spares. (ii) **Second Contract:** For providing all services i.e. Inland Transportation for Delivery at Site, Inland Transit Insurance, Unloading, Storage, Handling at Site, Installation (including civil, structural steel work & allied work, if applicable), insurance covers other than Inland Transit Insurance Testing and Commissioning and conducting Guarantee tests in respect of all the equipments supplied under the 'First Contract', and Civil Works and all other services specified in the Contract Documents. (iii) **Third Contract:** Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run. including comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. And 10 year AMC for critical solar equipment's.as detailed in Technical Specifications (Section-VI).. (hereinafter referred as "O&M contract").

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		All the above "**Three**" Contracts will contain a crossfall breach clause specifying that breach of one will constitute breach of the other Contract which will confer a right on the Employer to terminate the other contracts also at the risk and the cost of Contractor.
3.0	6.2	**Clause 6.2 of GCC (Resolution of Dispute through Independent Engineer): NOT APPLICABLE**
3.1	6.2.I	**GCC 6.2.I. (Appointment, Selection and Removal of IEs/Experts)** **NOT APPLICABLE**
3.2	6.2.II	**GCC 6.2.II.(iii) (Standard Operating Procedure (SOPs) for Independent Engineer (IE))** **NOT APPLICABLE**
3.3	6.2.III	**GCC 6.2.III (Terms and Conditions for Payments to 'Independent Engineer')** **NOT APPLICABLE**
3.4	6.3	**Mediation through Independent External Monitors** The fees payable to each IEM for mediation proceedings shall be Rs. 25,000/- per sitting and same shall stand revised as and when revised by Central Vigilance Commission.
3.5	6.4.2.2	The Panel of Conciliation Committees of Independent Experts (CCIE) is enclosed as **Annexure-III.**
4.0	7.1	**Add the following at the end of GCC Cl 7.1 :**
		The scope of work also includes the following: Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run. including comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. And 10 year AMC for critical solar equipment's.as detailed in Technical Specifications (Section-VI).
5.0	8.2/ 18.2/ 40.1	Time schedule for Completion of Facilities will be **(10) Months** from the date of NOA. 1.01 Further, Bidder is also to provide Comprehensive Operation and Maintenance (O&M) works of FSPV along with BESS system for 5 years from the date of successful completion of trial run. including comprehensive O&M of BESS for 10 years after completion of 5 year comprehensive O&M of FSPV & BESS. And 10 year AMC for critical solar equipment's.as detailed in Technical Specifications (Section-VI). (hereinafter referred as "O&M contract". (i) The Operation & Maintenance of the Plant shall start from the date of successful commissioning of Full Project Capacity of plant.
6.0	11.2	Provision of Price Adjustment is not applicable as specified in Appendix-2 to Form of Contract Agreement, Section-VII. The bidder shall quote the total price for the entire scope of work (covered in the Bidding Documents) on **Firm Price Basis** and the price shall remain Firm during entire period of contract.
7.0		NOT APPLICABLE

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
8.0	13.3.1	Value of Contract Performance Security: **(1) All Contracts except O&M contract: Ten percent (10%)** of the Contract Price of all the Contracts except O&M contract (Third Contract). **(2) O&M Contract:** Refer GCC Clause 13.3.5 added through SCC 9.0 **(3)** In addition to above, the Contractor shall, within twenty-eight (28) days of the Notification of Award, also provide the security in the form of Bank Guarantee/ Insurance Surety Bond against annual generation quoted corresponding to DC:AC ratio specified in Section-VI (Technical Specification). The security in the form of Bank Guarantee/ Insurance Surety Bond as per above methodology shall be furnished with an initial validity upto 12 months beyond scheduled date for completion of the facilities covered under the Package. The above security against Annual Quoted Generation for the package shall be released after successful completion of Performance Guarantee test. However, in case of delay in completion of Performance Guarantee test, the Validity of security shall be extended by the period of such delay.
8.1	13.3.2	**Replace GCC sub-clause 13.3.2 as below:** The performance security shall be denominated in the currency of the Contract and shall be in the form of unconditional bank guarantee / Insurance Surety Bond / Payment on Order Instrument (POI) provided in Section-VII (Forms and Procedures)-Form of Performance Security of the bidding documents.
8.3	GCC 13.4	The Bank Guarantee submitted towards Advance Payment Security, Contract Performance Security shall be essentially from any of the Banks listed at **Annexure-1 to Section-V** (Special Conditions of Contract) of the Bidding Documents. **The Insurance Surety Bond towards Contract Performance Security shall be essentially from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).**
9.0	**13.3.5**	**Add a new GCC Sub-Clause 13.3.5 as under:**
	13.3.5.1	**Contract Performance Security for O&M Contract** The Contractor shall, at least 15 days prior to the commissioning of the part or full project capacity, whichever occurs first, provide security for the due performance of the O&M contract including Overall system performance and generation guarantee during the O&M period, for the due performance of the AMC of the equipment and for Other obligations specified elsewhere in the contract during O&M and AMC period for **Ten percent (10%)** of the Contract Price of the O&M contract, with an initial validity up to ninety (90) days beyond the end of scheduled Period of the Operation and Maintenance i.e. the security shall be initially valid till 90 days beyond three (03) years from the commissioning of full project capacity.

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
	13.3.5.2	The contractor shall, at least 30 days prior to the expiration of Contract Performance Securities of First and Second Contract, *enhance the amount of this security to an amount equal to:*

2.1 BG for O&M, AMC, and Extended warranty contract = 0.1 x G x R (in million INR) up to 5-year O&M period.
Where G = Annual Generation quoted by Bidder in MU (Measured at metering point specified in the technical specification)

R = Applicable Tariff of INR 8/kWh.

This bank guarantee shall be taken from the contractor by way of enhancement of value of Contract Performance Security of O&M contract. Modality for submission and validity of this BG shall be mentioned in GCC / SCC of bidding document.
From 4th year to 15th year, the BG amount is revised depending on the offered solution as follows:

2.2 BG amount against comprehensive AMC (Inverter, SCADA, PPC, Floaters, CCTV system etc.) – 1.0 Lakh / MW. From 6th to 10th year.

2.3 This bank guarantee shall be taken from contractor by way of enhancement of value of Contract Performance Security of O&M contract. Modality for submission and validity of this BG shall be mentioned in GCC/SCC of bidding document.

Contract Performance Securities of First and Second Contract shall be returned to the Contractor only after enhancement of the amount of Contract Performance Security provided against Third Contract (i.e. **O&M contract)** to the amount as indicated above.

The enhanced Contract Performance Security of the Third Contract shall cover (i) due performance of the Third Contract (i.e. **O&M contract**) (ii) overall system performance and generation guarantee during the O&M period (iii) AMC of the equipment and (iv) other obligations specified elsewhere in the contract during O&M and AMC period.

The requirement of Comprehensive AMC of Critical Equipment is as follows:

Equipment/System	Comprehensive AMC*
Floating System (Floaters & platforms) including anchoring & mooring with complete system	10 Years
Floater Units/ Floating platforms	Included under Floating system
Inverter	10 Years
SCADA	10 Years
Power Plant Controller [PPC] system	10 Years
CCTV system	10 Years
BESS along with BMS, PCS and EMS	10Years

A warranty period of 10 years from the date of successful completion of trial run of the project shall be provided for Floater units/ Floating platforms and associated accessories. Even though the warranty period envisaged for floater units and associated accessories is only 10 years, they shall be designed for a service life of minimum of 25 years from the date of successful completion of trial run of the project, considering ambient site conditions. As

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		such, the design shall inherently ensure that there shall be no failure owing to crack, puncture, breakage etc. in the floaters and all associated accessories which affect the integrity of the whole system, for a minimum of 25 years from the date of successful completion of trial run. BESS along with BMS, EMS and PCS shall have comprehensive warranty or LTSA (Long Term Service agreement) for performance and design. *Starts from the date of Commissioning of full Capacity
	13.3.5.3	Beyond 5th year from commissioning of full project capacity (i.e. from 6th year till end of 10th year), the Contractor shall further extend the above security for a further period of 5 years i.e. the validity shall be extended till 90 days beyond the ten (10) years from commissioning of full project capacity to cover comprehensive AMC of equipment and the value of the security shall be revised as per the following: o **BG amount against comprehensive AMC (Inverter, SCADA, PPC, Floaters, CCTV system etc.) – 1.0 Lakh / MW. From 6th to 10th year.**
	13.3.5.4	Beyond 5th year from commissioning of full project capacity (i.e. from 6th year till end of 10th year), the Contractor shall further extend the above security for a further period of 7 years i.e. the validity shall be extended till 90 days beyond the ten (10) years from commissioning of full project capacity to cover comprehensive AMC of equipment and the value of the security shall be revised as per the amounts indicated at Chapter 1-A, Section-VI (Technical Specifications).
	13.3.5.5	Performance security for O&M Contract (Third Contract) will be returned to the contractor without any interest at the expiration of the security at the end of 10 years of commissioning of full project capacity.”
	13.5.6	Add a new GCC Sub-Clause No - 13.5.6: “PV Module Performance Insurance” In compliance to the provisions of para no - 2 of APPENDIX-3B, Sub-Section-1A of SECTION-VI (Technical Specification), EPC Contractor shall submit PV Module Performance Insurance. Further EPC Contractor shall submit “PV Module Performance Insurance Policy/Declaration” before raising Invoice/RA Bill for the supply of Solar PV Modules, otherwise the same shall not be considered for payment till compliance on the above is ensured. The Declaration for PV Module Insurance shall be as per Attachment-23 of Book 1 of 3 of Section-VII. **3. PV module insurance** To ensure faithful performance of PV modules, Bidder must submit PV Module Insurance with a coverage of minimum 6 % of total order value of the module supplies envisaged under the contract for 25 years, with the employer as its beneficiary. Any financial implication encountered due to insurance shall be borne by the bidder. The following clauses are to be complied:

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		1) The insurance has to be issued from one of the companies as listed below: a. Swiss RE b. Munich RE c. Power Guard d. Ariel RE In case of domestic manufacturers, insurance from the aforementioned insurers to be provided through any agency in MNRE approved list, issued vide OM Dated 07.01.2020. 2) In case of insolvency of the contractor, the Employer under the terms of the insurance policy against Module Performance and Warranty shall be entitled to raise a claim against the Module Warranty Insurance Policy and in order to benefit from the coverage provided by the aforementioned policy. The Contractor shall be responsible for maintaining the coverage always provided under the Module Warranty Insurance Policy, at its cost and expense. 3) Further, the Contractor to note that Employer requires the following to be complied while covering the Warranty/Guarantee/Performance of the supplied goods under the insurance: a) Single Insurance Policy for Product Warranty/Guarantee and performance before dispatch of the first lot of PV Modules Insurance. b) The Insurance Policy shall be valid for a minimum period of twenty-five (25) years from the date of receipt of last batch/lot of equipment at site. c) The premium charges, recurring charges, any other expenditure under the Insurance Policy shall be covered by the Contractor. d) The insurer must continue to compensate end users for warranty claims for the product quality and/or performance even if contractor ceases to exist as an independent operating company. e) The insurance shall be non-cancellable by the insurer and shall provide third party bankruptcy rights. Coverage under the insurance policy shall be immediate, without any waiting period
	13.5	**Modify the GCC Clause 13.5 as under:** The Bank Guarantees submitted towards Advance Payment Security, Contract Performance Security and Security in compliance to the Deed of Joint Undertaking (if applicable) shall be essentially from any of the Banks listed at **Annexure-I** to Section-V (Special Conditions of Contract) of the bidding documents. The Insurance Surety Bond towards the Contract Performance Security and the Security towards the Deed of Joint Undertaking (if applicable) shall be essentially from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).Payment on Order Instrument towards Performance Security shall be issued by either of the following three organizations, viz. (i) Indian Renewable Energy Development Agency Limited (IREDA) or (ii) Power Finance Corporation Limited or (iii) REC Limited in the form of a letter of undertaking provided in Section-VII (Forms and Procedures)-Form of Performance Security of the bidding documents. In case of guarantees issued by branches outside India for foreign banks, the bank guarantees shall be routed through the correspondent Bank in India for due verification of signatures of the executant and lodgement of claim.

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		The bank guarantee submitted from within India towards Advance Payment Security, Contract Performance Security and Security for Deed of Joint Undertaking (if applicable) shall be executed on a stamp paper of appropriate value as per stamp act prevailing in the State of the issuing Bank in India or the state of submission of BG or the State from where the BG shall be acted upon, whichever is higher.
	13.6	Replace GCC clause 13.6 as under: A BG issued by a Bank outside India and Insurance Surety Bond issued by an Indian Insurance company outside India need to be submitted by the Bidder directly to the employer as mentioned at GCC clause 13.7. The BG/ Insurance Surety Bond/ **Payment on Order Instrument** also needs to bear stamp duty of appropriate value applicable to the place in NTPC where BG/ Insurance Surety Bond/ **Payment on Order Instrument** is to be submitted. The BG/ Insurance Surety Bond (issued outside India) may be got adjudicated by the employer from Collector of Stamps, within 3 months of arrival of BG/ Insurance Surety Bond in India. Expenses incurred in this regard shall be adjusted from the payment due to the contractor.
9.1	13.7	(a) All BGs except BG issued by a Bank outside India and all Insurance Surety Bonds except those issued by an Indian Insurance company outside India and Payment on Order Instrument, shall be received from issuing Bank/Insurance company/POI issuing organization directly through post/ courier, by the Employer as per Address of Employer mentioned below for submission of Bank Guarantee(s)/ Payment on Order Instrument (POI)/ Insurance Surety Bond(s): **Address of Employer for submission of Bank Guarantee(s)/ Insurance Surety Bond(s)/ POIs:** Contracts Services Deptt., NTPC Renewable Energy Limited, Address: Renewables Building, E-3, Ecotech-II Udyog Vihar, Greater Noida Gautam Buddha Nagar – 201306 **(b)** A soft copy of the BG/ Insurance Surety Bond/ Payment on Order Instrument is mandatorily required to be mailed to the e-mail address mentioned below by the issuing Bank/ Insurance company/ POI Issuing Organisation**:** prishantpathik@ntpc.co.in; vishaljain@ntpc.co.in **(c) Details of Employer's Bank for confirmation of BGs through SFMS/ SWIFT:** Bank Name: **Axis Bank** Branch: **Axis Bank Ltd., B2-B-3, Sector 16, Noida, Gautam Buddha Nagar, UP 201301** Branch Code: **000022** IFSC Code: **UTIB0000022** Account No.: **921020013636047** (e) All Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instruments (POIs) should be enforceable for minimum ninety (90 days) after expiry of its validity.

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		(f) Extension of all BGs/ Insurance Surety Bonds/ POIs should be on Stamp paper of same value as that of the original BG/ Insurance Surety Bond/ POIs. Minimum extension of any BG/ Insurance Surety Bond/ POI should be three months.
10.0	19.4	**Add new GCC Clause 19.4 as under:** Order (Public Procurement No. 4) dated 23.02.2023 in respect of Rule 144 (xi) of the General Financial Rules (GFRs) 2017 issued by Department of Expenditure, Ministry of Finance are enclosed as **Annexure-II** to Section-V (Special Conditions of Contract) of the Bidding documents.
11.0	25.1.2	**Add new GCC Clause 25.1.2 as under:** **O&M for Part Capacity Commissioning:** Standard 15 years O&M shall start from the date of commissioning of full capacity. However, in case of part capacity commissioning in line with provisions of Technical Specifications, the start date of 15-year O&M period for such capacity shall be the date of commissioning of respective capacity. The O&M period of such part capacity shall be extended by equivalent period with same rates, terms and conditions, in order to maintain same O&M completion date for the total project capacity (i.e 15 years from commissioning date of full capacity).
12.0	25.2	**Clause 25.2 and other relevant clauses of GCC:** The term “Guarantee Test” along with its definition meaning, interpretation wherever appearing in the GCC or SCC or elsewhere in the Bidding Documents shall be replaced by “commissioning of respective capacity” as defined in Section-VI, Technical Specifications. **Any activity, milestone or obligation of the contractor or Employer under the Contract which are linked with completion of Guarantee Test shall be deemed to be completed after successful completion of Commissioning of the Part Capacity/Final commissioning as defined in Section VI, Technical Specifications.**
13.0	26.2	**Applicable rate for liquidated Damages:** **(A) Liquidated Damages for Delay in Commissioning shall be as under:** If the Contractor fails to **successfully achieve Commissioning as per package scope within the time schedule specified in the Contract Agreement**, the Contractor shall pay to the Employer as Liquidated Damages and not as penalty, a sum calculated at the following rates: The Contractor shall be liable to pay Liquidated Damaged at the rate of 0.5% (half Percent) of the Contract Price (excluding ‘supply and F&I price’ of Mandatory Spares and O&M), corresponding to **un-commissioned portion of work in MW** for each week (7 days) or a part thereof of delay till commissioning of the entire project, subject to a maximum of 5% (Five Percent) of the total Contract [i.e. total of First and Second Contract]. Un-commissioned portion of

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT
		work in MW shall mean such capacity (part or full) which commissioning has not been accepted by Employer in terms of Technical Specifications. **(B)** The liquidated damages for delay in supply of spares beyond the dates stipulated under the Contract shall be as follows: One half of the one percent (1/2%) of Ex-Works price of undelivered spares, per week or part thereof of delay subject to maximum of five percent (5%) of the total Ex-Works Price of all spares included in the scope of work of the Contractor under the Contract **(C) Maximum deduction for liquidated damages:** The total amount of liquidated damages for delay under the contract will be subject to a maximum of five percent (5%) of the total Contract Price [i.e. total of First and Second Contract]. **(D)** GST is not applicable on liquidated damages (LD)
14.0		**NOT USED**
15.0	28	The words “Appendix-8 (Functional Guarantee)” appearing in the GCC Clause 28 and any other places in the bidding documents shall be read in conjunction with Technical Specifications, Section-VI of Bidding Documents.
16.0		NOT USED
17.0	32.1	**Replace the GCC sub-Clause 32.1 as follows:** The Contractor shall be responsible for the care and custody of the Facilities or any part thereof until the date of Completion of Operation and Maintenance (O&M) Period and shall make good at its own cost any loss or damage that may occur to the Facilities or the relevant part thereof from any cause whatsoever during such period. The Contractor shall also be responsible for any loss or damage to the Facilities caused by the Contractor or its Subcontractors in the course of any work carried out, pursuant to GCC Clause 27 (Defect Liability). Notwithstanding the foregoing, the Contractor shall not be liable for any loss or damage to the Facilities or that part thereof caused by reason of any of the matters specified or referred to in paragraphs (a), (b) and (c) of GCC Sub-Clauses 32.2 and 38.1.
18.0	34.1	**Add new GCC Sub-Clause 34.1 (h) as follows:** The insurance liabilities of the Contractor during Operation and Maintenance period has been brought out in Technical Specifications. In addition to the insurance liabilities indicated therein, the Contractor may take MBD insurance policy but it would be the responsibility of the contractor to operate and maintain the project and all the equipments in perfect condition at his own cost for the entire period of O&M Contract for which the Employer shall pay the agreed O & M charges only. The replacement / repair /modification of any / all equipment has to be carried out by the contractor at his own cost for the entire period of the contract. The Employer shall not be responsible for any break down / failure of any equipment to any reason thereof and that contractor shall maintain requisite stock of spares of various equipment.

<table>
<tr><th>FSCC NO.</th><th>GCC CLAUSE (IF ANY)</th><th>SPECIAL CONDITIONS OF CONTRACT</th></tr>
<tr><td>19.0</td><td>39</td><td>POST AWARD CONTRACT PRICE AMENDMENT: Not Applicable</td></tr>
<tr><td rowspan="2">20.0</td><td>40.1(g)</td><td>Add new provisions at GCC 40.1(g) and 40.5 as under:

Any delay in grant/ operationalization of LTA by the STU or in readiness of the bay/STU substation at the Delivery Point being developed by Transmission System licensee, including readiness of the power evacuation and transmission infrastructure of the STU network until SCD of the Project, subsequent to grant of connectivity and adherence to all application formalities and procedures for grid connectivity/LTA notified by SERC/CERC/STU.</td></tr>
<tr><td>40.5</td><td>Any time extension for ISTS/CTU substation works due to any delay by transmission system licensee/ ISTS/CTU in terms of GCC Clause 40.1(g), established through document, which is not attributable to EPC contractor, shall be considered by Employer on case-to-case basis. Employer shall request Implementing agency/procurer for time extension citing such delay. In case any relaxation is allowed by implementing agency/ procurer to Employer, time extension as decided by Employer shall be provided to Contractor.</td></tr>
<tr><td>21.0</td><td>46.0</td><td>The version of Policy for Debarment from Business dealings presently followed by NTPC is Rev. 04.</td></tr>
<tr><td>22.0</td><td>-</td><td>NOT USED</td></tr>
<tr><td>23.0</td><td>-</td><td>NOT USED</td></tr>
<tr><td>25.0</td><td>General</td><td>AMC of Critical Equipment for Stipulated Duration beyond O&M Period

The Contractor shall furnish undertaking jointly executed by itself and its vendor for Annual Maintenance Contract of critical equipment for stipulated duration beyond O&M period as specified in the Technical Specification.

Proforma for the Joint Undertaking for AMC of critical Equipment for Stipulated Duration Beyond O&M Period for Floating System (Floaters & platforms) including anchoring & mooring with complete system /Floater Units/ Floating platform /Inverter/ SCADA/ Power Plant Controller (PPC) System/ Tracker Based MMS/ Dry Robotic Cleaning System/ CCTV System and BESS along with BMS, PCS and EMS is enclosed under Section-VII (Forms and Procedures). Bidders to note that separate Joint undertaking is required to be furnished for aforesaid equipment.

The Joint Undertaking shall be submitted 60 days before completion of O&M Contract.</td></tr>
<tr><td>26.0</td><td>General</td><td>The instruments such as Letter of Undertakings, Joint Deed of undertakings etc which are presently specified to be furnished on nonjudicial stamp paper of appropriate/requisite value, shall be stamped as per Indian Stamp Act.</td></tr>
<tr><td>27</td><td>Checklist of Documentation Requirements for Claims Under Change</td><td><table><tr><td>Type of Material</td><td>Document Checklist at the time of Material Supply
(All documents must be retained by Site Team)</td><td>Document Checklist at the time of Payment Release</td></tr></table></td></tr>
</table>

FSCC NO.	GCC CLAUSE (IF ANY)	SPECIAL CONDITIONS OF CONTRACT		
	in Law Provisions of PPA	**Indian Supply Material (Domestic Material)**	a. Detailed E-Way Bill with complete goods information, including: i. Ship-to address must be mapped to site address (one-to-one mapping) ii. Vehicle details matching with E-way Bill/LR (Lorry Receipt) iii. Taxable amounts matching invoice and document details iv. In case of third-party supply, one-to-one linkage of E-Way Bill with the third-party invoice and supporting documentary proof. v. aterials transported without E-Way Bill (e.g., local conveyance from contractor's store to plant) are strictly prohibited (If the value of goods more than Rs 50,000/-). vi. Part E-Way Bills are strictly prohibited; only detailed E- Way Bills will be accepted. e. LR COPY	a. Contractor's invoice must be raised prior to COD, with the ship-to address as the project address b. Detailed E-Way Bill with goods information c. HSN code verification with E-Way Bill (For Supply-85 and services-99) d. Material Dispatch Clearance Certificate (MDCC) e. Lorry Receipt (LR Copy) f. Material Receipt Certificate (MRC) g. A summarized Excel sheet containing details as per format at **Annexure-V**.

LIST OF ANNEXURES TO SCC

1. Annexure-I : List of Banks & NTPC's letter dated 03.09.2014 to SBI
2. Annexure-II : DoE Order regarding Rule 144 (xi) of the General Financial Rules (GFRs)
3. Annexure-III : Panel of Conciliation Committees of Independent Experts (CCIE)
4. Annexure-IV : Provisions for Post Award Contract Price Amendment on account
5 Annexure-V : Format for Checklist of Documentation Requirements for Claims Under Change in Law Provisions of PPA

ANNEXURE-I TO SPECIAL CONDITIONS OF CONTRACT

LIST OF BANKS ACCEPTABLE FOR SUBMISSION OF BANK GUARANTEE FOR ADVANCE/SECURITY DEPOSIT TO BE FURNISHED BY BIDDER/CONTRACTOR CAN BE ACCEPTED

SCHEDULED COMMERCIAL BANKS

A STATE BANK OF INDIA

B NATIONALISED BANKS

1. Allahabad Bank
2. Andhra Bank
3. Bank of India
4. Bank of Maharashtra
5. Canara Bank
6. Central Bank of India
7. Corporation Bank
8. Dena Bank
9. Indian Bank
10. Indian Overseas Bank
11. Oriental Bank of Commerce
12. Punjab National Bank
13. Punjab & Sind Bank
14. Syndicate Bank
15. Union Bank of India
16. United Bank of India
17. UCO Bank
18. Vijaya Bank
19. Bank of Baroda

C SCHEDULED PRIVATE BANKS (INDIAN BANKS)

1. Catholic Syrian Bank
2. City Union Bank
3. Dhanlaxmi Bank Ltd.
4. Federal Bank Ltd
5. Jammu & Kashmir Bank Ltd
6. Karnataka Bank Ltd
7. Karur Vysya Bank Ltd
8. Lakshmi Vilas Bank Ltd
9. Nainital Bank Ltd
10. Kotak Mahindra Bank
11. RBL Bank Ltd
12. South Indian Bank Ltd
13. Tamilnadu Mercantile Bank Ltd
14. ING Vysya Bank Ltd
15. Axis Bank Ltd.
16. IndusInd Bank Ltd
17. ICICI Bank
18. HDFC Bank Ltd.
19. DCB Bank Ltd
20. Yes Bank Ltd
21. IDFC Bank Limited
22. Bandhan Bank Limited

D SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

1. Abu Dhabi Commercial Bank Ltd
2. Bank of America NA

3. Bank of Bahrain & Kuwait B.S.C.
4. Mashreq Bank p.s.c.
5. Bank of Nova Scotia
6. Crédit Agricole Corporate and Investment Bank
7. BNP Paribas
8. Barclays Bank
9. Citi Bank N.A.
10. Deutsche Bank A.G.
11. The HongKong Shangai Banking Corporation Ltd
12. Societe Generale
13. Sonali Bank Ltd.
14. Standard Chartered Bank
15. J.P. Morgan Chase Bank, National Association
16. State Bank of Mauritius Ltd.
17. DBS Bank Ltd.
18. Bank of Ceylon
19. PT Bank Maybank Indonesia TBK
20. A B Bank
21. Shinhan Bank.
22. CTBC Bank Co. Ltd.
23. Mizuho Bank Ltd
24. Krung Thai Bank Public Company Ltd.
25. The Bank of Tokyo-Mitsubishi UFJ Limited.
26. Austalia & Newzealand Banking Group Limited
27. Sumitomo Mitsui Banking Corporation

28. American Express Banking Corporation
29. Qatar National Bank SAQ
30. Credit Suisse A.G.
31. First Rand Bank Ltd.
32. Industrial & Commercial Bank of China Ltd.
33. JSC VTB Bank
34. National Australia Bank
35. Cooperative Rabobank U.A.
36. Sberbank
37. United Overseas Bank Ltd.
38. Westpac Banking Corporation
39. Woori Bank
40. The Royal Bank of Scotland plc.
41. Doha Bank Qsc
42. Industrial Bank of Korea
43. KEB Hana Bank
44. First Abu Dhabi Bank PJSC
45. Emirates NBD Bank (P.J.S.C)

E OTHER PUBLIC SECTOR BANKS

1. IDBI Bank Ltd.

* Bidder to take note of NTPC letter Ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter Ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 enclosed herewith.

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

BIDDING DOCUMENTS

FOR

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

SECTION - I, II, III, IV & V

SECTION – VII
(BOOK 1 OF 3)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

SECTION – VII
(BOOK 1 OF 3)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

BIDDING DOCUMENTS
FOR

DEVELOPMENT OF 6 MW FLOATING SOLAR PV PROJECT COUPLED WITH 6 MW /24 MWHR BATTERY ENERGY STORAGE SYSTEM (BESS) AT ABVTPS PROJECT OF CSPGCL PROJECT THROUGH CNGEL (JV COMPANY BETWEEN NGEL & CSPGCL)

SECTION - I, II, III, IV & V

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

CONTENTS

Section I : Invitation for Bids (IFB)

Section II : Instructions to Bidders (ITB)

Section III : Bid Data Sheet (BDS)

Section IV : General Conditions of Contract (GCC)

Section V : Special Conditions of Contract (SCC)

Section VI : Technical Specification (TS)

Section VII : Forms and Procedures (FP) [as per details here-under]

SL NO	DESCRIPTION
SECTION-VII (BOOK 1 OF 3)	
1A	Bid Form and Attachments (Techno Commercial Bids)
SECTION-VII (BOOK 2 OF 3)	
1B	Bid Form and Attachments (Price Bid)
SECTION-VII (BOOK 3 OF 3)	
2	Bid Security Forms
2a	Bid Security Form - Bank Guarantee
2b	Bid Security Form- Insurance Surety Bond
2c	Bid Security Form- Payment on Order Instrument
2d	Bid Security- EFT Details
2e	Bank Undertaking Format for BG
2f	Bid Security Form JOINT VENTURE**- NOT APPLICABLE**
3	Forms of Notification of Award
4	Form of Contract Agreement and Appendices
5	Performance Security Forms
5a	Performance Security Forms- Bank Guarantee
5b	Performance Security Forms- Insurance Surety Bond
5c	Performance Security Forms -Payment on Order Instrument
6	Bank Guarantee Forms for Advance Payment

6a	BG Form for Advance Payment - Supply Ex-Works
6b	BG Form for Advance Payment - Installation Services/ Civil & Allied Works/ Additional Advance Payment
7	Form of Completion Certificate
8	Form of Operational Acceptance
9	Form of Trust Receipt
10	Form of Indemnity-cum-Undertaking Agreement
11	Form of Authorization Letter
12	Form of Bank Guarantee/ Insurance Surety Bond/ POI Verification Checklist
13	Form of Validity Extension of Bank Guarantee/ / Insurance Surety Bond/ POI Verification Checklist
14	Form of Indemnity-cum-Undertaking Agreement regarding Removal/ Disposal of Scrap and Surplus Material
15	Form of Bank Guarantee by Associate – Collaborator – **NOT APPLICABLE**
16	Form of Notification by the Employer to the Bidder-Bid Guarantee Forfeiture
17	Form of Joint Deed of Undertaking – **NOT APPLICABLE**
18	Bank Guarantee Form for Quoted Generation in Excess of DC:AC ratio specified at Technical Specification/ SCC
19	Joint Undertaking for AMC of Critical Equipment for Stipulated Duration beyond O&M Period
20	Forms for Stage Closing Activities
20a	Proforma of Certificate regarding Labour Payments and Statutory Requirements to be furnished by the Contractor
20b	Proforma of No Demand Certificate by the Contractor
21	Undertaking for Indemnifying the Employer against any Encumbrance on the Project Land transferred/ leased to Employer in respect of Development of Solar PV Project– **NOT APPLICABLE**
22	Certificate from Bank regarding BG Charges
23A	Declaration of absence of conflict of interest with Conciliation committees of independent experts (CCIE)
23B	Undertaking regarding absence of conflict of interest with Employer/ contractor

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
SECTION - I, II, III, IV & V

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

CAUTION LIST

(Bidder may take note of the following points while submitting its bid)

- BIDDERS ARE REQUIRED TO FURNISH REQUISITE DETAILS IN THE FORMATS SPECIFIED IN THE BIDDING DOCUMENTS FOR MEETING THE STIPULATED QUALIFYING REQUIREMENTS (QR) ALONG WITH ALL SUPPORTING DOCUMENTS LIKE COPIES OF CLIENT'S CERTIFICATES, WORK ORDER AND CONTRACT AGREEMENTS ETC. ***IF ANY OF THE REFERENCE WORK FURNISHED BY BIDDER PERTAINS TO THE CONTRACT(S)/WORKS EXECUTED BY BIDDER FOR NTPC/ NTPC REL IN THE PAST THEN IN RESPECT OF SUCH CONTRACT(S)/WORKS BIDDER IS NOT REQUIRED TO ENCLOSE CLIENT CERTIFICATE(S) ALONG WITH ITS BID.***

  IN CASE OF A PRE-QUALIFIED BIDDER (I.E. THE BIDDER WHO HAS RECEIVED THE PRE-QUALIFICATION LETTER FROM EMPLOYER), THE BIDDER IS NOT REQUIRED TO SUBMIT THE DETAILS/ DOCUMENTS PERTAINING TO REFERENCE PLANTS / WORKS / PAST EXPERIENCES TO MEET THE CRITERIA UNDER THE SAID CLAUSE/ ROUTE OF QUALIFYING REQUIREMENTS IF THE BIDDER IS SEEKING QUALIFICATION UNDER SAME CLAUSE/ ROUTE OF QUALIFYING REQUIREMENTS.

- IN CASE OF EXTENSION OF TECHNO-COMMERCIAL BID OPENING DATE, BIDDER TO FURNISH AUDITED ANNUAL REPORTS ALONG WITH THEIR BID AS PER EXTENDED DATE OF TECHNO-COMMERCIAL BID OPENING TO MEET THE STIPULATED FINANCIAL QR CRITERIA.

- **POWER OF ATTORNEY DULY NOTARIZED BY A NOTARY PUBLIC** INDICATING THAT THE PERSON SIGNING THE BID HAS THE AUTHORITY TO SIGN THE BID AND THE BID IS BINDING UPON THE BIDDER DURING THE FULL PERIOD OF ITS VALIDITY **BACKED BY A COPY OF BOARD RESOLUTION/ OTHER RELEVENT DOCUMENTS** TO DEMONSTRATE THE AUTHORITY OF THE PERSON ISSUING THE POWER OF ATTORNEY. POWER OF ATTORNEY SHOULD BE DATED NOT LATER THAN THE DATE OF SIGNING THE BID. TO BE FURNISHED **IN PHYSICAL FORM BEFORE THE CLOSING DATE AND TIME OF THE BID SUBMISSION.**

- BIDDER TO ENSURE THAT **BID SECURITY TO BE SUBMITTED IN ORIGINAL** STRICTLY AS PER SPECIFIED FORMATS DULY SIGNED BY AUTHORISED SIGNATORY AND STAMPED ON EACH PAGE **IN PHYSICAL FORM BEFORE THE CLOSING DATE AND TIME OF THE BID SUBMISSION**. BIDDER TO ENSURE STRICT COMPLIANCE OF **BID SECURITY VERIFICATION CHECKLIST** (FORM 12, SEC-VII, BOOK 3 OF 3).

  IN CASE, BIDDER OPTS FOR BANK GUARANTEE AS BID SECURITY BUT UNABLE TO SUBMIT THE ORIGINAL BANK GUARANTEE IN PHYSICAL FORM AT THE TENDER OPENING LOCATION, BEFORE THE DEADLINE FOR SUBMISSION OF BIDS, PROVISION OF ITB CLAUSE TITLED "BID SECURITY" SHALL BE APPLICABLE.

- **DATE OF PURCHASE OF STAMP PAPER OF INSTRUMENTS LIKE BID SECURITY ETC. SHOULD BE ON OR BEFORE THE DATE OF EXECUTION OF SUCH INSTRUMENTS.**

BID FORM (TECHNO-COMMERCIAL BID)

Bidder Proposal Ref. No.: **Date :**

IFB No.: NRE-CS-5839-CNGEL-EPC

NAME OF PACKAGE: Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO. : NRE-CS-5839-CNGEL-EPC

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, NETRA Building
E-3, Ecotech-II, Udyog Vihar
Greater Noida-201306, Distt. Gautam Buddha Nagar,
Uttar Pradesh, India

Gentlemen and/or Ladies,

1.0 Having examined the Bidding Documents No. **NRE-CS-5839-CNGEL-EPC,** including subsequent amendments and clarifications if any, the receipt of which is hereby acknowledged, we the undersigned, offer to design, manufacture, test, deliver, install and commission the facilities under the above-named Contract in full conformity with the said Bidding Documents and hereby furnish our Techno-Commercial Bid.

2.0 **Attachments to the Techno Commercial Bid form:**

In line with the requirement of the Bidding Documents we enclose herewith the following Attachments to the Bid Form:

(a) ***Attachment 1:** Bid Security

Bid Security in the form of ………………..….(please fill in the alternative chosen)…… for a sum of INR .... (Indian Rupees ....) [in figures and Words] valid for a period of 165 days from the date set for opening of Techno-Commercial bids. As required, the Attachment-1 (i.e. Bid Security) has been furnished in a separate sealed envelope.

(a1) *~~**Attachment 1A:** Total Capacity and Block(s) of the Project Quoted by Bidder~~

~~**Block(s) are to be quoted by the bidder by way of choosing 'any one' or 'both' the options listed in the Attachment-1A.** We have quoted the desired Block(s) in Attachment-1A accordingly. We understand that our quoted blocks are in accordance with the Bid Security submitted by us as per ITB Clause 12.0.~~

. (b) ***Attachment 2:** A power of attorney duly authorised by a Notary Public indicating that the person(s) signing the bid has/have the authority to sign the bid and thus that the bid is binding upon us during the full period of its validity in accordance with the ITB Clause No.13.

(c) **Attachment 3:** The documentary evidence establishing in terms of Section ITB Clause 8.2.4 (c) and Item No. 3.0 of Bid Data Sheets that we are qualified to perform the Contract if our bid is accepted. The qualification data has been furnished as per your format enclosed with the bidding documents.

(d) **Attachment 4:** The documentary evidence establishing in accordance with ITB Clause 2 that the facilities offered by us are eligible facilities and conform to the Bidding Documents has been furnished as Attachment 4.

(e) **Attachment 4A:** A list of Special Tools & Tackles to be furnished by us, the cost of which is included in our Bid Price, is enclosed as per your format as Attachment 4A.

(f) **Attachment 5:** The details of all major items of services or supply which we propose subletting giving details of the name and nationality of the proposed sub-contractors/sub-vendors for each item.

(g) **Attachment 6 (Deviations):** -- Not Applicable --

(h) **Attachment 7 (Alternative Bids):** – Not Applicable –

(i) **Attachment 8: Schedule of Erection Tools & Equipment and Safety Equipments & Safety Personal Protective Equipments** which we propose to bring to site in case the Contract is awarded to us.

(j) **Attachment 9 :** Technical Data Sheets
Technical Data Sheets duly filled in as per Employer's format enclosed with the Bidding Documents.

(k) **Attachment 10:** Details of Bought Out Items (without value) to be directly despatched by our Sub-contractor(s)/Sub-Vendor(s) to your site.

(l) **Attachment 11:** Quality Assurance Programme containing the overall quality management & procedures which we propose to follow during various phases of execution of the Contract.

(m) **Attachment 12:** Additional Information provided by us.

(n) **Attachment 13:** Milestone schedule along with master network showing the timing and sequence of all key activities necessary for successful completion of the contracts.

(o) **Attachment 14:** Electronic Fund Transfer (EFT) Form duly filled in as per your format enclosed in Bidding Documents.

(p) **Attachment 15:** Acceptance of 'Fraud Prevention Policy' regarding abiding by Fraud Prevention Policy of Employer displayed on its tender website https://www.ntpctender.ntpc.co.in given online through Electronic Form on ETS Portal.

(q) **Attachment 16:** Acceptance of Integrity Pact (IP) to be given online through attribute on ETS portal.

(r) **Attachment 17:** Acceptance of Declaration on Policy for Debarment of Business Dealings given online through Electronic Form on ETS Portal.

(s) **Attachment 18 :** Declaration of Annual Generation in Million Units

(t) **Attachment 19:** - Not Applicable

(u) **Attachment 20:** Declaration on Local Content

(v) **Attachment-21:** Details of Foreign Principles

(w) **Attachment-22:** Non-Disclosure Agreement

(x) **Attachment-23:** Declaration by the Bidder towards PV Module Performance Insurance

3.0 **CONSTRUCTION OF THE CONTRACT**

3.1 We (applicable to Domestic Bidders only) declare that we have studied GCC Clause 3.6 relating to mode of contracting and we are making this proposal with a stipulation that you shall award us **three separate Contracts for each of the allocated blocks** viz. **'First Contract'** for Ex-Works (India) supply of all Plant and Equipments and Mandatory Spares to be supplied from within the Employer‘s country, **'Second Contract'** for providing all services i.e Inland Transportation for Delivery at Site, Inland Transit Insurance, Receipt, unloading at site, storage, Handling at Site, Installation (including civil, structural steel work & allied work, if applicable), insurance covers other than Inland Transit Insurance, Testing and Commissioning in respect of all the equipment supplied under the 'First Contract', and Civil Works & all other services specified in the Contract Documents and **'Third Contract'** for Operation & Maintenance of complete Solar PV plant along with electrical equipment, consumables and spare parts for a period of Three (03) years from the date of successful commissioning of full project capacity and Annual Maintenance Contract (AMC) of the equipments & extended warranty (hereinafter referred as "O&M and Extended warranty contract").

We declare that the award of three separate Contracts will not in any way dilute our responsibility for successful operation of plant and equipments and fulfilment of all the obligations as per Bidding Documents and that all the three Contracts will have cross-fall breach clause i.e. a breach in one contract will automatically be construed as breach of the other Contract(s) which will confer on you the right to terminate all the Contracts at our risk and cost.

4.0 **COMPLIANCE TO THE PROVISION OF THE BIDDING DOCUMENTS**

4.1 We have read all the provision of the Bidding Documents and confirm that notwithstanding anything stated elsewhere in our bid to the contrary, the provisions of the Bidding Documents are acceptable to us and we further confirm that we have not taken any deviation to provision of the Bidding Documents anywhere in our bid.

We have furnished our compliance to the provisions of the Bidding Documents and its subsequent Amendment(s) /Clarification(s)/Addenda/Errata by accepting the following attribute in Main Screen of Bid invitation:.

"Do you certify compliance to all provisions of Bid Documents?"

Acceptance of above attribute shall be considered as our confirmation that any deviation, variation or additional condition etc. or any mention, contrary to the provisions of Bidding Documents and its subsequent Amendment(s)/ Clarification(s) /Addenda/Errata (if any) found anywhere in our bid proposal implicit or explicit shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which our bid shall be rejected.

4.2 We further declare that additional conditions, variations, deviations to the provisions of Bidding Documents and its subsequent Amendments/Clarifications/Addenda/Errata, if any, found in our bid, shall not be given effect to.

4.3 We have furnished our compliance on “Qualifying Requirements” of Employer by accepting the following attribute in Electronic Form on ETS Portal:

“Do you certify full compliance on Qualifying Requirements?”

4.4 We hereby confirm that the number of reference Plants quoted by us in relevant Attachment [i.e. Attachment No-3A] of the bid, for establishing compliance to the specified Qualifying Requirement (QR), are not more than numbers permitted as per relevant provisions of Section-III, BDS. We also confirm that the reference Plants declared more than specified No. in BDS shall not be considered for evaluation / establishing compliance to Qualifying Requirement (QR) as brought an Attachment-3A.

We further confirm that no change or substitution in respect of reference Plants, as specified in our bid, by new/ additional plant for meeting the specified Qualifying Requirement (QR) shall be offered by us.

4.5 We have read the ITB clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on subcontracting to contractors from such countries. We certify that we/our Collaborator/JV Partner/Consortium member/Assignee are/is not from such a country or, if from such a country, have/has been registered with the Competent Authority and we will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority.

*Further, we certify that we do not have any TOT arrangement requiring registration with the competent authority.

Or

*Further, we certify that we have valid registration with the competent authority to participate in this procurement.

We hereby certify that we fulfill all requirements in this regard and are eligible to be considered.

***We further confirm that evidence of valid registration by the Competent Authority for us/our Collaborator/JV Partner/Consortium member/Assignee, as applicable, is enclosed as Annexure…**....**

***Bidder to strike-off, if not applicable.**
****Bidder to mention the Annexure No.**

5.0 We undertake, if our bid is accepted, to commence work on the Facilities immediately upon your Notification of Award to us and to achieve Completion of Facilities and commission the project within the time specified in the Bidding Documents.

6.0 If our bid is accepted, we undertake to provide Advance Payment Security, Contract Performance Securities including that our collaborator(s)/associate(s) (if applicable) and securities for Deed(s) of Joint Undertaking (as applicable) and other Securities in the form and amounts and within the times specified in the Bidding Documents.

7.0 **We agree to abide by our this Techno-Commercial bid including the Price Bid after Reverse Auction during the period of its original validity and any extension subsequently granted pursuant to ITB Clause 13.2 for a period 120 days from the date of opening of Techno-Commercial Bids as stipulated in the Bidding Documents, unless extended by us on your request and it shall remain binding upon us and may be accepted by you at any time before expiration of that period.**

8.0 Until a formal Contract is prepared and executed between us, this bid, together with your written acceptance thereof in the form of your Notification of Award shall constitute a binding contract between us.

9.0 We understand that you are not bound to accept our bid or any other bid you may receive.

10.0 We, hereby, declare that only the persons or firms interested in this proposal as principals are named here and that no other persons or firms other than those mentioned herein have any interest in this proposal or in the Contract to be entered into, if the award is made on us, that this proposal is made without any connection with any other person, firm or party likewise submitting a proposal, is in all respects for and in good faith, without collusion or fraud.

Dated this..........................day of.........................20..................

Thanking you, we remain,

Yours faithfully,

Date :

(Signature)..

Place : (Printed Name).................................

(Designation)...................................

(Common Seal)................................

Business Address :______

Email id :

Mobile No. :

Fax No. : ______

Phone No.:

Note : 1. Bidders may note that no prescribed proforma has been enclosed for :

(a) Attachment 2 (Power of Attorney)

(b) Attachment 4, (For documentary evidence establishing that the facilities offered are eligible facility and conform to bidding documents.).

For Attachments 2 and 4, Bidders may use their own proforma for furnishing the required information with the Bid.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

BID SECURITY
(To be Submitted offline)

BIDDER TO FURNISH BID SECURITY IN LINE WITH ITB CLAUSE 12.0 (BDS ITEM NO. 5.1, 5.2, 5.3 AND 5.4) AND AS PER FORMAT GIVEN AT FORM 2 OF SECTION-VII (FORMS & PROCEDURES)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Total Capacity and blocks of the Project Quoted by Bidder

NOT Applicable

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

POWER OF ATTORNEY

BIDDER TO ATTACH THE POWER OF ATTORNEY IN ACCORDANCE WITH CLAUSE 8.2.4 (b) OF ITB

(BOARD RESOLUTION IN FAVOUR OF AUTHORIZED SIGNATORY ALSO ENCLOSED)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Qualification Data)

We seek qualification under Clause 8.2.4 (c) of Section ITB and Item No. 3 of Bid Data Sheet and our qualification data in support thereof is enclosed in the following Attachments:

1.	Attachments 3A	:	Experience Details of Bidder
2.	Attachment 3B	:	Details of Financial Capacity Status
3.	Attachment 3C	:	Details of manufacturing and testing Capacities
4.	Attachment 3D	:	Details of manufacturing capacities & Plant Loading
5.	Attachment 3E	:	Present order book position
6.	Attachment 3F	:	Past Performance Data
7.	Attachment 3G	:	Data regarding Key Construction Personnel
8.	Attachment 3H	:	Manpower Loading Data
9.	Attachment 3I	:	Deed of Joint undertaking (if applicable)
10	Attachment 3J	:	Detail regarding Project Management Organisation
11.	Attachment 3K	:	Declaration by the Bidder who did not manufacture or otherwise produce and/or install plant and equipment of Solar Project
12.	**Attachment 3L**	**:**	**Declaration regarding insolvency, bankruptcy and Liquidation**

We further understand and agree that any misleading or false information furnished by us may result in summary rejection of our bid.

Note : 1. The Bidder shall enclose relevant documents like copies of authentic purchase order, completion certificates, agreements etc. supporting the details/data provided in above Attachments.

ATTACHMENT - 3A-1

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Details Pertaining to Technical Qualification of the Bidder As per Item No. 3.1 of the Bid Data Sheet)

(A) FOR BIDDERS WHO RECEIVED COMMUNICATION FROM EMPLOYER REGARDING QUALIFICATION AS PER CLAUSE 3.1 OF BDS

We M/s ……… (Name of bidder) ……………., hereby confirm that we have received Employer's letter no. ………….. dated …………. communicating that we are not required to submit the details/ documents pertaining to reference works/ plants/ past experiences, in case we seek qualification under *clause/ *route no.……. of Qualifying Requirements *along with the support of M/s ……………….… (Name of associate/ collaborator, as applicable)…. as Associate/ Collaborator *or along with M/s ……………….. (Name of JV/ Consortium partner(s)) …………..… as JV/ Consortium partner(s).

We hereby confirm that we are seeking qualification under same *clause/ *route no. …….. of Qualifying Requirements *along with the support of M/s ……….…. (Name of associate/ collaborator, as applicable) ……….. *or along with M/s ………….. (Name of JV/ Consortium partner(s)) ……….…

Accordingly, we are not submitting the details/ documents pertaining to reference plants / works / past experiences to meet the criteria under clause/ route no. ………. of Qualifying Requirements for us as well as for our Associate/ Collaborator/JV Partner/Consortium Partner.

*Strike-off whichever is not applicable

(B) FOR BIDDERS SEEKING QUALIFICATIONS AS PER CLAUSE 3.1(1.1) OF BDS

In support of meeting Qualifying Requirements of Clause 3.1 [1.1] of BDS, we confirm that we have designed, supplied, erected/ supervised erection and commissioned/ supervised commissioning of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 40 MWp or higher, out of which at least one plant have been of 10 MWp or higher capacity.

We further confirm that one reference plant of 10 MWp or higher capacity has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening:

(I) Details of SPV based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher out of which one plant of 2 MWp capacity or higher capacity, as per following details:

Cumulative installed capacity of Grid connected power plant in MWp-

Sl. No.	Item Description	Reference Plant 1 (2 MWp or above)	Reference Plant 2	Reference Plant ….	Cumulative
1.	Description of work				
2.	Name of Client with full address, Fax No. & Tel. No.				
3.	Name of the Power Plant with its location				
4.	Name and designation of the responsible person in client's organization				
5.	Contract No. and Date				
6.	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
7.	Capacity of the Plant	MWp	MWp	MWp	MWp
8.	Whether scope of works included				
	(a) Design	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(b) Supply	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(c) Erection	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(d) Supervised Erection	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(e) Commissioning	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐

	(f) Supervised Commissioning	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
9.	Date of Commissioning of the above Plant				
10.	Copies of authentic purchase orders Completion Certificate from client, Agreements in support of details/data of Sl. No. 1 to 9 enclosed as Annex.				

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(II) Details of reference plant of 2 MWp or higher capacity which has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening, as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Power Plant with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐
7.0	Capacity of the Plant	MWp
8.0	Whether scope of works included	
	(a) Design	YES*☐/NO*☐
	(b) Supply	YES*☐/NO*☐
	(c) Erection	YES*☐/NO*☐
	(d) Supervised Erection	YES*☐/NO*☐
	(e) Commissioning	YES*☐/NO*☐

	(f) Supervised Commissioning	YES*☐/NO*☐
9.0	Date of Commissioning of the above Plant	
10.0	No. of months of successful operation of the above plant prior to the date of Techno- Commercial bid opening date.	
11.0	Completion Certificate & certificate in support of successful operation of plant from client, Copies of Authentic purchase orders, Agreements in support of data/details of Sl. No. 1 to 10 enclosed as Annex.	

Note:

1. Continuation sheets of like size and format may be used and annexed to this Attachment if required.
2. Bidder may furnish additional reference plant (of 2 MWp or higher capacity) which have been in operation for at least six (06) months prior to the date of techno-commercial bid opening.

(C) FOR BIDDER'S SEEKING QUALIFICATIONS AS PER CLAUSE 3.1(1.2) OF BDS

In support of Qualifying Requirements of Clause 3.1 [1.2] of BDS, we confirm that we are a developer of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher, out of which at least one plant have been of 2 MWp or higher capacity.

We further confirm that one reference plant of 2 MWp or higher capacity has been in successful operation for at least six (6) months prior to the date of Techno-Commercial bid opening:

(I) Details of SPV based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher, out of which one plant has been of 2 MWp capacity or higher, as per following:

Cumulative installed capacity of Grid connected power plant in MWp-

Sl. No.	Item Description	Reference Plant 1 (5 MWp or above)	Reference Plant 2	Reference Plant ….	Cumulative
1	Description of work				
2	Name of Client with full address, Fax No. & Tel. No.				
3	Name of the Power Plant with its location				
'4.	Name and designation of the responsible person in client's organization				
5	Contract No. and Date				
6	Whether this is a SPV based grid connected	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐

	Power Plant				
7	Capacity of the Plant	MWp	MWp	MWp	MWp
8	Date of Commissioning of the above Plant				
9	Copies of Authentic Purchase Orders, Certificate from Clients, Agreements in support of details/data of Sl. No. 1 to 8 enclosed as Annex.				

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(II) Details of reference plant of 2 MWp or above capacity which has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening, as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Power Plant with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐
7.0	Capacity of the Plant	MWp
8.0	Date of Commissioning of the above Plant	
9.0	No. of months of successful operation of the above plant prior to the date of Techno- Commercial bid opening date.	
10.0	Copies of Authentic Purchase Orders, Certificate from Clients, certificate in support of successful operation of plant, Agreements in support of details/ data of Sl. No. 1 to 9 enclosed as Annex.	
11.0	the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at	

	Annex……… in support of reference work	

Note:

1. Continuation sheets of like size and format may be used and annexed to this Attachment if required.
2. Bidder may furnish additional reference plant (of 10 MWp or higher capacity) which have been in operation for at least six (06) months prior to the date of techno-commercial bid opening.

(D) FOR BIDDER'S SEEKING QUALIFICATIONS AS PER CLAUSE 3.1{1.3(a) and (b)} OF BDS

(I) In support of Qualifying Requirements of Clause 3.1-1.3 (a) of BDS, we confirm that we have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power*/ steel*/ oil and gas*/ petro-chemical*/ fertilizer*/cement*/coal mining including coal handling plant* and/ or any other process industry*, of a value of **INR 47 Crore (Indian Rupees Forty Seven Crore only)** or more, in a single project or single work and the same should be in **successful operation for at least one (1) year/ six (6) months#** prior to the date of techno-commercial bid opening.

 # Successful operation:
At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind.
At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind).

** Strike off whichever is not applicable*

Details of Industrial Project is as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Industrial Project with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Value of the Project in Crores (Rs) in a single project or work	
7.0	The Industrial Project is in the area of	
	(a) RE- Solar/Wind	YES*☐/NO*☐
	(b) Power- Other than RE Solar/Wind	YES*☐/NO*☐
	(c) Steel	YES*☐/NO*☐
	(d) Oil and Gas	YES*☐/NO*☐
	(e) Petro Chemical	YES*☐/NO*☐
	(f) Fertilizer	YES*☐/NO*☐
	(g) Cement	YES*☐/NO*☐
	(h) Coal Mining including coal handling plant	YES*☐/NO*☐

	(i) Any other process industry	YES*☐/NO*☐
8.0	Whether the Industrial Project has been executed as: **i)** Developer **ii)** EPC	 YES*☐/NO*☐ YES*☐/NO*☐
9.0	Date of Commissioning of the above Project or work	
10.0	No. of year(s)/months of successful operation of the above project prior to the date of Techno- Commercial bid opening date.	YEAR(S)*☐/MONTHS*☐
11.0	Copies of Authentic Purchase Orders, Certificate from Clients, certificate in support of successful operation of plant, Agreements in support of queries of Sl. No. 1 to10 enclosed as Annex.	
12.0	In case the Project executed by Developer the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at Annex……… in support of reference work	

Note:

1. Continuation sheets of like size and format may be used and annexed to this Attachment if required.
2. Bidder may furnish additional reference plant which have been in **successful operation for at least one (1) year/ six (6) months#** prior to the date of techno-commercial bid opening.

 # Successful operation:
At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind.
At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind).

(II) In support of Qualifying Requirements of Clause 3.1-1.3 (b) of BDS, we confirm that we have executed at least one (1) Electrical Sub-station of 33 kV or above voltage level, consisting of equipment such as 33kV or above voltage level circuit breakers and Power transformer, either as developer or as EPC Contractor which should be **successful operation for at least one (1) year/ six (6) months##** prior to the date of techno-commercial bid opening.

<u>Successful operation:</u>
At least **One (1) year** for Electrical Sub-station in Projects other than RE sector i.e., Solar/Wind.
At least **Six (6) months** for Electrical Sub-station in RE Projects (i.e., Solar/Wind).

Details of Electrical Sub Station is as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Electrical Sub Station with its location	
4.0	Name and designation of the responsible person in client's organization	

5.0	Contract No. and Date	
6.0	Voltage level (s)	
7.0	Electrical Sub Station consisting of equipments of 33 KV or above: **(a)** Circuit Breaker **(b)** Power Transformers	 YES*☐/NO*☐ YES*☐/NO*☐
8.0	Whether the Electrical Sub Station has been executed as: i) Developer ii) EPC	 YES*☐/NO*☐ YES*☐/NO*☐
9.0	Whether the Electrical Sub Station is in an RE Solar/Wind Project	YES*☐/NO*☐
10.0	Whether the Electrical Sub Station is in a project other than RE Solar/Wind Project	YES*☐/NO*☐
11.0	Date of Commissioning of the above Electrical Sub Station	
12.0	No. of year(s)/months of successful operation of the above Electrical Sub Station prior to the date of Techno-Commercial bid opening date.	YEAR(S)*☐/MONTHS*☐
13.0	Copies of Authentic Purchase Orders, Certificate from Clients, Agreements in support of queries of Sl. No. 1 to 10 enclosed as Annex.	
14.0	the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at Annex……… in support of reference work	

** Strike off whichever is not applicable*

Note:

1. Continuation sheets of like size and format may be used and annexed to this Attachment if required.
2. Bidder may furnish additional reference plant which have been in **successful operation for at least one (1) year/ six (6) months##** prior to the date of techno-commercial bid opening.

Successful operation:

At least **One (1) year** for Electrical Sub-station in Projects other than RE sector i.e., Solar/Wind.

At least **Six (6) months** for Electrical Sub-station in RE Projects (i.e., Solar/Wind).

(E) FOR BIDDERS SEEKING QUALIFICATIONS AS PER CLAUSE 3.1(1.4) OF BDS

In support of Qualifying Requirements of Clause 3.1 (1.4) of BDS, we …………………(name of the bidder) confirm that we are an Indian company registered in India and we are *Group Company/ *Holding Company/ *Subsidiary company of a firm M/s …………………………who meets the requirement (s) of Clause *3.1(1.1) or *3.1(1.2) or *3.1 (1.3) of BDS. In support of above we furnish the following documents:

(h) Certificate of Incorporation of M/s …………(name of bidder) enclosed at Annexure-----to this Attchment-3A1.
(ii) Documents establishing M/s………..(name of the bidder) is *Group Company/ *Holding Company/ *Subsidiary company of the firm M/s …………………………. enclosed at Annexure-----to this Attchment-3A1.
(iii) As per requirement of clause 3.1 (1.4) of BDS, we have enclosed an Undertaking jointly executed by M/s…………………(name of the firm) who is qualified as per clause *3.1(1.1) or *3.1(1.2) or *3.1(1.3) of BDS and us along with our bid for complete performance of the contract jointly or severally as per format enclosed in the bid document at Appendix-A to this Attachment-3A1.
(iv) Full address, Fax No. & Tel. No. of Group company*/Holding Company*/ Subsidiary company*…………………………..

The experience details of the firm M/s ……………….is provided as per format *(D1) / *(D2) / *(D3) below:

*(*strike whichever is not applicable)*

(D1) DETAILS OF THE FIRM M/s………………………………WHO MEETS THE REQUIREMENT OF CLAUSE 3.1 (1.1) of BDS

We confirm that M/s……………………………………(name of the firm) have designed, supplied, erected/ supervised erection and commissioned/ supervised commissioning of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 40 MWp or higher, out of which at least one plant have been of 10 MWp or higher capacity

We further confirm that one reference plant of 10 MWp or higher capacity has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening

(I) Details of SPV based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher out of which one plant of 2 MWp capacity or higher capacity, as per following details:

Cumulative installed capacity of Grid connected power plant in MWp

Sl. No.	Item Description	Reference Plant 1 (10 MWp or above)	Reference Plant 2	Reference Plant ….	Cumulative
1.	Description of work				

2.	Name of Client with full address, Fax No. & Tel. No.				
3.	Name of the Power Plant with its location				
4.	Name and designation of the responsible person in client's organization				
5.	Contract No. and Date				
6.	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
7.	Capacity of the Plant	MWp	MWp	MWp	MWp
8.	Whether scope of works included				
	(a) Design	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(b) Supply	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(c) Erection	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(d) Supervised Erection	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(e) Commissioning	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
	(f) Supervised Commissioning	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
9.	Date of Commissioning of the above Plant				
10.	Copies of authentic purchase orders Completion Certificate from client,				

	Agreements in support of details/data of Sl. No. 1 to 9 enclosed as Annex.				

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(II) Details of reference plant of 2 MWp or higher capacity which has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening, as per following

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Power Plant with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐
7.0	Capacity of the Plant	MWp
8.0	Whether scope of works included (a) Design (b) Supply (c) Erection (d) Supervised Erection (e) Commissioning (f) Supervised Commissioning	 YES*☐/NO*☐ YES*☐/NO*☐ YES*☐/NO*☐ YES*☐/NO*☐ YES*☐/NO*☐ YES*☐/NO*☐
9.0	Date of Commissioning of the above Plant	
10.0	No. of months of successful operation of the above plant prior to the date of Techno- Commercial bid opening date.	
11.0	Completion Certificate & certificate in support of successful operation of plant from client, Copies of Authentic purchase orders, Agreements in support	

	of data/details of Sl. No. 1 to 10 enclosed as Annex.	

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(D2) DETAILS OF THE FIRM M/s………………………………WHO MEETS THE REQUIREMENT OF CLAUSE 3.1(1.2) OF BDS

We confirm that M/s……………(name of the firm) are a developer of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher, out of which at least one plant have been of 2 MWp or higher capacity.

We further confirm that one reference plant of 5 MWp or higher capacity has been in successful operation for at least six (6) months prior to the date of Techno-Commercial bid opening:

(I) Details of SPV based grid connected power plant(s) of cumulative installed capacity of 5 MWp or higher, out of which one plant has been of 2 MWp capacity or higher, as per following:

Cumulative installed capacity of Grid connected power plant in MWp-

Sl. No.	Item Description	Reference Plant 1 (10MWp or above)	Reference Plant 2	Reference Plant ….	Cumulative
1	Description of work				
2	Name of Client with full address, Fax No. & Tel. No.				
3	Name of the Power Plant with its location				
'4.	Name and designation of the responsible person in client's organization				
5	Contract No. and Date				
6	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐	YES*☐/NO*☐
7	Capacity of the Plant	MWp	MWp	MWp	MWp
8	Date of Commissioning of the above Plant				
9	Copies of Authentic Purchase Orders, Certificate from Clients, Agreements in				

	support of details/data of Sl. No. 1 to 8 enclosed as Annex.				

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(II) Details of reference plant of 5 MWp or above capacity which has been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening, as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Power Plant with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Whether this is a SPV based grid connected Power Plant	YES*☐/NO*☐
7.0	Capacity of the Plant	MWp
8.0	Date of Commissioning of the above Plant	
9.0	No. of months of successful operation of the above plant prior to the date of Techno-Commercial bid opening date.	
10.0	Copies of Authentic Purchase Orders, Certificate from Clients, certificate in support of successful operation of plant, Agreements in support of details/ data of Sl. No. 1 to 9 enclosed as Annex.	
11.0	the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at Annex……… in support of reference work	

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(D3) DETAILS OF THE FIRM M/s………………………………WHO MEETS THE REQUIREMENT OF CLAUSE 3.1{1.3(a) and (b)} OF BDS

(I) We confirm that M/s……………(name of the Firm) have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of power*/ steel*/ oil and gas*/ petro-chemical*/ fertilizer*/cement*/coal mining including coal handling plant* and/ or any other process industry*, of a value of **INR 47 Crore (Indian Rupees Forty Seven Crore only)** or more, in a single project or single work and the same should be in **successful operation for at least one (1) year/ six (6) months#** prior to the date of techno-commercial bid opening.

Successful operation:
At least **One (1) year** for industrial projects other than RE sector i.e., Solar/Wind.
At least **Six (6) months** for projects in RE sector (i.e., Solar/Wind).

** Strike off whichever is not applicable*

Details of Industrial Project is as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Industrial Project with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Value of the Project in Crores (Rs) in a single project or work	
7.0	The Industrial Project is in the area of	
	(a) RE- Solar/Wind	YES*☐/NO*☐
	(b) Power- Other than RE Solar/Wind	YES*☐/NO*☐
	(c) Steel	YES*☐/NO*☐
	(d) Oil and Gas	YES*☐/NO*☐
	(e) Petro Chemical	YES*☐/NO*☐
	(f) Fertilizer	YES*☐/NO*☐
	(g) Cement	YES*☐/NO*☐
	(h) Coal Mining including coal handling plant	YES*☐/NO*☐
	(i) Any other process industry	YES*☐/NO*☐
8.0	Whether the Industrial Project has been executed as:	
	i) Developer	YES*☐/NO*☐
	ii) EPC	YES*☐/NO*☐
9.0	Date of Commissioning of the above Project or work	
10.0	No. of year(s)/months of successful operation of the above project prior to the date of Techno- Commercial bid opening date.	YEAR(S)*☐/MONTHS*☐

11.0	Copies of Authentic Purchase Orders, Certificate from Clients, certificate in support of successful operation of plant, Agreements in support of queries of Sl. No. 1 to10 enclosed as Annex.	
12.0	In case the Project executed by Developer the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at Annex……… in support of reference work	

Note: Continuation sheets of like size and format may be used and annexed to this Attachment if required.

(II) We confirm that M/s ………………(name of the Firm) have executed at least one (1) Electrical Sub-station of 33 kV or above voltage level, consisting of equipment such as 33kV or above voltage level circuit breakers and Power transformer, either as developer or as EPC Contractor which should be in **successful operation for at least one (1) year/ six (6) months##** prior to the date of techno-commercial bid opening

Successful operation:

At least **One (1) year** for Electrical Sub-station in Projects other than RE sector i.e., Solar/Wind.
At least **Six (6) months** for Electrical Sub-station in RE Projects (i.e., Solar/Wind).

Details of Electrical Sub Station is as per following:

Sl. No.	Item Description	Reference Plant
1.0	Description of work	
2.0	Name of Client with full address, Fax No. & Tel. No.	
3.0	Name of the Electrical Sub Station with its location	
4.0	Name and designation of the responsible person in client's organization	
5.0	Contract No. and Date	
6.0	Voltage level (s)	
7.0	Electrical Sub Station consisting of equipments of 33 KV or above: **(a)** Circuit Breaker **(b)** Power Transformers	 YES*☐/NO*☐ YES*☐/NO*☐
8.0	Whether the Electrical Sub Station has been executed as: i) Developer ii) EPC	 YES*☐/NO*☐ YES*☐/NO*☐
9.0	Whether the Electrical Sub Station is in an RE Solar/Wind Project	YES*☐/NO*☐

10.0	Whether the Electrical Sub Station is in a project other than RE Solar/Wind Project	YES*☐/NO*☐
11.0	Date of Commissioning of the above Electrical Sub Station	
12.0	No. of year(s)/months of successful operation of the above Electrical Sub Station prior to the date of Techno-Commercial bid opening date.	YEAR(S)*☐/MONTHS*☐
13.0	Copies of Authentic Purchase Orders, Certificate from Clients, Agreements in support of queries of Sl. No. 1 to 10 enclosed as Annex.	
14.0	the documentary evidence (certified by Chartered Accountant) for value of executed work enclosed at Annex……… in support of reference work	

** Strike off whichever is not applicable*

Notes

a. The reference SPV based grid-connected power plant of 2MWp or above capacity should be at a single location developed by Bidder for itself or any other client.

b. SPV based Roof-top/Floating solar power projects, which are grid connected, shall also be considered eligible for QR purposes.

c. For clause 1.1 & 1.3, bidder shall submit certificate of successful completion and operation from the Owner. However, if bidder in clause 1.3 is a developer, certificate of successful commissioning of the project issued from Government Renewable Nodal Agency/Government Enterprise/ Discom/ Electricity Board etc and evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc shall be submitted.

d. For Clause 1.3, bidder shall submit a documentary evidence for the value of the project certified by a Chartered Accountant.

e. Direct/Indirect Order

The bidder shall also be considered qualified, in case the award for executing the reference work has been received by the bidder either directly from the owner of the plant or any other intermediary organization. In such a case, a certificate from such owner of plant or any other intermediary organization shall be required to be furnished by the bidder along with its techno-commercial bid in support of bidder's claim of meeting the qualification requirement as per clause 1.1 and 1.3 above. Bidder shall also submit a certificate of successful completion and operation from the Owner.

f. For Clause 1.2, bidder shall submit certificate of successful commissioning of the project issued from Government Renewable Nodal Agency/ Government Enterprise/ Discom/ Electricity Board etc.

g. For Clause 1.2, bidder shall submit evidence of successful operation from intermediary procurer/ procurer/Discom/ Electricity Board etc.

h. Developer means an entity who has either executed or got executed the work/ project as owner of industrial projects.

i. The execution of industrial project as EPC Contractor under Clause No. 1.3 means, such EPC Contractor is responsible for all the activities i.e. Design/Engineering, Procurement, Construction (with/without civil works) and Commissioning of a project/work.

j. The portion of work related to power transformer such as supply and or installation mentioned at cl. no. 1.3 (b) can either be done by EPC contractor by themselves or by the owner.

k. EPC projects with solar PV module supplied by developer/owner as free issue item to EPC contractor shall also be considered eligible for route 1.1 of QR.

Date: (Printed Name).............................

Place: (Designation)................................

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

FORM OF UNDERTAKING BY BIDDER AND THE FIRM

JOINT UNDERTAKING BY THE INDIAN BIDDER (WHO QUALIFY UNDER QR REQUIREMENTS OF CLAUSE 1.4 UNDER BDS 3.1 AND THE FIRM (WHO MEETS QR REQUIREMENTS OF CLAUSE 1.1 OR 1.2 OR 1.3 UNDER BDS 3.1 ON HIS OWN), FOR Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL), IN WHICH THE FIRM AND THE BIDDER ARE JOINTLY AND SEVERLY LIABLE TO THE EMPLOYER FOR THE COMPLETE PERFORMANCE OF CONTRACT.

We, M/s .... a Company incorporated under the... having its Registered Office at .... (The Firm) and M/s .... a company incorporated under the .... having its registered office at................................. (The Bidder) jointly undertake the following on ....day of.................... for the "**Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)"** to NTPC Renewable Energy Limited, a company incorporated under the Companies Act, 2013, having its Registered Office at NTPC Bhavan, Scope Complex, 7, Institutional Area, Lodhi Road, New Delhi - 110 003, (India).

NTPC Renewable Energy Limited, hereinafter referred as Employer, has invited bids for "**Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)"** vide its Bid Document No. **NRE-CS-5839-CNGEL-EPC** for Design, Engineering, Manufacturing, Supply, Packing and Forwarding, Transportation, Unloading, Storage, Installation and Commissioning and 3-years O&M of Ground Mounted Solar PV Plants.

M/s. …………………………………….......(Bidder) is submitting its proposal in response to the aforesaid Invitation for ""**Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL).**

1. In case of the Award of the Contract by the Employer to the Bidder, we the Bidder and the Firm undertake that we shall be jointly and severally responsible to the Employer for the complete performance of Contract.

2. In case of any breach of the Contract (in case of award) committed by the Bidder, we the Firm undertake and confirm that we shall be fully responsible for the complete performance of Contract (in case of award) and undertake to carry out all the obligations and responsibilities under this joint Undertaking in order to discharge the Bidder's obligation and responsibilities as stipulated in the contract.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

3. The Bidder and the Firm will be fully responsible for the quality of all the equipment manufactured at their works or at their Vendors works or construction at site, and their repair or replacement, if necessary and timely delivery to meet the completion schedule under the Contract (in case of award).

4. We, the Bidder and the Firm agree that this undertaking shall be irrevocable and shall form an integral part of the Contract. We further agree that this undertaking shall continue to be enforceable till the successful completion of Contract and till the Employer discharge it.

5. This Joint Undertaking shall be operative from the effective date of the Contract.

For M/s ……......................................
(The Firm)

....
(Signature of the authorised representative)

Name : ....

Designation :....................................

Common Seal of the Company
....

For M/s........……............................
(Bidder)

....
(Signature of the authorised representative)

Name : ....

Designation :.................................

Common Seal of the Company
...................................………

Note: Power of Attorney of the Persons Signing on behalf of the Firm and Bidder is to be furnished by the Bidder and to be attached with this signed Joint Undertaking.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Undertaking from Independent Statutory Auditor
(On letter head digitally signed by a person duly authorized to Sign on behalf of the Statutory Auditor)

Bid Ref. No: Date:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306

Subject: Authentication of veracity of documents submitted by M/s...............……in support of meeting the Qualifying Requirements.

Ref : IFB/Tender no. …………………..
Name of the Package/ Tender: ………………………………………
Dear Sir,

M/s. ……………………………. (hereinafter called Bidder) having Registered office at……………………………………. intend to participate in above referred tender of NTPC Renewable Energy Ltd.

We, M/s .... has been appointed as Statutory Auditor for the Bidder i.e. M/s .... (Relevant documents on our appointment attached)

The tender condition stipulates that the bidder shall submit supporting Documents pertaining to Technical Qualifying Requirement duly verified and certified by Statutory Auditor.

In this regard, it is hereby confirmed that we have examined the following documents, which are also attached with this letter. The same has been verified from the Original Documents and/ or Client for authenticity.

We hereby confirm that the following documents are found to be genuine and authentic.

1. Doc ref. no. ……….. dated............(name of Documents)
2. Doc ref. no. ……….. dated............(name of Documents)
3. ……………

All the aforesaid documents have been ***digitally signed*** by us as a certificate of authenticity.

*Further, we have examined the books of accounts, records, and other relevant documents, along with other necessary information and explanations furnished by M/s. (bidder) and hereby certify following:
……………………………………………

This certificate is issued at the request of M/s ………………. (Bidder) for the purpose of participating in tender/s.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Thanking you,

……………………………………………

** Strike off, whichever is not applicable.*

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Undertaking from Third Party Inspection Agency
(On letter head digitally signed by a person duly authorized to Sign on behalf of the TPIA)

Bid Ref. No: Date:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306

Subject: Authentication of veracity of documents submitted by M/s ....………
in support of meeting the Qualifying Requirements

Ref : IFB/Tender no. …………………..
Name of the Package/ Tender: ………………………………………

Dear Sir,

M/s. ……………………………. (hereinafter called Bidder) having Registered office at……………………………………. intend to participate in above referred tender of NTPC Renewable Energy Ltd.

The tender condition stipulates that the bidder shall submit supporting Documents pertaining to Qualifying Requirement duly verified and certified by a specified independent Third Party Inspection Agency as per the list mentioned in the bidding documents.

In this regard, it is hereby confirmed that we have examined the following documents, which are also attached with this letter. The same has been verified from the Original Documents and/ or Client for authenticity.

We hereby confirm that the following documents are found to be genuine and authentic.

1. Doc ref. no. ……….. dated............(name of Documents)
2. Doc ref. no. ……….. dated............(name of Documents)
3. ……………

All the aforesaid documents have been ***digitally signed*** by us as a certificate of authenticity.

We further confirm that we neither have any vested interest in aforesaid tender nor have any conflict of interest in respect of above tender.

This certificate is issued at the request of M/s ………………. (Bidder) for the purpose of participating in tender/s.

Thanking you,

………………………………………

** Strike off, whichever is not applicable.*

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Financial Data pertaining to Financial Qualification of the Bidder as per Sub Clause 2.1 under Item No. 3.1 of the Bid Data Sheet)

A* **To satisfy the requirements specified in Sub-Clause 2.1 (Para 1) of Item No. 3.1 of Bid Data Sheet, Section-III, we give below the following details:**

In terms of Sub Clause 2.1 under Item No. 3.1 of Bid Data Sheets, Section-III, we confirm that our average annual turnover **during the preceding three (3) financial years** as on date of Techno-commercial bid opening is not less than **Rs 206 Crores**

Our annual turnover figures for the preceding three (03) financial years are as below:

Sl. No.	Financial Year	Annual Turnover Amount (INR Crore)
1	2024-25**	
2	2023-24	
3	2022-23	
4	Average Annual Turnover during the preceding three (3) financial years as on date of techno commercial bid opening	**INR ………………………………** *(Average Annual Turnover of 3 years)*
5	We have enclosed Audited Financial Statements for the Preceding Three (03) Financial Years as on date of Techno Commercial Bid Opening	**YES*/ NO***

In case where audited results for the last financial year as on the date of Techno-Commercial bid opening are not available, certification of financial statement from a practicing chartered accountant shall also be considered acceptable. In case, Certificate from practicing Chartered Accountant certifying its financial parameters is not submitted, the audited results of **<u>three consecutive financial years preceding the last financial year</u> shall be considered for evaluating the financial parameters. Further a certificate would be required from the CEO/CFO as per the format enclosed (Refer Appendix-C) in the bidding documents stating that the financial results of the company are under audit as on the date of Techno-commercial bid opening and the certificate from the practicing Chartered Accountant certifying the financial parameters is not available.

*** Please Strike off whichever is not applicable.**

B.* **For bidders not meeting the requirement of Sub Clause 2.1 (Para 1) of Bid Data Sheet Item No. 3.1 on its own:**

Since we do not satisfy the Financial Criteria stipulated at Sub Clause 2.1 (Para 1) under Bid Data Sheet Item No. 3.1, Section-III, on our Own, we give below the following

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

details of our **Holding Company in terms of Sub Clause 2.1** (Para 2) **under Item No. 3.1 of BDS** who meet the stipulated turnover requirements of Para 1 of Sub Clause 2.1 under BDS Item No. 3.1 and whose Net worth as on the last day of the preceding financial year is at least equal to or more than the paid up share capital of the Holding Company.

1. Name and Address of the Holding Company: ....

2. Annual Turnover of the Holding Company with following details:

Sl. No.	Financial Year	Annual Turnover Amount (INR Crore)
1	**2024-25**	
2	**2023-24**	
3	**2022-23**	
4	Average Annual Turnover of the Holding Company during the preceding three (3) financial years as on date of techno commercial bid opening	**INR ……………………………..** *(Average Annual Turnover of 3 years)*
5	We have enclosed Audited Financial Statements of the Holding Company for the Preceding Three (03) Financial Years as on date of Techno Commercial Bid Opening	**YES*/ NO***
9	A Letter of Undertaking from the Holding Company, supported by Board Resolution, pledging unconditional and irrevocable financial support for execution of the contract by the bidder in case of award is enclosed as per the format at **Appendix-B** to this Attachment-3A-2. A power of attorney of the person signing on behalf of holding company is also enclosed at Annexure........... to this Attachment-3A-2.	

*** Please Strike off whichever is not applicable.**

Date :

(Printed Name).............................

Place : (Designation)..............................

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Financial Data pertaining to Financial Qualification of the Bidder as per Sub-Clause 2.2 under Item No. 3.1 of the Bid Data Sheet)

Dear Sirs,

A) To satisfy the requirements specified at Sub-Clause 2.2 under Item No. 3.1 of Bid Data Sheet, Section-III, We give below the following details:

We hereby confirm that Net worth of our company as on the last day of the preceding financial year is atleast 100% (hundred percent) of the company's paid-up share capital.

The Details are as under:

Sl. No.	Description	As on last day of the preceding financial year (in INR Crores)
1.	Paid-up Share Capital	....
2.	Net Worth	....
3.	%age of Net worth to Paid-up Share Capital	....
4.	Documentary evidence like Annual Report/ Audited financial statements for the last preceding Financial year/ in case Audited results **for the last preceding Financial Year** are not available, certification of financial statements from a practicing Chartered Accountant etc. in support of above is enclosed at Annexure...........to this Attachment-3A-2.	....
5.	Since we are not able to furnish our audited financial statements on stand alone entity basis, we are submitting the following Documents for substantiation of our Qualification:	

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Sl. No.	Description	As on last day of the preceding financial year
a)	Copies of unaudited unconsolidated financial. statements of the bidder alongwith copies of the audited consolidated financial statements of the Holding Company for the preceding three (3) financial years enclosed at Annexure.............to this Attachment 3A-2.	....
b)	Certificate from the CEO/CFO of the Holding company stating that the unaudited unconsolidated financial statements form part of the consolidated Annual Report of the company, is enclosed as per the format at **Appendix-A** to this Attachment-3A-2.	....

In case where audited results for the last financial year as on the date of Techno-Commercial bid opening are not available, certification of financial statement from a practicing chartered accountant shall also be considered acceptable. In case, Certificate from practicing Chartered Accountant certifying its financial parameters is not submitted, the audited results of **<u>three consecutive financial years preceding the last financial year</u>** shall be considered for evaluating the financial parameters. Further a certificate would be required from the CEO/CFO as per the format enclosed in the bidding documents stating that the financial results of the company are under audit as on the date of Techno-commercial bid opening and the certificate from the practicing Chartered Accountant certifying the financial parameters is not available.

B.* For bidders not meeting the requirement of Sub Clause 2.2 under Bid Data Sheet Item No. 3.1 on its own:

Since we do not satisfy the Financial Criteria stipulated at Sub Clause 2.2 under Bid Data Sheet Item No. 3.1, Section-III, on our Own, we meet the requirement of net worth based on the strength of our *Subsidiary(ies) and/or *Holding Company and/or *Subsidiaries of its Holding companies, and the Net worth of the Bidder and its *Subsidiary(ies) and/or Holding Company and/or *Subsidiary(ies) of the Holding Company, in combined manner is not be less than 100% of their total paid up share capital and individually, their Net worth is not less than 75% of their respective paid up share capitals

***Strike of whichever is not applicable.**

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Net worth Details of the *Subsidiary(ies) and/or *Holding Company and/or *Subsidiaries of its Holding companies:

Sl. No.	Description	As on last day of the preceding financial year (in INR Crores)
1.	Paid-up Share Capital of the Subsidiary(ies) and/or* Holding Company and/or *Subsidiary(ies) of the Holding Company	
2.	Net Worth of the Subsidiary(ies) and/or* Holding Company and/or *Subsidiary(ies) of the Holding Company	
3.	%age of Net worth to Paid-up Share Capital of the holding company of Subsidiary(ies) and/or* Holding Company and/or *Subsidiary(ies) of the Holding Company.	
4.	Documentary evidence like Annual Report/Audited financial statements for the last preceding financial year / in case Audited results for the last preceding Financial Year are not available, certification of financial statements from a practicing Chartered Accountant etc. in respect of Subsidiary(ies) and/or* Holding Company and/or *Subsidiary(ies) of the Holding Company in support of above is enclosed at Annexure...........to this Attachment-3A-2.	
5.	A Letter of Undertaking from the Subsidiary(ies) and/or* Holding Company and/or *Subsidiary(ies) of the Holding Company, supported by Board Resolution, pledging unconditional and irrevocable financial support for execution of the contract by the bidder in case of award is enclosed as per the format at **Appendix-B** to this Attachment-3A-2. A power of attorney of the person signing on behalf of holding company is also enclosed at Annexure........... to this Attachment-3A-2.	

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Date:	(Printed Name) ....
Place:	(Designation)................................

Note: * **Please Strike off whichever is not applicable.**

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

PROFORMA OF CERTIFICATE FROM THE CEO/CFO OF THE HOLDING COMPANY IN ACCORDANCE WITH ITEM NO. 3.1 (2.3) OF BDS

(To be submitted by Bidder alongwith the Techno-Commercial Bid)

Ref. : Date:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306

Dear Sirs,

1.0 I, Mr. .... (CEO of the Company / CFO of the Company)* declare that M/s. .... (Name of the Holding Company) is the Holding Company of M/s. .... (Name of the Bidder).

2.0 I hereby confirm and undertake that the unaudited unconsolidated financial statements submitted in respect of the bidder as part of the bid reference no. .... dated ....have been considered for the purposes of the finalization of Consolidated Financial Statements of the Holding Company as part of the Annual Reports.

3.0 I further, certify that the figures in the unaudited unconsolidated financial statements are true and correct and same have been duly reflected in the audited consolidated financial statements and / or Annual Report of the Holding Company.

Yours faithfully

(Signature)

Date : (Name & Designation)...

Place : (Name of the Holding Company) ....

(Seal of Holding Company) ....

Note : * Strike off whichever is not applicable.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

PROFORMA OF LETTER OF UNDERTAKING

(TO BE FURNISHED ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

(To be executed by the Holding Company Supported by Board Resolution and submitted by the Bidder alongwith the Techno-Commercial Bid, Applicable to the Bidder for meeting the stipulated Financial Qualifying Requirement as per Item No. 3.1 (2.1(Para 2) of Bid Data Sheet)

Ref.: Date:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306

Dear Sirs,

1.0 We, M/s............................... declare that we are the holding company of M/s .... (Name of the Bidder) and have controlling interest therein.

M/s. .... (Name of the Bidder) proposes to submit the bid for the package .... (Name of the package) for .... (Name of the Project) under bid reference no. .... dated .... and have sought financial strength and support from us for meeting the stipulated Financial Qualifying Requirement as per Clause No. 3.1 (2.1) (Para 2) of Bid Data Sheet.

2.0 We hereby undertake that we hereby pledge our unconditional & irrevocable financial support for the execution of the said package to M/s. .... (Name of the Bidder), in case they are awarded the Contract for the said package, at the end of the bidding process. We further agree that this undertaking shall be without prejudice to the various liabilities that M/s .... (Name of Bidder) would be required to undertake in terms of the Contract including the Performance Security as well as other obligations of the Bidder/Contractor.

3.0 This undertaking is irrevocable and unconditional, and shall remain in force till the successful execution and performance of the entire contract and/or till it is discharged by Employer.

4.0 We are herewith enclosing a copy of the Board Resolution in support of this undertaking.

Yours faithfully

(Signature of Authorised Signatory

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

on behalf of the Holding Company)

Witness :

(1)	(Name & Designation)...
	(Name of the Holding Company)....................................
(2)	(Seal of the Holding Company).....................................

Date:

Place:

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

***PROFORMA OF CERTIFICATE FROM THE CEO/CFO IN ACCORDANCE WITH ITEM NO. 3.1 (2.0) OF BDS**

(To be submitted by Bidder along with the Techno-Commercial Bid)

Ref. : Date:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh, India, Pin – 201306

Dear Sirs,

I, Mr. .... (CEO/ CFO of the Company) of ………….. (Name of the Company) declare that the financial results of M/s. .... (Name of the Bidder) are under audit as on ……. (Date of Techno-commercial bid opening) and the Certificate from the practicing Chartered Accountant certifying the financial parameters is also not available.

Yours faithfully

(Signature)

Date : (Name & Designation).......................................

Place : (Name of the Company) ....

(Seal of Company) ....

Note: *Strike off if not applicable.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Financial Capacity Status of Bidder and/or wherever applicable, his Associate(s)/Collaborator(s)

Sl. No.	Description				
A	Orders in Hand				
i	Total value of Contracts				
ii	Value of work completed out of above value up to **March 2025**				
iii	Value of anticipated work to be performed in the following Financial Years: 2024 – 2025 2025 – 2026 2026 – 2027 2027 – 2028 2028 – 2029				
B	Bidder's assessment of maximum negative cash flow (fund requirement) at any point of time between Notification of Award and completion of contract based on specified terms of payment and his expenditure plan for plant & equipment being offered by bidder for this package.				
C	Arrangement to meet the above fund requirement	Own Funds	Credit	Others	Total

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

D	Gross Turnover of Company during: Year ending – March 2021 Year ending – March 2022 Year ending – March 2023 Year ending – March 2024 Year ending – March 2025	
E	Balance Sheet and Profit & Loss Account duly certified by a Chartered Accountant for the last 5 years is to be submitted.	Enclosed at Annexure to this Attachment-3B
F	Declaration by Bankers or the Chartered Accountant regarding: i) Bank Guarantee Limits ii) Over Draft Limits/Cash Credit Limits iii) Deferred payment limits. iv) Fixed Deposits v) Movable Property Hypothecation. (Please state the present utilization status also)	 Enclosed at: Enclosed at: Enclosed at: Enclosed at: Enclosed at:
G	Information regarding any current litigation in which the Bidder is involved, the parties concerned the disputes and the dispute amount if any.	Enclosed at:

Note: 1. The above Attachment shall be filled-up by the bidder for **himself** and shall be furnished.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

2. Continuation sheets of like size and format may be used and annexed to this Attachment if required.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Details of Design, Engineering, Manufacturing and Testing Capabilities of Bidder and/or wherever applicable, his Associate(s)/Collaborator(s)

(1) We hereby confirm that we do not anticipate any change in ownership during proposed period of execution of work (if such a change is anticipated, the scope and effect thereof shall be defined). The relevant document for same is enclosed at Annexure …….. to this Attachment-3C.

(2) Furnish adequate detailed write up on

Sl. No.	Description	Details
(a)	Design and Engineering Organisation and facilities/capabilities	Enclosed at Annexure ………. to this Attachment-3C
(b)	Manufacturing & Testing Organization and facilities available.	Enclosed at Annexure ………. to this Attachment-3C
(c)	Field Organisation and resources for erection, testing & commissioning etc	Enclosed at Annexure ……… to this Attachment-3C
(d)	Quality Assurance Organisation and capabilities for Engg., manufacturing & field installation.	Enclosed at Annexure ………. to this Attachment-3C
(e)	Established Project Management	Enclosed at Annexure ………. to this Attachment-3C
(f)	Details of Man power / Division of Company	Enclosed at Annexure ……… to this Attachment-3C

Note: 1 The above Attachment shall be filled up by the bidder for **himself** and shall be furnished.

2 Continuation sheets of same size and format may be used by the Bidder and annexed to this Attachment, if required.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Details of Manufacturing Capacities/Plant Loading of the Bidder and Associate(s)/ Collaborator(s)/Sub-Contractors, wherever applicable

We hereby furnish below the details of our installed manufacturing capacities and work in hand to establish spare capacity for completion of work under this Package.

Sl. No	Item	2024-25			2025-26			2026-27			2027-28			2028-29		
		Bidder Shop	Collabrator / Associte's shop	Sub Contractor shop	Bidder Shop	Collaborator/ Associate's shop	Sub Contractor shop	Bidder Shop	Collaborator/ Associate's shop	Sub Contractor shop	Bidder Shop	Collaborator/ Associate's shop	Sub Contractor shop	Bidder's Shop	Collaborator/ Associate's shop	Sub Contractor shop
1	Production Capacity as installed															
2	Firm orders in hand upto															
3	Balance Capacity available															
4	Orders Expected															
5	Work Load Expected for this contract															
6	Shortfall, if any															
7	Alternative Arrangements To make up For this short fall															

Note: Continuation sheets of like size and format may be used as per Bidder's requirement and shall be annnexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Present Order Book Position for Bidder and/or wherever applicable, his Associate(s)/Collaborator(s)

List of orders of last 5 years & present status.

Sl. No.	Client	Name of the work	Order Value	No. of Units & Unit Size	Date of Order	Present Status		% work completed Engg./ Manufacturing/ Erection	Completion of Supply		Completion of Erection, Testing & Commissioning		Reasons for Delay (if any)
						Schedule	Actual / Expected		Schedule	Actual / Expected	Schedule	Actual / Expected	
1.													
2.													
3.													
4.													
5.													
6.													
7.													
8.													
9.													
10.													
11.													
12.													
13.													
14.													
15.													
16.													
17.													
18.													
19.													
20.													
21.													
22.													

Note :
1. The above attachment shall be filled up by the bidder for **himself** and for **major sub-contractor, if any** being proposed by the bidder in his bid.
2. Continuation sheets of like size and format may be used as per Bidder's requirement and shall be annexed to this Attachment

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Past Performance Data

Details of Similar Unit Supplied / Commissioned in last ten years for bidder and/or wherever applicable, his Associate(s)/Collaborator(s):

Sl. No.	Client Name & Address	Name of the work	Order Value	No. of Units & Unit Size	Date of Order	Date Completion of Supply		Date of Completion of Erection, Testing & Commissioning		Reasons for Delay (if any)
						Schedule	Actual	Schedule	Actual	
1.										
2.										
3.										
4.										
5.										
6.										
7.										
8.										
9.										
10.										
11.										
12.										
13.										
14.										
15.										
16.										
17.										
18.										
19.										
20.										
21.										
22.										

Note: 1. The above Attachment shall be filled up by the bidder for **himself,** and for **sub-contractor,** if any, being proposed by the bidder in his bid.

2. Continuation sheets of like size & format may be used if required and annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Data regarding key construction personnel for bidder and his Associate(s)/Collaborator(s)

The qualification and experience of key constructional personnel proposed for administration and execution of the contract at site are as follows:

Sl.No.	Name	Qualification	Position/Designation	Experience
1.				
2.				
3.				
4.				
5.				
6.				
7.				
8.				
9.				
10.				
11.				
12.				
13.				
14.				
15.				
16.				

Note:

1. This Attachment shall be filled by the bidder for **himself**.

2. Continuation sheets of like size & format may be used if required and annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Manpower loading data)

We declare that our manpower loading during execution of the contract will be as follows:

No. of months from the date of Notification of Award	**1**	**2**	**3**	**4**	**5**	**6**	**7**	**8**	**9**	**10**
Labour (Category)										

Note: 1. The above Attachment shall be filled by the bidder for **himself**.

2. Continuation sheets of like size & format may be used if required and annexed to this Attachment.

3. List of category of labour will be given by the Bidder.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Details of Deed of Joint Undertaking)

(NOT APPLICABLE)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(PROJECT MANAGEMENT ORGANISATION)

Dear Sirs,

1.0 In line with clause No. ITB 8.1.2(a) (v) and requirements of Para 2(e) of Attachment-3C, we furnish below the brief write up in support of our established project management organization.

…………..

…………..

…………..

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(DECLARATION BY THE BIDDER WHO DID NOT MANUFACTURE OR OTHERWISE PRODUCE AND/OR INSTALL PLANT AND EQUIPMENT OF SOLAR PROJECT)

Dear Sirs,

1.0 In line with last para of ITB Cl.8.2.4(c), since we did not manufacture or otherwise produce and/or install plant and equipment of Solar Project, we furnish below the following details/ documents/ declarations in support of above:

Sl. No.	Description	Details
(i)	We have financial and other capabilities necessary to perform the Contract.	Enclosed at Annexure …. to this Attachment-3K
(ii)	We have been duly authorized by the manufacturer or producer of the related plant and equipment or component to supply and/ or install that item in the Employer's country.	(i) Manufacturer's authorization/ consent letter etc. in their favour to supply of Solar Plant equipment – Enclosed at Annexure …. to this Attachment-3K. (ii) Manufacturer's authorization/ consent letter etc. for installation of Solar Plant equipment- Enclosed at Annexure ……. To this Attachment-3K.

Further, we also declare that we will be responsible for ensuring that the manufacturer or producer of the related item meets the minimum criteria listed for that item in the subject bidding documents including Technical specifications.

Attachment 3L (i)

Format for declaration by the Domestic Bidder

"Self-Declaration by the Bidder"

I/ We, M/s ____(Name of Bidder) hereby certify that no proceedings for insolvency or liquidation under the Insolvency and Bankruptcy Code, 2016, or any other bankruptcy proceedings under any other applicable laws (in cases where IBC, 2016 is not applicable) have been admitted or is pending against us and/or our Parent/Holding/Subsidiary Company, Associate or Collaborator or Technology Provider ____(Name of Parent/Holding/ Subsidiary Company, Associate or Collaborator/ Technology provider company) from whom we have taken or intend to take technical and/ or financial support for qualification of bid. It is understood that if any part of this declaration is found to be false, the Employer shall have the right to unconditionally, immediately and outrightly reject my/our bid and forfeit the Bid Security/ EMD.

Further, in case the bid has already culminated into a Contract, the Employer shall be entitled to terminate the Contract, without prejudice to any other rights or remedies available to the Employer.

(Seal & Signature of Bidder)

Note: 1. This 'Declaration' should be on the letterhead of Bidder
2. The declaration shall be submitted separately as per 3L (ii) by the Parent/Holding/ Subsidiary Company, Associate, Collaborator and Technology provider from whom the Bidder has taken or intends to take technical and/or financial support for qualification of bid.

Attachment – 3L (ii)

Format of declaration by Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider from whom the Bidder has taken or intends to take technical and/ or financial support for qualification of bid

"Self-declaration by the Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider".

I/ We, M/s ____(Name of Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider) from whom the Bidder has taken or intends to take technical and/ or financial support for qualification of bid, hereby certify that no proceedings for insolvency or liquidation under the Insolvency and Bankruptcy Code, 2016, or any other bankruptcy proceedings under any other applicable laws (in cases where IBC, 2016 is not applicable) have been admitted or is pending against us. It is understood that if any part of this declaration is found to be false, the Employer shall have the right to unconditionally, immediately and outrightly reject the bid and forfeit the Bid Security/ EMD.

Further, in case the bid has already culminated into a Contract, the Employer shall be entitled to terminate the Contract, without prejudice to any other rights or remedies available to the Employer.

(Seal & Signature of Parent/Holding/
Subsidiary Company, Associate or Collaborator, Technology provider)

Note: 1. The 'Declaration' shall be on the letterhead of Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

BIDDER TO ATTACH DOCUMENTARY EVIDENCE ESTABLISHING IN ACCORDANCE WITH CL. NO. 2.0 (d) OF BID FORM THAT THE FACILITIES OFFERED ARE ELIGIBLE FACILITIES AND CONFORM TO THE BIDDING DOCUMENTS.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

List of Special Maintenance Tools & Tackles

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Details of Proposed Sub-Contractors/Sub-Vendors

The details of all items of services or supply which we propose to sublet, giving details of the name and nationality of the proposed Sub-Contractor/Sub Vendor for each item are given below: -

Sl.No.	Supply/Service	Unit	Quantity	Name, Address & Nationality of Proposed Sub- Contractor/ Sub-Vendor
1.				
2.				
3.				
4.				
5.				
6.				
7.				
8.				
9.				
10.				
11.				
12.				
13.				
14.				
15.				
16.				

Note:
1. Continuation sheets of like size and format may be used as per Bidder's requirement and shall be annexed to this Attachment.
2. Bidder shall attach letters of intent with the sub-contractors/sub-vendors so as to confirm their participation.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(DEVIATIONS)

NOT APPLICABLE

(ALTERNATIVE BIDS)

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Schedule of Erection Tools & Equipment and Safety Equipments & Safety Personal Protective Equipments

A. We indicate herein below the erection tools & equipment we have in our possession and the tools & equipment we propose to bring to the Site under the Package, in case the contract is awarded to us.

Sl. No.	Type and Description of the Equipment	Number the Bidder has in Possession	Number the Bidder proposes to bring to the site
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
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Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Sl. No.	**Type and Description of the Equipment**	**Number the Bidder has in Possession**	**Number the Bidder proposes to bring to the site**
33.			
34.			
35.			
36.			
37.			
38.			
39.			
40.			
41.			
42.			

B. **Safety Equipment & Safety Personal Protective Equipments**

We hereby confirm that the quantity and type of Certain tools and plant & equipment, we will employ for construction/erection, will not be less than those listed above and agree to bring more tools & plant and equipment, if so warranted, in the opinion of the Project Manager. Our proposed construction/erection tools & plants and equipment utilisation plan indicating utilisation dates and time duration of all major erection and construction tools & plant and equipment placed on site is enclosed at Annexure to this attachment.

Note: Continuation sheets of like size and format may be used as per Bidder's requirements and shall be annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Schedule of Erection Tools & Equipment and Safety Equipments & Safety Personal Protective Equipments

A. We indicate herein below the erection tools & equipment we have in our possession and the tools & equipment we propose to bring to the Site under the Package, in case the contract is awarded to us.

Sl. No.	**Type and Description of the Equipment**	**Number the Bidder has in Possession**	**Number the Bidder proposes to bring to the site**
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
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25.			
26.			
27.			
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29.			
30.			
31.			
32.			

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Sl. No.	Type and Description of the Equipment	Number the Bidder has in Possession	Number the Bidder proposes to bring to the site
33.			
34.			
35.			
36.			
37.			
38.			
39.			
40.			
41.			
42.			

B. **Safety Equipment & Safety Personal Protective Equipments**

We hereby confirm that the quantity and type of Certain tools and plant & equipment, we will employ for construction/erection, will not be less than those listed above and agree to bring more tools & plant and equipment, if so warranted, in the opinion of the Project Manager. Our proposed construction/erection tools & plants and equipment utilisation plan indicating utilisation dates and time duration of all major erection and construction tools & plant and equipment placed on site is enclosed at Annexure to this attachment.

Note: Continuation sheets of like size and format may be used as per Bidder's requirements and shall be annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Submission of Solar Plant Technical Details)

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

BOUGHT OUT ITEMS TO BE DIRECTLY DESPATCHED BY SUB-VENDORS TO SITE

We declare that the following are the details of equipment & materials including mandatory spares to be directly despatched from the works of our sub-contractor/sub-vendor to Project Site.

Sl. No.	Description of Equipment/ Material	Weight/Qty. (Tonnes)/ (Nos.)
1.		
2.		
3.		
4.		
5.		
6.		
7.		
8.		
9.		
10.		
11.		
12.		
13.		
14.		
15.		
16.		

Note: 1. Continuation sheets of like size and format, may be used as per Bidder's requirement and shall be annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Information regarding Quality Assurance Programme

We hereby provide the necessary information on Quality Assurance Programme containing the overall Quality Management and procedures, which we propose to follow during various phases of execution of the Contract.

Note : Continuation sheets of like size and format, may be used as per Bidder's requirement and shall be annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Additional Information included with the proposal

Sl. No.	Description of Information	Reference to Bidding documents	Reference to Bid Proposal
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
10.			
11.			
12.			
13.			
14.			
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17.			
18.			
19.			
20.			
21.			
22.			
23.			
24.			
25.			
26.			
27.			
28.			
29.			

Note: Continuation sheets of like size and format may be used as per Bidder's requirements and annexed to this Attachment.

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

MILESTONE SCHEDULE

We hereby confirm the acceptance to the time schedule **(10 Months for Completion of Facilities)** for the subject package as specified in the bidding documents.

We also confirm that we shall adhere with the time schedule for the subject package as specified in the bidding documents.

SN	Activities/Milestone	Period from LOA (Months)	
		Start	Finish
General Works			
1	Site Mobilization, Site office opening and Preparatory works	0	0.5
2	Topographical Survey, Bathymetry study and Geo-Technical investigation.	0	0.5
3	Site clearance, Grading work, etc.	0.5	1
4	Grid study studies, Interconnection studies and Reactive Power Compensation studies and its approval	1	3
5	Basic Engineering, SLD, Site Layout & approvals	0	1
Detail Engineering, BOI and Execution			
6	Ordering of BOIs	1	2
7	Detailed Engineering and Approvals	2	3
Supply of Floaters, BESS and other associate systems			
8	Supply of Floaters	4	5
9	Supply of Modules	4.5	5.5
10	Supply of BESS and associated systems	5	6
11	Supply of Power Transformer	4	6
12	Supply of AC cables, DC cables, Inverters, Switchgears & other electrical equipment	4	5
13	Supply of equipment for Grid interface and Bay works i.e bay equipment, HT Panels, Structure etc for Interconnection with the existing thermal power plant facilities	4	6
Civil Works			

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

14	Fencing, Road and Drainage works	1	2
15	All civil Works associates with Floaters	2	4
16	Control Room works: Civil & Electrical works	1.5	3
17	IDT and Inverter Room works: Civil & Electrical works	1.5	3
18	All associated civil works for BESS	2	4
19	Civil works for Switchyard, Grid interface, Bay works, Trench for cable laying, foundation etc	2	5
Installation Works			
20	Launching of Floater and Erection of Modules	4	6
21	Erection of BESS and associated systems	6	8
22	Erection of Power Transformer, Bay equipment, cable laying etc. for Interconnection with the existing thermal power plant facilities	6	8
23	Installation of Cables, Inverter Transformer, Inverters & other Electrical Equipment	6	7
24	Testing & Readiness of Equipment and communication system	8	9
Commissioning, Trial Run and Completion of Facilities			
25	Commissioning, Stabilization & Trial Run of Plant	9	9.5
26	Completion of facilities	9	10

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(ELECTRONIC FUND TRANSFER)

Bidder's Name & Address:

To
NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA
E-3, Ecotech-II, Udyog Vihar
Greater Noida-201306, Distt. Gautam Buddha Nagar,
Uttar Pradesh, India

Dear Sirs,

We, hereby authorise the Employer to make all our payments through Electronic Fund Transfer System. The details for facilitating the payments are given below:

(TO BE FILLED IN CAPITAL LETTERS)

1. NAME OF THE BENEFICIARY

2. ADDRESS

PIN CODE							

3. TELEPHONE NO. (WITH STD CODE)

4. BANK PARTICULARS

(A) BANK NAME

(B) BANK TELEPHONE NO. (WITH STD CODE)

DATE:………………… **SIGNATURE: …………………**

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(C) BRANCH ADDRESS

PIN CODE																							

(D) BANK FAX NO (WITH STD CODE)

(E) BRANCH CODE

(F) 9 DIGIT MICR CODE OF THE BANK BRANCH (ENCLOSE COPY OF A CANCELLED CHEQUE)

(G) IFSC Code OF THE BANK BRANCH

(H) BANK ACCOUNT NUMBER

(I) BANK ACCOUNT TYPE (TICK ONE)

SAVING	CURRENT	LOAN	CASH CREDIT	OTHERS

IF OTHERS, SPECIFY

5. PERMANENT ACCOUNT NUMBER (PAN)

6. E-MAIL ADDRESS FOR INTIMATION REGARDING RELEASE OF PAYMENTS

DATE:………………… **SIGNATURE: …………………**

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

I/We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or credit is not affected at all for reasons of incomplete or incorrect information, I/We would not hold the Employer responsible.

SIGNATURE

DATE

(AUTHORISED SIGNATORY)

Name:

OFFICIAL STAMP

BANK CERTIFICATION:

It is certified that above mentioned beneficiary holds a bank account no. .... with our branch and the Bank particulars mentioned above are correct.

SIGNATURE

DATE

AUTHORISED SIGNATORY)

Authorization No.:

Name:

OFFICIAL STAMP

DATE:………………… **SIGNATURE: …………………**

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

DECLARATION ON FRAUD PREVENTION POLICY

(TO BE ACCEPTED ONLINE IN ELECTRONIC FORMS ON ETS PORTAL)

We have read the Contents of the Fraud Prevention Policy of Employer displayed on tender https://ntpctender.ntpc.co.in and undertake that the along with our Associate/ Collaborator/ Sub-Contractors/ Sub-Vendors/ Consultants/ Service Providers shall strictly abide by the Provisions of the Fraud Prevention Policy of Employer.

INTEGRITY PACT

Between

NTPC Renewable Energy Limited, (hereinafter referred to as “The Employer”)

And

……………………………………………(Hereinafter referred to as “The Bidder/Contractor”)

Preamble

The Employer invites the bids from all eligible bidders and intends to enter into contract for **Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL) BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC** with the successful bidder(s), as per organizational systems and procedures. The Employer values full compliance with all relevant laws and regulations, and the principles of economical use of resources, and of fairness and transparency in its relations with its Bidder(s) and/or Contractor(s).

In order to achieve these goals, the Employer will appoint an Independent External Monitor (IEM), who will monitor the bidding process and the execution of the contract for compliance with the principles mentioned above.

Section 1 Commitments of the Employer

1. The Employer Commits itself to take all measures necessary to prevent corruption and to observe the following principles in this regard: -

a) No employee of the Employer, either in person or through family members including relatives, will in connection with the bidding for or the execution of a contract, demand or accept a promise for or accept for him/herself or for a third person, any material or immaterial benefit to which he/she is not legally entitled to.

b) The Employer shall, during the bidding process treat all Bidders with equity and reason. The Employer will, in particular, before and during the bidding process, provide to all Bidders the same information and will not provide to any Bidder confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the bidding process or the contract execution.

c) The Employer will exclude from the process all known prejudiced persons.

2. If the Employer obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act or if there be a substantive suspicion in this regard, the Employer will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2 Commitments and Undertakings by the Bidder/Contractor

1 The Bidder/Contractor commits and undertakes to take all measures necessary to prevent malpractices & corruption. He commits himself to observe the following principles during his participation in the bidding process and during the execution of the contract:

a) The Bidder/ Contractor undertakes not to, directly or through any other person or firm offer, promise or give or influence to any employee of the Employer associated with the bidding process or the execution of the contract or to any third person on their behalf any material or immaterial benefit which he/she is not legally entitled, in order to obtain in exchange any advantage of any kind whatsoever during the bidding process or during the execution of the contract.

b) The Bidder/ Contractor undertake not to enter into any undisclosed agreement or understanding, whether formal or informal with other Bidders. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other action to restrict competitiveness or to introduce cartelization in the bidding process.

c) The Bidder/Contractor undertakes not to commit any offence under the relevant Anti-corruption Laws of India; further the Bidder/Contractor will not use improperly, any information or document provided by the Employer as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically for purposes of competition or personal gain and will not pass the information so acquired on to others.

d) The Bidder/ Contractor will, when presenting his bid undertakes, to disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.

e) The Foreign Bidder/Contractor, when presenting his bid, undertakes to disclose the name and address of agents and representative in India. Further, Indian Bidder/Contractor when presenting his bid, undertakes to disclose the name and address of its foreign principals or associates in **Attachment-22** of the Bidding Document.

2 The Bidder/ Contractor will not instigate and allure third persons/parties to commit offences outlined above or be an accessory to such offences.

Section 3 Disqualification from Bidding Process and Exclusion from Future Contracts

1. If the Bidder(s)/ Contractor(s), before award or during execution has committed a transgression through a violation of any provisions of Section 2 or in any other form so as to put his reliability or credibility as Bidder into question, the Employer shall be

entitled to disqualify the Bidder(s)/ Contractor(s) from the bidding process or to terminate the contract, if signed on that ground.

2. If the Bidder/ Contractor have committed a transgression through a violation of Section 2 such as to put his reliability or credibility into question, the Employer shall be entitled to exclude including blacklist and put on holiday the Bidder/ Contractor for any future tenders/contract award process. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the Employer taking into consideration the full facts and circumstances of each case particularly taking into account the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder and the amount of the damage. The exclusion will be imposed for a minimum of 3 years.

3. A transgression is considered to have occurred if the Employer after due consideration of the available evidence concludes that no reasonable doubt is possible

4. The Bidder with its free consent and without any influence agrees and undertakes to respect and uphold the Employer's absolute rights to resort to and impose such exclusion and further accepts and undertakes not to challenge or question such exclusion on any ground, including the lack of any hearing before the decision to resort to such exclusion is taken. This undertaking is given freely and after obtaining independent legal advice.

5. Subject to full satisfaction of the Employer, the exclusion of Bidder/ Contractor could be revoked by the Employer if the Bidder/ Contractor can prove that he has restored/ recouped the damage caused by him and has installed a suitable corruption prevention system in his organization.

Section 4 Compensation for Damages including Forfeiture of Earnest Money Deposit/ Security Deposit/ Performance & Advance Bank Guarantees

1. If the Employer has disqualified the Bidder/ Contractor from the bidding process or has terminated the contract pursuant to Section 3, the Employer shall forfeit the Earnest Money Deposit/ Bid Security, encash Contract Performance Bank Guarantees in addition to excluding the bidder from the future award process and terminating the contract.

2. In addition to 1 above, the Employer shall be entitled to take recourse to the relevant provisions of the contract related to Termination of Contract due to Contractor's Default.

Section 5 Previous Transgressions

1 The Bidder swears on oath that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact, with any other company in any country conforming to TI approach or including with any Public Sector Enterprise/ Undertaking in India or any Government Department in India that could justify bidder's exclusion from the tender process.

2 If the Bidder makes incorrect statement on this subject, Bidder can be disqualified from the bidding process or the contract, if already awarded, can be terminated on this ground.

Section 6 Company Code of Conduct

Bidders are also advised to have a company code of conduct (clearly rejecting the use of bribes and other unethical behaviour) and a compliance program for the implementation of the code of conduct throughout the company.

Section 7 Independent External Monitors

1 The Employer will appoint competent and credible Independent External Monitor for this Pact. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

2 The Monitor is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He shall report to Chairman of the Employer or a person authorized by him.

3 The Bidder/ Contractor accepts that the Monitor has the right to access without restriction to all Project documentations of the Employer including that provided by the Contractor. The Contractor will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his Project Documentations. The same is applicable to Subcontractors. The Monitor is under contractual obligation to treat the information and documents of the Bidder / Contractor / Sub-Contractors/ Consortium partners/ Consortium member with confidentiality.

4 The Employer will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Employer and the Contractor. The parties offer to the Monitor the option to participate in such meetings.

5 As soon as the Monitor notices, or believes to notice, a violation of this agreement, he will so inform the Management of the Employer (CMD of the Employer or a person authorized by him) and request to discontinue or to take corrective action, or to take other relevant action. The Monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, Independent External Monitor shall give an opportunity to the bidder/contractor to present its case before making its recommendations to the Employer

6 The Monitor will submit a written report to Chairman of the Board of the Employer or a person authorized by the Board of Employer within 8-10 weeks from the date of reference or intimation to him by the Employer and should the occasion arise submit proposals for correcting problematic situations.

7 The Monitor shall be entitled to compensation on the same terms as being extended to/provided to Independent Directors of NTPC Board.

8. If the Monitor has reported to Chairman of the Board of the Employer or a person authorized by the Board of Employer a substantiated suspicion of an offence under relevant IPC/ PC Act, and he has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner, Government of India.

9 The word “Monitor” will include Singular or Plural.

Section 8 Pact Duration

1 This Pact comes into force from the date of signing by all the parties. It shall expire for the Contractor 12 months after the last payment under the respective contract, and for all other unsuccessful bidders 6 months after the contract has been awarded.

Section-9 Miscellaneous Provisions

1 This Pact is subject to Indian Law. The place of performance and jurisdiction shall be New Delhi.

2 Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

3. The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

4. If the Contractor is a Consortium partnership/Consortium/Associate, this agreement must be signed by all the partners of Consortium/Consortium Partners/Associate as the case may be.

The Parties hereby sign this Integrity Pact at ……….on this ……. day of……..20……

Employer	**Bidder/ Contractor**
Signature:	Signature:
Name: Prishant Pathik Designation: Dy General Manager ………………………………	……………………………… ………………………………
(Authorized Signatory)	(Authorized Signatory)
Witness	Witness
1. _______ Name: Designation:	1. _______
2. _______ Name: Designation:	2. _______

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

POLICY FOR DEBARMENT FROM BUSINESS DEALINGS

(TO BE ACCEPTED ONLINE IN ELECTRONIC FORMS ON ETS PORTAL)

1) We have read the contents of the **'Policy for Debarment from Business Dealing'** of Employer attached with this Bidding document and agree to abide by this policy. Further, in terms of requirement under debarment policy we hereby declare the following:

   a) We have not been Banned/Blacklisted as on date of submission of bid by Ministry of Power or Government of India.

   b) We have not employed any public servant dismissed/removed or person convicted for an offence involving corruption or abetment of such offences.

   c) Our Director(s)/Owner(s)/Proprietor/Partner(s) have not been convicted by any court of law for offences involving corrupt and fraudulent practices including moral turpitude in relation to business dealings with Government of India or Employer or Employer's group companies during the last five years.

2) We further declare as under:

   that if at any point subsequent to award of Contract, the declarations given above are found to be incorrect, Employer shall have the full right to terminate the Contract and take any action as per applicable laws for breach of contract including forfeiture of Performance Bank Guarantee.

ATTACHMENT – 18
(PART OF TECHNICAL BID)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Declaration of Annual Generation in Million Units)

Dear Sir/Madam,

We hereby furnish the following details regarding Annual Generation in MU for the Solar PV project:

SI No	Description		Bidder's Input Project 1		Bidder's Input Project 'n'		Total $\sum$ n	Remarks
1	Split-up of cumulative Quoted Solar capacity in Attachment 1-A # (**MW**)						$\sum$	
2	Split-up of each Project capacity with fixed tilt and/or tracker-based MMS (**MW**)		Fixed Tilt	Tracker	Fixed Tilt	Tracker		
3	Actual DC-AC ratio selected by bidder for each Project (for each type of MMS)		Fixed Tilt	Tracker	Fixed Tilt	Tracker		
4	Quoted annual Generation in **MU**(G) at interconnecting substation end corresponding to **actual DC:AC ratio selected by bidder** (For each type of MMS)		Fixed Tilt	Tracker	Fixed Tilt	Tracker		The guaranteed generation to be quoted by bidder here in Total column in addition to break-up of Fixed tilt and Tracker generation. This Quoted Annual Generation in MU ($\sum$**G**) shall be used by bidder for arriving at the total quoted price per MU.
		(In figures) #					$\sum$	
		(In words) #					$\sum$	
5	Annual Generation in **MU**(G) at interconnecting substation end with **fixed tilt MMS** corresponding to **reference DC:AC ratio of 1.50 (Fixed_Reference Generation_1)**	**(In figures)** #		NA		NA	$\sum$	These details i.e. Reference Fixed_Generation_1, Fixed_Reference Generation_2 and Tracker_Reference Generation are required for calculation of BG amount only as per relevant SCC clause.
		(In words) #		NA		NA	$\sum$	

6	Yearly Generation in **MU**(G) at interconnecting substation end with **fixed tilt MMS** corresponding to **reference DC:AC ratio of 1.55 (Fixed_Reference Generation_2)**	**(In figures)** #		NA		NA		
		(In words) #		NA		NA		
7	Yearly Generation in **MU**(G) at interconnecting substation end with **tracker-based MMS** corresponding to **reference DC:AC ratio of 1.35 (Tracker_Reference Generation)**	**(In figures)** #	NA		NA			
		(In words) #	NA		NA			

If multiple Projects are offered, the bidder shall fill all the relevant parameters for each Project in separate columns. # The extreme right Column, ∑N should be algebraic sum of the particulars of each Project.

Notes for Table-A –

We confirm that following points are compiled and accepted:

1) The aforesaid details shall be as per specification. Generation to be calculated as mentioned in Technical Specifications-Part A-Appendix-1. Bidder to quote details of multiple Projects in separate columns as in table. The quoted Generation shall be demonstrated during PG test as outlined in Section-VI for each Project independently.
2) In case of part capacity allotment to the last successful bidder after RA, the Generation in MU of such last eligible Project shall be calculated pro-rata: (Part capacity allotted for such Project/Quoted capacity of that Project) *(Quoted MU with fixed & tracker MMS for the same Project). Revised table shall be sought from the bidder in this regard. Any increase in loading parameters shall be dealt with as per the provision of the bidding document.
3) For quoted annual generation corresponding to DC-AC ratio above pre-defined reference values, bidder must submit additional BG as mentioned in bidding document.In case bidder select actual DC:AC ratio above the reference value mentioned in bidding document and does not provide reference generation(i.e. corresponding to DC:AC ratio 1.5 & 1.55 for fixed tilt, 1.35 for tracker), the generation shall be calculated by NTPC REL on pro-rata basis based on quoted generation and quoted DC:AC ratio for purpose of BG calculation.
4) Finalized Annual Generation shall be fixed during entire bidding process including Reverse Auction (RA) for the respective bidder.
5) In case of any discrepancy between figures and words, quoted annual generation indicated in words shall prevail.

(Signature)…………………………………………….
(Printed Name) ……………………………………….
(Designation)……………………………………………

(Common Seal) …………………………………………

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

<u>Declaration on Local Content</u>

Dear Sir(s),

I/ we have read the provisions of **"Preference to Make In India"** enclosed with the **Bid Data Sheet**. In terms of the requirement of the aforesaid provisions, I/ we hereby declare the following:

1. In order to avail **evaluation eligibility,** I/ we hereby declare that I/we are **supplying/ sourcing the following goods/ services as/ from Class-I Local Supplier**:

Sl. No.	Description of Goods & Services	Quantity/ Weight	Details of the Location(s) at which Local Value Addition is made
1.	**Common items for Transmission, Distribution and Generation Sector** at Annexure-IA to Ministry of Power OM No. A-1/2021-FSC-Part(5) dated 16.11.2021. The Minimum Local Content (%) as mentioned under the aforementioned OM shall be complied.		

2. **I/ we undertake that a certificate from the statutory auditor or cost auditor (in the case the bidder is a company) OR from a practicing cost accountant or practicing chartered accountant (in respect of bidders other than companies) certifying the percentage of local content shall be submitted by us prior to submission of our last bill for payment.**

3. Further, I/ we hereby confirm the following:

Whether the bidder is presently debarred/ banned by any other procuring entity for violation of 'Public Procurement (Preference to Make In India), Order 2017' (PPP-MII Order) dated 15.06.2017 issued by Department of Industrial Policy and Promotion (DIPP) and its subsequent revisions	**o NO** **o YES**

4. I/ we agree to furnish any information as a proof of the above to your satisfaction as and when required.

(Signature)

Bidder's Name ....

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Details of Foreign Principals of Indian Bidders

We hereby declare the details of our foreign principals as below:

(The name and address of foreign principals or associates)

……………………………………….

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

DECLARATION
for
PV Module Performance Insurance

It is hereby declared that our bid prices are inclusive of the cost of PV Module Performance Insurance as envisaged under the contract as per para No. - 2 of APPENDIX-3B, Sub-Section-1A of SECTION-VI (Technical Specification).

We understand that in compliance to the above provision, we shall be obligated to submit "**PV Module Performance Insurance Policy/Declaration**" before raising Invoice/RA Bill for the supply of Solar PV Modules, otherwise Invoices/RA Bill for Solar PV Modules shall not be considered for payment till compliance on the above is ensured.

We also understand that we shall submit the PV Module Performance Insurance to ensure faithful performance of PV modules inline with para No. - 2 of APPENDIX-3B, Sub-Section-1A of SECTION-VI (Technical Specification).

Authorized Signatory : …………………………………….

Name of the Signatory : …………………………………….

Bidder's Name : …………………………………….

Place : …………………………………….

Date : …………………………………….

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

(Compliance to “Conflict of Interest” provisions)

We confirm that we have read and understood the ITB Clause 46.0 regarding “Conflict of Interest” and our bid is in compliance to this clause.

In case it is established that we have provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then our bid shall be rejected.

We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of “Policy for Debarment from Business Dealings” and shall be dealt accordingly.

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

BIDDING DOCUMENTS

FOR

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

SECTION – VII

BOOK 2 OF 3

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

SECTION – VII

BOOK 2 OF 3

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

TABLE OF FORMS AND PROCEDURES

SL NO	DESCRIPTION
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1A	Bid Form and Attachments (Techno Commercial Bids)
	SECTION-VII (BOOK 2 OF 3)
1B	Bid Form and Attachments (Price Bid)
	SECTION-VII (BOOK 3 OF 3)
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2a	Bank undertaking format for BG
2b	Declaration for payment of cost of bidding document
2c	Bid Security Form – Insurance Surety Bond
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5	Performance Security Forms
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a.	Supply Ex-Works
b.	Installation Services/ Civil & Allied Works/ Additional Advance Payment
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8	Form of Operational Acceptance
9	Form of Trust Receipt
10	Forms of Indemnity-cum-Undertaking Agreement
11	Form of Authorization Letter
12	Form of Bank Guarantee Verification Checklist
13	Form of Validity Extension of Bank Guarantee
14	Form of Indemnity-cum-Undertaking Agreement regarding Removal/ Disposal of Scrap and Surplus Material
15	Form of Bank Guarantee by Associate – Collaborator – **NOT APPLICABLE**
16	Form of Notification by the Employer to the Bidder
17	Form of Joint Deed of Undertaking – **NOT APPLICABLE**
18	Bank Guarantee Form for Quoted Generation in Excess of DC:AC ratio greater than 1.30 as per SCC Clause 8.3(a)
19	Joint Undertaking for AMC of Critical Equipment for Stipulated Duration beyond O&M Period
20	Forms for Stage Closing Activities
a.	Proforma of Certificate regarding Labour Payments and Statutory Requirements to be furnished by the Contractor
b.	Proforma of No Demand Certificate by the Contractor
21	Undertaking for Indemnifying the Employer against any Encumbrance on the Project Land transferred/ leased to Employer in respect of Development of Solar PV Project

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Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

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a.	Proforma of Certificate regarding Labour Payments and Statutory Requirements to be furnished by the Contractor
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BID FORM (PRICE BID)

Bidder Proposal Ref. No.: **Date:**

IFB No.: NRE-CS-5839-CNGEL-EPC

NAME OF PACKAGE: **Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)**

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

To

NTPC Renewable Energy Limited,
Contracts Services
4th Floor, Renewables Building, NETRA Complex
E-3, Ecotech-II, Udyog Vihar
Greater Noida-201306, Distt. Gautam Buddha Nagar,
Uttar Pradesh, India

Gentlemen and/or Ladies,

1.0 Having examined the Bidding Documents No. **NRE-CS-5839-CNGEL-EPC**, including subsequent amendments and clarifications, if any, uploaded by Employer in ETS e-tender Portal, the receipt of which is hereby acknowledged, we the undersigned, offer to design, manufacture, test, deliver, install and commission the facilities and carry out Operation & Maintenance of Solar PV Project, including AMC, under the above-named Contract in full conformity with the said Bidding Documents for the sum (including all taxes & duties indicated by us in Schedule-6) as mentioned in Financial Part of Bid Invitation at ETS e-tender portal or such other sums as may be determined in accordance with the terms and conditions of the Contract.

1.1 Further we understand that discount letter separately uploaded online or submitted in physical form shall not be considered for the purpose of evaluation.

2.0 **Attachments to the Bid form (Price Bid):**

In line with the requirement of the Bidding Documents we enclose herewith the following Attachments to the Bid Form:

a) Attachment 1P: -- Not Applicable --

b) Attachment 2P: -- Not Applicable --

c) **Attachment 3P**: -- Declaration regarding Import Content --

d) **Attachment 3P (A):** ~~Details regarding import of Construction Equipments~~. **-NOT APPLICABLE**

e) **Attachment 4P:** ~~Details of bought out items to be directly despatched by our sub-contractor(s) /sub-vendor(s) to your site~~. **- NOT APPLICABLE**

f) **Attachment 5P:** The Declaration on the Guaranteed Parameters as per Format.

g) **Attachment 6P: -**-Not Applicable--

h) **Attachment 7P: Annual Recurring Costs: --NOT Applicable—**

~~The declaration on Year wise Annual Recurring cost per Hectare of leasehold Land, annual O&M cost of shared transmission infrastructure, solar park charges, state policy charges.~~

~~The Year wise Annual Recurring cost per Hectare of leasehold Land (if applicable), annual O&M cost of shared transmission infrastructure (if applicable), solar park charges (if applicable), state policy charges (if applicable) shall be fixed during entire bidding process for the respective bidder as quoted in the price bid.~~

~~In case a bidder does not provide the above details and / or provide the incomplete details as sought in Attachment-7P, its bid will be rejected.~~

2.1 We have read and understood the "Business Rules for Reverse Auction" and the "Terms and Conditions for Reverse Auction" and we confirm to fully abide by it.

2.2 We further understand that after completion of the Reverse Auction event, based on the final price quoted by us (in case we are successful bidder) we shall submit item wise price break up for the items in all Price Schedules to the Employer in the prescribed format of Price Schedules within 2 hours of conclusion of Reverse Auction.

We also understand that the Final Total Price as per item-wise detailed break-up (including taxes, duties and GST) of price shall be furnished in Price Schedule-1, 2, 3, 6, and 7 in such a manner that it derives the final Quoted price based on the **"Total Evaluated Bid Price"** received after completion of Reverse Auction (RA). It is also noted that while preparing the price schedule, the final break up of prices furnished by us, shall be equal to the **"Total Evaluated Bid Price** received after completion of reverse auction ~~(i.e.~~ ~~**[total of prices in Price Schedules 1, 2, 3, 6 + the new NPV of revised price break-up in Price Schedule-8 and Price Schedule-9 i.e. "Total Evaluated Bid Price"]**~~ of the successful bidder as mentioned at clause 27.5 of ITB). Any difference due to approximation shall be adjusted to the Auction Price Received.

2.3 We further categorically confirm that the price quoted by us is for executing the complete facilities and inclusive of all taxes and duties.

3.0 **BID PRICE (TO BE SUBMITTED IN FINANCIAL PART ON ETS PORTAL) AND PRICE SCHEDULE (TO BE SUBMITTED AFTER REVERSE AUCTION)**

3.1 **We confirm that we have submitted 'Bid Price' on "per MU basis" for each of the project(s) quoted by us in Financial Part on ETS portal and the same shall be considered for further evaluation.**

Further, in line with the requirements of the Bidding Documents, we undertake to submit the following Price Schedules, duly filled-in as per your proforma, upon being emerged as successful bidder after conclusion of the reverse auction.

Schedule No.1	Ex-works supply of Plant and Equipment including Type Tests charges and Mandatory Spares.
Schedule No. 2	Local Transportation & Inland insurance and other local costs incidental to delivery of Plant & Equipment and Mandatory Spares
Schedule No. 3	Installation Services including Civil works, Erection Works, Insurance covers other than inland transit insurance, Safety Aspects/Compliance to Safety Rules and O&M and other services as specified in the bidding documents.
Schedule No. 3A	Total Price of Land to be transferred / leased in favour of the Employer including Infrastructure Development Charges and other charges (if any). Only fixed cost of land (private land and / or revenue land) is to be quoted in this schedule.
Schedule No. 4	Schedule of Unit Rate
Schedule No. 5	Recommended Spare Parts
Schedule No. 6	Goods & Services Tax (GST), applicable on Schedules - 1, 2 & 3 not included therein.
Schedule No. 7	Year-wise quote for Comprehensive Operation & Maintenance (O&M). This quote shall include all O&M, replacement, and disposal costs. The scope covers five years of comprehensive O&M for the integrated Solar + BESS plant following the PG Test, followed by an additional ten-year O&M period exclusive to the BESS plant

3.2 We are aware that the Price Schedules do not generally give a full description of the work to be performed under each item and we shall be deemed to have read the Technical Specifications, Drawings and other Sections of the Bidding Documents to ascertain the full scope of work included in each item while filling in the rates and prices. We agree that the rates and prices to be entered shall be deemed to include the full scope as aforesaid, including overheads and profit. We further declare that we shall furnish the unit rates for the item and mandatory spares indicated in Schedule No. 1.

3.2.1 We confirm that if any deviations, variations are found in respect of mandatory spares in the Price Schedule No. 1, which are contrary to the requirements of the bidding documents, the same shall not be given effect to by the Employer and it will be considered that our bid is in compliance with the requirements of the bidding documents. In such cases, we confirm that we shall supply such mandatory spares, as per Technical Specification without any extra cost implication to the Employer.

3.3 We declare that as specified in the General Conditions of Contract (Cl 11.2) and Appendix-2 (Price Adjustment) to the Contract Agreement, the provision of price adjustment is not applicable and the prices to be quoted by us in the Price Schedules for the entire scope of work shall be on Firm Price Basis and Prices shall remain firm during the entire period of contract including any extension of time for completion.

3.4 We understand that in the price schedule, where there are discrepancy between the unit price and the total price, which is obtained by multiplying the unit price and quantity, or between sub totals and the total price, (even in case of carry forward of prices) the unit or subtotal price shall prevail and the total price shall be corrected accordingly. We further understand that where there is discrepancy between amounts stated in figures and amounts stated in words, the amount stated in words shall prevail. Similarly, in case of any discrepancies between the total bid price and the summation of Schedule prices (price indicated in a Schedule indicating the total of that Schedule) submitted after the Reverse Auction, the break-up of the price schedule shall be corrected to reflect the total bid price derived from the final **bid price per MU** quoted by the bidder on the ETS portal in the Reverse Auction.
~~**However, we understand that in case there is any mismatch in the Total Bid price (including taxes and duties) per MU in the Electronic form and the Price Schedules (if uploaded by the bidder in Financial Part on ETS portal), the Total Bid price (including taxes and duties) per MU in the Electronic form shall prevail and shall be considered for further evaluation**~~

3.5 We declare that prices left blank in the Schedules will be deemed to have been included in the prices of other items. The TOTAL of each Schedule or the Grand TOTAL considering final Price Per MU quoted by the bidder on the ETS portal in the Reverse Auction shall be deemed to be the total price for executing the Facilities in complete accordance with the Contract, whether or not each individual item has been priced.

4.0 **We confirm that except as otherwise specifically provided, our Bid Prices include all taxes, duties, levies and charges, as may be assessed on us, our Sub-Contractor/Sub-Vendor or our employees by all Municipal, State or National Government authorities in connection with the Facilities, in and outside of India.**

4.1 We further understand that notwithstanding 4.0 above, you shall bear and pay/reimburse to us **GST** applicable on (a) Plant and Equipment and Mandatory Spares to be supplied from within the country of India specified in Price Schedule No. 1 (and also on locally supplied Recommended Spare Parts quoted in Price Schedule No. 5 when awarded) to be incorporated in the Facilities, by the Indian Laws, (b) Local transportation & insurance, other local costs incidental to delivery of plant & equipment including mandatory spares specified in Price Schedule No. 2 (and also of locally supplied Recommended Spare Parts quoted in Price Schedule No. 5, when awarded) and (c) Installation Services including Erection, Civil & Allied Works, Safety Aspects/Compliance to Safety Rules and other services specified in Price Schedule No. 3.

However, all other taxes, duties & levies as may be applicable on goods and services specified in Price Schedules Nos. 1, 2, 3 and on the materials used for civil construction works and erection & commissioning shall be to our account and no separate claim in this regard will be entertained by you.

Taxes and Duties which are payable by the Employer under the Contract shall be paid/reimbursed by the Employer to the Contractor after receipt of equipment/spares/services at site and on production of satisfactory documentary evidence by the Contractor. **However, GST, if and as applicable on Advance payment shall be paid to the Contractor along with the Advance sanctioned. We undertake that the amount of this GST paid along with advance shall be adjusted**

prorata against the Tax due upon supply of goods/services, based on the value of the respective goods/services.

4.2 We hereby confirm that our price in respect of the goods and services specified in Price Schedules Nos. 1, 2 & 3 do not include the **GST** and the same shall be payable/ reimbursed by you in accordance with the law. We further declare that the amount of **GST** as the list of Goods & Services and their values considered for **GST** have been exhaustively indicated by us in Schedule-6 at prevailing rates. However, we confirm that you shall not be liable to pay **GST** though applicable in India on seven days prior to the date of Bid submission but not indicated in the Schedule-6.

We further confirm that **GST** payable by you is indicated in aforesaid Schedule-6 and the same shall be considered for evaluation.

4.3 We confirm that we shall get registered **as per relevant GST laws**.

4.4 **Income Tax**

We hereby declare that if any Indian Income Tax, surcharge on Income Tax and any other tax is attracted under the law, we agree to pay the same to the concerned authorities and you shall have no additional tax liabilities whatsoever irrespective of the mode of contracting

4.5 We confirm that all taxes, duties, levies including GST on supply of service in respect of Operation & Maintenance (O&M) of the Solar PV Project including BESS are included in our bid prices and shall be borne by us and no separate payment on this account shall be made by you.

4.6 We confirm that all taxes, duties, levies including GST on supply of service, legal dues, charges, incidental / logistics expenses etc. in respect of land portion of contract price upto the period of execution of Sale / Lease Deed in favour of employer are included in our bid prices and the same shall be borne by us and no separate payment on this account shall be made by you. **– NOT APPLICABLE for subject package**

5.0 **COMPLIANCE TO THE PROVISIONS OF THE BIDDING DOCUMENTS**

5.1 We have read all the provisions of the Bidding Documents and confirm that notwithstanding anything stated elsewhere in our bid to the contrary, the provisions of the Bidding Documents are acceptable to us and **we further confirm that we have not taken any deviation to the provisions of the Bidding Documents** anywhere in our bid.

We have furnished our compliance to the provisions of the Bidding Documents and its subsequent Amendment(s)/Clarification(s)/Addenda/Errata by accepting the following attribute in Main Screen of Bid Invitation at e-tender site:

"Do you certify compliance to all provisions of Bid Documents?"

Acceptance of above attribute shall be considered as our confirmation that any deviation, variation or additional consolation etc. or any mention, contrary to the provisions of Bidding Documents and its subsequent Amendment(s)/Clarification(s)/ Addenda/Errata (if any) found anywhere in our Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without

any cost implication whatsoever to the Employer, failing which our bid shall be rejected and bid security shall be forfeited.

5.2 We further declare that additional conditions, variations, deviations, if any, found in the Price Bid, shall not be given effect to.

6.0 We undertake, if our bid is accepted, to commence work on the facilities immediately upon your Notification of Award to us and to achieve Completion of Facilities and Conduct Guarantee Tests within the time specified in the Bidding Documents.

7.0 If our bid is accepted, we undertake to provide an Advance Payment Security, Contract Performance Security(ies), and Securities for Deed(s) of Joint Undertaking (as applicable) and other securities in the form and amounts and within the times specified in the Bidding Documents.

8.0 We agree to abide by this Bid for a period of **120 days** from the date of opening of Techno Commercial bids as stipulated in the Bidding Documents and it shall remain binding upon us and may be accepted by you at any time before the expiration of that period. Techno-Commercial Bid including this Price Bid shall remain valid and open for acceptance for **One Hundred and Twenty (120) days** from date of Techno Commercial Bid Opening. Further, the prices of recommended spares contained in our Bid shall remain valid for a period of 6 months after the placement of Notification of Award for Main Equipment and Mandatory Spares.

9.0 Until a formal Contract is prepared and executed between us, both bids (Techno-Commercial bid and Price Bid), together with your written acceptance thereof in the form of your Notification of Award shall constitute a binding contract between us.

10.0 We understand that you are not bound to accept the lowest or any other bid you may receive.

11.0 We confirm that the cost of Special Tools & Tackles furnished by us in relevant attachment of our Techno-Commercial Bid is included in the lumpsum price quoted in this Price Bid.

12.0 We, hereby, declare that only the persons or firms interested in this proposal as principals are named here and that no other persons or firms other than those mentioned herein have any interest in this proposal or in the Contract to be entered into, if the award is made on us, that this proposal is made without any connection with any other person, firm or party likewise submitting a proposal, is in all respects for and in good faith, without collusion or fraud.

Dated this..........................day of.........................20….

Thanking you, we remain,

Yours faithfully,

Date: _____

Place:_____

(Authorised Signatory Name).

(Designation)

Business Address:_____

Email id

Mobile No.:

Fax No.:_____

Phone No.:

NOT APPLICABLE

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
BIDDING DOCUMENT NO. NRE-CS-5839-CNGEL-EPC

Declaration regarding Import Content

NOT APPLICABLE

NOT APPLICABLE

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
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Guarantee Declaration

We declare that the ratings, capacities, and performance figures of the equipments furnished by us under the package are guaranteed. We further declare that in the event of any deficiencies in meeting the guaranteed figures as specified in Technical Specifications as established after conducting the guarantee tests, you may at your discretion accept the equipment/ system after levying the Liquidated Damages as specified in Technical Specifications or reject the equipment/ system and recover payments already made or get the defects repaired by any other agency and recover the cost of repair from us.

(PRICE ADJUSTMENT DATA)

NOT APPLICABLE

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
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NOT APPLICABLE

(Declaration of month-wise Generation from one MWp Fixed Tilt based Solar PV Project)

Not Applicable

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)
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PRICE SCHEDULES UPLOADED AS SEPARATE EXCEL FILE ON THE TENDERING PORTAL

NTPC GREEN ENERGY LIMITED

(A WHOLLY OWNED SUBSIDIARY OF NTPC LTD.)

BIDDING DOCUMENTS

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Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

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(BOOK 3 OF 3)

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NTPC GREEN ENERGY LIMITED

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FOR

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(BOOK 3 OF 3)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

BIDDING DOCUMENTS
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Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

CONTENTS

Section I : Invitation for Bids (IFB)

Section II : Instructions to Bidders (ITB)

Section III : Bid Data Sheet (BDS)

Section IV : General Conditions of Contract (GCC)

Section V : Special Conditions of Contract (SCC)

Section VI : Technical Specification (TS)

Section VII : Forms and Procedures (FP) [as per details here-under]

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21	Undertaking for Indemnifying the Employer against any Encumbrance on the Project Land transferred/ leased to Employer in respect of Development of Solar PV Project– **NOT APPLICABLE**
22	Certificate from Bank regarding BG Charges
23A	Declaration of absence of conflict of interest with Conciliation committees of independent experts (CCIE)
23B	Undertaking regarding absence of conflict of interest with Employer/ contractor

Development of 6 MW Floating Solar PV Project coupled with 6 MW /24 MWhr Battery Energy Storage System (BESS) at ABVTPS Project of CSPGCL project through CNGEL (JV company between NGEL & CSPGCL)

BIDDING DOCUMENT NO.: NRE-CS-5839-CNGEL-EPC

CAUTION LIST

(Bidder may take note of the following points while submitting its bid)

- BIDDERS ARE REQUIRED TO FURNISH REQUISITE DETAILS IN THE FORMATS SPECIFIED IN THE BIDDING DOCUMENTS FOR MEETING THE STIPULATED QUALIFYING REQUIREMENTS (QR) ALONG WITH ALL SUPPORTING DOCUMENTS LIKE COPIES OF CLIENT'S CERTIFICATES, WORK ORDER AND CONTRACT AGREEMENTS ETC. ***IF ANY OF THE REFERENCE WORK FURNISHED BY BIDDER PERTAINS TO THE CONTRACT(S)/WORKS EXECUTED BY BIDDER FOR NTPC/ NTPC REL IN THE PAST THEN IN RESPECT OF SUCH CONTRACT(S)/WORKS BIDDER IS NOT REQUIRED TO ENCLOSE CLIENT CERTIFICATE(S) ALONG WITH ITS BID.***

  IN CASE OF A PRE-QUALIFIED BIDDER (I.E. THE BIDDER WHO HAS RECEIVED THE PRE-QUALIFICATION LETTER FROM EMPLOYER), THE BIDDER IS NOT REQUIRED TO SUBMIT THE DETAILS/ DOCUMENTS PERTAINING TO REFERENCE PLANTS / WORKS / PAST EXPERIENCES TO MEET THE CRITERIA UNDER THE SAID CLAUSE/ ROUTE OF QUALIFYING REQUIREMENTS IF THE BIDDER IS SEEKING QUALIFICATION UNDER SAME CLAUSE/ ROUTE OF QUALIFYING REQUIREMENTS.

- IN CASE OF EXTENSION OF TECHNO-COMMERCIAL BID OPENING DATE, BIDDER TO FURNISH AUDITED ANNUAL REPORTS ALONG WITH THEIR BID AS PER EXTENDED DATE OF TECHNO-COMMERCIAL BID OPENING TO MEET THE STIPULATED FINANCIAL QR CRITERIA.

- **POWER OF ATTORNEY DULY NOTARIZED BY A NOTARY PUBLIC** INDICATING THAT THE PERSON SIGNING THE BID HAS THE AUTHORITY TO SIGN THE BID AND THE BID IS BINDING UPON THE BIDDER DURING THE FULL PERIOD OF ITS VALIDITY **BACKED BY A COPY OF BOARD RESOLUTION/ OTHER RELEVENT DOCUMENTS** TO DEMONSTRATE THE AUTHORITY OF THE PERSON ISSUING THE POWER OF ATTORNEY. POWER OF ATTORNEY SHOULD BE DATED NOT LATER THAN THE DATE OF SIGNING THE BID. TO BE FURNISHED **IN PHYSICAL FORM BEFORE THE CLOSING DATE AND TIME OF THE BID SUBMISSION.**

- BIDDER TO ENSURE THAT **BID SECURITY TO BE SUBMITTED IN ORIGINAL** STRICTLY AS PER SPECIFIED FORMATS DULY SIGNED BY AUTHORISED SIGNATORY AND STAMPED ON EACH PAGE **IN PHYSICAL FORM BEFORE THE CLOSING DATE AND TIME OF THE BID SUBMISSION**. BIDDER TO ENSURE STRICT COMPLIANCE OF **BID SECURITY VERIFICATION CHECKLIST** (FORM 12, SEC-VII, BOOK 3 OF 3).

  IN CASE, BIDDER OPTS FOR BANK GUARANTEE AS BID SECURITY BUT UNABLE TO SUBMIT THE ORIGINAL BANK GUARANTEE IN PHYSICAL FORM AT THE TENDER OPENING LOCATION, BEFORE THE DEADLINE FOR SUBMISSION OF BIDS, PROVISION OF ITB CLAUSE TITLED "BID SECURITY" SHALL BE APPLICABLE.

- **DATE OF PURCHASE OF STAMP PAPER OF INSTRUMENTS LIKE BID SECURITY ETC. SHOULD BE ON OR BEFORE THE DATE OF EXECUTION OF SUCH INSTRUMENTS.**

2. BID SECURITY FORMS

2A. Form of Bank Guarantee towards Bid Security
(To be stamped in accordance with Stamp Act,
if any, of the Country of the issuing Bank)

Bank Guarantee No. ....
Date..

To:

NTPC Renewable Energy Limited (*Employer's Name)*
4th Floor, NETRA Building
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh
India, Pin – 201306

Dear Sirs,

In accordance with Invitation for Bids under your Bid Document No.......................... , M/s………… .... having its Registered/Head Office at……………………………………………(hereafter called the 'Bidder') wish to participate in the said bid for *[Name of Package]*...

As an irrevocable bank guarantee against Bid Security for an amount of ....(*).. valid for ....days from...(**).......................................required to be submitted by the Bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies mentioned in the Bidding Documents.

We, the ....*[Name & address of the Bank]*…..having our Head Office at…..................................(#)..guarantee and undertake to pay immediately on demand by....................................*[Name of the Employer]* (hereinafter called the ‘Employer’)...the amount of ....(*) .... without any reservation, protest, demand and recourse. Any such demand made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder.

This Guarantee shall be irrevocable and shall remain valid upto ....(@)........... If any further extension of this guarantee is required, the same shall be extended to such required period (not exceeding one year) on receiving instructions from M/s.........(***)……..............*[Bidder's Name]*....................... on whose behalf this guarantee is issued.

In witness whereof the Bank, through its authorised officer, has set its hand and stamp on this...day of.................................20..........at.............

....
(Signature)

....
(Name)

....
(Designation with Bank Stamp)
Authorised Vide
Power of Attorney No...............................
Date...

NOTE: 1. (*) The amount shall be as specified in the bidding documents.

(**) This shall be the date of opening of Techno-commercial bids.

(#) Complete mailing address of the Head Office of the Bank to be given.

(@) This date shall be forty-five (45) days beyond the validity of bid.

2. The Bank Guarantee (BG) shall be from a Bank as per provisions of the bidding documents.

3. The BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the bidding documents. Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee.

5. In case, Bank Guarantee is getting issued from State Bank of India, Bidder to take note of NTPC letter ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 (attached with Section-III of Bidding Documents.)

2B. Form of Insurance Surety Bond towards Bid Security

(To be stamped in accordance with Stamp Act of India)

Insurance Surety Bond No. ….....................
Date..

To

NTPC Renewable Energy Limited (*Employer's Name)*
4th Floor, NETRA Building
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh
India, Pin – 201306

Dear Sirs,
In accordance with Invitation for Bids under your Bid Document No. ...., M/s..............................[*Bidder's Name*] .... having its Registered/Head Office at .... (hereinafter called the 'Bidder') wish to participate in the said bid for *[Name of Package]* .... As an irrevocable Insurance Surety Bond against Bid Security for an amount of ....(*) .... valid for... days from ....(**)...................................... required to be submitted by the Bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies as mentioned under the Bidding Documents.

We, the .... *[Name & address of the Insurer]* ....having our Head Office at .... (#) .... guarantee and undertake to pay immediately on demand by NTPC Limited *(hereinafter called the 'Employer')* the amount of ....(*) ....without any reservation, protest, demand and recourse. Any such demand made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder and/or any right/remedy available to the bidder in terms thereof.

This Insurance Surety Bond shall be unconditional as well as irrevocable and shall remain valid upto ....(@)........... If any further extension of this Insurance Surety Bond is required, the same shall be extended to such required period (not exceeding one year) on receiving instructions from M/s ....*[Bidder's Name]*......................... on whose behalf this Insurance Surety Bond is issued.

In witness where of the Insurer, through its authorised officer, has set its hand and stamp on this...day of..................................20.........at........ ....

(Signature)

....

(Name)
....
(Designation with Insurer Stamp)

Authorised Vide
Power of Attorney No.......................
Date...

NOTE: 1. (*) The amount shall be as specified in the Bid Data Sheets.

(**) This shall be the date of opening of Techno-Commercial bids.

(#) Complete mailing address of the Head Office of the Insurer to be given.

(@) This date shall be forty five (45) days after the last date for which the bid is valid.

2. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) as amended from time to time.

3. The Employer shall be the Creditor, the Bidder shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.

4. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

5. While getting the Insurance Surety Bond issued, Bidders are required to ensure compliance to the points mentioned in Form of Bank Guarantee/Insurance Surety Bond Verification Check List enclosed in this Section of Bidding Documents. Further, Bidders are required to fill up this Form and enclose the same with the Insurance Surety Bond.

FORM 2C: FORM OF PAYMENT ON ORDER INSTRUMENT (POI) TOWARDS BID SECURITY TO BE ISSUED BY IREDA/REC/PFC

(To be stamped in accordance with Stamp Act of India)

POI No. .... Date..............................

To :

NTPC RENEWABLE ENERGY LIMITED
4th Floor, Renewables Building
E-3, Ecotech-II, Udyog Vihar
Greater Noida – 201306
Dist. Gautam Buddha Nagar
Uttar Pradesh

Sub: M/s ________________(insert name of the Bidder) – Issuance of Payment on Order Instrument for an amount of Rs._______*______

Dear Sir

1. It is to be noted that M/s. ____________(insert name of the POI issuing Agency) ('IREDA/REC/PFC') has sanctioned a non-fund based limit loan of Rs. …………………………………..(Rupees……………….only) to M/s _________________ under the Loan Agreement executed on ___________ to execute Renewable Energy Projects.

2. At the request of M/s ________________, on behalf of ________________ (insert name of the Bidder), this Payment on Order Instrument (POI) for an amount of Rs. _____________ (Rupees_________(in words)) and valid till ……@……. This Payment on Order Instrument comes into force immediately.

3. In consideration of the ___________________________________ [Insert name of the Bidder] (hereinafter referred to as 'Bidder') submitting the bids for ……………………. [Name of the Package] in response to the Bidding Document No. ____________ dated ___________ issued by NTPC Renewable Energy Limited (hereinafter referred to as NTPC REL) and NTPC REL considering such response to the Bid of ………[Insert the name of the Bidder] as per the provisions of Bidding Documents, the _______________ [Insert name & address of IREDA/PFC/REC] hereby agrees unequivocally, irrevocably and unconditionally to pay to NTPC REL at [Insert Name of the Place from the address of NTPC REL] forthwith without demur on demand in writing from NTPC REL or any Officer authorized by it in this behalf, any amount upto and not exceeding Rupees ________*________ [Insert Amount], only, on behalf of M/s _______________________ [Insert name of the Bidder].

4. In consideration of the above facts, IREDA/REC/PFC, having its registered office at ________#_________, agrees to make payment for the sum of Rs. ______*____ (in words……………………………) to NTPC REL on the following conditions:-

(i) IREDA/REC/PFC agrees to make payment of the above said amount unconditionally, without demur and without protest within a period of 15 days of receipt of request from NTPC REL within the validity period of this letter as specified herein;

(ii) The commitment of IREDA/REC/PFC, under this Payment of Order Instrument will have the same effect as that of the commitment under the Bank Guarantee issued by any Public Sector Bank and shall be enforceable in the same manner as in the case of a Bank Guarantee issued by a Bank and the same shall be irrevocable and shall be honored irrespective of any agreement or its breach between IREDA/REC/PFC or its constituents notwithstanding any dispute that may be raised by or against NTPC REL;

(iii) The liability of IREDA/REC/PFC continues to be valid and binding on IREDA/REC/PFC and shall not be terminated, impaired and discharged, by virtue of change in its constitution and specific liability under this letter of undertaking shall be binding on its successors or assignees;

(iv) The liability of IREDA/REC/PFC shall continue to be valid and binding on IREDA/REC/PFC and shall not be terminated/ impaired/ discharged by any extension of time or variation and alternation made given or agreed with or without knowledge or consent of the parties (NTPC REL and Bidding Party), subject to the however to the maximum extent of amount stated herein and IREDA/REC/PFC is not liable to any interest or costs etc;

(v) This Payment of Order Instrument can be invoked either partially or fully, till the date of validity;

(vi) IREDA/REC/PFC agrees that it shall not require any proof in addition to the written demand by NTPC REL made in any format within the validity period. IREDA/REC/PFC shall not require NTPC REL to justify the invocation of the POI against the [……Name of the Bidder……], to make any claim against or any demand against the Bidder or to give any notice to the [Name of the Bidder];

(vii) The POI shall be the primary obligation of IREDA/REC/PFC and NTPC REL shall not be obliged before enforcing the POI to take any action in any court or arbitral proceedings against the [……...Name of the Bidder……]

(viii) Neither NTPC REL is required to justify the invocation of this POI nor shall IREDA/REC/PFC have any recourse against NTPC REL in respect of the payment made under letter of undertaking;

5. Notwithstanding anything contrary contained anywhere in this POI or in any other documents, this POI is and shall remain valid upto ________@________ and IREDA/REC/PFC shall make payment thereunder only if a written demand or request is raised within the said date and to the maximum extent of Rs. …………………….. and IREDA/REC/PFC shall in no case, be liable for any interest, costs, charges and expenses and IREDA's/REC's/PFC's liability in no

case will exceed more than the above amount stipulated.

Dated this .... day of .... 20................. at ……..

Thanking You

Yours faithfully
For and on behalf of
M/s …………………………
(Name of the POI issuing agency)

....
(Signature)

....
(Name)

....
(Designation with Stamp)

Authorised Vide
Power of Attorney No........................

Date..

NOTE : 1. (*) The amount shall be as specified in the bidding documents.

(#) Complete mailing address of the Head Office of the POI Issuing Organization to be given.

(@) This date shall be forty five (45) days beyond the validity of bid.

2. The POI should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/POI issuing the organization.

3. While getting the POI issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee/Insurance Surety Bond/POI

Verification Check List in the bidding documents. Bidders are required to fill up this Check List and enclose the same along with the POI.

Form – 2D

2C. Format of Undertaking

(Declaration for submission of bid security through EFT)

<u>Details for Payment for Bid Security through Electronic Fund Transfer (EFT)</u>

Tender Search Code:

Bidder Name:

UTR Reference No:

Amount:

Date of Transfer:

Transferor Bank:

(Signature of Bidder with Seal)

2E. Format of Undertaking

(To be sent by Issuing Bank through official email-ID)

From: xxbank@xx.in **[Official E-Mail ID of Bank]**

To: ***@ntpc.co.in **[E-Mail ID(s) as per BDS Item 2.1]**

We have issued BG No. …………………… dated ………………… for an amount of Rs. ………………… on behalf of …………………[Name of Bidder] towards Bid Security / EMD for Tender No. ………… in favour of ………………… [Name of Employer].

Please find enclosed the soft copy of the Bank Guarantee and SFMS acknowledgement. This SFMS is sent on ………………. (date).

Any demand / claim made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder till the validity period mentioned in the Bank Guarantee.

However, in absence of the physical copy of aforementioned BG with the Employer, we undertake that Employer's demand / claim will be binding and conclusive on us without the physical copy of aforementioned BG till fourteen (14) days from the due date of submission of Techno-Commercial bids.

We undertake not to cancel the aforementioned BG No. …………… without written consent / instruction from NTPC Renewable Energy Limited.

(Name of Bank Official)

[Bank Name]

Authority No. ……………………..

2F. Bid Security Form
(IN CASE OF BID FROM JOINT VENTURE)
Bank Guarantee
(To be stamped in accordance with Stamp Act,
if any, of the Country of the issuing Bank)

Bank Guarantee No. ....
Date...

To,

NTPC Renewable Energy Limited (Employer's Name)
4th Floor, NETRA Building
E-3, Ecotech-II, Udyog Vihar, Greater Noida
Gautam Buddha Nagar, Uttar Pradesh
India, Pin – 201306

Dear Sirs,

In accordance with Invitation for Bids under your Bid Document No. ...., M/s..............................[*Partner Name*]................................ having its Registered/Head Office at .... and M/s..............................[Other *Partner's Name*]................................ having its Registered/Head Office at .... (hereinafter collectively called the 'Bidder') wish to participate in the said bid for *[Name of Package]* .... As an irrevocable bank guarantee against Bid Security for an amount of .... (*) .... valid for... days from ....(**) .... required to be submitted by the Bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies mentioned in the Bidding Documents.

We, the .... *[Name & address of the Bank]* ....having our Head Office at .... (#) .... guarantee and undertake to pay immediately on demand by NTPC Renewable Energy Limited *(hereinafter called the 'Employer')* the amount of ....(*)..without any reservation, protest, demand and recourse. Any such demand made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder.
This Guarantee shall be irrevocable and shall remain valid upto ....(@) .... If any further extension of this guarantee is required, the same shall be extended to such required period (not exceeding one year) on receiving instructions from M/s..............................[*Partner Name*] .... and M/s..............................[Other *Partner's Name*]................................ on whose behalf this guarantee is issued.

In witness where of the Bank, through its authorised officer, has set its hand and stamp on this..day of..................................20..........at.........

....

(Signature)

....

(Name)

....

(Designation with Bank Stamp)

Authorised Vide

Power of Attorney
No...............................

Date..

NOTE :

1. (*) The amount shall be as specified in the Bid Data Sheets.
(**) This shall be the date of opening of Techno-Commercial bids.
(#) Complete mailing address of the Head Office of the Bank to be given.
(@) This date shall be forty five (45) days after the last date for which the bid is valid.

2. The Bank Guarantee shall be from a bank as per provisions.

3. The BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the BG is submitted or is to be acted upon or the rate prevailing in State where the BG is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Form 16-Form of Bank Guarantee Verification Check List enclosed in this Section of Bidding Documents. Further, Bidders are required to fill up this Form 16 and enclose the same with the Bank Guarantee.

5. In case, Bank Guarantee is getting issued from State Bank of India, Bidder to take note of NTPC letter ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 (attached with Section-III of Bidding Documents.

3a. FORM OF 'NOTIFICATION OF AWARD OF CONTRACT' FOR SUPPLY OF PLANT AND EQUIPMENT

NOTE: ***INSTRUCTIONS INDICATED IN ITALICS IN THIS NOTIFICATION OF AWARD ARE TO BE TAKEN CARE OF BY THE ISSUING AUTHORITY. YELLOW HIGHLIGHTED FIELDS ARE TO BE MODIFIED AS PER APPLICABILITY]***

Ref No.: NRE-CS-XXXX-XXX-X-FC-NOA-XXX **Date: XX.XX.XXXX**

.... (Contractor's Name & Address)..................

....

....

....

Kind Attn: Mr. ....

Sub.: Notification of Award (NOA) of Contract for Ex-works (India) Supply of all Plant and Equipment including Mandatory Spares for "*---------[NAME OF THE PACKAGE]--------*" as per Bidding Document No. *NRE-CS-XXXX-XXX-X.*

Dear Sir

1.0 This has reference to the following:

(i) Our Invitation for Bids (IFB) No. **NRE-CS-XXXX-XXXX-9** dated __________.

(ii) Bidding Documents for the subject package uploaded on ETS Portal (**https://www.bharat-electronictender.com**) vide **TSC No.** **______________,** comprising of the following:
[REFERENCE OF ETS PORTAL TO BE MODFIED AS PER THE APPLICABLE PORTAL USED FOR TENDEREING]

S. No.	Description of Base Documents
1.	Invitation for Bids (IFB), [Section- I]
2.	Instructions to Bidders (ITB), [Section- II]
3.	Bid Data Sheets (BDS), [Section- III]
4.	General Conditions of Contract (GCC), [Section- IV]
5.	Special Conditions of Contract (SCC), [Section- V]
6.	Technical Specifications & Tender Drawings [Section- VI]

7.	Forms & Procedures, [Section- VII] Comprising of Book- 1 of 3, Book- 2 of 3 & Book- 3 of 3

(iii) Various Amendments / Clarifications / Errata/ Corrigendums to the bidding documents for the subject package uploaded on ETS Portal prior to Envelope-I (Techno-Commercial Bid) Opening, as per details given below:

Sl. No.	**Description of base Bidding Documents**	**Amendment(s)/ Corrigendum(s)/ Clarification(s) issued to Base Documents prior to Bid opening**
1.	Section-I: Invitation for Bids (IFB)	***----[To be Filled]-----***
2.	Section-II: Instructions to Bidders (ITB)	***----[To be Filled]-----***
3.	Section-III: Bid Data Sheets (BDS)	***----[To be Filled]-----***
4.	Section-IV: General Conditions of Contract (GCC)	***----[To be Filled]-----***
5.	Section-V: Special Conditions of Contract (SCC)	***----[To be Filled]-----***
6.	Section-VI: Technical Specifications and Tender Drawings.	***----[To be Filled]-----***
7	Section-VII: Forms & Procedures (F&P) consisting of Book 1 of 3, Book 2 of 3 & Book 3 of 3	***----[To be Filled]-----***
8	Clarifications	***----[To be Filled]-----***

(iv) Buyer's Corrigendum Reference Number (B-CRN)/ Corrigendum Ref. No. (CRN) issued on ETS portal extending the last date for receipt of bids and date for opening of Techno-commercial bids as under:

……………………………………………

……………………………………………

Final extended last date & time for receipt of bids - ______________ hrs (IST).

(v) Your Techno-Commercial and Price Bid proposal for the subject package submitted online on ETS Portal against **TSC No.** _______________ and Techno-Commercial Bid

(Envelope-I) proposal bearing **Ref. No. ______________** dated ___________ and opened on _________**.**

(vi) Your certification to full compliance to all provisions of bidding documents by accepting the Attribute in Electronic Form on ETS Portal ("Do you Certify full compliance to All Provisions of Bidding Documents"), thereby confirming that any deviation, variations and additional conditions found anywhere in Bid proposal, implicit or explicit, stands unconditionally withdrawn, without any cost implication whatsoever to NTPC REL.

(vii) Our email dated ____________ intimating you start of e-Reverse Auction on __________.

(viii) Your Price Bid (Envelope-II) proposal bearing Ref. No. _________________ dated ____________ and opened on ___________**.**

(ix) Our email dated ____________ inviting you for participation in e-Reverse Auction to be started from ____________ hrs (IST) on ____________ on ETS portal with e-RA No - ____________.

(x) Result of Reverse Auction e-RA No.- ____________ held and conducted from ____________, ____________ hrs (IST) to ____________, ____________ hrs (IST) on ETS portal.

(xi) Our Email dated ____________ requesting you to submit item wise price breakup of the Final Total Bid Price (including taxes, duties & GST) and your e-mail/letter dated ____________ submitting the final price breakup of total bid price (enclosed with this NOA at **Appendix-I**).

(INCLUDE AS FURTHER SUB-PARAGRAPHS/ ANY OTHER CORRESPONDENCE MADE TO OR BY THE BIDDER AFTER BID OPENING)

2.0 We confirm having accepted your proposal submitted online on ETS portal and e-Reverse Auction held on ____________ from ____________ **Hrs (IST)** for the subject package read in conjunction with all the specifications, terms & conditions of the Bidding Documents including its Amendments & Clarifications and your letters/emails referred to in Para 1.0 above and award on you the contract for the work of ***---------[SCOPE OF WORK OF FIRST CONTRACT]-----------*** for the **"_____[NAME OF THE PACKAGE]______"** as per specifications and scope defined in the Bidding Document No. ____________ read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'First Contract'**).

3.0 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-SC-NOA-XXX dated** ____________ for award of "Second Contract" on you for the work of providing all services i.e. ***---------[SCOPE OF WORK OF SECOND CONTRACT]-----------*** in respect of all the equipments supplied under the 'First

Contract', for "" **_____[NAME OF THE PACKAGE]______" ** as per specifications and scope defined Bidding Document No. ____________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Second Contract'**).

3.1 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-TC-NOA-XXX dated** ____________ for award of "Third Contract" on you for ***---------[SCOPE OF WORK OF THIRD CONTRACT]-----------*** for "" **_____[NAME OF THE PACKAGE]______"** as per specifications and scope defined in Bidding Document No. ____________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Third Contract'**).

3.2 You shall also be fully responsible for the works to be executed under the 'Second Contract' and/ or 'Third Contract' and it is expressly understood and agreed by you that any breach under the 'Second Contract' and/ or 'Third Contract' shall automatically be deemed as a breach of this 'First Contract' and vice- versa and any such breach or occurrence or default giving us a right to terminate the 'Second Contract' and/or 'Third Contract' and/ or recover damage thereunder, shall give us an absolute right to terminate this Contract and/ or recover damage under this 'First Contract' as well and vice- versa. However, such breach or default or occurrence in the 'Second Contract' and/or 'Third Contract' shall not automatically relieve you of any of your responsibilities/ obligations under this 'First Contract'. It is also expressly understood and agreed by you that the equipment/materials to be supplied by you under this 'First Contract', when installed and commissioned under the 'Second Contract' and Operated and Maintained by you under the 'Third Contract' shall give satisfactory performance in accordance with the provisions of the Contract.

[THE PARA 3.0 TO 3.2 TO BE MODIFIED AS PER APPLICABILITY]

4.0 The total Contract Price for the entire scope of work covered under the Contract shall be **INR** ____________ **(Indian Rupees _____*[IN WORDS]*_______Only)** as per the following break-up:

Sl. No.	**Particulars**	**Contract Price in INR***
1.	Ex-manufacturing Works/ Place of despatch (both in India) price for Main Equipment	--------------------
2.	Ex- manufacturing Works/ Place of despatch (both in India) price for Mandatory spares	--------------------
TOTAL First Contract Price (1+2)		-------------------

ddition to above, the applicable Goods and Service Tax (GST) payable in accordance with the provisions of Bidding Documents shall be limited to the amount of **INR ____________ (Indian Rupees ______*[IN WORDS]*_______Only)** as under:

Sl. No.	**Particulars**	**Rate of GST (%)**	**Amount on which GST is applicable (in INR)**	**Total GST payable (in INR)**
A.	GST on Ex-manufacturing Works/ Place of despatch (both in India) price for Main Equipment	-------	--------	---------
B.	GST on Ex-manufacturing Works/ Place of despatch (both in India) price for Mandatory spares	-------	--------	---------
TOTAL GST Payable for First Contract (A+B)				-----------

5.0 You shall prepare and finalise the Contract Documents for signing of the formal Contract Agreement and shall enter into the Contract Agreement with us, as per the Performa enclosed with the Bidding Documents, on Non- Judicial stamp paper of appropriate value within 28 days from the date of this Notification of Award. The issuance of this notification of award will constitute the formation of the contract.

6.0 We request you to return a copy of this Notification of Award digitally signed/duly signed and stamped on each page including all the enclosed Appendices, by the authorised signatory of your company as a proof of your acknowledgement.

Please take the necessary action to commence the work and confirm action.

Thanking you

Yours Faithfully
for and on behalf of

...........***(Name of the*** Employer***)*****.................**

(Authorised Signatory)

Enclosure a/a: Appendix-I: Price Break-up

3a. FORM OF 'NOTIFICATION OF AWARD OF CONTRACT' FOR INSTALLATION OF PLANT AND EQUIPMENT

NOTE: ***INSTRUCTIONS INDICATED IN ITALICS IN THIS NOTIFICATION OF AWARD ARE TO BE TAKEN CARE OF BY THE ISSUING AUTHORITY. YELLOW HIGHLIGHTED FIELDS ARE TO BE MODIFIED AS PER APPLICABILITY]***

Ref No.: NRE-CS-XXXX-XXX-X-SC-NOA-XXX **Date: XX.XX.XXXX**

.... (Contractor's Name & Address)...................

....

....

....

Kind Attn: Mr. ....

Sub.: Notification of Award (NOA) of Contract for Inland Transportation, Insurance, Installation, Testing & Commissioning and Guarantee Tests for *"---------[NAME OF THE PACKAGE]---------"* as per Bidding Document No. *NRE-CS-XXXX-XXX-X.*

Dear Sir

1.0 This has reference to the following:

(i) Our Invitation for Bids (IFB) No. **NRE-CS-XXXX-XXXX-9** dated __________.

(ii) Bidding Documents for the subject package uploaded on ETS Portal (**https://www.bharat-electronictender.com**) vide **TSC No. ______________,** comprising of the following:

[REFERENCE OF ETS PORTAL TO BE MODFIED AS PER THE APPLICABLE PORTAL USED FOR TENDEREING]

S. No.	Description of Base Documents
1.	Invitation for Bids (IFB), [Section- I]
2.	Instructions to Bidders (ITB), [Section- II]
3.	Bid Data Sheets (BDS), [Section- III]
4.	General Conditions of Contract (GCC), [Section- IV]
5.	Special Conditions of Contract (SCC), [Section- V]
6.	Technical Specifications & Tender Drawings [Section- VI]
7.	Forms & Procedures, [Section- VII]

	Comprising of Book- 1 of 3, Book- 2 of 3 & Book- 3 of 3

(iii) Various Amendments / Clarifications / Errata/ Corrigendums to the bidding documents for the subject package uploaded on ETS Portal prior to Envelope-I (Techno-Commercial Bid) Opening, as per details given below:

Sl. No.	**Description of base Bidding Documents**	**Amendment(s)/ Corrigendum(s)/ Clarification(s) issued to Base Documents prior to Bid opening**
1.	Section-I: Invitation for Bids (IFB)	***----[To be Filled]-----***
2.	Section-II: Instructions to Bidders (ITB)	***----[To be Filled]-----***
3.	Section-III: Bid Data Sheets (BDS)	***----[To be Filled]-----***
4.	Section-IV: General Conditions of Contract (GCC)	***----[To be Filled]-----***
5.	Section-V: Special Conditions of Contract (SCC)	***----[To be Filled]-----***
6.	Section-VI: Technical Specifications and Tender Drawings.	***----[To be Filled]-----***
7	Section-VII: Forms & Procedures (F&P) consisting of Book 1 of 3, Book 2 of 3 & Book 3 of 3	***----[To be Filled]-----***
8	Clarifications	***----[To be Filled]-----***

(iv) Buyer's Corrigendum Reference Number (B-CRN)/ Corrigendum Ref. No. (CRN) issued on ETS portal extending the last date for receipt of bids and date for opening of Techno-commercial bids as under:

……………………………………………

……………………………………………

Final extended last date & time for receipt of bids - ______________ hrs (IST).

(v) Your Techno-Commercial and Price Bid proposal for the subject package submitted online on ETS Portal against **TSC No.** _______________ and Techno-Commercial Bid

(Envelope-I) proposal bearing **Ref. No. ______________** dated __________ and opened on _________.

(vi) Your certification to full compliance to all provisions of bidding documents by accepting the Attribute in Electronic Form on ETS Portal ("Do you Certify full compliance to All Provisions of Bidding Documents"), thereby confirming that any deviation, variations and additional conditions found anywhere in Bid proposal, implicit or explicit, stands unconditionally withdrawn, without any cost implication whatsoever to NTPC REL.

(vii) Our email dated ____________ intimating you start of e-Reverse Auction on __________.

(viii) Your Price Bid (Envelope-II) proposal bearing Ref. No. _________________ dated ____________ and opened on ___________.

(ix) Our email dated ____________ inviting you for participation in e-Reverse Auction to be started from ____________ hrs (IST) on ____________ on ETS portal with e-RA No - ____________.

(x) Result of Reverse Auction e-RA No.- ____________ held and conducted from ____________, ____________ hrs (IST) to ____________, ____________ hrs (IST) on ETS portal.

(xi) Our Email dated ____________ requesting you to submit item wise price breakup of the Final Total Bid Price (including taxes, duties & GST) and your e-mail/letter dated ____________ submitting the final price breakup of total bid price (enclosed with this NOA at **Appendix-I**).

(INCLUDE AS FURTHER SUB-PARAGRAPHS/ ANY OTHER CORRESPONDENCE MADE TO OR BY THE BIDDER AFTER BID OPENING)

2.0 We confirm having accepted your proposal submitted online on ETS portal and e-Reverse Auction held on ____________ from ____________ **Hrs** (IST) for the subject package read in conjunction with all the specifications, terms & conditions of the Bidding Documents including its Amendments & Clarifications and your letters/emails referred to in Para 1.0 above and award on you the contract for the work of providing all services i.e. ***---------[SCOPE OF WORK OF SECOND CONTRACT]-----------*** in respect of all the equipments supplied under the 'First Contract', for the "**______[NAME OF THE PACKAGE]______**" as per specifications and scope defined in the Bidding Document No. ____________ read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Second Contract'**).

3.0 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-FC-NOA-XXX dated ___________** for award of "First Contract" on you for the work of ***---------[SCOPE OF WORK OF FIRST CONTRACT]-----------***, for "**"_____[NAME OF THE PACKAGE]______"** as per specifications and scope defined Bidding Document No. ___________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'First Contract'**).

3.1 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-TC-NOA-XXX dated ___________** for award of "Third Contract" on you for ***---------[SCOPE OF WORK OF THIRD CONTRACT]-----------*** for "**"_____[NAME OF THE PACKAGE]______"** as per specifications and scope defined in Bidding Document No. ___________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Third Contract'**).

3.2 You shall also be fully responsible for the works to be executed under the 'First Contract' and/ or 'Third Contract' and it is expressly understood and agreed by you that any breach under the 'First Contract' and/ or 'Third Contract' shall automatically be deemed as a breach of this 'Second Contract' and vice- versa and any such breach or occurrence or default giving us a right to terminate the 'First Contract' and/or 'Third Contract' and/ or recover damage thereunder, shall give us an absolute right to terminate this Contract and/ or recover damage under this 'Second Contract' as well and vice- versa. However, such breach or default or occurrence in the 'First Contract' and/or 'Third Contract' shall not automatically relieve you of any of your responsibilities/ obligations under this 'Second Contract'. It is also expressly understood and agreed by you that the equipment/materials to be supplied by you under 'First Contract', when installed and commissioned under this 'Second Contract' and Operated and Maintained by you under the 'Third Contract' shall give satisfactory performance in accordance with the provisions of the Contract.

[THE PARA 3.0 TO 3.2 TO BE MODIFIED AS PER APPLICABILITY]

4.0 The total Contract Price for the entire scope of work covered under the Contract shall be **INR ___________ (Indian Rupees _____*[IN WORDS]*_______Only)** as per the following break-up:

Sl. No.	**Particulars**	**Contract Price in INR***
1.	Inland Transportation and Inland transit insurance charges for Main Equipment	-------------------
2.	Inland Transportation and Inland transit insurance charges for Mandatory Spares	-------------------
3.	Installation Services	-------------------
4.	Civil and Allied works etc.	-------------------

5.	Safety Aspects/Compliance to Safety Rules	-------------------
TOTAL for Second Contract (1+2+3+4+5)		-------------------

*In addition to above, the applicable Goods and Service Tax (GST) payable in accordance with the provisions of Bidding Documents shall be limited to the amount of **INR ___________ (Indian Rupees _____*[IN WORDS]*_______Only)** as under:

Sl. No.	**Particulars**	**Rate of GST (%)**	**Amount on which GST Applicable (in INR)**	**Total GST payable (in INR)**
A.	GST on Inland Transportation and Inland Transit Insurance charges for Main Equipment	-------	--------	---------
B.	GST on Inland Transportation and Inland Transit Insurance charges for Mandatory Spares	-------	--------	---------
C.	GST on Installation Services	-------	--------	---------
D.	GST on Civil and Allied Works etc.	-------	--------	---------
E.	GST on Safety Aspects / Compliance to Safety Rules	-------	--------	---------
TOTAL GST Payable for Second Contract (A+B+C+D+E)				---------

5.0 You shall prepare and finalise the Contract Documents for signing of the formal Contract Agreement and shall enter into the Contract Agreement with us, as per the Performa enclosed with the Bidding Documents, on Non- Judicial stamp paper of appropriate value within 28 days from the date of this Notification of Award. The issuance of this notification of award will constitute the formation of the contract.

6.0 We request you to return a copy of this Notification of Award digitally signed/duly signed and stamped on each page including all the enclosed Appendices, by the authorised signatory of your company as a proof of your acknowledgement.

Please take the necessary action to commence the work and confirm action.

Thanking you

Yours Faithfully
for and on behalf of

..........***(Name of the*** Employer***)*..................**

(Authorised Signatory)

Enclosure a/a: Appendix-I: Price Break-up

3c. FORM OF 'NOTIFICATION OF AWARD OF CONTRACT' FOR COMPLETE OPERATION AND MAINTENANCE OF THE PLANT

NOTE: INSTRUCTIONS INDICATED IN ITALICS IN THIS NOTIFICATION OF AWARD ARE TO BE TAKEN CARE OF BY THE ISSUING AUTHORITY. YELLOW HIGHLIGHTED FIELDS ARE TO BE MODIFIED AS PER APPLICABILITY]

Ref No.: NRE-CS-XXXX-XXX-X-TC-NOA-XXX **Date: XX.XX.XXXX**

.... (Contractor's Name & Address)..................

....

....

....

Kind Attn: Mr. ....

Sub.: Notification of Award (NOA) of Contract for OPERATION AND MAINTENANCE OF THE PLANT for "---------*[NAME OF THE PACKAGE]*---------" as per Bidding Document No. *NRE-CS-XXXX-XXX-X.*

Dear Sir

1.0 This has reference to the following:

(i) Our Invitation for Bids (IFB) No. **NRE-CS-XXXX-XXXX-9** dated __________.

(ii) Bidding Documents for the subject package uploaded on ETS Portal (**https://www.bharat-electronictender.com**) vide **TSC No.** _______________, comprising of the following:
[REFERENCE OF ETS PORTAL TO BE MODFIED AS PER THE APPLICABLE PORTAL USED FOR TENDEREING]

S. No.	Description of Base Documents
1.	Invitation for Bids (IFB), [Section- I]
2.	Instructions to Bidders (ITB), [Section- II]
3.	Bid Data Sheets (BDS), [Section- III]
4.	General Conditions of Contract (GCC), [Section- IV]
5.	Special Conditions of Contract (SCC), [Section- V]
6.	Technical Specifications & Tender Drawings [Section- VI]
7.	Forms & Procedures, [Section- VII] Comprising of Book- 1 of 3, Book- 2 of 3 & Book- 3 of 3

(iii) Various Amendments / Clarifications / Errata/ Corrigendums to the bidding documents for the subject package uploaded on ETS Portal prior to Envelope-I (Techno-Commercial Bid) Opening, as per details given below:

Sl. No.	Description of base Bidding Documents	Amendment(s)/ Corrigendum(s)/ Clarification(s) issued to Base Documents prior to Bid opening
1.	Section-I: Invitation for Bids (IFB)	***----[To be Filled]-----***
2.	Section-II: Instructions to Bidders (ITB)	***----[To be Filled]-----***
3.	Section-III: Bid Data Sheets (BDS)	***----[To be Filled]-----***
4.	Section-IV: General Conditions of Contract (GCC)	***----[To be Filled]-----***
5.	Section-V: Special Conditions of Contract (SCC)	***----[To be Filled]-----***
6.	Section-VI: Technical Specifications and Tender Drawings.	***----[To be Filled]-----***
7	Section-VII: Forms & Procedures (F&P) consisting of Book 1 of 3, Book 2 of 3 & Book 3 of 3	***----[To be Filled]-----***
8	Clarifications	***----[To be Filled]-----***

(iv) Buyer's Corrigendum Reference Number (B-CRN)/ Corrigendum Ref. No. (CRN) issued on ETS portal extending the last date for receipt of bids and date for opening of Techno-commercial bids as under:

……………………………………………

……………………………………………

Final extended last date & time for receipt of bids - _____________ hrs (IST).

(v) Your Techno-Commercial and Price Bid proposal for the subject package submitted online on ETS Portal against **TSC No.** ______________ and Techno-Commercial Bid (Envelope-I) proposal bearing **Ref. No.** ______________ dated ___________ and opened on _________.

(vi) Your certification to full compliance to all provisions of bidding documents by accepting the Attribute in Electronic Form on ETS Portal ("Do you Certify full compliance to All Provisions of Bidding Documents"), thereby confirming that any deviation, variations and additional conditions found anywhere in Bid proposal, implicit or explicit, stands unconditionally withdrawn, without any cost implication whatsoever to NTPC REL.

(vii) Our email dated ____________ intimating you start of e-Reverse Auction on __________.

(viii) Your Price Bid (Envelope-II) proposal bearing Ref. No. _________________ dated ____________ and opened on ___________.

(ix) Our email dated ____________ inviting you for participation in e-Reverse Auction to be started from ____________ hrs (IST) on ____________ on ETS portal with e-RA No - ____________.

(x) Result of Reverse Auction e-RA No.- ____________ held and conducted from ____________, ____________ hrs (IST) to ____________, ____________ hrs (IST) on ETS portal.

(xi) Our Email dated ____________ requesting you to submit item wise price breakup of the Final Total Bid Price (including taxes, duties & GST) and your e-mail/letter dated ____________ submitting the final price breakup of total bid price (enclosed with this NOA at **Appendix-I**).

(INCLUDE AS FURTHER SUB-PARAGRAPHS / ANY OTHER CORRESPONDENCE MADE TO OR BY THE BIDDER AFTER BID OPENING)

2.0 We confirm having accepted your proposal submitted online on ETS portal and e-Reverse Auction held on ____________ from ____________ Hrs (IST) for the subject package read in conjunction with all the specifications, terms & conditions of the Bidding Documents including its Amendments & Clarifications and your letters/emails referred to in Para 1.0 above and award on you the contract for the work of ---------***[SCOPE OF WORK OF THIRD CONTRACT]-----------*** for the "**_____[NAME OF THE PACKAGE]______**" as per specifications and scope defined in the Bidding Document No. ____________ read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Third Contract'**).

3.0 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-FC-NOA-XXX dated** ____________ for award of "First Contract" on you for ---------***[SCOPE OF WORK OF FIRST CONTRACT]-----------*** for "**_____[NAME OF THE PACKAGE]______**" as per specifications and scope defined Bidding Document No. ____________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'First Contract'**).

3.1 We have also notified you vide our Notification of Award No. **NRE-CS-XXX-XXX-9-SC-NOA-XXX dated** ____________ for award of "Second Contract" on you for the work of providing all services i.e. ***---------[SCOPE OF WORK OF SECOND CONTRACT]-----------*** in respect of all the equipments supplied under the 'First Contract' for "**_____[NAME OF THE PACKAGE]______**" as per specifications and scope defined in Bidding Document No. ____________read in conjunction with its Amendments & Clarifications referred to in Para 1.0 above (hereinafter referred to as **'Second Contract'**).

3.2 You shall also be fully responsible for the works to be executed under the 'First Contract' and/ or 'Second Contract' and it is expressly understood and agreed by you that any breach under the 'First Contract' and/ or 'Second Contract' shall automatically be deemed as a breach of this 'Third Contract' and vice- versa and any such breach or occurrence or default giving us a right to terminate the 'First Contract' and/ or 'Second Contract' and/ or recover damage thereunder, shall give us an absolute right to terminate this Contract and/ or recover damage under this 'Third Contract' as well and vice- versa. However, such breach or default or occurrence in the 'First Contract' and/ or 'Second Contract' shall not automatically relieve you of any of your responsibilities/ obligations under this 'Third Contract'. It is also expressly understood and agreed by you that the equipment/materials to be supplied by you under the 'First Contract', when installed and commissioned under the 'Second Contract' and Operated and Maintained by you under the 'Third Contract' shall give satisfactory performance in accordance with the provisions of the Contract.

[THE PARA 3.0 TO 3.2 TO BE MODIFIED AS PER APPLICABILITY]

4.0 The total Contract Price for the entire scope of work covered under the Contract shall be **INR ____________ (Indian Rupees _____*[IN WORDS]*_______Only)** as per the following break-up:

Sl. No.	Particulars	Contract Price in INR*
1.	Complete transfer of lease deed/ sub-lease/ ownership of land including all fees/ charges towards infrastructure development, application for land use, obtaining permits, approvals, clearances from the competent authority, registration fee, documentation fee, Stamp Duty, Other expenditure to be incurred in respect of complete transfer of lease deed/ sub-lease of land in favour of NTPC Renewable Energy Ltd.	--------------------
	TOTAL for Third Contract (1) (C)	--------------------

5.0 You shall prepare and finalise the Contract Documents for signing of the formal Contract Agreement and shall enter into the Contract Agreement with us, as per the Performa enclosed with the Bidding Documents, on Non- Judicial stamp paper of appropriate value within 28 days from the date of this Notification of Award. The issuance of this notification of award will constitute the formation of the contract.

6.0 We request you to return a copy of this Notification of Award digitally signed/duly signed and stamped on each page including all the enclosed Appendices, by the authorised signatory of your company as a proof of your acknowledgement.

Please take the necessary action to commence the work and confirm action.

Thanking you

Yours Faithfully

for and on behalf of

..........***(Name of the*** Employer***)*****.................**

(Authorised Signatory)

Enclosure a/a: Appendix-I: Price Break-up

4. FORM OF CONTRACT AGREEMENT

4. Form of Contract Agreement

THIS CONTRACT AGREEMENT is made the ____________ day of __________, 20_____.

BETWEEN

(1) *[Name of* Employer*]*, a corporation incorporated under the laws of *[country of* Employer*]* and having its principal place of business at *[address of* Employer*]* (hereinafter called "the Employer"), and (2) *[name of Contractor]*, a corporation incorporated under the laws of *[country of Contractor]* and having its principal place of business at *[address of Contractor]* (hereinafter called "the Contractor")

WHEREAS the Employer desires to engage the Contractor to …… *[scope of works as per bid documents]* ---("the Facilities") and the Contractor have agreed to such engagement upon and subject to the terms and conditions hereinafter appearing.

NOW IT IS HEREBY AGREED as follows:

Article 1. Contract Documents

1.1 Contract Documents (Reference GCC Clause 2)
The following documents shall constitute the Contract between The Employer and the Contractor, and each shall be read construed as an integral part of the Contract:

(a) This Contract Agreement and the Appendices hereto
(b) Notification of Award
(c) Special Conditions of Contract
(d) General Conditions of Contract
(e) Technical Specifications and Drawings
(f) The Bid and Price Schedules submitted by the Contractor
(g) Procedures (as listed)
(h) Integrity pact (IP) signed between the Employer and the Bidder/Contractor

1.2 **Order of Precedence** (Reference GCC Clause 2)
In the event of any ambiguity or conflict between the Contract Documents listed above, the order of precedence shall be the order in which the Contract Documents are listed in Article 1.1 (Contract Documents) above.

1.3 **Definitions** (Reference GCC Clause 1)
Capitalized words and phrases used herein shall have the same meanings as are ascribed to them in the General Conditions of Contract.

Article 2. Contract Price and Terms of Payment

2.1 **Contract Price** (Reference GCC Clause 11)
The Employer hereby agrees to pay to the Contractor the Contract Price in consideration of the performance by the Contractor of its obligations hereunder. The Contract Price shall be the aggregate of: *[amount in Indian Rupees in words], [amount in figures],* or such other sums as may be determined in accordance with the terms and conditions of the Contract.

2.2 **Terms of Payment** (Reference GCC Clause 12)
The terms and procedures of payment according to which the Employer will reimburse the Contractor are given in Appendix 1 (Terms and Procedures of Payment) hereto.

Article 3. Effective Date for Determining Time for Completion

3.1 **Effective Date** (Reference GCC Clause 1)
The Time for Completion of the Facilities shall be determined from the date of Notification of Award provided all of the following conditions have been fulfilled within a period of two (2) months from the date of said Notification of Award:

(a) This Contract Agreement has been duly executed for and on behalf of the Employer and the Contractor;

(b) The Contractor has submitted to the Employer the performance security, security towards faithful performance of the Deed(s) of Joint Undertaking (if applicable) and the advance payment security;

(c) The Employer has paid the Contractor the initial Advance Payment, if claimed by the Contractor.

Each party shall use its best efforts to fulfill the above conditions for which it is responsible as soon as practicable.

3.2 If the conditions listed under 3.1 are not fulfilled within two (2) months from the date of Notification of Award because of reasons attributable to the Employer, the Contract would become effective only from the date of fulfillment of all the above mentioned conditions and, the parties shall discuss and agree on an equitable adjustment to the Contract Price and the Time for Completion and/or other relevant conditions of the Contract.

3.3 However, if any of the conditions listed under 3.1 above are not fulfilled within two (2) months from the date of Notification of Award because of reasons attributable to the Contractor, the Contract will be effective from the date of Notification of Award. In this case, Contract price and/or time for completion shall not be adjusted.

Article 4.

It is expressly understood and agreed by and between the Contractor and the Employer that the Employer is entering into this Agreement solely on its own behalf and not on behalf of any other person or entity. In particular it is expressly understood and agreed that the Government of India is not a party to this Agreement and has no liabilities, obligations or rights hereunder. It is expressly understood and agreed that the Employer is an Independent legal entity with power and authority to enter into contracts solely on its own behalf under the applicable laws of India and the general principles of Contract Law. The Contractor expressly agrees, acknowledges and understands that the Employer is not an Agent, Representative or Delegate of the Govt. of India. It is Further understood and agreed that the Government of India is notand shall not be liable for any acts, omissions, commissions, breaches or other wrongs arising out of the Contract. Accordingly, the Contractor expressly waives, releases and foregoes any and all actions or claims, including cross claims, impleader claims or counter claims against the Government of India arising out of this Contract and covenants not to sue the Government of India as to any manner, claim, cause of action or thing whatsoever arising of or under this Agreement.

Article 5. Appendices

The Appendices listed in the attached list of Appendices shall be deemed to form an integral part of this Contract Agreement.

Reference in the Contract to any Appendix shall mean the Appendices attached hereto, and the Contract shall be read and construed accordingly.

IN WITNESS WHEREOF the Employer and the Contractor have caused this Agreement to be duly executed by their duly authorized representatives the day and year first above written.

Signed by for and on behalf of the Employer

____

[*Signature*]

____

[*Title*]

in the presence of ____________________________________

** Signed by for and on behalf of the Contractor

____

[Signature]

____

[Title]

in the presence of ____

CONTRACT AGREEMENT

dated the_________________day of____________________, 20___________

BETWEEN

[“the Employer*”]* ____

and

[“the Contractor”] ____

APPENDICES

Appendix 1 Terms and Procedures of Payment
Appendix 2 Price Adjustment
Appendix 3 Insurance Requirements
Appendix 4 Time Schedule
Appendix 5 List of Approved Subcontractors
Appendix 6 Scope of Works and Supply by the Employer
Appendix 7 List of Documents for Approval or Review
Appendix 8 Functional Guarantees

TERMS AND PROCEDURES OF PAYMENT

In accordance with the provisions of GCC Clause 12 (Terms of Payment), the Employer shall pay the Contractor in the following manner and at the following times, on the basis of the Price Break down given in the Section on Price Schedules. Payments will be made in the currencies quoted by the Bidder unless otherwise agreed between the parties. Application for payment in respect of part deliveries may be made by the Contractor as work proceeds.

TERMS OF PAYMENT

A. **Schedule No.1: Plant and Equipment (excluding Mandatory Spares and Type Tests) supplied from within the Employer's country**

In respect of Plant and Equipment supplied from within the Employer's country the following payment shall be made:

A1- **For Ex-works Price component of plant and Equipment (excluding Mandatory Spares and Type Tests)**

(I) **Fifteen Percent (15%)** of the total Ex-Works price component as Initial Advance Payment on:

(a) Signing of the Contract Agreement.

(b) Submission of an unconditional Bank Guarantee covering the advance amount plus GST as applicable on the advance payment to be paid to the contractor, which shall be initially kept valid upto (ninety) 90 days beyond the schedule date for Completion of the last facility covered under the Package. However, in case of delay in completion of the facilities, the validity of this Bank Guarantee shall be extended by the period of such delay. Proforma of Bank Guarantee is enclosed in Section-VII - Bank Guarantee Form for Advance Payment.

(c) Submission of unconditional Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument towards Contract Performance Securities in respect of all Contracts *except for Operation & Maintenance Contract (i.e. Third Contract)*, initially valid upto ninety (90) days after the end of scheduled Defect Liability Period of the last equipment covered under the package. However, in case of delay in Defect Liability Period, the validity of these Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument shall be extended by the period of such delay. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section- VII-Form of Performance Security.

(d) In case Deed(s) of Joint Undertaking by the Contractor along with his Associate form part of the contract, then submission of unconditional Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument from such Associate towards faithful performance of the Deed of Joint

Undertaking for the amount specified in the respective Deed of Joint Undertaking and valid up to ninety (90) days after end of Defect Liability Period of all equipment covered under the contract. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument shall be as enclosed in Section-VII-Form of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument by Associate. -- Not Applicable –

(e) Submission of unconditional Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument towards Security against Annual Quoted Generation considering DC:AC ratio greater than 1.35 for as per Section VI (technical specifications), initially valid upto 12 Months beyond the scheduled date for Completion of the facilities covered under the Package. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII - Form of Performance Security.

(f) Submission of a detailed PERT Network based on the work schedule stipulated in Appendix-4 to the Form of Contract Agreement and its approval by the Employer.

Notes:

(i) In case bidder wishes to take additional advance upto 10% of the total Ex-Works price component for supply of module, the same shall be provided against unconditional Bank Guarantee of equivalent amount and the advance shall be adjusted from the below 55% payment on dispatch of module (inline with conditions mentioned below). The BG shall be initially kept valid upto (ninety) 90 days beyond the schedule date for Completion of the last facility covered under the Package. This advance shall be released after submission of purchase order for module to the Employer.

(II) **Fifty Five Percent (55%)** of Ex-works price component of the Contract price for each identified equipment upon dispatch of equipment from manufacturer's works on pro-rata basis on production of invoices and satisfactory evidence of shipment which shall be original Goods Receipt or receipted GR / Rail Receipt including Material Dispatch Clearance Certificate (MDCC) issued by the Employer's QA & I representative.

Note: In compliance to the provisions of SECTION-VI (Technical Specification), EPC Contractor shall submit **PV Module Performance Insurance.**

The payment of Invoice/RA Bill submitted against Ex-works supply of Solar PV Modules shall be released subject to Contractor submitting “PV Module Performance Insurance Policy/Declaration” (as per SECTION-VI (Technical Specification). The above condition shall be applicable for each lot of modules ordered by the EPC Contractor. In other words, in case multiple OEMs supplying the PV Modules on separate orders, the payment for a particular lot would require submission of the said Insurance Policy/ Declaration.

(III) **Fifteen Percent (15%)** of Ex-works price component of the Contract Price for each identified equipment on receipt of equipment at site on prorata basis and physical verification and certification by the Project Manager for the equipment received and stored at site.

(IV) **Two Point Five Percent (2.5%)** of Ex-works price Component of the contract price on successful commissioning of part capacity and in proportion to the part capacity commissioned of Solar Photo Voltaic Plant and on acceptance/certification by the Project Manager of such part commissioning. The commissioning of part capacity shall be accepted in terms Section-VI (Technical Specifications) or its amendment thereof.

(V) **Two Point Five Percent (2.5%)** of Ex-Works price Component of the contract price on Completion of the Facilities, as specified, and issuance of Completion Certificate by the Project Manager.

(VI) **Ten Percent (10%)** of Ex-works price component of the Contract price on successful completion of Performance Guarantee tests of entire Solar Photo Voltaic Plant, as specified, and issuance of Operational Acceptance Certificate by the Project Manager.

Notes:

(i) The prorata payment will be based on the detailed price break-up furnished by the Contractor and approved by the Employer**.**

(ii) In case Installation Price (excluding Civil/Structural works price) is less than **5%** of the Ex-works Price of Main Equipment, the amount by which it is lower shall be retained proportionately from the Ex-works component of Contract price while releasing payments due on receipt of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid on pro-rata basis upon completion of installation of the respective equipment and its certification by the Project Manager.

(iii) In case the Civil Works Price (including Site Fabricated Structural works price) is less than **5%** of the Ex-works Price of Main Equipment, the amount by which it is lower shall be retained proportionately from the Ex-Works component of Contract price while releasing payments due on dispatch of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid on pro-rata basis upon completion of Civil Works including Structural works (if any) corresponding to the respective equipment and its certification by the Project Manager.

(iv) In case, the Contractor decides not to take advance payment as per para (I) above, the advance payment amount shall be proportionately adjusted in the balance payments excluding final payments.

B. **Schedule 1 and 5: Mandatory Spares and Recommended Spares (When**

ordered) quoted on Ex-works (India) basis

The Ex-works price of spares manufactured or fabricated within the Employer's country shall be paid as under.

(i) **Seventy Five Percent (75 %)** of Ex-works price component of the spares to be paid on pro-rata basis upon dispatch to site and against invoices and shipping documents along with Insurance & Material Dispatch Clearance Certificate (MDCC) issued by Employer.

(ii) **Twenty Five Percent (25 %)** of Ex-works price component of the spares to be paid on pro-rata basis: on receipt and storage at site and on physical verifications by the Project Manager of having received and stored the spares at site.

C. **Schedule No. 2: Local Transportation**

a) **All Plant and Equipment excluding Mandatory Spares**

Hundred Percent (100%) of Local Transportation charges (including inland transit insurance charges) for the plant and equipment covered in Schedule-1 shall be paid to the Contractor pro-rata to the value of the equipment received at site and on production of invoices by the Contractor. The aggregate of all such pro-rata payments shall, however, not exceed the total amount identified in the Contract for Local Transportation. However, where equipment wise local transportation charges (including inland transit insurance charges) have been identified in the Contract, the payment for the same shall be made after receipt of the equipment at site, based on the charges so identified in the Contract.

b) **Mandatory Spares and Recommended Spares (if ordered)**

Hundred Percent (100%) of Local Transportation charges (including inland transit insurance charges) for the spares shall be paid to the Contractor pro-rata to the value of the spares received at site and on production of invoices by the Contractor. The aggregate of all such pro-rata payments shall, however, not exceed the total amount identified in the Contract for Local Transportation.

However, where item wise local transportation charges (including inland transit insurance charges) have been identified in the Contract, the payment for the same shall be made after receipt of the spares at site, based on the charges so identified in the Contract.

D. **Schedule No. 3: Installation Services excluding operation and maintenance.**

The Installation Services component of the Equipment Price shall be paid as under:

(I) (A) **Five Percent (5%)** of the Installation Services Component (excluding AMC) of the Contract Price will be paid to the Contractor, bearing interest at the rate of **"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum"** as advance payment on:

(i) Signing of Contract Agreement.

(ii) Establishing their office at site or resources at site in preparatory to commencement of installation.

(iii) Submission of an unconditional Bank Guarantee **for an amount equivalent to one hundred ten percent (110%) of the advance amount** plus GST as applicable on the advance payment to be paid to the contractor, which shall be initially kept valid upto ninety (90) days beyond the schedule date for successful 'Completion of the Facilities' under the Package. However, in case of delay in completion of the facilities covered under the package, the validity of this advance Bank Guarantee shall be extended by the period of such delay. The proforma of the Bank Guarantee is enclosed in Section-VII - Bank Guarantee Form for Advance Payment.

(iv) Submission of unconditional Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument towards Contract Performance Securities in respect of all Contracts *except for Operation & Maintenance Contract (i.e. Third Contract)*, initially valid upto ninety (90) days after the end of scheduled Defect Liability Period of the last equipment covered under the package. However, in case of delay in Defect Liability Period, the validity of these Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument shall be extended by the period of such delay. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII - Form of Performance Security.

v) Submission of unconditional Bank Guarantee/ Insurance Surety Bond towards Security against Annual Quoted Generation considering DC:AC ratio greater than 1.35 as per Section VI (technical specifications), initially valid upto 12 Months beyond the scheduled date for Completion of the facilities covered under the Package. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII - Form of Performance Security.

vi) In case of Joint Deed of Undertaking by the contractor alongwith his Collaborator/ Associate forms part of the contract then submission of an unconditional Bank Guarantee/ Insurance Surety Bond from such Collaborator(s)/Associate(s) towards faithful performance of the Joint Deed of Undertaking for an amount specified in the deed and valid upto ninety (90) days after the end of defect liability period of all equipment covered under the contract. However, in case of delay in Defect Liability Period, the validity of these Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument shall be extended by the period of such delay. The proforma of

Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII- Form of Performance Security. - Not Applicable –

(vii) Submission of a detailed PERT Network based on the work schedule stipulated in Appendix - 4 to the Form of Contract Agreement and its approval by the Employer.

(viii) Certification of Engineer-in-Charge that the Contractor has brought to site the Safety equipment & Safety Personal Protective Equipment as per minimum quantity specified in the Bidding Documents.

(I) (B) **Five Percent (5%)** of the Installation Services Component of the Contract Price will be paid to the Contractor, bearing interest at the rate of **"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum"** as advance payment on:

(i) Fulfillment of conditions mentioned at Clause D(I)(A) (i), (ii), (iii), (iv), (v), (vi) and (vii) above.

(ii) T&P mobilisation as identified along with PERT network for start of Erection and Certification thereof by the Engineer-in-Charge.

(iii) Submission of an unconditional Bank Guarantee **for an amount equivalent to one hundred ten percent (110%) of the advance amount** plus GST as applicable on the advance payment to be paid to the contractor, which shall be initially kept valid upto ninety (90) days beyond the schedule date for successful 'Completion of the Facilities' under the Package. However, in case of delay in completion of the facilities covered under the package, the validity of this advance Bank Guarantee shall be extended by the period of such delay. The proforma of the Bank Guarantee is enclosed in Section-VII - Bank Guarantee Form for Advance Payment.

Advance Payment for Installation services/ works price components shall be released after certification of Engineer-in-Charge that the Contractor has brought to site the Safety equipments & Safety Personal Protective Equipments as per minimum quantity specified in the Bidding Documents.

In case the Contractor decides not to take advance payment, the first progressive payment for Installation services price component shall be released after certification of Engineer-In-Charge that the contractor has brought to site the Safety equipments & Safety Personal Protective Equipments as per minimum quantity specified in the Bidding Documents.

II. **Seventy-Five Percent (75%)** of the installation Services component of contract price shall be paid on pro-rata basis on completion of installation of equipments on certification by the Project Manager for the quantum of work completed and by the certification of Project Manager field quality assurance & surveillance representative for the successful completion of quality check points involved in the quantum of work billed.

III. **Two Point Five Percent (2.5%)** of total Installation price of the Contract shall be paid on successful commissioning of part capacity and in proportion to the part capacity commissioned of Solar Photo Voltaic Plant and on acceptance/certification by the Project Manager of such part commissioning. The commissioning of part capacity shall be accepted in terms of Section-VI (Technical Specifications) or its amendment thereof.

IV. **Two Point Five Percent (2.5%)** of total Installation price of the Contract shall be paid on Completion of the Facilities, as specified, and issuance of Completion Certificate by the Project Manager.

V. **Ten Percent (10%)** of total Installation price of the Contract shall be paid on successful completion of Performance Guarantee Tests of entire Solar Photo Voltaic Plant, as specified and issue of Operational Acceptance Certificate by the Project Manager.

Notes:

1. Recovery of the interest component on the advance amount shall be made from the progressive payments released to the Contractor as per D(II) above. The amount of interest to be recovered from a particular bill shall be calculated @ **"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum"** on the value of advance corresponding to the %age of total progressive payment being released. The period for which the interest is to be calculated shall be reckoned from the date of release of the advance payment to the actual date of release of the said progressive payment or the expiry of the stipulated time frame for release of such progressive payment under the contract, whichever is earlier. The interest on the advance payment shall stand fully recovered on release of all the progressive payments. If the amount payable under any interim bill is not sufficient to cover all deductions to be made for interest on the advance payment and other sums deductible therefrom, the balance outstanding shall be recovered from the next payments immediately falling due.

2. The Contractor shall furnish a detailed break-up for the Erection Price Component of the package which shall be mutually discussed and finalized with the Owner. Progressive payment for Erection will be made against monthly bills based on certification by the Project Manager the work completed.

3. In case, the Contractor decides not to take interest bearing advance payment as on D (I), the advance payment shall be proportionately adjusted in the balance payments excluding final payments.

4. The release of first progressive payment for Installation Services shall also be subject to submission of documentary evidence by the Contractor towards having taken the insurance policy(ies) in terms of relevant provisions of GCC Clause 34 (Insurance) and acceptance of same by the Project Manager.

5. In case the Installation Price (excluding Civil/Structural works price) is more than **10%** of the Ex-works Price of Main Equipment, the amount by which it is higher

shall be retained while releasing progressive payments due on installation of equipment, and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid along with payment due on Completion of Facilities.

E. **Schedule No. 3: Civil Works and Allied Works etc.**

The Civil Works Price Component of the Contract Price shall be paid as under:

(I) (A) **Five Percent (5%)** of the total Civil works Price component of the Contract Price will be paid to the Contractor, bearing interest at the rate of **"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum"** as advance payment on:

(i) Establishing their office at site in preparatory to commencement of Civil works.

(ii) Submission of an unconditional Bank guarantee for an **for an amount equivalent to one hundred ten percent (110%) of the advance amount** plus GST as applicable on the advance payment to be paid to the contractor, which shall be initially kept valid upto ninety (90) days beyond the schedule date for successful 'Completion of all Facilities under the Package. However, in case of delay in completion of the facilities covered under the package, the validity of this advance Bank Guarantee shall be extended by the period of such delay. The proforma of the Bank Guarantee is enclosed in Section-VII - Bank Guarantee Form for Advance Payment.

(iii) Signing of Contract Agreement.

(ii) Submission of an unconditional Bank Guarantee(s) / Insurance Surety Bonds/ Payment on Order Instrument towards Performance Security(s) in respect of all Contracts except for Operation & Maintenance Contract (i.e. Third Contract) initially valid upto (ninety) 90 days after the end of Defects Liability Period of the last equipment covered under the contracts.

The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII, Form of Performance Security.

(v) Submission of unconditional Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument towards Security against Annual Quoted Generation considering DC:AC ratio greater than 1.35 as per Section VI (Technical Specifications), initially valid upto 12 Months beyond the scheduled date for Completion of the facilities covered under the Package. However, in case of delay in Defect Liability Period, the validity of these Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument shall be extended by the period of such delay. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII - Form of Performance Security.

(vi) In case of Joint Deed of Undertaking by the contractor alongwith his

Collaborator/ Associate forms part of the contract then submission of an unconditional Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument from such Collaborators/Associates towards faithful performance of the Joint Deed of Undertaking for an amount specified in the deed and valid upto ninety (90) days after the end of defect liability period of all equipment covered under the contract. However, in case of delay in Defect Liability Period, the validity of these Bank Guarantees/ Insurance Surety Bonds/ Payment on Order Instrument shall be extended by the period of such delay. The proforma of Bank Guarantee/ Insurance Surety Bonds/ Payment on Order Instrument is enclosed in Section-VII- Form of Performance Security. **– Not Applicable –**

(vii) Submission of a detailed PERT Network based on the work schedule stipulated in Appendix-4 to Form of the Contract Agreement and its approval by the Employer.

(viii) Certification of Engineer-in-Charge that the Contractor has brought to site the Safety equipment & Safety Personal Protective Equipment as per minimum quantity specified in the Bidding Documents.

(I)(B) **Five Percent (5 %)** of the total Civil works Price component of the Contract Price will be paid to the Contractor, bearing interest at the rate of **"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum"** as advance payment on:

(i) Fulfillment of conditions mentioned at Clause E(I)(A) (i), (ii), (iii), (iv), (v), (vi) and (vii) above.

(ii) T&P mobilisation as identified along with PERT network for start of Civil Works and Certification thereof by the Engineer-in-Charge.

(iii) Submission of an unconditional Bank guarantee for an **for an amount equivalent to one hundred ten percent (110%) of the advance amount** plus GST as applicable on the advance payment to be paid to the contractor, which shall be initially kept valid upto ninety (90) days beyond the schedule date for successful 'Completion of all Facilities under the Package. However, in case of delay in completion of the facilities covered under the package, the validity of this advance Bank Guarantee shall be extended by the period of such delay. The proforma of the Bank Guarantee is enclosed in Section-VII - Bank Guarantee Form for Advance Payment.

Advance Payment for Civil works price components shall be released after certification of Engineer-in-Charge that the Contractor has brought to site the Safety equipments & Safety Personal Protective Equipments as per minimum quantity specified in the Bidding Documents.

In case the Contractor decides not to take advance payment, the first progressive payment for Civil & allied work price component shall be released after certification of Engineer-in-Charge that the Contractor has brought to site the Safety equipments & Safety Personal Protective Equipments as per minimum quantity specified in the Bidding Documents.

(II) **Seventy-Five Percent (75 %)** of the total Civil Works Price Component of Contract Price shall be paid progressively on certification by the Project Manager for the quantum of work completed/Milestones achieved and by Project Manager's field quality surveillance representative for the successful completion of quality check points involved in the quantum of work / Milestones billed.

The release of first progressive payment for Civil Works shall also be subject to submission of documentary evidence by the Contractor towards having taken the insurance policy(ies) in terms of relevant provisions of GCC Clause 34 (Insurance) and acceptance of same by the Project Manager.

(III) **Two Point Five Percent (2.5%)** of Civil Works Component of contract price shall be paid on successful commissioning of part capacity and in proportion to the part capacity commissioned of Solar Photo Voltaic Plant and on acceptance/certification by the Project Manager of such part commissioning. The commissioning of part capacity shall be accepted in terms of Section-VI (Technical Specifications) or its amendment thereof.

(IV) **Two Point Five Percent (2.5%)** of Civil Works Component of contract price shall be paid on Completion of the Facilities, as specified, and issuance of Completion Certificate by the Project Manager.

(V) **Ten Percent (10 %)** of Civil Works Component of contract price on successful completion Performance Guarantee Tests of entire Solar Photo Voltaic Plant, as specified and issue of Operational Acceptance Certificate by the Project Manager.

Notes:

(i) Recovery of the interest component on the advance amount shall be made from the progressive payments released to the Contractor as per E (II) above. The amount of interest to be recovered from a particular bill shall be calculated @ **“[SBI 1-year MCLR as on 01st April of applicable year + 100 bps] per annum”** on the value of advance corresponding to the %age of total progressive payment being released. The period for which the interest is to be calculated shall be reckoned from the date of release of the advance payment to the actual date of release of the said progressive payment or the expiry of the stipulated time frame for release of such progressive payment under the contract, whichever is earlier. The interest on the advance payment shall stand fully recovered on release of all the progressive payments. If the amount payable under any interim bill is not sufficient to cover all deductions to be made for interest on the advance payment and other sums deductible there from, the balance outstanding shall be recovered from the next payments immediately falling due.

(ii) Further break-up of the above percentages for making payments for the billing period shall be furnished by contractor and will be discussed and agreed to by the Employer in the Billing Break-up.

(iii) In case, the Contractor decides not to take interest bearing advance payment as on E (I), the advance payment shall be proportionately adjusted in the balance payments excluding final payments.

(iv) In case the Civil Works Price (including Site Fabricated Structural Works Price) is more than **10%** of the Ex-works Price of Main Equipment, the amount by which it is higher shall be retained while releasing progressive payments due on completion of civil works (including Site Fabricated Structural works), and no interest shall be payable on the retained amount. The aforesaid retained amount shall be paid along with payment due on completion of Commissioning / Completion of Facilities.

F. Schedule 3A: Acquisition and Transfer / Lease of Land*:* NOT APPLICABLE

G(1). Operation and Maintenance Charges – Solar Plant including BESS

(i) For Full Capacity Commissioned

After commissioning of full Project capacity as defined in bid documents and upon submission of Contract Performance Security for Operation and Maintenance Contract, operation and maintenance charges including all consumable, spares and equipment included in operation and maintenance charges shall be paid on pro-rata basis every three month on the certification of completion of work by Project Manager.

(ii) O&M of Part Capacity Commissioned

Standard 5 years O&M shall start from the date of commissioning of full capacity. However, in case of part capacity commissioning in line with provisions of Technical Specification, the start date of 5-year O&M period for such capacity shall be the date of commissioning of respective capacity. Payment for part capacity commissioning will be made as under:

After commissioning of part project capacity as defined in bid documents and upon submission of Contract Performance Security for Operation and Maintenance Contract as per Section-V (SCC), O&M charges for the respective part capacity commissioned shall be paid to the contractor from the date of part commissioning up to the date of commissioning of full project capacity on pro-rata basis every three month on the certification of completion of work by Project Manager. Engineer-in-Charge (EIC) shall have the right to extend O&M period of such part capacity by equivalent period with same rates, terms and conditions, in order to maintain same O&M

completion date for the total project capacity (i.e., 5 years from commissioning date of full capacity).

G(2). Operation and Maintenance Charges – BESS Plant

(i) O&M and Augmentation Charges For Full Capacity Commissioned

After commissioning of full Project capacity as defined in bid documents and upon submission of Contract Performance Security for Operation and Maintenance Contract, operation and maintenance charges including all consumable, spares and equipment included in operation and maintenance charges as per Price Schedule-8 shall be paid on pro-rata basis every three month on the certification of completion of work by Project Manager. Further, BESS augmentation charges shall be paid as per Price Schedule-9 on the certification of completion of work by Project Manager.

(ii) O&M of Part Capacity Commissioned

15 years O&M shall start from the date of commissioning of full capacity. However, in case of part capacity commissioning in line with provisions of Technical Specification, the start date of 15-year O&M period for such capacity shall be the date of commissioning of respective capacity. Payment for part capacity commissioning will be made as under:

After commissioning of part project capacity as defined in bid documents and upon submission of Contract Performance Security for Operation and Maintenance Contract as per Section-V (SCC), O&M charges for the respective part capacity commissioned shall be paid to the contractor from the date of part commissioning up to the date of commissioning of full project capacity as per Price Schedule-7 on pro-rata basis every three month on the certification of completion of work by Project Manager. Engineer-in-Charge (EIC) shall have the right to extend O&M period of such part capacity by equivalent period with the same rates (as applicable for the O&M of the last commissioned portion of the BESS plant), terms and conditions, in order to maintain same O&M completion date for the total project capacity (i.e., 15 years from commissioning date of full capacity).

G. Payment terms for Price Adjustment Amount - NOT APPLICABLE

H. Schedule - 6: Payment Terms for Taxes & Duties

100% of applicable Taxes and Duties which are payable by the Employer under the Contract shall be paid/reimbursed to the Contractor upon receipt of equipment /spare/services and on production of satisfactory documentary evidence by the Contractor. However, GST as applicable on Advance payment shall be paid to the Contractor along with the Advance sanctioned. The GST paid along with the advance shall be adjusted prorata against the tax due upon supply of goods/services, based on the value of the respective goods/services.

I. Additional Advance Payment:

An Additional Advance upto 5% of the Ex-works/Installation Services (including Civil Works) price component, apart from the Advance already provided for in the specified Terms of Payment, may be paid to the Contractor which shall be interest bearing and against Bank Guarantee of 110% of the advance requested and covering the interest charges. The advance amount shall be provided during various phases of Contract execution to meet the requirement of payment by the Contractor to the contractor's sub-vendors/sub-contractors but in aggregate shall not exceed 5% of the Ex-works/Installation Service (including Civil Works) Price Component. The advance amount shall be released in Indian Rupees only and Tax implication, if any, shall be to the account of the Contractor.

While applying for advance under this provision, the contractor shall provide a statement of past payment utilization evidencing the need for cash flow support and also plan for utilization of the amount requested as per above. The advance shall be provided in exceptional circumstances to enable work to be carried out. The advance amount shall be transferred to an ESCROW account (to be opened by the Contractor in any Scheduled Bank of India under intimation to the Employer) and after availing the advance, the contractor will be required to submit proof of utilization, as per the recovery plan submitted to NTPC/ subsidiary company.

The advance amount shall be interest bearing with rate of interest as "[SBI 1-year MCLR as on 01st April of applicable year + 100 bps]. This advance shall not be lumpsum advance but shall be provided in phase to tide over the financial constraints being faced by the contractor, along with the progress of work. The requirement of this advance shall be with the approval of the NTPC/ subsidiary company Head of Project.

The recovery of the interest component on the advance amount shall be made from subsequent progressive payment to be released to the contractor.

The period for which the interest to be calculated, shall be reckoned from the date of release of the Additional Advance(s) to the actual date of release of subsequent progressive payments as per the Plan to be agreed with the Contractor.

The advance amount shall be recovered from the milestone payment to be agreed between Employer and the Contractor.

A sample format of Tri-Partite Escrow agreement (between Employer, Contractor and Escrow Bank) is enclosed for reference at **Annexure-3**.

K. **Schedule – 3: Amount linked to Safety Aspects / Compliance to Safety Rules**

1. **The amount linked to Safety Aspects/ compliance to Safety Rules shall be paid in two parts, viz,**

    A) 10% amount (calculated as 0.1 Y of the service portion amount of RA bill) shall be linked to Fatal/Major Accidents, and

B) 90% amount (calculated as 0.9 Y of the service portion amount of RA bill) shall be linked to various Safety Aspects specified in Safety Rules of NTPC.

NOTE:

$$Y = \frac{\textbf{(Amount linked to Safety Aspects/ Compliance to Safety Rules specified in Price Schedule)}}{\textbf{(Total amount for Service Portion of the Contract, i.e. Civil + Installation/ Erection + Structural Works)}} \times 100$$

2. While raising each RA Bill, Contractor shall claim Amount linked to Safety Aspects/ Compliance to Safety Rules in such a manner that amount claimed is equal to Y% of the service portion (Civil + Installation/ Erection + Structural Works) of RA Bill.

3. The amount as elaborated at Para K.1. shall be withheld from first and second monthly RA bill of the respective quarter/three month period and shall be released in part or full based on safety compliance duly certified by Project Manager and Safety-in-charge on quarterly basis. The amount for the entire quarter (i.e. RA bills raised during a 3 month period) shall be paid to the Contractors at the end of that three months period along with 3rd/last RA Bill for the quarter/three months period upon complying the following conditions:

a) Amount of RA Bill linked to Fatal/ Major Accidents (0.1Y as elaborated above at Para K.1.A)

Aforesaid amount (on quarterly basis) shall be payable to Contractor only in case, there is

i) No fatal injury or accident causing death in that three months period and

ii) No Major injury or accident causing 25% or more permanent disablement to workmen or employees in that three months period. Permanent disablement shall have the same meaning as indicated in The Workmen's Compensation Act' 1923.

In case of any fatal injury or accident as elaborated above occurs during that three month period, the stipulated amount (0.1Y) subject to minimum of **Rs 10 Lakh per fatality** shall be forfeited and shall not be payable to the Contractor under the contract. In case, the amount to be deducted/forfeited exceeds the amount linked to Fatal/ Major Accidents, the same shall be recovered from remaining Amount (0.9Y) linked to Compliance of Safety Rules and/or any other payments immediately due to the Contractor under the Contract.

In case of any Major injury or accident causing 25% or more permanent disablement to workmen or employees occurs during that three month period, **Rs 4 lakh per Major injury** shall be deducted from the amount (0.1Y) linked to Fatal/ Major Accidents and shall not be payable to the Contractor under the contract. In case, the amount to be deducted/forfeited exceeds the amount linked to Fatal/ Major Accidents, the same shall be recovered from remaining Amount (0.9Y) linked to Compliance of Safety Rules and/or any other payments immediately due to the Contractor under the Contract.

Further, in case, Contractor doesn't raise RA Bills in any three month period/quarter and if any fatal injury and/or major accident takes place in that period, Project Manager shall deduct the amount [Rs 10 Lakh per fatality and Rs 4 lakh per Major injury] pertaining to this particular quarter from his next RA bill/due payment. In case, the amount to be deducted/forfeited exceeds the amount linked to Safety, the same shall be recovered from any other payments immediately due to the Contractor under the Contract.

The amount deducted/forfeited as mentioned above shall be in addition to the compensation payable to the workmen / employees under the relevant provisions of the Workmen's Compensation Act' 1923 and rules framed there under or any other applicable laws as applicable from time to time.

b) Amount of RA Bill linked to Compliance of Safety Rules (0.9Y i.e. 90% of amount as elaborated above at Para K.1.B)

Aforesaid amount (on quarterly basis) shall be payable to Contractor in five equal parts under five heads as under:

(i) Amount payable on deployment of required Safety Personnel

One fifth of the amount specified at K.3.b (calculated as 0.18Y of Service portion amount of RA Bill), on quarterly basis, shall be paid upon certification by Project Manager in consultation with Safety dept. that required number of Safety personnel as per Clause 2.3 of 'NTPC Safety Rules for Construction and Erection of Power Plants' [as enclosed with GCC/SCC] have been deployed. The aforesaid amount linked to deployment of requisite safety personnel shall be paid as under:

a) 50% of the amount referred at K.3.b.(i), for deployment of Safety Supervisors shall be paid on pro-rata basis depending upon the actual no. of Safety Supervisors deployed vis-à-vis actual requirement :

Amount to be paid = 0.09Y x Service portion of RA bill amount x (a/b)

Where, 'a' is actual no. of Safety supervisors deployed and 'b' is required no. of Safety supervisors as per Safety Rules.

In case, actual no. of Safety supervisors deployed is more than requisite number (i.e. a/b is more than 1), the amount to be paid shall be restricted to 0.09Y.

b) 50% of the amount referred at K.3.b.(i), for deployment of Safety Officers shall be paid on pro-rata basis depending upon the actual no. of Safety Officers deployed vis-à-vis actual requirement :

Amount to be paid = 0.09Y x Service portion of RA bill amount x (a/b)

Where, 'a' is actual no. of Safety Officers deployed and 'b' is required no. of Safety Officers as per Safety Rules.

In case, actual no. of Safety Officers deployed is more than requisite number (i.e. a/b is more than 1), the amount to be paid shall be restricted to 0.09Y.

c) In case aforesaid requisite no. of Safety personnel are not deployed by
Contractor, amount not to be paid as calculated above for that particular quarter/three month period shall be forfeited and shall not be payable to the Contractor under the contract.

(ii) <u>Amount payable on providing requisite Personal Protective Equipment & Safety Equipment</u>

One fifth of the amount specified at K.3.b (calculated as 0.18Y of Service portion amount of RA Bill), on quarterly basis, shall be paid upon certification by Project Manager in consultation with Safety dept. that Contractor has adhered to the requirements of Clause 4 (Personal Protective Equipment) of 'NTPC Safety Rules for Construction and Erection of Power Plants' and the provisions of the Bidding Documents with regards to number of Safety Equipment/PPEs to be provided by the Contractor.

In case of non-compliance by Contractor, warning letter/Non-compliance shall be issued by Project Manager /Safety Officer of NTPC as per clause 22.3.3 (ii) of GCC. Further, if more than two such warning letters/Non Compliance Memos are issued in a quarter/three monthly period, above mentioned amount for that particular quarter/three month period shall be forfeited and shall not be payable to the Contractor under the contract.

(iii) <u>Amount payable on providing requisite Safety Induction and Training</u>

One fifth of the amount specified at K.3.b (calculated as 0.18Y of Service portion amount of RA Bill), on quarterly basis, shall be paid upon certification by Project Manager in consultation with Safety dept. that Contractor has adhered to the requirements of imparting Safety training as per Clause 8.0 (Safety Induction and Training) of 'NTPC Safety Rules for Construction and Erection of Power Plants to at least 90% of its employees/workmen (who have not been previously provided with requisite training) in a quarter/ three months period.

In case Contractor fails in meeting the aforesaid requirement, above mentioned amount for that particular quarter/three month period shall be forfeited and shall not be payable to the Contractor under the contract.

(iv) Amount payable on providing requisite Medical and First Aid Amenities

One fifth of the amount specified at K.3.b (calculated as 0.18Y of Service portion amount of RA Bill), on quarterly basis, shall be paid upon certification by Project Manager in consultation with Safety dept. that Contractor has adhered to the requirements of Clause 13 (Medical and First Aid Amenities) of 'NTPC Safety Rules for Construction and Erection of Power Plants'

In case Contractor fails to provide Medical and first aid amenities as per requirement of aforesaid Clause 13 even on one incidence in any quarter/three month period, above mentioned amount for that particular quarter/three month period shall be forfeited and shall not be payable to the Contractor under the contract.

(v) Amount payable on compliance to Work Permit System

One fifth of the amount specified at K.3.b (calculated as 0.18Y of Service portion amount of RA Bill), on quarterly basis, shall be paid upon certification by Project Manager in consultation with Safety dept. that Contractor has adhered to the requirements of Clause 17 (Work Permit System) of 'NTPC Safety Rules for Construction and Erection of Power Plants'.

In case of non-compliance by Contractor, warning letters/Non Compliance Memos shall be issued by Project Manager /Safety Officer of NTPC as per clause 22.3.3 (v) of GCC. In case of issuance of more than two such warning letters/Non Compliance Memos in a quarter/three monthly period, above mentioned amount for that particular quarter/three month period shall be forfeited and shall not be payable to the Contractor under the contract

4. In case 'Amount linked to Safety Aspects / compliance to Safety Rules' is less than **5%** of the cumulative total of Service Portion of the Contract, i.e. Civil + Installation/ Erection + Structural Works, the amount by which it is

lower shall be retained proportionately from the other components of Schedule-3 of the Contract price while releasing payments of each RA bill. No interest shall be payable on the amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount. The amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount shall be payable in part or full based on safety compliance duly certified by Project Manager and Safety-in-charge on quarterly basis.

PAYMENT PROCEDURES

The Procedures to be followed in making application for, certifying and making payments shall as follows:

1. **Payment Schedule/Price Break-up for Payments**

1.1 The Contractor shall prepare and submit to the Employer for approval, a break- up of the Contract Price. The Contract Price break-up shall be interlinked with the agreed detailed PERT network of the Contract setting forth starting and completion dates for the various key phases of the Facilities. Any payment under the Contract, subsequent to Advance payment, shall be made only after the Contractor's price break-up is approved by the Employer. The aggregate sum of the Contractor's price break-up shall be equal to the total Contract price.

The Billing Breakup for Mandatory Spares shall be submitted to the Employer for approval as per the format enclosed as Annexure to this Appendix indicating therein the details such as Make, Model number, Drawing/Datasheet number and Part number of all spare items. The relevant drawings/documents shall be submitted along with the Billing Break Up.

The Contractor shall, by the 15th April of every year, furnish the BBU value of supplies sourced from Micro and Small Enterprises (MSEs) along with the total BBU value of supplies dispatched by it during the preceding financial year as per the format enclosed as Annexure to this APPENDIX-1.

2. **Application for Payment**

2.1 The Contractor shall submit application for the payment in the proforma enclosed.

2.2 Every interim payment certificate shall certify the Contract Value of the Facilities executed upto the date mentioned in the application for the payment certificate, provided that no sum shall be included in any interim payment certificate in respect of the Facilities that according to the decision of the Project Manager, does not comply with the Contract or has been performed at the date of certificate prematurely.

2.3 The Employer has established a Vendor Payment portal where Vendor/Contractor shall submit their digital bill/invoice and may track its status. The Application for Payment along with all the supporting documents (for direct payment cases as mentioned in Para 4.2 below) shall be submitted by the Vendor/Contractor in digital form i.e. digitally signed with Class-2/3 digital Signature and must be uploaded in the Employer's Vendor Payment Portal. No hard/physical copy of such documents will be accepted by the Employer unless otherwise asked for in the PO or instructed by Employer.

2.4 FAQ (Frequently asked questions with answers) regarding Invoice submission in digital mode is available at https://pradip.ntpc.co.in/VendorFinal/FAQ_VPP.pdf .

3. **Due Dates for Payment**

3.1 The advance payment amount shall be payable after fulfillment of all the conditions laid down in the Terms of Payment (Appendix 1 to the Contract Agreement) and receipt of the Contractor's invoice along with all necessary supporting documents for such advance payment. Employer will make progressive payments as and when the payment is due as per the Terms of Payment set forth in Appendix 1 to the Contract Agreement. Progressive payment other than that under the letter of credit will become due and payable by the Project Manager within Thirty (30) days from the date of receipt of Contractor's bill/ invoice/ debit note by the Employer, provided that the documents submitted are complete in all respects.

3.2 In cases of any discrepancy observed by the Employer in Contractor's bill, clarifications shall be sought in writing by the Employer within ten (10) days from the date of receipt of Contractor's bill/invoice/debit note by the Employer. The Contractor shall be required to submit the requisite clarifications within ten (10) days from the date of issuance of queries by the Employer. In case, no mutual agreement is reached between the Employer and the Contractor on any part of the bill/invoice, within ten (10) days of submission of clarification by the Contractor, the Contractor shall issue a revised bill/invoice to avoid mismatch in GST returns of the Employer and the Contractor. Payment against agreed and admissible part shall be processed as per payment procedure within ten (10) days after receipt of the revised bill/invoice. The bill/invoice for the balance amount under question may be separately submitted for consideration of the Employer after resolution of issues of payment by the Employer. In case of non-submission of satisfactory clarification by the Contractor within the stipulated period, NTPC/ subsidiary company shall not be liable for the delay in making payment. If the bill submitted by Contractor is incorrect and has gross discrepancies, the bill shall be summarily rejected and returned to the Contractor. In the event of dispute, the same shall be settled as per GCC Clause (Settlement of Disputes).

3.3 Vendor/Contractor can track the status of their digitally submitted Bill/Invoice in the NTPC Vendor Payment Portal.

4. **Mode of Payment**

4.1 The Employer will establish an irrevocable Letter of Credit (L/C) in favour of the Contractor through the Employer's Bank in Employer's country for payments due, as per Terms of Payment, on dispatch of equipment i.e. Ex-Works dispatch of plant and equipment including mandatory spares covered in Schedule-1. The value of L/C will be as per dispatch schedule for each quarter of year and the L/C shall remain valid for one quarter of a year. It will be the responsibility of the Contractor to utilise the L/C to the fullest extent. In case L/C has been established by the Employer and not utilised fully/partially by the Contractor, for reasons of delay attributable to him, all reinstatement charges for the L/C for further period necessitated due to non-utilisation of L/C will be to the account of the Contractor.

In case the Contractor is unwilling to receive the payment against Ex-Works dispatch of plant and equipment including mandatory spares through L/C, the Employer may consider release of this payment directly on receipt of equipment at site on pro-rata basis and physical verification and certification by the Project Manager for the equipment received and stored at site.

4.2 The payment of the advance amount, Type Test Charges if any, price adjustment amounts, all other supply payments, taxes and duties (wherever admissible) inland transportation insurance, Installation Portion of the Facilities and Civil, structural and allied works (if any) shall be made direct to the Contractor by the Employer and no L/C shall be established by the Employer for such payments. Wherever technically feasible, such payments shall be made electronically only as per details of Bank Account indicated in the contract. In case of any changes to the bank account indicated in the contract, the contractor shall immediately inform the employer. The Contractor shall hold the employer harmless and employer shall not be liable for any direct, indirect or consequential loss or damage sustained by the bidder on account of any error in the information or change in Bank details provided to the employer in the prescribed form without information to employer duly acknowledged.

5.0 For payments related to Erection/Civil/Structural works:

(i) The Contractor shall have an option to either opt for a separate account at site or a main corporate account with a Scheduled Bank for the purpose of receiving all the payments under the Contract(s) and for utilization of payments received from the Employer for disbursement to sub-contractors, sub-vendors, PRW's etc., of the Contractor. The Contractor shall maintain separate books of accounts for all payments under this Contract and the Project Manager shall have access to these at all times.

(ii) **In case the Contractor opts for a separate account at site, the following shall also be applicable:**

(a) Account Tracking Mechanism

In case the Contractor wants to withdraw funds from the above bank account for any purposes other than the Contract, he shall be required to submit an undertaking to the Project Manager certifying that all due statutory payments, labour payments and payments to all his sub-contractors have been disbursed corresponding to the total payment received by him under the Contract.

For tracking of payments received from the Employer, the Contractor shall also submit a monthly statement by 7th of every month certifying the transactions pertaining to the above account along with the purpose of such transactions. In case the Contractor transfers funds for any purposes other than the Contract, without prior consent of the Employer, it will constitute a breach of Contract by the Contractor.

(b) In case the Contractor violates the above provisions, Employer will have the right to give suitable instructions to the Bank to regulate/freeze the account.

6. Based on the authorization from the contractor, Employer may also consider the direct payment to the sub-contractor(s)/ Sub-vendor(s) from the due payments to the contractor.

FORM OF APPLICATION FOR PAYMENTS

Project	:			
Equipment Package	:	Date	:	Name
of Contractor	:	Contract No.	:	
Contract Value	:	Contact Name	:	
Unit Reference	:	Application Serial Number	:	

To.

.... * (Name of Employer)

Dear Sir

APPLICATION FOR PAYMENT

1. Pursuant to the above referred Contract Agreement dated .... the undersigned hereby applies for payment of the sum of... (In Indian Rupees).

2. The above amount is on account of: (check whichever applicable) Advance payment (Schedule **)

   Progressive payment against despatch of equipment (Schedule **), Progressive payment against despatch of mandatory spares (Schedule **), Progressive payment against receipt of equipment (Schedule **), Progressive payment against receipt of mandatory spares (Schedule **), Progressive payment against Erection (Schedule **),
   Progressive payment against Civil and Allied Works (Schedule **), Progressive payment against Operation & Maintenance (Schedule **), Payment against Inland transportation (Schedule **) including inland transit Insurance
   Payment against Taxes & duties (Schedule **) Payment against Price adjustment (Schedule **)
   Extra work not specified in contract

   (Ref. Contract change order No....................................) Others (specify)
   Final payment (Schedule **)

as detailed in the attached schedule(s) which form an integral part of this application.

3. The payment claimed is as per item(s) No (s)...................... of the payment schedule annexed to the above mentioned Contract.

4. The application consists of this page, a summary of claim statement (Schedule **), and the following signed schedules

   1 ---------------------------

   2 ---------------------------

   3 ---------------------------

   The following documents are also enclosed:

   1 ---------------------------

   2 ---------------------------

   3 ---------------------------

Signature of Contractor/
Authorised Signatory

* Application for payment will be made to 'Project Manager' as to be designated for this purpose at the time of Notification of Award.

Separate applications are to be prepared for claims in different currencies.

** Proforma for the Schedules will be mutually discussed and agreed to during the finalisation of the Contract Agreement.

PROJECT : ……………………………….. CLIENT : …………………….

PACKAGE: ………………………………..

TITLE : BILLING BREAK UP FOR MANDATORY SPARES CONTRACTOR : ……………………..

NOA REF : …………………………….

BILLING BREAKUP (BBU) NO. : ……………………………………

Sl.No.	Description	Quantity	Unit	Unit Price	Total Price	Equipment Make	Equipment Model	Drawing / Documents/Data Sht no.	Part No.	Remarks

Proforma for details to be furnished by the Contractor by 15th April of every financial year of supplies sourced from MSEs dispatched during the preceding financial year.

Package Name:
Project Name:
Name of the Contractor:
COA No.:

Details of BBU value of supplies dispatched during the preceding financial year …… are furnished here below:

BBU value of total supplies dispatched **(A)** (in eqvt INR)	Out of the total supplies dispatched, BBU value of supplies sourced from MSEs **(B)** (in eqvt INR)	Percentage of supplies sourced from MSEs wrt total supplies dispatched **(C = B*100/A)** (%)
……………………..	………………………	…………………….

In case of no supplies sourced from MSEs, mention 'NIL'.

I, on behalf of M/s …………. (*Contractor*) hereby declare that the information furnished above is correct.

Signature………………
Name…………………..
Designation and Seal………………………

(A sample Format of Escrow Agreement)

(To be executed on Non- Judicial Stamp Paper of Appropriate Value)

ESCROW AGREEMENT

ESCROW AGREEMENT (hereinafter referred to as this "**Agreement**") is entered into on this the __ day of ________ 20__ at ________.

BETWEEN:

M/S ______________ a Company incorporated under the laws of ______ and having its principal place of business at ____ (hereinafter referred to as the "**Employer**", which expression shall, unless it is repugnant to the subject or context thereof, include its successors and assigns) of the **FIRST PART**;

AND

M/S ______________ a Company incorporated under the laws of ______ and having its principal place of business at ____ (hereinafter referred to as the **"Contractor"**, which expression shall, unless it is repugnant to the subject or context thereof, include its successors, transferees and permitted assigns) of the **SECOND PART**;

AND

M/S ____________________________________, a body corporate incorporated under the laws of India and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) and having its registered office at ____ in its capacity as the Escrow Agent for the Contractor (hereinafter referred to as the "**Escrow Bank**", which expression shall, unless it be repugnant to the subject or context thereof, include its successors and permitted assigns) of the **THIRD PART**.

The Employer, the Contractor and the Escrow Bank are individually referred to as "**Party**" and collectively as "**Parties**".
WHEREAS:

A. The Employer vide IFB No._________________ dated __________________

("**Tender**") had invited bids for ____("**Package**") for ______________________________ ______("**Project**").

B. Accordingly, the said "Contractor", submitted its bid in response to the above mentioned NIT.

C. Pursuant to the IFB and the bid submitted by the Successful Bidder / Contractor, the Employer issued the Notification of Award dated -___________bearing no.________________ ("**Notification of Award**") and executed Contract Agreement Reference No. ___________________dated ___________ (hereinfter called Contract).

D. In terms of Clause__________ of the Contract/ General Conditions of Contract/ Special Conditions of Contract, the Contractor is required to open and maintain separately an Escrow Account with the Escrow Bank.

E. The Contractor have approached ________________________Bank to act as an escrow agent and the___________________________ Bank has agreed to act as the Escrow Bank under this Escrow Agreement; and

F. Accordingly Parties are desirous of executing this Escrow Agreement to set out the manner and procedure for operation of the escrow account and other matters in connection therewith.

G. Additional Advance related to Ex works/Installation Services (including Civil Works) under the Contract will be released by the Employer to the Contractor in the Escrow Account. The Contractor is required to make payment to suppliers of goods and services, statutory authorities, establishment expenses etc as may be required in the successful performance of the Contract.

H. The Contractor is required to utilise the money collected in the Escrow Account in accordance with the waterfall mechanism set out in this Agreement.

I. In view of the aforesaid, the mutual covenants, and understandings setforth herein, the Parties wish to enter into this Agreement for setting out the terms and conditions to deal with all payments in accordance with the requirements set out in the Bid Document.

NOW, THEREFORE, in consideration of the premises herein set forth and other good and valid consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties with the intent to be legally bound hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 DEFINTIONS

In this Agreement the following words and expressions shall, unless repugnant to the context or meaning thereof, have the meaning hereafter respectively assigned to them.

Applicable Law means all applicable statutes, laws, by – laws, rules, regulations, orders, ordinances, protocols, codes, guidelines, policies, notices, directions, judgments, decrees or other requirements or official directive of any governmental authority or court or other law, rule or regulation, approval from the relevant governmental authority, government resolution, directive, or other government restriction or any similar form of decision of, or determination by, or any interpretation or adjudication having the force of law in India.

Business Day means a day other than a Sunday or a bank holiday on which banks are normally open for business during banking business hours in Delhi, India.

Contractor shall have the meaning as ascribed to it in Second Part

Employer shall have the meaning as ascribed to it in First Part.

Escrow Account shall mean the account in the name and style of "__________________________________" opened and maintained by the Contractor in terms of Clause___________ of the Contract/ General Conditions of Contract/ Special Conditions of Contract with the Escrow Bank and operated in terms of this Escrow Agreement.

Escrow Agreement shall mean this agreement, together with the schedules hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms.

Escrow Bank shall have the meaning as ascribed to it in Third Part.

Notification of Award shall have the meaning as ascribed to it in Recital C.

Package shall have the meaning as ascribed to it in Recital A.

Project shall have the meaning as ascribed to it in Recital A.
Tender shall have the meaning as ascribed to it in Recital A.

1.2 PRINCIPLE OF CONSTRUCTIONS

In this Agreement, unless the context otherwise requires:

(a) reference to an Account includes a reference to any sub – account of that Account;

(b) reference to an "amendment" includes a supplement, modification, novation, replacement or re-enactment and "amended" is to be construed accordingly;

(c) a reference to "authorization" includes an authorization, consent, clearance, approval, permission, resolution, license, exemption, filing and registration;

(d) a reference to "control" includes the power to direct by contract or otherwise;

(e) unless the context otherwise requires, the singular includes the plural and vice versa;

(f) a reference to a Schedule is, unless indicated to the contrary, a reference to a schedule to this Agreement;

(g) the words "other", "or otherwise" and "whatsoever" shall not be construed *ejusdem generis* or be construed as any limitation upon the generality of any preceding words or matters specifically referred to;

(h) references to the word "includes" or "including" are to be construed without limitation;

(n) all references to agreements, documents or other instruments include (subject to all relevant approvals) a reference to that agreement, document or instrument as amended, supplemented, substituted, novated or assigned from time to time;

(o) any reference to a public organization shall be deemed to include any successor to such public organization or any organization or functions or responsibilities of such public organization;

(p) "year" "month" and "day" wherever used in this Agreement imply that of English calendar;

(q) words and abbreviations, which have, well known technical or trade / commercial meanings are used in the Agreement in accordance with such meanings;

(r) A reference to times and dates in this Escrow Agreement are references to times and dates in India.

(s) Any date or period as set out in any clause of this Escrow Agreement may be extended with the written consent of the Parties.

(t) The Schedules form an integral and operative part of this Escrow

Agreement and references to this Escrow Agreement shall include references to the Schedules.

2. APPOINTMENT OF ESCROW BANK

Each of the parties acknowledges that the Escrow Bank has been appointed under this Escrow Agreement and that it shall discharge its functions in accordance with the terms of this Escrow Agreement. Escrow Bank hereby accepts the escrow arrangement hereby declared and provided upon the terms and conditions set forth in this Escrow Agreement.

3. ESTABLISHMENT OF THE ACCOUNTS

The Contractor has established with the Escrow Bank an account with its branch, the details of which are provided in **Schedule – II** hereto, titled the "______________________Account". The Contractor acknowledges and agrees that it shall maintain the Escrow Account.

4. OPERATING PROCEDURES

The Employer, the Contractor and Escrow Bank, have prior to execution of this Agreement agreed on the detailed terms and conditions and Operating Procedures for the Escrow Account (as set out in **Schedule – III**), provided however, in the event of any inconsistency between this Agreement and such mandates, terms and conditions or procedures, this Agreement shall prevail.

Based on the request from the Contractor, the Employer will approve the list of suppliers of goods and services, statutory authorities, establishment expenses etc. to whom payments could be made and the same shall be shared with the Escrow Bank from time to time.

All transfers and payments pursuant to this Agreement shall be in a manner consistent with the operating procedures.

The Escrow Bank shall submit to the Employer the usage of monies withdrawn from the Escrow Account together with a monthly statement from the Escrow Bank evidencing receipt and withdrawal of funds into and from the Escrow Account.

The Employer shall be entitled to verify the usage of funds withdrawn from the Escrow Account.

At any time the Employer is entitled to seek an account statement from the Escrow Bank and such evidence of usage of funds by the Contractor from the Escrow Account as required by the Employer.

5. OBLIGATIONS OF THE CONTRACTOR

Nothing contained in this Agreement shall affect the obligations of the Contractor under the Bid Documents or Contract Agreement as set out above.

The Contractor shall simultaneously deliver a copy to the Employer of any notice or document delivered to the Escrow Bank pursuant to this Agreement.

6. ESCROW BANK SERVICE CHARGES AND EXPENSES

The Contractor shall pay, on demand, all the usual and customary service charges, transfer fees, account maintenance, account acceptance, statement, investigation, funds transfer and any other charges as are levied by the Escrow Bank as mutually agreed and such other out of pocket expenses as are claimed by the Escrow Bank (collectively, the "**charges**") in connection with the Escrow Account. In addition the Contractor has agreed to pay one-time bank escrow service charges of Rs._________ plus applicable Goods and Service Tax. Contractor shall deposit the one- time bank escrow service charges in to the Escrow Account within three Business Days of the opening of the Escrow Account and/ or shall deposit the charges from time to time of such demand by the Escrow Bank. In the event Contractor fails to make the timely payment to the Escrow Bank of the one-time bank escrow service charges and/or the charges, the Escrow Bank shall have the right to withdraw such amounts from the Escrow Account as is necessary for the payment of the one-time bank escrow service charges and charges, in which case Contractor shall replenish the Escrow Account with such amounts equivalent to the amounts withdrawn by the Escrow Bank within ____ Business Days of such withdrawal.

7. ESCROW BANKS'S DUTIES AND LIABILITIES

7.1 The Escrow Bank shall have only those duties, obligations and responsibilities expressly specified in this Escrow Agreement and shall have no duties, obligations or responsibilities which are implied or inferred by law or otherwise.

7.2 The duties of the Escrow Bank under this Escrow Agreement are purely ministerial, administrative and non-discretionary in nature. Neither Escrow Bank nor any of its directors,

officers, agents and employees shall, by reason of anything contained in this Escrow Agreement, be deemed to be a trustee for or have any fiduciary relationship with the parties. Where the Escrow Bank has acted in accordance with this Escrow Agreement, it shall be deemed to have acted as if instructed to do so by the Employer

7.3 The Escrow Bank shall not be required to expend or risk any of its own funds or otherwise incur any liability, financial or otherwise, in the performance of any of its duties under this Escrow Agreement.

7.4 The Escrow Bank shall not be precluded by virtue of this Escrow Agreement (and neither shall any of its directors, officers, agents and employees or any company or persons in any other way associated with it be precluded) from entering into or being otherwise interested in any banking, commercial, financial or business contacts or in any other transactions or arrangements with the parties or any of their affiliates provided such transactions or arrangements are not contrary to the provisions of this Escrow Agreement.

7.5 The Escrow Bank shall not be bound or affected, in its capacity as Escrow Bank, in any way by the Agreement or any agreement or contract between Parties to which the Escrow Agent is not a party. The Escrow Bank, in its capacity as an escrow bank, is deemed not to have any knowledge of any provision of the Agreement or any other document unless the substance of such provisions is explicitly set forth in this Escrow Agreement. The Escrow Bank shall not in any way be required to determine whether or not the terms and conditions of the Agreement or any other agreement or contract between the Parties to which the Escrow Bank is not a party have been complied with. Furthermore, the Escrow Bank is deemed not to have any knowledge or notice of any fact or circumstance not specifically set forth in this Escrow Agreement.

7.6 The Escrow Bank may, in good faith, accept and rely on any notice, instruction or other document received by it under this Escrow Agreement as conclusive evidence of the facts and of the validity of the instructions stated in it and as having been duly authorised, executed and delivered and need not make any further enquiry in relation to it. The Escrow Bank may act in conclusive reliance upon any instrument or signature believed by it, acting reasonably, to be genuine and may assume, acting reasonably, that any person purporting to give receipt, instruction or advice, make any statement, or execute any document in connection with the provisions of this Escrow Agreement has been duly authorised to do so. The Escrow Bank shall be under no duty to inquire into or investigate the validity, accuracy or content of any such document.

7.7 The Escrow Bank shall not be liable to any person for any losses arising out of or in connection with the performance or non-performance of its obligations under this Escrow

Agreement, except to the extent directly resulting from the wilful default or gross negligence of the Escrow Bank.

7.8 The Escrow Bank may execute any of its powers and perform any of its duties under this Escrow Agreement directly or through appointed agents or attorneys.

7.9 'Force Majeure Event' means any event (including but not limited to an act of God, fire, epidemics, natural calamities; riots, civil commotion or unrest, terrorism, war, strikes or lockouts; expropriation or other governmental actions; any changes in applicable law or regulation including changes in market rules, currency restrictions, devaluations or fluctuations; market conditions affecting the execution or settlement of transactions or the value of assets; and breakdown, failure or malfunction of any telecommunication and information technology systems beyond the control of any Party which restricts or prohibits the performance of the obligations of such Party contemplated by this Agreement.

The Escrow Bank shall not be held liable for any loss or damage or failure to perform its obligations hereunder, or for any delay in complying with any duty or obligation, under or pursuant to this Agreement arising as a direct or indirect result of any Force Majeure Event.

7.10 The Escrow Bank may at its cost, consult with, and obtain advice from its lawyers or professional advisers over any question in relation to, and its duties under this Escrow Agreement. The Escrow Bank shall not incur any liability for taking any action or omitting any action in accordance with such advice.

7.11 The Escrow Bank does not have any proprietary or other interest in the Escrow Account, but is to serve as escrow holder only and having only possession thereof.

7.12 The Escrow Bank shall not be liable or responsible for obtaining any regulatory or governmental or other approval in connection with or in relation to the transactions contemplated herein and shall not be in any manner obliged to inquire or consider whether any regulatory or governmental approvals have been obtained.

7.13 The Escrow Bank shall not be obliged to supervise, control or perform any acts or responsibilities of the First Party or the Second Party or any other third party.

7.14 Any act to be done by the Escrow Bank shall be done only on a Business Day, during banking business hours, at __________, India and in the event that any day on which the Escrow Bank is required to do an act, under the terms of this Escrow Agreement, is a day on which banking business is not, or cannot for any reason be conducted, then the Escrow Bank shall do those acts on the next succeeding Business Day.

7.15 The Escrow Bank is under no duty to ensure that funds withdrawn from the Escrow Account are actually applied for the purpose for which they were withdrawn; neither the Escrow Bank nor any of its officers, employees or agents shall be required to make any distribution to the extent that the Escrow Amount is insufficient and shall incur no liability whatsoever from any non-distribution in such circumstances.

7.16 The Parties agree that the Escrow Bank shall not be, in any way, responsible or liable to the other Parties or any third person whosoever, for deduction or withholding of any taxes in relation to the transaction for which the Escrow Account has been established pursuant hereto and the contractor acknowledge and confirm that they shall be solely and absolutely liable for any and all deductions or withholdings and payments of taxes, levies, cesses and all other statutory dues in relation thereto. The

Contractors confirm that they shall be, jointly and severally, liable for payment of all stamp duties payable in relation to this Agreement as well as any other instruments executed pursuant hereto and the Escrow Bank shall not be responsible or liable for the same, under any circumstances.

7.17 The Parties agree that Escrow Bank is acting in its capacity as an escrow agent only and shall not be deemed to act as an investment, legal or tax adviser to the Parties in the performance of its obligations under the Escrow Agreement.

7.18 Notwithstanding what is stated herein, in no event shall the Escrow Bank be liable for incidental, indirect, special, punitive or consequential damages caused to the Parties.

8. NOTICE OF BREACH

The Escrow Bank to the best of its knowledge undertakes to the Employer that it shall notify the Employer of any breach by the Contractor of any of the provisions of this Agreement.

9. INDEMNITY

The Contractor shall indemnify and keep indemnified the Parties for any and all liabilities, obligations, losses, damages, penalties, actions, judgments, suits, costs, expenses, claims or disbursements of any kind or nature whatsoever which may be imposed upon, incurred by or asserted against the Parties in any way in connection with or arising out of the negotiation, preservation or enforcement of any rights under, or in carrying out its duties under this Agreement, other than those arising as a result of the Escrow Bank's gross negligence or willful default.

The Contractor shall indemnify and keep indemnified the Escrow Bank for any and all liabilities, obligations, losses, damages,

(a) acting upon any request sent by facsimile, if such facsimile was found to be sent in an unauthorized manner; or
(b) not acting upon any request if such facsimile was sent but not received by the concerned person of the Account Bank.
The obligations of the Contractor under this Agreement to indemnify and keep indemnified the parties shall survive the satisfaction, discharge or other termination of this Agreement and the resignation or removal of the Escrow Bank under this Agreement.

10. CONFIDENTIALITY

No Party may except as permitted by this Escrow Agreement, make public or disclose to any person any information about this Escrow Agreement.
The Obligations under this clause shall survive the termination or expiry of this agreement.

11. ASSIGNMENT

Save as provided in Clause __ of the General Conditions of the Contract of the Employer, the Contractor shall not assign or transfer any part of their respective rights or obligations under this Agreement without the prior consent of the Employer, provided that this shall not prevent Employer from assigning or transferring its rights under this Agreement.

Nothing in this Agreement shall give to any other Person (other than the Parties hereto and their successors and permitted assigns) any benefit or any legal or equitable right or remedy under this Agreement.

This Agreement shall be binding on and shall inure to the benefit of the Parties hereto and the respective successors and permitted assigns.

12. NOTICES

All notices or other communications to be given under this agreement shall be made in writing to:

For the Employer:
(Name of the Employer)____

Attention	(Designation of Employee)__________
Address	___________________________________

	---------------------------------------.
Fax No.	___________________
Tel No.	___________________

For the Contractor:
(Name of the Contractor)____

Attention	(Designation of Employee)__________
Address	________________________________

	---.
Fax No.	___________________
Tel No.	___________________

For the Escrow Bank:
(Name of the Escrow Bank)

Attention	(Designation of Employee)__________
Address	________________________________

	---.

Fax No. ____________________
Tel No. ____________________

13. Change of Address

Any Party may by notice change the addresses and / or addresses to which such notices and communications are to be delivered or mailed. Such change shall be effective when all the Parties have written notice of it.

14. WAIVER

No failure or delay on the part of the Employer in exercising any right, power or privilege hereunder or under Contract shall impair any such right, power or privilege or operate as a waiver the Employer would otherwise have. No notice to or demand on the Contractor in any case shall entitle the Contractor to any other or further notice or demand in similar or other circumstances or constitute a waiver of the rights of the Employer to any other or further action in any circumstances without notice or demand.

15. SEVERABILITY

If any provision of this Agreement is held invalid, unenforceable or illegal, the offending provision shall be severed from this Agreement and the remaining parts of this Agreement shall remain in full force and effect.

16. AMENDMENTS

No amendment to this Agreement shall be binding unless in writing and signed by the Parties.

17. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with Indian laws.

18. DISPUTE RESOLUTION

In the event of any difference or dispute arising out of the interpretation or application of the provisions of this Agreement, the Parties shall immediately consult each other with the view to expeditiously resolve such differences or disputes in a spirit of mutual understanding and co-operation. In case a dispute is not resolved amicably between the parties within a period of 30 days;

In case any of the party is not a Public Sector Enterprise or a Govt. Department:

The same shall be referred to arbitration of a Sole Arbitrator to be appointed by the Employer. The Arbitration proceedings shall be conducted in accordance with Arbitration and Conciliation Act, 1996 and any amendment thereto. The Courts at Delhi, to the exclusion of all other courts in India, shall have exclusive jurisdiction to try any matter arising out of or connected with the said arbitration proceedings. The arbitration shall be in English and the venue of the arbitration proceedings shall be at New Delhi. Arbitration may commence prior to or after completion of the Contract.

In case the Parties are Public Sector Enterprise or a Government Department:

In case the parties are a Public Sector Enterprise or a Government Department, the dispute shall be referred for resolution in Permanent Machinery for Arbitration (PMA) of the Department of Public Enterprise, Government of India. Such dispute or difference shall be referred by either party for Arbitration to the sole Arbitrator in the Department of Public Enterprise to be nominated by the Secretary to the Government of India in-charge of the Department of Public Enterprises. The award of the Arbitrator shall be binding upon the parties to the dispute, provided, however, any party aggrieved by such award may make a further reference for setting aside or revision of the award to the Law

Secretary, Department of Legal Affairs, Ministry of Law & Justice, Government of India. Upon such reference the dispute shall be decided by the Law Secretary or the Special Secretary / Additional Secretary, when so authorized by the Law Secretary, whose decision shall bind the Parties finally and conclusively. The Parties to the dispute will share equally the cost of arbitration as intimated by the Arbitrator.

19. JURISDICTION

The parties irrevocably submit to exclusive jurisdiction of the Courts of Delhi in all matters arising under this Agreement.

20. REGULATORY APPROVALS

The Contractor shall procure and shall thereafter maintain and comply with all regulatory approvals required for the establishment and operation of the Accounts and the making of any deposits, transfers or withdrawals and for the performance of its obligations under this Agreement.

21. NOTIFICATION OF BALANCES

Within ____ days following the end of each calendar month, the Escrow Bank shall notify the Employer of the balance in the Account and furnish a statement of the deposits into and payment out of the Accounts at the close of business of such calendar month.

22. COUNTERPARTS, ANNEXURES, SCHEDULES

This Agreement may be executed in several counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same agreement.

23. MISCELLENOUS

The Escrow Bank shall be responsible for maintaining a correct and complete record of all transactions, deposits, withdrawals or transfer of funds relating to the Accounts.

The Escrow Bank shall not make any transfer or withdrawal from the Escrow Account except as provided for in this Agreement.

EMPLOYER CONTRACTOR ESCROW BANK

SCHEDULE – I

1. First Part Details:

2. Second Part Details;

3. Third Part Details;

EMPLOYER	CONTRACTOR	ESCROW BANK

SCHEDULE – II

DETAILS OF ESCROW ACCOUNT

Particulars and Address of the Branch Office of the Escrow Bank for the Escrow Account	
IFSC Code	
Account Name and Account Number of Escrow Account	

EMPLOYER CONTRACTOR ESCROW BANK

SCHEDULE – III

TERMS & CONDITIONS AND OPERATING PROCEDURES

Deposits into Escrow Account

- Additional advance Payments related to Ex works/Installation Services (including Civil Works) under the Contract will be released by the Employer to the Contractor in this Escrow Account as per the provisions agreed in the Contract.

Release/ Withdrawal of Funds from the Escrow Account

- Based on the request from the Contractor, the Employer will approve the list of suppliers of goods and services, statutory authorities, establishment expenses etc. to whom payments could be made and the same shall be shared with the Escrow Bank from time to time for releasing the funds.

Note: Detailed Operating Procedure in this schedule, shall be finalised between Employer, Contractor & Escrow Bank at the time of signing of this Agreement.

IN WITNESS WHEREOF the Contractor has caused its Common Seal to be affixed hereto on the date first above written, the Employer, and the Escrow Bank have caused the same and the said counterparts to be executed by the hand of an authorized official.

SIGNED AND DELIVERED BY …… (Name of Employer), the within named **EMPLOYER**, by the hand of ____________________ authorized representative of the Employer, who has been authorized to execute this Agreement.

THE COMMON SEAL OF M/s___________________________________
___________________________ the within named **CONTRACTOR,** has pursuant to the Resolutions of its Board of Directors passed in that behalf on_____________________

hereunto been affixed in the presence of MD and Company Secretary who has signed these presents in token thereof

SIGNED AND DELIVERED BY ____________________________, the within named **ESCROW BANK**, by the hand of

…………………………..……….

Its Authorised Representative.

EMPLOYER CONTRACTOR ESCROW BANK

PRICE ADJUSTMENT

The total price for the entire scope of work (covered in the Bidding Documents) is on Firm Price Basis and the Price shall remain Firm during entire period of Contract.

INSURANCE REQUIREMENTS

(I) Insurance to be taken by the Contractor:

In accordance with the provisions of GCC Clause 34, the Contractor shall at his expense take out and maintain in effect, or cause to be taken out and maintained in effect, during the performance of the Contract, the insurances set forth below in the sums and with the deductibles and other conditions specified herein. The identity of the insurers and the form of the policies shall be subject to the approval of the Employer, such approval not to be unreasonably withheld:

Insurance	Amount insured	Deductible	Conditions
A. Marine Cargo	(i) 110% of Ex-works value in case of plant & equip- ment including all spare parts supplied from within the Employer's Country. (ii) Applicable taxes and duties (iii) Escalation 5% on (i) & (ii)	Not applicable	(i) Employer to be named as coinsured (ii) Open policy (iii) All risk institute cargo clause 'A' (iv) War, SRCC, terrorism. (v) **Institute** replacement clause, special replacement clause (Air duty) and deferred unpacking clause (vi) Insurers right of subrogation against all parties (excluding carrier) waived. (vii) **Warehouse to** warehouse basis.
B. Installation all risk	(i) 110% of Ex-works value of plant & equipment (ii) Applicable taxes and duties (iii) Cost of indigenous procurement (iv) 10% escalation on (i) (ii) & (iii) (v) Cost of erection works (vi) 110% of Civil Works (including structural steel Works), Allied Works etc.	Minimum as per insurance policy	(i) Installation risk, RSMTD, including Earth quake cover (ii) **Air** freight cover. (iii) Extra charge cover. (iv) Maintenance cover (v) Contractor's plant & machinery - Rs. 100 lakhs. (vi) Cross liability (vii) Additional custom duty for imported machine (if any) for adequate value. (viii) Employer & Contractor's Sub-Contractor to be named as co-insured.
C. Third Party liability (Extension of MCE/EAR Policy)	For any one occurance Rs. 50.00 lakhs	Nil	(i) Contractors, sub-contractors to be named as co-insured.

Note:

1. The Employer shall be named as co-insured under all insurance policies taken out by the Contractor pursuant to GCC 34.1 except for Third Party Liability, Workman's Compensation and Employer's Liability Insurances and the Contractor's Sub-Contractors shall be named as co-insured under all insurances policies taken out by the Contractor pursuant to GCC 34.1, except for the Cargo insurance during transport, Workman's Compensation and Employer's Liability Insurances. All insurers' rights of subrogation against such co-insured for losses or claims arising out of the performance of the Contract shall be waived under such policies.

2. Notwithstanding the insurance requirements mentioned above, it would be the Contractor's responsibility to take adequate insurance cover as may be pertinent to protect his interest and interest of the Employer. If at any point of time during execution of the Contract, the insurance policies are found to be inadequate, the Contractor shall take fresh insurance policies meeting aforesaid requirements. The Employer reserves the right to make suitable recovery from the Contractor, if any.

3. Any loss or damage to the plant and equipment during handling, transportation, storage, installation, Planning, Design & Engineering, commissioning, civil works (including structural steel works), allied works etc. and all activities to be performed till the "Completion of Facilities" shall be to the account of the contractor. The contractor shall be responsible for preference of all claims and make good the damages or loss by way of repairs and/or replacement of plant and equipment damaged or lost. Notwithstanding the extent of insurances cover and the amount of claim available from the underwriter, the contractor shall be liable to make good the full replacement/ rectification of all the equipment/materials and to ensure their availability as per project requirement without additional financial liability to the Employer.

   The insurance should be in the Indian currency and insurance policy to be taken should be on replacement value basis and/or incorporating appropriate insurance clause.

   The Contractor shall follow local acts and laws as may be prevalent for insurance.

4. Upon grant of extension of time for completion by Employer, the Contractor shall promptly furnish documentary evidence to Project Manager towards extension of insurance policies for the period of time extension.

II) Insurances to be taken by the Employer.

The Employer shall take the insurance for its own employees, its stores and its machinery.

TIME SCHEDULE

1.0 It is clearly understood and agreed that time is the essence of this Contract and shall be strictly adhered to by the Contractor. The program of furnishing, installing, commissioning, completion of facilities and FOR site delivery of all mandatory spares, identifying the key phases in various areas of work like design, procurement, manufacture and field activities including erection works, Planning, Design & Engineering, civil works (including structural steel works), allied works etc. shall be as per Master network enclosed as Annexure-I to this Appendix-4 (The master network submitted by the Bidder as per Attachment-13A (for 275MW Block) and Attachment-13B (for 225MW Block) to Bid and as mutually discussed and agreed to before Notification of Award shall be enclosed as Annexure-I to Appendix-4 of Contract Agreement). As per this master network, the key milestones are as under. The period is commencing from the date of Notification of Award.

Refer BDS, Section-III

Further, we confirm to carry out comprehensive Operation & Maintenance (O&M) of Solar Photo Voltaic Plant for 03 years as specified in the Technical Specifications.

2.0 After the Notification of Award, the Contractor shall plan the sequence of work of manufacture and erection, civil and allied works, Operation & Maintenance (O&M) to meet the above stated dates of successful completion of facilities and Guarantee test and shall ensure all work, manufacture, shop testing, inspection and shipment of the equipment in accordance with the required construction/ erection sequence.

3.0 Within one month of the Notification of Award, the Contractor shall submit to the Employer for his review and approval two copies (one reproducible and one print) of detailed PERT Network schedules with master network activities further exploded based on the Master Network mutually agreed by the Employer and the Contractor, showing the logic and duration of the activities covered in both the First and Second Contracts in the following areas:

Engineering, procurement, manufacturing and supply, detailed engineering, procurement (including bought out items), manufacturing, despatch, shipment, receipt at site, field activities related to erection works, commissioning and completion of facilities and O&M.

4.0 Further, all engineering data related to civil input, interface engineering details, requiring employer's approval/information for items in the scope of Employer are to be given within the agreed schedule but in no case later than 45 days from the date of Notification of award. For bought out items, the contractor shall furnish the engineering input data to the employer within the agreed schedule but in no case later than 45 days from the date of placement of respective purchase order on the sub-vendors.

5.0 **Detailed Manufacturing Programme**

Detailed Manufacturing PERT Network for all the manufacturing activities at Contractor's/sub-Contractor's works shall also be furnished within 60 days of Notification of Award. The manufacturing network shall be supported by detailed procurement programme for critical bought out item/raw materials.

6.0 **Pre-Erection Activity Programme**

The erection network will be supported by detailed Pre-erection activity programme covering the following:

A) Manpower Deployment

B) T&P Mobilisation

C) Detailed Site Mobilisation

Any Tools & Plants (T&P) required for satisfactory execution of the contract and to meet the time schedule specified in this Appendix-4 shall be mobilised by the Contractor as per the directions of Project Manager without any extra cost to the Employer. (The list of such essential Tools & Plants (T&P) to be deployed by the Contractor, if any finalized before Notification of Award, shall be enclosed as Appendix-4B to this Appendix-4).

7.0 Within one week of approval of the network schedule, the Contractor shall forward to the Project Manager, copies of the Computer Initial run-Data. The type of outputs and number of copies of each type to be supplied by the Contractor shall be determined by the Project Manager.

8.0 All the networks shall be updated every month or at a frequency mutually agreed upon. Within seven days following the Monthly Review, a progress meeting shall be held, wherever possible at the works, wherein the major items of the plant or equipment are being produced. The meeting will be attended by the Project Manager and responsible representative of Contractor that the Project Manager consider necessary for the Meeting.

9.0 Access to the Contractor's and Sub-Contractor's work shall be granted to the Project Manager at all reasonable times for the purpose of ascertaining the progress.

MASTER NETWORK

The Master Network as per para 1.0 of this Appendix-4 shall be enclosed as Annexure-I to Appendix-4 of Contract Agreement

LIST OF SUB-CONTRACTORS

PART 1. **Nominated Sub-Contractors**

In the event the employer wishes to nominate any particular Sub-Contractors for the undertaking of any part or parts of the Works, these shall be identified and named by the Employer in the following schedule prior to the issue of the Bidding Documents.

Full details shall be given of the part of the Works to be executed, and the names and addresses of the Sub-Contractors to whom the part of the Works is to be sub-contracted by the Bidder. Where more than one name is given for any part of the Work, the Bidder shall be free to select any of the named Sub-Contractors for that part.

The Employer shall be responsible for ensuring that any Nominated Sub-contractor complies with the requirements of ITB Clause **8.2.4 (c)** (Eligible Bidders), but the Bidder shall be responsible for ensuring that any work. Materials or Services to be provided by the Nominated Sub-Contractor comply with the requirements of ITB Clause **8.2.4 (d)** (Eligible Plant and Services).

Item of Work Nominated Sub-Contractor

NIL

PART 2 **Approved Sub-Contractors**

Prior to award of Contract the following details shall be completed indicating those Sub-Contractors proposed by the Bidder by Attachment to his Bid which are approved by the Employer for engagement by the Contractor during the performance of the Work.

The following Sub-Contractors are approved for carrying out the item of work indicated. Where more than one Sub-contractor is listed, the Contractor is free to choose between them but he must notify the Employer of his choice in good time prior to appointing any selected Sub-Contractor. In accordance with Clause GCC 19.1, the Contractor is free to submit proposals for additional Sub-Contractors from time to time. No Sub-Contracts shall be placed with any such additional Sub-Contractors until they have been approved in writing by the Employer and their names added to this list of Approved Sub-Contractors.

Item of Work	Approved Sub-Contractors	Nationality

SCOPE OF WORKS AND SUPPLY BY THE EMPLOYER

The following facilities, works, supplies and personnel will be provided / supplied by the Employer and the provisions of GCC Clauses 10, 21 and 24 shall apply as appropriate.

All facilities, works, supplies and personnel as described herein will be provided by the Employer in good time so as not to delay the performance of the Contractor, in accordance with the approved Time Schedule and Programme of Performance pursuant to GCC Sub-Clause 18.2.

Facilities, works, supplies and personnel will be provided to the Contractor as identified hereunder:-

S.No.	Facilities	Charges to Contractor

Refer Section-VIA (Technical Specifications) in this Regard for 275MW Block

Refer Section-VIB (Technical Specifications) in this Regard for 225MW Block

LIST OF DOCUMENTS FOR REVIEW AND APPROVAL

A. Approval

1.

2.

3.

B. Review

1.

2.

3.

Note: This list of documents required for approval/review by the Employer shall be as per Technical Data Sheets duly filled in as per format enclosed in Bidding Documents and as finalised during the contract stage.

FUNCTIONAL GUARANTEES

(GUARANTEES, LIQUIDATED DAMAGES AND PERFORMANCE)

The bidder shall guarantee that the equipment offered shall meet the rating and performance requirements stipulated for various equipment covered in this specification. The functional guarantees shall be as per Section-VIA (Technical Specifications)

5. PERFORMANCE SECURITY FORMS

5A. Form of Bank Guarantee towards Performance Security (For First, Second and Third Contract)

(To be stamped in accordance with stamp Act if any, of the country of the issuing bank).

Bank Guarantee No. ………………………………
Date …………………………………………………

To,
[Employer's Name & Address]

Dear Sirs,

In consideration of the ....*[Employer's Name]........* (hereinafter referred to as the 'Employer' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having awarded to M/s ......*[Contractor's Name]*............ with its Registered /Head Office at .... (hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. .... dated........... and the same having been unequivocally accepted by the contractor, resulting into a Contract bearing No.............. dated .... valued at .... for ....[Name of the Contract]... and the Contractor having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract equivalent to ....(*).......% (.......... percent) of the said value of the Contract to the Employer.

We......................... *[Name & Address of the Bank]*................... having its Head Office at........................... (hereinafter referred to as the 'Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all monies payable by the Contractor to the extent of ....(*)................... as aforesaid at any time upto ....(@)...................... *[days/month/year]* without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the Employer and further agrees that the guarantee herein contained shall be enforceable till ninety (90) days after expiry of its validity.

The Employer shall have the fullest liberty, without affecting in any way the liability of the Bank under this guarantee, from time to time to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty, without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer. The Bank shall not be released of its obligations under these presents by any exercise by the Employer of its liberty with reference to the matters aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained hereinabove our liability under this guarantee is restricted to ....(*)......................... and it shall remain in force upto and including ....(@)..................... and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s ....*[Contractor's Name}*........... on whose behalf this guarantee has been given.

Dated this........................ day of .... 20................. at...

…………………………………………
(Signature)

…………………………………………
(Name)

…………………………………………
(Designation with Bank Stamp)

Authorized vide Power of Attorney No. ………………………

Date ……………………………………

Notes:

1. (*) This sum shall be Ten percent (10%) of the Contract Price.

   (@) This date will be ninety (90) days beyond the Defect liability period (for First/ Second Contracts) and ninety (90) days beyond the O&M Period (for Third Contract) as specified in relevant clause of SCC.

2. The Bank Guarantee shall be from a Bank as per provisions of Section-V (SCC) of the bidding documents.

3. The BG should be on Non-judicial stamp-paper/ e-stamp paper of appropriate value as per stamp Act prevailing in the state (s) where the BG is submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher. The stamp paper/ e-stamp paper shall be purchased in the name of bidder/ Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, the contractor is required to ensure compliance to the points mentioned in Form of Bank Guarantee/ Insurance Surety Bod/ Payment on Order Instrument Verification Check List. Further, the Contractor is required to fill up this Form and enclose the same with the Bank Guarantee.

5. In case, Bank Guarantee is getting issued from State Bank of India, Bidder to take note of NTPC letter ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 (attached with Section-V of Bidding Documents).

5B. Form of Insurance Surety Bond towards Performance Security
(For First, Second and Third Contract)

(To be stamped in accordance with Stamp Act of India)

Insurance Surety Bond No. ....
Date...

To,

[Employer's Name & Address]

Dear Sirs,

In consideration of the .... *[Employer's Name] ....* (hereinafter referred to as the 'Employer' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having awarded to M/s................... *[Contractor's Name]*........................... with its Registered /Head Office at .... (Hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. .... dated........... and the same having been unequivocally accepted by the contractor, resulting into a Contract bearing No............. dated..........., valued at .... for .... and the Contractor having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract equivalent to ....(*)..........% (.......... percent) of the said value of the Contract to the Employer.

We ....*[Name & Address of the Insurer]*.................having its Head Office at ....(hereinafter referred to as the 'Insurer', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all amount payable by the Contractor to the extent of ....(*)................... as aforesaid at any time up to ....(@)...................... *[days/month/year]* without any condition, demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Insurer shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Insurer undertakes not to revoke this Insurance Surety Bond during its currency and or any period extended under the contract, without prior consent of the Employer and further agrees that the guarantee herein contained shall be enforceable till ninety (90) days after expiry of its validity.

The Employer shall have the fullest liberty, without affecting in any way the liability of the Insurer under this Insurance Surety Bond, from time to time to extend the performance of the Contract by the Contractor for the purpose of which, the Insurer shall be liable to extend the validity of the present Insurance Surety Bond without any demur, condition, protest and the Insurer shall at no point in time have an option of revoking the same, The Employer shall have the fullest liberty, without affecting this Insurance Surety Bond, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer. The Insurer shall not be released of its obligations under these presents by any exercise by the Employer of its liberty with reference to the aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Insurer.

The Insurer also agrees and undertakes that the Employer at its option shall be entitled to enforce this Insurance Surety Bond against the Insurer as a Surety, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor’s liabilities.

Notwithstanding anything contained hereinabove our liability under this Insurance Surety Bond is restricted to ....(*)......................... and it shall remain in force upto and including ....(@)...................... and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s ....*[Contractor's Name]*............ on whose behalf this Insurance Surety Bond has been given.

Dated this .... day of .... 20................. at...

WITNESS :

1 ……………………………
(Signature)

……………………………
(Name)

……………………………
(Official Address)

……………………………
(Signature)

……………………………
(Name)

……………………………
(Designation with
Insurer Stamp)

Authorised vide Power of Attorney
No………………

Date……………………….

2 ……………………………
(Signature)

……………………………
(Name)

……………………………
(Official Address)

Notes :

1. (*) This sum shall be Ten percent (10%) of the Contract Price.

   (@) This date will be ninety (90) days beyond the Defect liability period (for First/ Second Contracts) and ninety (90) days beyond the O&M Period (for Third Contract) as specified in relevant clause of SCC.

2. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).

3. The Employer shall be the Creditor, the Contractor shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.

4. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Contractor/Insurer issuing the Insurance Surety Bond.

5. While getting the Insurance Surety Bond issued, the Contractor is required to ensure compliance to the points mentioned in Form of Bank Guarantee/ Insurance Surety Bond/ / Payment on Order Instrument Verification Check List. Further, the Contractor is required to fill up this Form and enclose the same with the Insurance Surety Bond.

5C. Form of Payment on Order Instrument Towards Performance Security To Be Issued By IREDA/REC/PFC

(To be stamped in accordance with Stamp Act of India)

POI No............
Date....................................

To,
[Employer's Name & Address]

Sub: M/s _______________(insert name of the Contractor/Supplier) – Issuance of Payment on Order Instrument for an amount of Rs…………….*…………_____________

Dear Sir

1. **It is to be noted that M/s. ____________*[insert name of the POI issuing Agency)('IREDA/REC/PFC']*------------- has sanctioned a non-fund based limit loan of Rs. _______*____ (Rupees____________only) to M/s _________________ under the Loan Agreement executed on ___________ to execute Renewable Energy Projects.**

2. **At the request of M/s ________________, on behalf of ________________*[insert name of the Contractor]*----------------, this Payment on Order Instrument (POI) for an amount of Rs. ______*_______(Rupees_________(in words)). This Payment on Order Instrument comes into force immediately.**
3. **In consideration of the ----- *[Insert name of the Contractor/Supplier]* ----- submitting the response to *-----[Name of the Package]*------ in response to the Bidding Document No……… dated………… issued by NTPC Renewable Energy Ltd (hereinafter referred as NTPC REL) and NTPC REL is considering such response to the Bidding Document of *………[insert the name of the selected Bidder]*------ (which expression shall unless repugnant to the context or meaning thereof include its executers, administrators, successors and assignees) and issuing Notification of Award No ------- to -----------*[Insert Name of Contractor/Supplier]* ------ as per terms of Bid and the same having been accepted by the selected successful contractor/supplier resulting into a Contract Bearing No. ………………….. dated …………... As per the terms of the Contract, the _______________ *[insert name & address of IREDA/PFC/REC]*----------- hereby agrees unequivocally, irrevocably and unconditionally to pay to NTPC REL at --------*[Insert Name of the Place from the address of the NTPC REL]*--------------- forthwith on demand in writing from NTPC REL or any Officer authorized by it in this behalf, any amount up to and**

not exceeding Rupees----*-- *[Total Value]*-------- only, on behalf of M/s __________ *[Insert name of the Contractor/Supplier]*--------.

4. In consideration of the above facts, IREDA/REC/PFC, having its registered office at _________________, agrees to make payment for the sum of Rs. _______*___ (in words…………………………….) to NTPC REL on the following conditions: -

(a) IREDA/REC/PFC agrees to make payment of the above said amount unconditionally, without demur and without protest within a period of 15 days of receipt of request from NTPC REL within the validity period of this letter as specified herein;

(b) The commitment of IREDA/REC/PFC, under this Payment of Order Instrument will have the same effect as that of the commitment under the Bank Guarantee issued by any Public Sector Bank and shall be enforceable in the same manner as in the case of a Bank Guarantee issued by a Bank and the same shall be irrevocable and shall be honored irrespective of any agreement or its breach between IREDA/REC/PFC or its constituents notwithstanding any dispute that may be raised by or against NTPC REL;

(c) The liability of IREDA/REC/PFC continues to be valid and binding on IREDA/REC/PFC and shall not be terminated, impaired and discharged, by virtue of change in its constitution and specific liability under letter of undertaking shall be binding on its successors or assignees;

(d) The liability of IREDA/REC/PFC shall continue to be valid and binding on IREDA/REC/PFC and shall not be terminated/ impaired/ discharged by any extension of time or variation and alternation made given or agreed with or without knowledge or consent of the parties (NTPC REL and Bidding Party), subject to the however to the maximum extent of amount stated herein and IREDA/REC/PFC is not liable to any interest or costs etc;

(e) This Payment on Order Instrument can be invoked either partially or fully, till the date of validity;

(f) IREDA/REC/PFC agrees that it shall not require any proof in addition to the written demand by NTPC REL made in any format within the validity period. IREDA/REC/PFC shall not require NTPC REL to justify the invocation of the POI against the successful contractor/supplier, to make any claim against or any demand against the contractor/supplier or to give any notice to the successful supplier/contractor;

(g) The POI shall be the primary obligation of IREDA/REC/PFC and NTPC REL shall not be obliged before enforcing the POI to take any action in any court or arbitral proceedings against the successful supplier/contractor;

(h) Neither NTPC REL is required to justify the invocation of this POI nor shall IREDA/REC/PFC have any recourse against NTPC REL in respect of the payment made under this POI;

(i). IREDA/REC/PFC agrees that the guarantee herein contained shall be enforceable till ninety (90) days after expiry of its validity.

5. Notwithstanding anything contrary contained anywhere in this POI or in any other documents, this POI is and shall remain valid upto_______@_________ and IREDA/REC/PFC shall make payment thereunder only if a written demand or request is raised within the said date and to the maximum extent of Rs…………*……………..and IREDA/REC/PFC shall in no case, be liable for any interest, costs, charges and expenses and IREDA's/REC's/PFC's liability in no case will exceed more than the above amount stipulated.

Dated this .... day of .... 20................. at...

Yours faithfully
For and on behalf of

M/s……………____________________
(name of the POI issuing agency)

....
(Signature)

....
(Name)

....
(Designation with Bank Stamp)

Authorised Vide Power of Attorney
No......................................

Date...

Notes :1. (*) This sum shall be ten percent (10%) of the Contract Price.

(@) This date will be ninety (90) days beyond the Defect liability period as specified in the Contract.

1. The POI should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the POI is submitted or is to be acted upon or the rate prevailing in State where the POI is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/POI issuing organization.

2. While getting the POI issued, the Contractor is required to ensure compliance to the points mentioned in Form of Bank Guarantee/Insurance Surety Bond/ POI Verification Check List. Further, the Contractor is required to fill up this Form and enclose the same with the POI.

5D. BG forwarding letter from Bank to NTPC REL in Bank's letterhead

To

NTPC Renewable Energy Limited,

____
____
____
____

Sub: Submission of Bank Guarantee No.	
Date of Issue	dd.mm.yyyy
Guarantee Amount	Currency Amount
Date of Expiry of BG	dd.mm.yyyy
Last date of lodgement of claim	dd.mm.yyyy
Name, Address and IFSC code of BG issuing Bank	*Name:* *Address:* *IFSC code:*
Contract/Letter of Award/PO No.	
Name & Address of the Applicant / Contractor	*Name:* *Address:*

We confirm that SFMS has been sent to your beneficiary bank as below:

Axis Bank Ltd, B2-B-3, Sector 16, Noida Gautam Buddha Nagar, UP 201301
IFSC Code: UTIB0000022

We also confirm the genuineness of the signatures appearing on the said guarantee/extension and further also confirm that the same has been signed by the competent authority of the bank.

Signature with Seal

6. BANK GUARANTEE FORM FOR ADVANCE PAYMENT

6a. Bank Guarantee Form for Advance Payment (Supply Ex-Works)

(To be stamped in accordance with Stamp Act if any, of the Country of the Issuing Bank)

To,
[Employer's Name & Address]

Dear Sir,

Bank Guarantee No............ Date....................................

In consideration of .... *[Employer's Name]*.......... (hereinafter referred to as the 'Employer', which expression shall, unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s........*[Contractor's Name]*......... with its Registered/Head Office at.............................. (hereinafter referred to as the 'Contractor' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract, by issue of Employer's Notification of Award No. .... dated .... and the same having been unequivocally accepted by the Contractor, resulting into a Contract bearing No. ....dated..............................valued at .... for...........................*[Name of Contract*]......................... (hereinafter called the 'Contract') and the Employer having agreed to make an advance payment to the Contractor for performance of the above Contract amounting .... (in words and figures) as an Advance against Bank Guarantee to be furnished by the Contractor.

We........*[Name and address of the Bank]............* having its Head Office at.. (hereinafter referred to as the 'Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, immediately on demand any or, all monies payable by the Contractor to the extent of .....*[advance amount plus GST]*......... as aforesaid at any time upto ....(@)...................... without any demur, reservation, contest, recourse or protest and/ or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. We agree that the guarantee herein contained shall be irrevocable and shall continue to be enforceable till the Employer discharges this guarantee.

The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee, from time to time to vary the advance or to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer.

The Bank shall not be released of its obligations under these presents by any exercise by the Employer of its liberty with reference to the matters aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matter or thing whatsoever which under law would but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained hereinabove our liability under this guarantee is limited to ....*[advance amount plus GST]*.......... and it shall remain in force upto and including ....(@)............................. and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s.....*[Contractor's Name]*..... on whose behalf this guarantee has been given.

Dated this .... day of .... 20 .... at.............. .

(Signature)...........................

(Name).................................

....
(Designation with Bank Stamp)

Attorney as per Power
of Attorney No..........
Dated.........................

Notes: 1. (@) This date shall be ninety (90) days beyond the date of Completion of the last facility covered under the Package.

2. The Bank Guarantee shall be from a Bank as per provisions of Section-V (SCC) of the bidding documents.

3. The BG should be on Non-judicial stamp-paper/ e-stamp paper of appropriate value as per stamp Act prevailing in the state (s) where the BG is submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher. The stamp paper/ e-stamp paper shall be purchased in the name of bidder/ Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, the contractor is required to ensure compliance to the points mentioned in Form 12 - Form of Bank Guarantee/ Payment on Order Instrument Verification Check List. Further, the Contractor is required to fill up this Form 12 and enclose the same with the Bank Guarantee.

5. In case of contract awarded to Joint Venture/consortium, wherever [Contractors Name] is appearing, name of all the partners of JV/Consortium will be mentioned with the name of place of Registered/Head office wherever applicable.

6(b) Bank Guarantee Form for Advance Payment
(Installation Services/Civil & Allied works/ Additional Advance Payment)

(To be stamped in accordance with Stamp Act, if any, of the country of issuing Bank)

To,
[Employer's Name & Address]

Dear Sir,

Bank Guarantee No............. Date.....................................

In consideration of .... *[Employer's Name]* .... (hereinafter referred to as the 'Employer', which expression shall, unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s .... (Contractor's Name) .... with its Registered/Head Office at .... (hereinafter referred to as the 'Contractor' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract, by issue of Employer's Notification of Award No. .... dated .... and the same having been unequivocally accepted by the Contractor, resulting into a Contract bearing No. .... dated .... valued at .... for ....*[Name of Contract*] .... (hereinafter called the 'Contract') and the Employer having agreed to make an interest bearing advance ('said Advance') to the Contractor amounting to .... (in words and figures) .... in terms of the said Contract for performance of the above Contract against Bank Guarantee to be furnished by the Contractor.

We .... *[Name and address of the Bank] ....* having its Head Office at .... (hereinafter referred to as the 'Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, immediately on demand any or, all monies payable by the Contractor to the extent of ***.........................[110% of advance amount plus GST as applicable]***................... as aforesaid alongwith interest @ ***"[SBI 1-year MCLR as on 01st April of applicable year + 100 bps]*** per annum on the advance amount released by the Employer calculated from the date of release of the said advance by the Employer to the Contractor, at any time upto ....(#) .... without any demur, reservation, contest, recourse or protest and / or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding as to the amount and interest claimed by the Employer under this guarantee notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the Employer and further agrees that the guarantee herein contained shall be enforceable till ninety (90) days after expiry of its validity.

The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee, from time to time to vary the advance or to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer. The Bank shall not be released of its obligations under these presents by any exercise by the Employer of its liberty with reference to the matters aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matter or thing whatsoever which under law would but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained hereinabove our liability under this guarantee is limited to ....***[110% of advance amount plus GST as applicable]***.......................... along with interest on the advance amount released by the Employer as aforesaid and it shall remain in force upto and including .... (#) .... and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s................................... (Contractor's Name)............................ on whose behalf this guarantee has been given.

Dated this .... day of .... 20 .... at ....

(Signature)...........................

(Name).................................

....
(Designation with Bank Stamp)

Attorney as per Power
of Attorney No..........
Dated.........................

Notes: 1. (#) This date shall be ninety (90) days beyond the date of Completion of the last Facilities.

2. The Bank Guarantee shall be from a Bank as per provisions of Section-V (SCC) of the bidding documents.

3. The BG should be on Non-judicial stamp-paper/ e-stamp paper of appropriate value as per stamp Act prevailing in the state (s) where the BG is submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher. The stamp paper/ e-stamp paper shall be purchased in the name of bidder/ Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, the contractor is required to ensure compliance to the points mentioned in Form 12 - Form of Bank Guarantee/ Insurance Surety Bond/ Payment on Order Instrument Verification Check List. Further, the Contractor is required to fill up this Form 12 and enclose the same with the Bank Guarantee.

5. In case of contract awarded to Joint Venture/consortium, wherever [Contractors Name] is appearing, name of all the partners of JV/Consortium will be mentioned with the name of place of Registered/Head office wherever applicable.

6C. BG forwarding letter from Bank to NTPC REL in Bank's letterhead

To

NTPC Renewable Energy Limited,

____

____

____

____

Sub: Submission of Bank Guarantee No.	
Date of Issue	dd.mm.yyyy
Guarantee Amount	Currency Amount
Date of Expiry of BG	dd.mm.yyyy
Last date of lodgement of claim	dd.mm.yyyy
Name, Address and IFSC code of BG issuing Bank	*Name:* *Address:* *IFSC code:*
Contract/Letter of Award/PO No.	
Name & Address of the Applicant / Contractor	*Name:* *Address:*

We confirm that SFMS has been sent to your beneficiary bank as below:

Axis Bank Ltd, B2-B-3, Sector 16, Noida Gautam Buddha Nagar, UP 201301
IFSC Code: UTIB0000022

We also confirm the genuineness of the signatures appearing on the said guarantee/extension and further also confirm that the same has been signed by the competent authority of the bank.

Signature with Seal

7. FORM OF COMPLETION CERTIFICATE

7. Form of Completion Certificate

Date: ______

NIT No: ____

[*Name of Contract]*

To: *[Name and address of Contractor]*

Dear Sirs,

Pursuant to GCC Clause 24 (Completion of the Facilities) of the General Conditions of the Contract entered into between yourselves and the Employer dated *[date]*, relating to the *[brief description of the facilities],* we hereby notify you that the following part(s) of the Facilities was (were) complete on the date specified below, and that, in accordance with the terms of the Contract, the Employer hereby takes over the said part(s) of the Facilities, together with the responsibility for care and custody and the risk of loss thereof on the date mentioned below.

1. Description of the Facilities or part thereof: *[description]*

2. Date of Completion: *[date]*

However, you are required to complete the outstanding items listed in the attachment hereto as soon as practicable.

This letter does not relieve you of your obligation to complete the execution of the Facilities including Guarantee Test(s) in accordance with the Contract nor of your obligations during the Defect Liability Period.

Very truly yours,

____

Title
(Project Manager)

8. FORM OF OPERATIONAL ACCEPTANCE CERTIFICATE

8. Form of Operational Acceptance Certificate

Date: ______

NIT No: ____

[Name of Contract]

To: *[Name and address of Contractor]*

Dear Sirs,

Pursuant to GCC Sub-Clause 25.3 (Operational Acceptance) of the General Conditions of the Contract entered into between yourselves and the Employer dated *[date]*, relating to the *[brief description of the facilities],* we hereby notify you that the Functional Guarantees of the following part(s) of the Facilities were satisfactorily attained on the date specified below.

1. Description of the Facilities or part thereof: *[description]*

2. Date of Operational Acceptance: *[date]*

This letter does not relieve you of your obligation to complete the execution of the Facilities in accordance with the Contract nor of your obligations during the Defect Liability Period.

Very truly yours,

Title
(Project Manager)
____

9. FORM OF TRUST RECEIPT

9. FORM OF TRUST RECEIPT FOR PLANT, EQUIPMENT AND MATERIALS RECEIVED

We M/s *(Contractor's Name)*.. having our Principal place of business at ....having been awarded a Contract No............................ dated .... for *(Contract Name)*... by *(Name of Employer)* .... do hereby acknowledge the receipt of the Plant, Equipment and Materials as are fully described and mentioned under Documents of Title/RR/LR etc. and in the schedule annexed hereto, which shall form an integral part of this receipt as "Trustee" of .... *(Name of Employer)*. The aforesaid materials etc. so received by us shall be exclusively used in the successful performance of the aforesaid Contract and for no other purpose whatsoever. We undertake not to create any charge, lien or encumbrance over the aforesaid materials etc, in favour of any other person/institution(s)/Banks.

For M/s ....

(Contractor's Name)

Dated: .... (AUTHORISED SIGNATORY)

10. FORM OF INDEMNITY-CUM-UNDERTAKING AGREEMENT

10. FORM OF INDEMNITY-CUM-UNDERTAKING AGREEMENT
FOR THE EQUIPMENT HANDED OVER BY THE EMPLOYER FOR PERFORMANCE OF ITS CONTRACT (ENTIRE EQUIPMENT CONSIGNMENT IN ONE LOT OR IN INSTALMENTS FOR PERFORMANCE OF ITS CONTRACT)
AND
FOR THE PLANT HANDED OVER BY EMPLOYER FOR PERFORMANCE OF ITS O&M CONTRACT (Entire Plant and Equipment & Mandatory Spares)
(On non-Judicial stamp paper of appropriate value)
INDEMNITY-CUM-UNDERTAKING AGREEMENT

THIS INDEMNITY-CUM-UNDERTAKING AGREEEMNT is made this .... day of .... 20................... between.......................... *(Contractor's Name)* a Company/Partnership Firm/ Proprietary Concern incorporated under the laws of ………………. having its Registered Office at.................................... (hereinafter called as 'Contractor' which expression shall include its successors and permitted assigns) and ……………… (*Name of Employer*), a Company incorporated under the Indian Companies Act having its Registered Office at... and its project at .... (hereinafter called “Employer” which expression shall include its successors and assigns):

WHEREAS the Employer has awarded to the Contractor a Contract for ....vide its Letter of Intent/ Notification of Award/Contract No................dated ....and its Amendment No. .... and Amendment No.................................., *(applicable when amendments have been issued)* (hereinafter called the “Contract") in terms of which EMPLOYER is required to hand over various Equipments under Supply Contract to the ‘Contractor’ for execution of the Contract.

And WHEREAS by virtue of Clause No........................... of the said Contract, the ‘Contractor’ and the ‘EMPLOYER’ are required to execute an Indemnity-Cum-Undertaking Agreement for the Equipments handed over to the ‘Contractor’ by EMPLOYER for the purpose of performance of the Contract/Erection portion of the Contract and O&M during Defect Liability period of the contract (hereinafter called the "Equipments")

.

AND THEREFORE, This Indemnity-Cum-Undertaking Agreement witnesseth as follows:

1.# That in consideration of various Equipments as mentioned in the Contract, a list whereof is also annexed to this Indemnity-cum-Undertaking Agreement at Schedule-A, valued at……… *(Currency and amount in………………Figures)*...*(Currency and amount in words)*.. handed over to the ‘Contractor’ for the purpose of performance of the Contract including O&M, the ‘Contractor’ hereby undertakes to indemnify and shall keep EMPLOYER indemnified, for the full value of the Equipments,. The Contractor hereby acknowledges actual receipt of the Equipments, etc. as detailed in the Schedule appended hereto. The ‘Contractor’ shall hold such Equipments, etc. in trust as a "Trustee" for and on behalf of EMPLOYER.

1.## That in consideration of various Equipments as mentioned in the Contract, a list whereof is also annexed to this Indemnity-cum-Undertaking Agreement at Schedule-A, valued at………. *(Currency and amount in………………Figures)*...*(Currency and amount in* *words)*.. handed over to the 'Contractor' for the purpose of performance of the Contract including O&M, the 'Contractor' hereby undertakes to indemnify and shall keep EMPLOYER indemnified, for the full value of the Equipments. The Contractor hereby acknowledges actual receipt of the initial installments of the Equipments, etc. as detailed in the Schedule appended hereto. Further, the 'Contractor' agrees to acknowledge actual receipt of the subsequent installments of the Equipments etc. and handing over of Solar Photo Voltaic Plant & Mandatory Spares as required by EMPLOYER in the form of Schedules consecutively numbered which shall be attached to this Indemnity-Cum-Undertaking Agreement so as form integral parts of this Indemnity-Cum-Undertaking Agreement. The 'Contractor' shall hold such Equipments, etc. in trust as a "Trustee" for and on behalf of EMPLOYER.

2. That the 'Contractor' is obliged and shall remain absolutely responsible for the safe transit/protection/custody/O&M of the Equipments at EMPLOYER's project site against all risks whatsoever till the Equipments are duly used/erected and till completion of Defect Liability Period in accordance with the terms of the Contract and the plant/package duly erected and commissioned in accordance with the terms of the Contract and is taken over by 'EMPLOYER' after Defect Liability Period. The 'Contractor' undertakes to keep 'EMPLOYER' harmless against any loss or damage that may be caused to the Equipments. Further, the Mandatory Spares shall be replenished by the Contractor as and when it is used and the Mandatory Spares in total quantity shall be returned to the Employer in working condition at the end of the O&M Period.

3. The 'Contractor' undertakes that the Equipments shall be used exclusively for the performance/execution of the Contract strictly in accordance with its terms and conditions and no part of the equipment shall be utilised for any other work of purpose whatsoever. It is clearly understood by the 'Contractor' that non-observance of the obligations under this Indemnity-Cum-Undertaking Agreement by the 'Contractor' shall inter-alia constitute a criminal breach of trust on the part of the 'Contractor' for all intents and purpose including legal/penal consequences.

4. That 'EMPLOYER' is and shall remain the exclusive owner of the equipments free from all encumbrances, charges or liens of any kind, whatsoever. The Equipments shall at all times be open to inspection and checking by the Project Manager or other employees/agents authorised by 'EMPLOYER' in this regard. Further, the 'EMPLOYER' shall always be free at all times to take possession of the Equipments in whatever form the Equipments Spares may be, if in its opinion, the equipments are likely to be endangered, misutilised or converted to uses other than those specified in the Contract, by any acts of omission or commission on the part of the Contractor or any other person or on account of any reason whatsoever and the Contractor binds himself and undertakes to comply with the directions of demand of 'EMPLOYER' to return the Equipments without any demur or reservation.

5. That this Indemnity-Cum-Undertaking Agreement is irrevocable. If at any time any loss or damage occurs to the Equipments or the some or any part thereof is mis-utilised in any manner whatsoever, then the 'Contractor' hereby agrees that the decision of the Project Manager / Engineer-In-Charge / Engineer of 'EMPLOYER' as to assessment of loss or damage to the Equipment shall be final and binding on the 'Contractor'. The 'Contractor' binds itself and undertakes to replace the lost and/or damaged Equipments at its own cost and/or shall pay the amount of loss to 'EMPLOYER' without any demur, reservation or protest. This is without prejudice to

any other right or remedy that may be available to 'EMPLOYER' against the 'Contractor' under the Contract and under this Indemnity-Cum-Undertaking Agreement.

6. NOW THE CONDITION of this Indemnity-Cum-Undertaking Agreement is that if the 'Contractor' shall duly and punctually comply with the terms and conditions of this Indemnity-Cum-Undertaking Agreement to the satisfaction of 'EMPLOYER', THEN, the above Indemnity-Cum-Undertaking Agreement shall become void after the due performance of the Contract, but otherwise, it shall remain in full force and virtue.

IN WITNESS WHEREOF, the 'Contractor' and 'EMPLOYER' has hereunto set its hand through their authorised representative, the day, month and year first above mentioned.

..	**…………………………**
(Contractor's Name)	***(Employer's name)***
Signature	Signature ....
Name	Name ....
Designation of	Designation of ....
Authorised representative *	Authorised representative *
WITNESS :	**WITNESS :**
1. Signature	1. Signature ....
2. Name	2. Name ....
3. Address	3. Address ....

----

* Indemnity-cum-Undertaking Agreement are to be executed by the authorised person and (i) in case of contracting Company under common seal of the Company or (ii) having the Power of Attorney issued under common seal of the company with authority to execute Indemnity-cum-Undertaking Agreement , (iii) In case of (ii), the original Power of Attorney if it is specifically for this Contract or a photostat copy of the Power of Attorney if it is General Power of Attorney and such documents should be attached to Indemnity-cum-Undertaking Agreement . In case of Employer, by the authorized representative of the Employer.

\# This para '1' is applicable in cases where entire equipment consignment in one lot is handed over to the contractor for performance of the contract.

\## this para '1' is applicable in cases where equipments are handed over to the contractor in instalments for performance of the contract'.

SCHEDULE - A

Particulars of the Equipments, Facilities & Mandatory Spares handed over	Quantity	Particulars of Despatch title Documents		Value (Rs.)	Signature of Attorney in token of receipt
		RR/GR/ Bill of lading No & Date	Carrier		

11. FORM OF AUTHORISATION LETTER

11. FORM OF AUTHORISATION LETTER
(NAME OF EMPLOYER)
(PROJECT ....)

REF. NO. :

DATE :

To,

M/s *(Contractor's Name)*..

Ref : Contract No.......................................Dated... for ....*[Contract Name]*.. awarded by *(Name of Employer)*

Dear Sirs,

Kindly refer to Contract No.............. Dated .... for..................... *(Contract Name)* You are hereby authorised on behalf of...................... *(Name of Employer)* having its registered office at ....and its Project at... to take physical delivery of materials/equipments covered under dispatch Document/ Consignment Note no................... *..............dated.............................. and as detailed in the enclosed Schedule for the sole purpose of successful performance of the aforesaid contract and for no other purposes, whatsoever.

(Signature of Project Authority) Designation:
.... Date..

ENCL: as above

---

* Mention LR/RR No.

SCHEDULE OF MATERIAL/EQUIPMENT COVERED UNDER DESPATCH TITLE DOCUMENT (RR NO./LR NO. ………………….

Sl. No.	Contract Name	NOA No./ Contract Agreement No.	Description of Materials/ Equipment	Spec. No.	Qty.	Value	Remarks

(SIGNATURE OF THE PROJECT AUTHORITY)

(Designation) ……………………………….

(Date) ………………………………………

12. FORM OF BANK GUARANTEE/ INSURANCE SURETY BOND/ PAYMENT ON ORDER INSTRUMENT VERIFICATION CHECK LIST

BANK GUARANTEE/ INSURANCE SURETY/ PAYMENT ON ORDER INSTRUMENT CHECKLIST

1.	Bank Guarantee/ Insurance Surety Bond/ Payment on Order Instrument No.	
2.	Issuing Bank/ Insurer/ POI issuing Organization	
3.	Amount of BG/ Insurance Surety Bond / Payment on Order Instrument	
4.	Nature of BG/ Insurance Surety Bond/ Payment on Order Instrument & No of Pages	
5.	Validity of BG/ Insurance Surety Bond/ Payment on Order Instrument.	
6.	Package Description	
7.	Party & Contracts ref.	Name, Address, Tel, Fax, E-mail
8.	Bank / Insurer / POI issuing Organization Reference	Name, Address, Tel, Fax, E-mail

CHECK LIST

Sl. No.	Details of checks	YES / NO
a)	Is the BG/ Insurance Surety Bond/ Payment on Order Instrument on non-judicial stamp paper/ e-stamp paper of appropriate value, as per Stamp Act?	
b)	Whether date, purpose of purchase and name of the purchaser are indicated on the stamp paper? (The date of purchase of stamp paper should be of any date on or before the date of execution of BG/ Insurance Surety Bond/ Payment on Order Instrument and the stamp paper should be purchased either in the name of the executing Bank/ Insurer / POI issuing Organization or the party on whose behalf the BG/ Insurance Surety Bond/ Payment on Order Instrument has been issued. The stamp papers (other than e-stamp paper) should be duly signed by the stamp vendor.)	
c)	In case of BG/INSURANCE SURETY BONDs from Bank/Insurance Company abroad, has the BG/ INSURANCE SURETY BOND been executed on Letter Head of the Bank/Insurance Company?	
d)	Has the executing Officer of BG/ Insurance Surety Bond/ Payment on Order Instrument indicated his name, designation and Power of Attorney No./ Signing Power no. etc., on the BG/ Insurance Surety Bond/ Payment on Order Instrument?	
e)	Is each page of BG/ Insurance Surety Bond/ Payment on Order Instrument duly signed / initialed by executant and whether stamp of Bank/ Insurer is affixed thereon? Whether the last page is signed with full particulars under seal of Bank/ Insurer/ POI issuing Organization as required in the prescribed proforma?	
f)	Does the Bank Guarantees/ Insurance Surety Bond/ Payment on Order Instrument compare verbatim with the Proforma prescribed in the Bid Documents?	

g)	Are the factual details such as Bid Document No., NOA/LOA/ Contract No./ PO number, Contract Price, Percentage of Advance, Amount of BG/ Insurance Surety Bond/ Payment on Order Instrument and Validity of BG/ Insurance Surety Bond/ Payment on Order Instrument correctly mentioned in the BG/ Insurance Surety Bond/ Payment on Order Instrument?	
h)	Whether overwriting/cutting if any on the BG / Insurance Surety Bond/ Payment on Order Instrument have been properly authenticated under signature & seal of executant?	
i)	Whether the BG/ Insurance Surety Bond/ Payment on Order Instrument has been issued by a Bank in line with the provisions of Bid/ Contract documents?	
j)	In case BG/ Insurance Surety Bond has been issued by a Bank other than those specified in Bid/Contract Document, is the BG/ Insurance Surety Bond confirmed by a Bank in India acceptable as per Bid/ Contract documents?	

Date : Signature ....

Place : Printed Name ....

(Designation) ....

(Common Seal) ....

Note: The Bidder is required to fill up this form and enclose along with the Bank Guarantee/Insurance Surety Bond.

13A. FORM OF VALIDITY EXTENSION OF BANK GUARANTEE/ INSURANCE SURETY BOND / PAYMENT ON ORDER INSTRUMENT

13A. FORM OF VALIDITY EXTENSION OF BANK GUARANTEE/ INSURANCE SURETY BOND/ PAYMENT ON ORDER INSTRUMENT

(On Non-judicial stamp paper of appropriate value)

Ref. No.: Date: @

Dear Sirs,

Subject : Extension of Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument No. ………..dated for …..*[indicate value of Bank Guarantee/Insurance Surety Bond*]………………….favouring yourselves expiring on …………..on account of M/s……………… *[Name of Bidder]*…………….in respect of Contract for ………*[Insert Package name]* ……………*[Insert Project Name]*……. project, Contract No………. dated ……… (hereinafter called original Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument)

At the request of M/s ……………… we ……….Bank/ Insurer/ Organisation branch office …… at ……….. and having its Head office at …………do hereby extend our liability under the above mentioned guarantee/ bond/ instrument No………….. dated …………for a further period of …………year/ months from ………to expire on . …………..

Except as provided above, all other terms and conditions of original Bank Guarantee/ Insurance Surety Bond / Payment on Order Instrument No. …………. dated ……….. shall remain unaltered and binding.

Please treat this as an integral part of the original guarantee/ bond/ instrument to which it would be deemed to have been attached.

…………………………. (Signature)
…………………………. (Name)
…………………………..
(Designation with Bank/ Insurer/ Organisation Stamp)

Authorised vide Power of Attorney No……...Date…………

Dated ……………..

SEAL OF BANK/ INSURANCE COMPANY / ORGANISATION

Note:

1. @ The extension of the Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument should be forwarded to the Unit/ Project/ Corporate Centre, from where the extension has been sought.
2. The extension of BG/ Insurance Surety Bond/ Payment on Order Instrument should be on Non-Judicial stamp paper/ e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG/ Insurance Surety Bond/ Payment on Order Instrument is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/Bank/ Insurer/ Organization issuing the guarantee/ surety.

13. FORM OF VALIDITY EXTENSION OF BANK GUARANTEE/ INSURANCE SURETY BOND/ PAYMENT ON ORDER INSTRUMENT

13. FORM OF VALIDITY EXTENSION OF BANK GUARANTEE/ INSURANCE SURETY BOND/ PAYMENT ON ORDER INSTRUMENT

(On Non-judicial stamp paper of appropriate value)

Ref. No.: Date: @

Dear Sirs,

Subject : Extension of Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument No. ………..dated for …..*[indicate value of Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument*]………………….favouring yourselves expiring on …………..on account of M/s……………… *[Name of Bidder]*…………….in respect of Contract for ………*[Insert Package name]* ……………*[Insert Project Name]…….* project, Contract No………. dated ……… (hereinafter called original Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument)

At the request of M/s ……………… we ……….Bank branch office …… at ……….. and having its Head office at …………do hereby extend our liability under the above mentioned guarantee/ Insurance Surety Bond/ Payment on Order Instrument No………….. dated …………for a further period of …………year/months from ………to expire on . …………..

Except as provided above, all other terms and conditions of original Bank Guarantee/ Insurance Surety Bond/ Payment on Order Instrument No. …………. dated ……….. shall remain unaltered and binding.

Please treat this as an integral part of the original guarantee to which it would be deemed to have been attached.

………………………….
(Signature)
………………………….
(Name)
…………………………..
(Designation with Bank/ Insurer/ Organisation Stamp)

Authorised vide Power of Attorney No……...Date…………

Dated ……………..

SEAL OF BANK/INSURANCE COMPANY / ORGANISATION

Note:
1. '@' The extension of the Bank Guarantee/Insurance Surety Bond/ Payment on Order Instrument should be forwarded to the Unit/ Project/Corporate Centre, from where the extension has been sought.
2. The extension of BG/Insurance Surety Bond/ Payment on Order should be on Non-Judicial stamp paper/ e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG/Insurance Surety Bond/ Payment on Order Instrument is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/Bank/ Organisation issuing the guarantee.

14. FORM OF INDEMNITY-CUM-UNDERTAKING AGREEMENT [FOR REMOVAL / DISPOSAL OF SCRAP / SURPLUS MATERIAL]

14. FORM OF INDEMNITY-CUM-UNDERTAKING AGREEMENT WITH REGARD TO REMOVAL/DISPOSAL OF SCRAP/SURPLUS MATERIAL

(TO BE EXECUTED ON STAMP PAPER OF APPROPRIATE VALUE)

INDEMNITY-CUM-UNDERTAKING AGREEMENT

THIS INDEMNITY-CUM-UNDERTAKING AGREEMENT executed this ....day of...................... 20 .... between ....*(Name of Company)* .... a Company /Partnership Firm / Proprietary Concern incorporated under the laws of ……………………… having its Registered Office(s) at .... (Office Address) .... hereinafter called the 'Contractor' (which expression shall, unless excluded by or repugnant to the context, be deemed to mean and include its successors, administrators, executors and permitted assigns)

AND

M/s. .... having its registered office at .... (hereinafter referred to as 'Employer').

1. 'Employer' has awarded the 'Contractor', contract for execution of work ("Scope of Work") as mentioned in the contract agreement no. .... dated ...., entered into between 'Employer' and 'Contractor', relating to .... (Name & Address of Project/Station) .... (hereinafter called 'the Project').

2. The 'Contractor' for the purpose of execution of its Scope of Work had from time to time procured and stored .... (Details of Material) .... at the Project Site.

3. After completion of the Scope of Work by 'Contractor', it has been identified that scrap .... (Details of Scrap Material & its quantity) .... and/or surplus .... (Details of Surplus Material & its Quantity) .... belonging to 'Contractor' is lying at the said Project Site.

4. Now, the scrap .... (Details of Scrap Material & its Quantity) .... and/or surplus .... (Details of Surplus Material & its Quantity) .... belonging to the 'Contractor', requires to be removed by 'Contractor' from the Project Site.

NOW THEREFORE THIS INDEMNITY-CUM-UNDERTAKING AGREEMENT WITNESSETH AS UNDER:

1. That 'Contractor' by way of this Indemnity-cum-Undertaking Agreement requests 'Employer' to issue necessary exit gate pass(es) in favour of 'Contractor' for removal of scrap...................... (Details of Scrap Material & its Quantity) .... and/or surplus .... (Details of Surplus Material & its Quantity) .... belonging to 'Contractor', from the project.

2. That as per Employer's procedure, 'Contractor' shall ensure loading of trucks for clearing of its scrap .... (Details of Scrap Material & its Quantity) .... and/or surplus .... (Details of Surplus Material & its Quantity) .... by itself, as aforesaid, under the supervision of Employer or its authorized representative.

3. That 'Contractor' in consideration of the premises above, for itself and its respective, executors, administrators and assigns, jointly and severally agree and undertake from time to time and at all times hereafter to indemnify 'Employer' and keep 'Employer' indemnified from and against all claims, demands, actions, liabilities and expenses which may be made or taken against or incurred by 'Employer' by reason of the issue of necessary gate pass(es) by 'Employer' and permitting 'Contractor' to remove scrap .... (Details of Scrap Material & its Quantity) .... and/or surplus .... (Details of Surplus Material & its Quantity) .... belonging to 'Contractor', from the project.

4. That 'Contractor' undertakes to indemnify and keep 'Employer' harmless from any act of omission or negligence on the part of the 'Contractor' in following the statutory requirements with regard to removal/disposal of scrap and surplus belonging to 'Contractor', from the Project Site aforesaid, by

the ‘Contractor’. Further, in case the laws require ‘Employer’ to take prior permission of the relevant Authorities before handing over the scrap and/or surplus to the ‘Contractor’, the same shall be obtained by the ‘Contractor’ on behalf of ‘Employer’.

IN WITNESS WHEREOF, the ‘Contractor’ and the ‘Employer’, through their authorized representative, have executed these presents on the Day, Month and Year first mentioned above at .... (Name of the Place) ....

For and on behalf of	**For and on behalf of**
...	**……………………….**
(Contractor's Name)	***(Employer’s name)***
Signature	Signature ....
Name	Name ....
Designation of	Designation of ....
Authorised representative *	Authorised representative *
WITNESS :	**WITNESS :**
1. Signature	1. Signature ....
2. Name	2. Name ....
3. Address	3. Address ....

----

* Indemnity-cum-Undertaking Agreement are to be executed by the authorised person and (i) in case of contracting Company under common seal of the Company or (ii) having the Power of Attorney issued under common seal of the company with authority to execute Indemnity-cum-Undertaking Agreement , (iii) In case of (ii), the original Power of Attorney if it is specifically for this Contract or a photostat copy of the Power of Attorney if it is General Power of Attorney and such documents should be attached to Indemnity-cum-Undertaking Agreement. In case of Employer, by the authorized representative of the Employer.

15. FORM OF BANK GUARANTEE BY ASSOCIATE/ COLLABORATOR

-NOT APPLICABLE-

16. FORM OF NOTIFICATION BY THE EMPLOYER TO BIDDER

FOR

FORFEITURE OF BID GUARANTEE AMOUNT

16. FORM OF NOTIFICATION BY THE EMPLOYER TO THE BIDDER

M/s ……………………………

Ref. Your proposal against our IFB No. ………………………………
Forfeiture of Bid Guarantee amount.

Dear Sirs,

Whereas you have furnished as a part of your proposal the Bid Guarantee in the form of irrevocable and confirmed Bank Guarantee/ Insurance Surety Bond/ POI No. ……………………… dated ………………….. …………………………………………………………… for a sum of ……………………………(Bank's/ Insurance Agency/ PO Issuing Organisation name) ………………………………………..payable to ………………………………….. (Name of the Employer) on demand without any reservation, demur or protest, contest and recourse At …………………………………………………………………………………………….. (Name and place of Bank)

In terms of the aforesaid Bid Guarantee, we do hereby forfeit the Guarantee amount.

For ……………. (Name of the Employer)

(AUTHORISED SIGNATORY)

N.B. The Bank Guarantee/ Insurance Surety Bond/ POI should not stipulate any other proforma of notification different from this format. No change whatsoever in the said proforma is acceptable to the Employer.

17. FORM OF JOINT DEED OF UNDERTAKING

-NOT APPLICABLE-

18. BANK GUARANTEE FORM
FOR QUOTED GENERATION CORRESPONDING TO DC:AC SPECIFIED IN TECHNICAL SPECIFICATIONS (AS PER SCC 8.0)

18.A PROFORMA BANK GUARANTEE FORM FOR QUOTED GENERATION CORRESPONDING TO DC:AC ratio specified in Technical Specifications as per SCC 8.0

(To be stamped in accordance with Stamp Act)

Ref. .... Bank Guarantee No. .... Date..........................

To
[Employer's Name & Address]

Dear Sirs,

In consideration of the ……………., (hereinafter referred to as the 'Employer', which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s. .... with its Registered/Head Office at .... (hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. .... dated .... and the same having been unequivocally accepted by the Contractor resulting in a 'Contract' bearing No. .... dated .... valued at .... for ....(name of contract).......................... and the Contractor having agreed to provide a Security for solar plant in case DC:AC ratio is more than reference figure as specified at Section - VI (Technical Specifications) of the Contract, for amount of INR…………#………….. to the Employer.

We .... , having its Head
(Name & Address)
Office at .... (hereinafter referred to as the 'Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all monies payable by the Contractor to the extent of .... as aforesaid at any time upto ....@......................(day / month / year).................... without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and Contractor or any dispute pending before any court, tribunal or any other authority. The Bank undertakes not to revoke this guarantee during its currency without, previous consent of the Employer and further agrees that the guarantee herein contained shall continue to be enforceable till the Employer discharges this guarantee.

The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee from time to time to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty, without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course of or remedy or security available to the Employer. The Bank shall not be released of its obligations under these presents by any exercise by the Owner of its liberty with reference to the matters aforesaid or any of them or by reason of any other acts of omission or commission on the part of the Employer or any other indulgence shown by the Owner or by any other matters or thing whatsoever which under law, would, but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the Employer at its option shall be entitled to enforce this guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained herein above our liability under this guarantee is restricted to .... and it shall remain in force upto and including .... and shall be extended from time to time for such period, as may be desired by M/s. .... whose behalf this guarantee has been given.

Dated this .... day of .... 20 .... at ....

(Signature)...........................

(Name)................................
....
(Designation with Bank Stamp)

Attorney as per Power
of Attorney No..........
Dated........................

Note:

1. # This amount shall be as per technical specifications:

2. @This date shall be 12 Months beyond the scheduled date for Completion of Facilities covered under the Contract. The bidder is required to submit the extension of this security(s) till the end of the Performance Guarantee for the Solar PV Project specified in the Contract. However, in case of delay in completion of the Performance Guarantee test, the validity of security shall be extended by the period of such delay. The above Security against Annual Quoted Generation for the package shall be released after successful completion of Performance Guarantee test.

3. While getting the bank guarantee issued, bidders are required to ensure compliance to the points mentioned at 'Bank Guarantee / Insurance Surety Verification Bond Check List'.

4. The BG should be on Non-judicial stamp-paper/ e-stamp paper of appropriate value as per stamp Act prevailing in the state (s) where the BG is submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher. The stamp paper/ e-stamp paper shall be purchased in the name of bidder/ Bank issuing the guarantee.

18.B PROFORMA INSURANCE SURETY BOND FORM
FOR QUOTED GENERATION CORRESPONDING TO DC:AC ratio specified in Technical Specifications as per SCC 8.0

(To be stamped in accordance with Stamp Act)

Ref. .... Insurance Surety Bond No. .... Date..........................

To
[Employer's Name & Address]

Dear Sirs,

In consideration of the ……………., (hereinafter referred to as the 'Employer', which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s. .... with its Registered/Head Office at .... (hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. .... dated .... and the same having been unequivocally accepted by the Contractor resulting in a 'Contract' bearing No. .... dated .... valued at .... for ....(name of contract).......................... and the Contractor having agreed to provide a Security for solar plant in case DC:AC ratio is more than reference figure as specified at Section - VI (Technical Specifications) of the Contract, for amount of INR…………#………….. to the Employer.

We .... , having its Head
(Name & Address)
Office at .... (hereinafter referred to as the 'Insurer', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all monies payable by the Contractor to the extent of .... as aforesaid at any time upto ....@......................(day / month / year).................... without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Insurer shall be conclusive and binding notwithstanding any difference between the Employer and Contractor or any dispute pending before any court, tribunal or any other authority. The Insurer undertakes not to revoke this guarantee during its currency without, previous consent of the Employer and further agrees that the guarantee herein contained shall continue to be enforceable till the Employer discharges this guarantee.

The Employer shall have the fullest liberty without affecting in any way the liability of the Insurer under this guarantee from time to time to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty, without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course of or remedy or security available to the Employer. The Insurer shall not be released of its obligations under these presents by any exercise by the Owner of its liberty with reference to the matters aforesaid or any of them or by reason of any other acts of omission or commission on the part of the Employer or any other indulgence shown by the Owner or by any other matters or thing whatsoever which under law, would, but for this provision, have the effect of relieving the Insurer.

The Insurer also agrees that the Employer at its option shall be entitled to enforce this guarantee against the Insurer as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained herein above our liability under this guarantee is restricted to .... and it shall remain in force upto and including .... and shall be extended from time to time for such period, as may be desired by M/s. .... whose behalf this guarantee has been given.

Dated this .... day of .... 20 .... at ....

(Signature)...........................

(Name)................................
....
(Designation with Insurer Stamp)

Attorney as per Power
of Attorney No..........
Dated........................

Note:

1. # This amount shall be as per technical specifications:

2. @This date shall be 12 Months beyond the scheduled date for Completion of Facilities covered under the Contract. The bidder is required to submit the extension of this security(s) till the end of the Performance Guarantee for the Solar PV Project specified in the Contract However, in case of delay in completion of the Performance Guarantee test, the validity of security shall be extended by the period of such delay. The above Security against Annual Quoted Generation for the package shall be released after successful completion of Performance Guarantee test.

3. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).

4. The Employer shall be the Creditor, the Contractor shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.

5. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Contractor/Insurer issuing the Insurance Surety Bond.

6. While getting the Insurance Surety Bond issued, the Contractor is required to ensure compliance to the points mentioned in Form of Bank Guarantee/ Insurance Surety Bond Verification Check List. Further, the Contractor is required to fill up this Form and enclose the same with the Insurance Surety Bond.

19. PROFORMA FOR JOINT UNDERTAKING FOR AMC OF CRITICAL EQUIPMENT FOR STIPULATED DURATION BEYOND O&M PERIOD

PROFORMA FOR JOINT UNDERTAKING FOR AMC OF CRITICAL EQUIPMENT FOR STIPULATED DURATION BEYOND O&M PERIOD

(On non-judicial stamp paper of appropriate value)

In consideration of the NTPC Renewable Energy Limited, (hereinafter referred to as the 'Employer', which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s. .... with its Registered/Head Office at.. (hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. .... dated .... and the same having been unequivocally accepted by the Contractor resulting in a 'Contract'
bearing No. .... dated...................... valued at............................... for................ (Scope of Contract)......................... and the Contractor for providing **Annual Maintenance Contract (AMC) of Critical Equipment for Stipulated Duration beyond O&M Period** as specified in the Bidding Documents.

Contractor further agrees to the bidding document that the AMC of Inverter*/SCADA*/PPC System*/Dry Robotic Cleaning System*/Tracker*/ CCTV System* shall be carried out through its vendor M/s……………………………………with its Registered/Head Office at.. (hereinafter referred to as the 'OEM', which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns). Contractor and OEM shall be jointly and severely liable to undertake the responsibility outlined in bidding document.

IN WITNESS WHEREOF, the ‘Contractor’ and the ‘OEM’, through their authorized representative, have executed these presents on the Day, Month and Year first mentioned above at .... (Name of the Place) ....

For and on behalf of	**For and on behalf of**
...	**………………………**
(Contractor's Name)	***(OEM’s name)***
Signature	Signature ....
Name	Name ....
Designation of	Designation of ....
Authorised representative	Authorised representative

WITNESS :	WITNESS :
1. Signature	1. Signature ....
2. Name	2. Name ....
3. Address	3. Address ....

* Please strike off whichever not applicable. Separate Joint undertaking is required to be furnished for aforesaid equipments.

20. FORM OF STAGE CLOSING ACTIVITIES

Form No. 20A
Proforma of Certificate regarding Labour Payments and Statutory requirements to be furnished by the Contractor

NAME OF PACKAGE:

LETTER OF AWARD/ NOA/CONTRACT NO. :

NAME OF CONTRACTOR: **DATED:**

This is to certify that we have made all labour payments including PF Liabilities in respect of the above mentioned LOA/ Contract and no other payments in this regard is pending from us.

Further, we confirm that all statutory requirements have been complied with by us and in case any default is reported against us, we shall be solely responsible for the same.

Signature:

Name:

Designation:

Date:

Place:

Form No. 20B
Proforma of "No Demand Certificate" by the Contractor.

NAME OF PACKAGE:

LETTER OF AWARD/ NOA/CONTRACT NO. :

NAME OF CONTRACTOR: **DATED:**

We, M/s... (Contractor) do hereby acknowledge and confirm that we have received the full and final payment due and payable to us from NTPC Renewable Energy Ltd. in respect of our aforesaid LOA/Contract No.................................... dated................................including amendments, if any, issued by NTPC Renewable Energy Ltd., to our entire satisfaction and we further confirm that we have no claim whatsoever pending with NTPC Renewable Energy Ltd. under the said Contract.

Notwithstanding any protest recorded by us in any correspondence, document, measurement books, and/or final bills etc., we waive all our rights to lodge any claim or protest in future under this contract.

We are issuing this "NO DEMAND CERTIFICATE" in favour of NTPC Renewable Energy Ltd. with full knowledge and with our free consent without any undue influence, misrepresentation, coercion etc.

Signature:

Name:
Designation:

Date:

Place:

(This certificate shall be accompanied by the Power of attorney of the signatory)

21. UNDERTAKING FOR INDEMNIFYING THE EMPLOYER AGAINST ANY ENCUMBRANCE ON THE PROJECT LAND TRANSFERRED/ LEASED TO EMPLOYER IN RESPECT OF DEVELOPMENT OF THE SOLAR PV PROJECT

-NOT APPLICABLE-

Form-22 Certificate from Bank regarding BG Charges

TO WHOMSOEVER IT MAY CONCERN

This is to certify that we have issued/ extended/ amended Bank Guarantee (BG) Number………………………….. amounting to..(in number and words in Contract Currency) in favour of NTPC Renewable Energy Limited on behalf of M/S
…………………… ……….. (Contractor name) vide their request reference…………..
dated……………….. (DD/MM/YYYY) for the period (from).............. (to)............

We confirm that the bank commission (excluding Stamp paper, Out of Pocket Expenses (OPE) and GST on OPE) amounting to ....(amount and currency) for issuance/ extension/ amendment of the aforesaid BG have been recovered from M/s ....(Contractor name).

We further confirm that the commission charged on issuance/ extension/ amendment of the aforesaid BG is as per the prescribed rates of the Bank. Further the commission charged by the Bank as per card rates / sanctioned rates is customer/ borrower specific and is uniform for all BGs issued at the request of said customer/ borrower irrespective of beneficiary.

Chief Manager/Branch Manager

SS No: -

ABC Bank Ltd

New Delhi.

(With Seal of Bank Official)

Form-23A

DECLARATION OF ABSENCE OF CONFLICT OF INTEREST WITH CONCILIATION COMMITTEES OF INDEPENDENT EXPERTS (CCIE)

To :

[Employer's Name and Address]

Dear Sirs,

1.0 We, M/s ... . (Name of the Contractor) have been awarded the contract for ……………………………………………………… (Name of the package) vide Notification (s) of Award No……… dated…….

2.0 As per the provisions of the contract, we hereby propose the following CCIEs, in priority order, as per the list enclosed in the Special Conditions of Contract, as amended from time to time by Ministry of Power, for finalization of CCIE by CEA:

1…………………..
2………………….
3……………………

3.0 We confirm that we do not have any conflict of interest with the aforesaid experts and they have not been engaged for providing any services to us in the last five years.

4.0 We confirm that in case of any form of conflict of interest (possible or actual) which may inadvertently emerge during the conciliation proceedings by CCIE, the same will be duly reported to you.

5.0 We understand that Employer may withdraw from the conciliation proceedings, if any conflict of interest with us is found out which have been intentionally concealed, and the matter may be referred to Ministry of Power. Further, action may be taken against us in respect of Fraud Prevention Policy of Employer.

Date :
Place :

Signature ....
Printed Name ....
(Designation) ....
(Common Seal) ....

Form-23B

UNDERTAKING REGARDING ABSENCE OF CONFLICT OF INTEREST WITH EMPLOYER/CONTRACTOR

To :
[Employer's Name and Address]*

Dear Sirs,

1.0 I, …………*………..(Name of the selected CCIE member), understand that conflict of interest refers to situations in which financial or other personal considerations may compromise my recommendations in relating to resolution of disputes between Employer and M/s ……*…….(Name of the Contractor).

2.0 I confirm that I do not have any conflict of interest with Employer and M/s ……*…….(Name of the Contractor) and I have not been engaged for providing any services to them in the last five years.

3.0 I confirm that in case of any form of conflict of interest (possible or actual) which may inadvertently emerge during my tenure as CCIE member, the same will be duly reported to Employer /CEA/Ministry of Power.

4.0 I understand that Employer may withdraw from the conciliation proceedings, if any conflict of interest with me is found out which have been intentionally concealed, and the matter may be referred to Ministry of Power.

Date : Signature ....
Place : Name ....

*to be filled by DRC.